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House of Representatives

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mr. CORREA).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
January 11, 2022.

I hereby appoint the Honorable J. LUIS CORREA to act as Speaker pro tempore on this day.

NANCY PELOSI,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 10, 2022, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with time equally allocated between the parties and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 11:50 a.m.

FIGHTING FOR WORKING FAMILIES

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Illinois (Mrs. BUSTOS) for 5 minutes.

Mrs. BUSTOS. Mr. Speaker, I rise today to mark the beginning of my final year in Congress. Throughout my five terms, I have always made working families my number one priority.

So, in my final year, what is at the top of my list to make sure that I am focusing on? Well, right now it is reinstating the child tax credit that just expired this month. Hardworking families who are just trying to get by have come to count on that support month to month since we passed that last year.

Now, there are 71,000 families, just in the congressional district that I serve, who won't see that deposit into their bank account starting this month. So let's get to work.

In Illinois, more than half of the children living in poverty don't have a seat in the pre-K classroom. So let's get to work.

Parents across our Nation are spending a good chunk of their take-home pay for the childcare that they need in order to be able to go to work, and it is our job to help make that more affordable. So let's get to work.

I have got 1 year left in Congress and so much to accomplish, so I say to my own staff, I say to myself, I say to everybody in this body, let's get to work.

KEEPING SCHOOLS OPEN MUST BE A PRIORITY

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from North Carolina (Ms. FOXX) for 5 minutes.

Ms. FOXX. Mr. Speaker, against science and common sense, many traditional government schools continue to shut children out of the classroom.

The Biden administration has repeatedly put the political agenda of teachers' unions above the needs of children.

Throughout this pandemic, the Biden administration has ignored the concerns of parents and has, instead, crafted its COVID–19 school guidelines in accord with the demands of union bosses.

The Biden administration's Centers for Disease Control and Prevention consulted American Federation of Teachers, AFT, President Randi Weingarten for help in shaping guidance on school reopening. Entrusting a union boss and major campaign donor to make public health decisions is completely unacceptable.

Teachers' unions took full advantage of the pandemic. They bullied and coerced the Biden administration until they got almost everything they asked for. Anytime the Biden administration resisted their demands, these unions had a meltdown, publicly shaming the administration, staging sick-outs, and making their demands even more elaborate and unreasonable.

According to CDC guidance, schools can safely stay open. The data proves that schools are not and have never been a major vector of spread. Yet, even with all the scientific data, teachers' unions are holding their ground at the cost of students' well-being.

This pandemic has taken a major toll on young people. Children, who are at the lowest risk of being made seriously ill by COVID–19, have been forced out of the classrooms by the demands of teachers' unions.

Forcing students to learn behind a screen has led to devastating consequences. According to a report by Curriculum Associates, the number of students testing at two or more grade levels below their own grade has significantly increased since the pandemic. The numbers are worse for students who are already at risk.

For example, 49 percent of third graders who come from low-income areas are now two or more grade levels behind in reading and math. This is an increase of 10 to 12 percent since before the pandemic began.

Because of school closures, many students have also been suffering from isolation, depression, and anxiety. It was alarming to read that the number of ER visits for suspected suicide attempts by teenage girls rose from early 2019 to early 2021 by 51 percent.

This is a public health crisis in and of itself yet one that is being ignored by many of the decisionmakers at both the national and local level in favor of special interest groups like the AFT.

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That is why Republicans at the Education and Labor Committee have been fighting so hard to keep schools open. We know the stakes are high.

This pandemic has made it abundantly clear that teachers' unions, as well as the education establishment, have too much power. Neither union bosses nor bureaucrats in Washington should be able to keep our children from the classroom. Access to education is an important right in this country, one that teachers' unions are belittling with their outrageous demands.

What has the outsized influence of teachers' unions produced? Less school choice, falling education standards, explicit material in school libraries, critical race theory-inspired curriculum, and years of learning loss.

Teachers' unions have become far less about protecting teachers or students and far more about promoting a left-wing political agenda. This was made clear when the teachers' unions in several major cities joined forces with the Democratic Socialists of America to demand an eviction moratorium and an end to voucher programs as conditions for reopening schools.

The longer we let these union bosses take advantage of this pandemic, the worse off our students will be. Students should no longer take a back seat to politics or special interests.

It is time to stop catering to teachers' unions and to start serving the needs of students.

RECOGNIZING EDUCATORS AND SCHOOL STAFF

The SPEAKER pro tempore. The Chair recognizes the gentleman from Michigan (Mr. LEVIN) for 5 minutes.

Mr. LEVIN of Michigan. Mr. Speaker, I rise today to recognize the resilient, dedicated, and understandably exhausted, yet unflagging, educators and school staff across the Nation.

I have spent my career advocating for an equitable education system, and I am a proud dad of four children who are products of Michigan public schools. In fact, my daughter Molly is currently a high school junior who is set to graduate next year. I can hardly believe it.

That is why I have been especially disheartened when I meet regularly with educators and superintendents in Macomb and Oakland Counties and hear stories of how these frontline workers navigate from one crisis to another, seemingly without end. From multiple COVID–19 waves and politicization of commonsense public health measures, like masking and vaccines, to mass shootings, like the Oxford High School tragedy in my home county of Oakland County that we are still mourning, and startling learning loss and social delays.

Mr. Speaker, our educators, school staff, and administrators are not catching a break. They are working tirelessly and meeting daily, even over holiday breaks, to make sure they can provide the best learning environment for our students. Across the board, they reported trouble finding teachers, finding bus drivers, finding kitchen staff and everything in between.

Our students are returning to the classroom with immense needs in the midst of a teacher and substitute shortage. All manner of staff and administrators, including even superintendents themselves, are stepping up and entering the classroom as substitutes.

One thing is very clear: We need a societal shift to address the issues around staffing, attendance, learning loss, and the social and mental health needs of our students. As the omicron variant continues to surge, we must prioritize education and consider it a sacred public good instead of an industry, and value our educators and school staff by providing living wages, safe work environments, and ending the attacks on educators and their unions.

The pandemic has exposed long-simmering problems, as crises are wont to do. It is a time for a fundamental reset; time for us to realize that, while markets do a great job of distributing goods and services across the society, there are a few social goods that should not be determined by market forces but, rather, lifted up above them as a way to protect our democracy and make the healthy functioning of markets possible in the first place.

One is public safety. Another is access to quality healthcare for every person. A third is an excellent public education for every child, from preschool to community college.

We cannot continue to put our educators through the wringer. Longtime professionals in my district tell me they are hearing from new teachers who say they won't last a couple of years, much less decades.

My response was this: We must restore the education profession; the dignity of the education profession; the worth and the standing of the education profession, no matter how difficult it is. We must train teachers and prepare them for success, offer them appropriate pay and benefits, and support them, not only in the classroom, but in our society with the dignity and respect they deserve.

As a member of the House Education and Labor Committee, I urge my colleagues to join me in continuing the fight for robust investments and just policies to make sure our country, our economy, and our education system work for every American, not just the wealthy few.

THE DRUG CRISIS IS DECIMATING COMMUNITIES

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. JOYCE) for 5 minutes.

Mr. JOYCE of Pennsylvania. Mr. Speaker, I rise to address the drug crisis that is decimating communities and destroying families.

Earlier this month, the CDC released data showing that fentanyl overdoses are now the number one killer of Americans ages 18 to 45: number one killer. This data is tragic. No family should have to deal with the sudden loss of a loved one.

Fentanyl is often ingested unknowingly, and a dose smaller than the size of a penny can be lethal.

In 2021, President Biden swung open the doors to our southern border, and the impact of that continues to be negative. That decision invited drug traffickers into our country. Last year, Border Patrol agents seized enough fentanyl to kill every man, woman and child in my home State of Pennsylvania.

We cannot solve this crisis while our borders remain open. We cannot solve this crisis while the Biden administration fails to act.

This deadly drug will continue to pour into our country if we fail to build the wall. It will continue to pour into our country if we do not get the border agents the support and the tools that they need.

This issue is far too important to continue to ignore. Our communities continue to suffer. Congress should act now to make fentanyl analogs a schedule one narcotic.

The Biden administration must secure our southern border. Our communities, they are counting on us to act. We can no longer continue to let them down.

SCHOOLS NEED CRITICAL INVESTMENTS

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Texas (Ms. GARCIA) for 5 minutes.

Ms. GARCIA of Texas. Mr. Speaker, I rise today to call attention to the critical investments we are making in our schools. Schools are the pillars of our communities. They are the places where our children learn and grow every day. Making sure that these spaces are safe for our Nation's children is one of our most important responsibilities.

Unfortunately, Mr. Speaker, many of these facilities are not up to the task. School boards have been sounding the alarm for years about lead pipes, poor air quality, and now COVID–19 issues hurting our children's education. And for too long, help has not come.

□ 1015

But this month, during School Board Recognition Month, I am proud to be able to tell schools in my district and around the country that help is on the way.

Thanks to the Infrastructure Investment and Jobs Act, passed by this Chamber, we are bringing billions of dollars to make safe, healthy schools for our kids. That means billions of dollars to remove dangerous lead pipes

from schools; millions of dollars to buy masks and protective equipment for teachers, staff, and students; and millions of rapid, accurate COVID tests so everyone can get tested and stay safe.

We are also investing billions to improve air quality in schools across America.

The impact of these investments cannot be overstated. We all know how dangerous lead contamination is for our kids. Lead poisoning can cause developmental problems, mental and physical health issues, and even death. No child should be poisoned by their own school water fountain—not in Texas, not in America, not anywhere. That is why this law is investing $2.9 billion to replace lead pipes in Texas schools and make sure our children have clean, safe drinking water.

It is for those same reasons, Mr. Speaker, that we are also putting tax dollars to work for cleaner air in schools. Poor air quality hurts students every day, making it harder to learn and contributing to illnesses like asthma.

Recently, poor air circulation and filters have been driving up COVID–19 cases in schools. We can keep our kids safe in their schools by installing better filters that clean out the COVID virus before it travels between classrooms; we can keep our kids safe by providing them and their teachers with masks to help stop the spread; and we can keep our kids safe by making sure that if anyone does feel sick, they can immediately get a free COVID test.

There are over 193,000 schoolchildren in my district. I am proud that the investments we are making will help each and every one of them. These are important measures we are taking right now to make schools safe and a great place to learn and grow for our students, for the teachers, the bus drivers, the cafeteria workers, and all those that keep our schools open and safe.

Houston ISD alone has over 29,000 employees working hard every day for our kids. They have been on the front lines of this pandemic, helping our children stay on track, even as this disease has disrupted almost everything in their lives. It is absolutely vital that we bring these important tools for safe schools to them as well. Making sure that our educators and staff have rapid tests, masks, and vaccines will keep everyone in schools stay safe and healthy.

But we must also finish the job and build back better, which will include billions for universal pre-K, which boosts our education system, and reinstate the child tax credit, which will lift children out of poverty.

I am proud of the work of this Congress, and I am proud of the critical investments to my district, in our schools, in Texas, and across the country.

We have made incredible progress this past year to help our educators, our students, and our communities bounce back from COVID–19. I am thankful for the hard work of President Biden and my colleagues in the House and the Senate. Thanks to our collective efforts, students, teachers, and faculty will have safe schools, clean water, and a brighter future.

CONGRATULATING MALCOLM MEYER

The SPEAKER pro tempore. The Chair recognizes the gentleman from Texas (Mr. ARRINGTON) for 5 minutes.

Mr. ARRINGTON. Mr. Speaker, I rise today to honor a great man, a devoted father and husband, a selfless leader, and a legend in Louisiana real estate law.

Malcolm Meyer graduated magna cum laude from Tulane University, graduated from Tulane Law School, and then served 4 years as a JAG officer in the United States Navy.

Malcolm Meyer practiced law over 30 years, taught and mentored students as an adjunct professor, and he became a leading expert in his field, literally writing the book on real estate transaction law in Louisiana, the widely read and referenced ''Malcolm's Manual on Louisiana Real Estate.''

Malcolm has used his vast knowledge and expertise not only to better his colleagues and his profession, but to help the disadvantaged in his community. Most notably, following the tragedy of Hurricane Katrina, Malcolm spent countless hours of pro bono work protecting the property and belongings of the most vulnerable in his State.

He has been recognized over the years for his outstanding volunteer service by organizations, including Louisiana Appleseed Foundation, Louisiana Land Title Association, and the prestigious George Herbert Walker Bush's Points of Light.

On December 29, Malcolm was named the recipient of the 2021 Louisiana Land Title Association Lifetime Achievement Award.

Strong countries and vibrant communities, Mr. Speaker, are not established merely because of good laws but because of good men whose hearts are devoted to the sum of all laws: Love thy neighbor as thyself.

That is Malcolm Meyer to his core, and I know that unequivocally, Mr. Speaker, because he is my father-in-law. I am so proud of him, and I want to congratulate Big Mouse and send our best. We love Big Mouse, and it is a well-deserved recognition.

RECOGNIZING DON MCBEATH

Mr. ARRINGTON. Mr. Speaker, I rise today to recognize an outstanding west Texan, a great partner in delivering rural healthcare solutions, and a dear friend, Don McBeath.

Don is retiring from his role as director of government relations for the Texas Organization of Rural and Community Hospitals, what we refer to as TORCH, where he has been a champion for over 150 rural hospitals since 2007.

Prior to his time with TORCH, Don blazed the trail in telehealth by serving as the director of telemedicine and rural health at the Texas Tech University Health Sciences Center. Before that, he served as a judge and several years in the DA's office.

I wish Don and Beverly all the best as they move into the next chapter of their lives. I thank Don for his friendship and his tremendous contributions to rural west Texas.

CONGRATULATING CASH PATTEN AND BERKLEY WATERS

Mr. ARRINGTON. Mr. Speaker, rodeo is not just a sport; it is a way of life and a heritage in the Lone Star State. I am pleased to see this time-honored tradition is being kept alive by the next generation of Texans.

I rise today to recognize the accomplishments of two outstanding west Texans, 9-year-old Berkley Waters of Lubbock and 12-year-old Cash Patten of New Home. Berkley and Cash, two great cowboy names, recently competed in the barrel racing finals in the Junior World Finals rodeo in Las Vegas.

West Texans are known for being hardworking, tough, and undeterred. Cash and Berkley have these qualities, Mr. Speaker, in spades. Their commitment to these virtues and their craft has allowed them to perform at the highest level and on the biggest stage in their sport.

I want to congratulate Berkley and Cash for all their hard work and what they have been able to accomplish at a young age.

God bless America and go west Texas.

HONORING SENATOR HARRY REID

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Nevada (Mrs. LEE) for 5 minutes.

Mrs. LEE of Nevada. Mr. Speaker, I rise today to pay tribute to Nevada's longest-serving Senator, Harry Reid, who passed away on December 28, with his beloved children: Lana, Key, Josh, Leif, and Rory; and his devoted wife of 62 years, Landra, by his side. My condolences and prayers are with them all and with the countless people whose lives he has changed, his friends, staff, and all of those in the great State of Nevada.

This tribute could be about Senator Reid being the most consequential Senate majority leader in modern history. It could also be about how Senator Reid was the true embodiment of what it meant to be battle born, a boxer as a young man who never backed down from a good fight for the least among us.

It could be about the story of his American Dream, rising out of severe poverty in Searchlight, Nevada; hitchhiking 40 miles to school; working as a Capitol Police Officer to put himself through law school, to becoming one of the most powerful political leaders of our time.

It could also be about his legislative accomplishments, such as the Affordable Care Act, which gave millions of

Americans access to affordable healthcare, saving our economy during the Great Recession, taking on Wall Street, or making sure that Nevada would not become the Nation's nuclear waste dumping ground.

However, I want to focus on Senator Reid's role in advancing women in politics.

In Nevada, Senator Reid is known for his quiet yet sometimes curt demeanor; his incredible, strategic mind; and his work ethic beyond compare.

He built a team, known as Team Reid, that has roots throughout this Capitol, throughout Nevada, and throughout this country, which will have an impact long beyond his life.

There is no doubt that Senator Reid was a visionary when it came to politics. His vision in making sure that women had a runway into politics has left an indelible mark.

Within his own legendary team, women occupied the most senior posts. At the same time, Senator Reid recruited and mentored women up and down the ballot. It is no surprise, therefore, that Nevada became the first State to have a woman-majority State legislature. We have a woman-majority supreme court, as well as a woman-majority congressional delegation, with two female Senators, CORTEZ MASTO and ROSEN.

Harry Reid's devotion to Landra is legendary. Perhaps it was her enormous role in his life and his utter respect for her as a partner that seeded his unspoken yet strong commitment to women's leadership. Maybe it was the role that his mother played, raising him out of extreme poverty in Searchlight, Nevada. Whatever the motivation, the results speak for themselves.

Growing up in Searchlight, Harry Reid was given a nickname, Pinky. I am not sure what it referred to, and I actually don't think he particularly liked it. But as Senator Reid lies in state in our Nation's Capitol this week, this woman, who benefited from his mentorship and guidance, will believe that perhaps that nickname was a premonition of his role in changing the face of leadership in Nevada and this country.

We all know that Senator Reid was infamous for not saying goodbye. I myself was the recipient of that dial tone on many occasions. But those occasions were because he never failed to pick up the phone when I called for advice. I will miss those phone calls, but I will take this opportunity to say goodbye to a man who showed how to fight for the little guy; a man who could take a punch and outwork anyone; a man who led through example of compassion and strength.

I say goodbye to Senator Reid and thank him.

RECOGNIZING NATIONAL HUMAN TRAFFICKING DAY

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Florida (Mrs. CAMMACK) for 5 minutes.

Mrs. CAMMACK. Mr. Speaker, today, I rise to recognize National Human Trafficking Day. This issue, the issue of human trafficking, is not a Republican or Democrat issue. It is an American issue. It is a human issue.

That is why today I am proud to wear blue to show my support to all those fighting this terrible scourge and also to the victims of trafficking, to stand in solidarity as we fight for resources and support and also to educate fellow Members and citizens about this terrible scourge. We need to be loud.

Trafficking occurs in every State, in every district, and in every city, which is why every single Member here today needs to come together as we fight this modern-day slavery.

I look forward to working with my colleagues on both sides of the aisle as we work to strengthen resources for those on the front lines and continue to expose the awful scourge of modern-day slavery that we know as trafficking.

HONORING CORPORAL DUANE DEWEY

Mrs. CAMMACK. Mr. Speaker, I rise today to honor the life and service of a remarkable American hero. Corporal Duane Dewey of the United States Marine Corps embodied what it meant to be an American soldier and patriot.

A Bronze Star and Purple Heart recipient, Corporal Dewey displayed courageous and meritorious actions during his service in the Korean war. Already riddled from shrapnel from a grenade, Corporal Dewey used his own body as a human shield and covered a grenade as it exploded. In doing so, he protected his fellow soldiers and showed true sacrifice in service. Miraculously, he survived.

In 1953, President Eisenhower presented Corporal Dewey with the Medal of Honor and described his remarkable service as ''indomitable courage, outstanding initiative, and valiant efforts on behalf of others in the face of almost certain death reflect the highest credit upon Corporal Dewey.''

Now, after 26 years serving in the Marine Corps Corporal Dewey retired and spent many winter seasons in my home county of Alachua. He was well known in the veteran community and throughout Florida for his incredible bravery during battle and as an example of giving one's all for their Nation, no questions asked.

Mr. Dewey recently passed away after a long and distinguished life of service. His life will be remembered through the many people who had the honor of meeting and knowing Corporal Dewey and through the Duane E. Dewey AMVETS Post 1988 of Baldwin, where many of his service records are on display.

We will continue to thank today but also every day the brave men and women of the U.S. Armed Forces, like Corporal Dewey, for their service and sacrifice on behalf of our Nation.

God bless Corporal Dewey. May he rest easy.

□ 1030

CONGRATULATING JEB SMITH

Mrs. CAMMACK. Mr. Speaker, I rise to congratulate the newest president of the Florida Farm Bureau, Mr. Jeb Smith. Before his election to this position, Mr. Smith served on the State board of the Florida Farm Bureau and on the Putnam-St. Johns County Farm Bureau board of directors.

Jeb's family has over a century of experience farming in Florida. Their current cattle, hay, and sod operation in St. Johns County have been going strong for decades, and their operation will be recognized next year as a Century Pioneer Family Farm.

Mr. Smith started as a volunteer leader with the Florida Farm Bureau and, in the following decades, has been recognized as the Florida Farm Bureau Outstanding Young Farmer, among many other accolades.

In addition to serving as the bureau's president, Jeb is also a St. Johns County commissioner and a board member of the Rodeheaver Boys Ranch. He also founded the God's Way Baptist Church in Hastings and has served as its pastor.

I am sure that his wife of 27 years, Wendy, and his four children are proud of his accomplishments.

Congratulations to my friend, President Smith, on his election. I wish him the best as he leads the Florida Farm Bureau and the incredible people who continue to champion our farmers, ranchers, and producers in Florida. We wish Jeb the very best of luck and offer him our congratulations.

PASSING VOTING RIGHTS LEGISLATION IS ONLY OPTION

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Texas (Ms. JACKSON LEE) for 5 minutes.

Ms. JACKSON LEE. Mr. Speaker, ''We the people of the United States, in order to form a more perfect union, establish justice, ensure domestic tranquility, provide for the common defense, promote the general welfare, and secure the blessings of liberty to ourselves and our posterity, do ordain and establish this Constitution for the United States of America.''

Formulated by the people of the United States to create a more perfect union—we know these words. They are the core of our being. Our Nation of over 300 million people embraces diversity and individualism, has birthed a citizenry that speaks many languages, holds a plethora of deep religious beliefs, or none, and practices customs and traditions originating on distant shores.

We are unique. African Americans, in particular, have a unique history embedded in slavery, discrimination, and the denial of our rights, but voting rights have been our refuge.

Today I rise and say there is no option other than passing the John Robert Lewis Voting Rights Advancement

Act and the Freedom to Vote Act. There is no option. We do not just survive; our Nation thrives because of our shared belief that helps us against all odds. It helped us in World War I and World War II and the conflicts in and around. It helps us in wars where we have lost our young men and women.

We have a country formed out of many to become one people. Americans share the same compact that we are a nation of laws that flow from the most crucial and fundamental law, the Constitution of the United States.

The impact of the Constitution and its basic premise can be summarized by the simple belief that every individual is entitled to an equally valid vote.

We saw in 2020 that fragile vote that saw the largest turnout in any Presidential election in the history of the United States—that is a very long time—challenged from its very beginning, challenged on the day of the election, continued to be challenged and misrepresented and distorted, and election officials attacked and intimidated, even removed from office.

So I stand today on the shoulders not only of Dr. Martin Luther King, who I view, in fact, as a modern-day prophet; and our own colleague, John Robert Lewis; but I stand on the shoulders of a widow, Coretta Scott King, who I got to know in the aftermath of her husband's death. She worked without ceasing to have his principles, his values, his understanding of the ''beloved community'' recognized and to continue the sense of the rightness and righteousness of voting.

I had the privilege of working for the Southern Christian Leadership Conference. It will always be a special part of my history. I had the privilege of working with individuals with names that we know, the young Hosea Williams, James Orange, some of the generals and foot soldiers that were in the army of Dr. Martin Luther King's beloved America.

Yes, I had the privilege—I call it that—of walking on plantations to try to register Black sharecroppers frightened and intimidated, though dignified, to vote. Their intimidation was real because those who owned the general store or the plantation were not eager for those Blacks in the South to vote or for those Hispanics and others who worked, as Dr. King worked, with Cesar Chavez and the farmworkers. They were not eager for them to vote.

Today, as we are about to watch as a step is to be made, both in terms of the speech of a President and Vice President but the actual vote in the Senate, we cannot isolate ourselves to focus on one or two persons. We really have to focus on who we are as a Nation, that this vote binds us together. It is the voice of the people.

And the Constitution, it trumps any figment of our imagination that may consider something legitimate. The filibuster is not legitimate. It is a rule of one body of this Congress. It is a rule that we adhere to, as civil people do. We adhere to rules. We adhere to those in this House. I agree with that until a rule is used to trump and deny the basic constitutional values of the 14th Amendment and the Fifth Amendment of due process and equality, as it was utilized in the 20th century by segregationist Senators to deny civil rights laws.

Mr. Speaker, it is important that I stand here today on Coretta's name and Martin's name and Bobby's name and John's name, that we must demand courage. To not vote for the Voting Rights Act is not an option. I will not allow that to happen because I will stand with every breath in my body to ensure that the American people can vote without intimidation, and they will be intimidated without the laws of the John R. Lewis Voting Rights Advancement Act and as well the Freedom to Vote Act.

LISTENING TO CONCERNS OF KANSAS' BIG FIRST

The SPEAKER pro tempore. The Chair recognizes the gentleman from Kansas (Mr. MANN) for 5 minutes.

Mr. MANN. Mr. Speaker, I want to take the opportunity today to speak directly on behalf of my constituents and their concerns.

Each year I make a point to host a townhall in all 63 counties of the Big First District because visiting with and listening to Kansans, who I have taken an oath to serve, is one of the greatest joys of my work as a Member of Congress.

So far in 2022, I have hosted seven of these townhalls. At each meeting, I heard the same concerns echoed: government spending, labor shortages, vaccine mandates, and the next farm bill.

Kansans believe that government spending is out of control, and I agree with them. One of our country's fastest growing expenses is just the interest payments on our national debt, which is estimated to be $562 billion for fiscal year 2021 alone. You could fund the entire Department of Agriculture more than twice over for that amount.

Given this situation, this administration's spending, as we have seen in the bloated Build Back Better plan, is shortsighted and dangerous. Wild discretionary government spending has weakened our great country and, not only that, spending on some programs during the pandemic has incentivized staying at home instead of returning to work.

Kansans believe that labor shortages are hurting Americans, and I agree with them. People can't find bus drivers to take their kids to school or sanitation workers to pick up their trash. Meanwhile, inflation is at a 40-year high; grocery store staples are up over 12 percent; and people's essential goods, like car parts and refrigerators, are still stuck on cargo ships. We are in an economic crisis, and this administration has yet to act meaningfully to combat the effects.

Kansans believe that vaccine mandates are unconstitutional, and I agree with them. Anyone who wants to get a vaccine should be able to get one in this country, but it is not the Federal Government's job to dictate personal healthcare choices of the American people. Vaccine mandates are a terrible idea for the present situation in this country, as they will only continue to strip the workforce of even more people.

Kansans are also worried about the next farm bill, particularly as it relates to crop insurance and the Livestock Indemnity Program, and I share these concerns. The 2018 farm bill did not include any major changes to Federal crop insurance, which provides a robust and strong safety net for farmers across the country.

I also want to ensure that the Livestock Indemnity Program remains intact, as it offered critical support to folks in my district after natural disasters like the recent wildfires that we saw last month.

Farmers and producers are rightfully concerned that the 2023 farm bill could see significant changes. However, given that fact, House Democrats have held zero farm bill implementation hearings so far.

My goal is to do everything within my power for my constituents to ensure that no significant changes are made to reduce either of these essential components in the next farm bill.

The new year, which has just begun, brings with it a hope for change and growth. If we have been dissatisfied with the course of our lives or that of our Nation, January ushers in a fresh start. It gives us an opportunity to examine ourselves and to reassess our goals and ambitions. Most of all, the new year reminds us of the greatest privileges we have, living in a free nation where we have the right to life and to liberty and to pursue happiness as we see fit.

As we begin the second year of the 117th Congress, I want to reiterate my dedication to serving my constituents in the Big First. I am fighting to preserve the foundation of our free Nation and to protect your values.

Kansas is still the pilot light of freedom for America. As long as it continues to burn, I believe that our brightest days are yet to come.

CREATING THE CONGRESSIONAL FFA CAUCUS

Mr. MANN. Mr. Speaker, I stand today to invite all of my colleagues to join me and 30 other Representatives from both sides of the aisle in the newly formed Congressional FFA Caucus. Representative PANETTA and I established this caucus to serve as an informal group dedicated to issues affecting the next generation of agriculture leaders and students pursuing careers in agriculture, food, natural resources, and related sciences.

As a past FFA chapter president from Quinter, Kansas, and a member of the House Agriculture Committee, I am dedicated to raising awareness

about school-based agricultural education, FFA, and the next generation of leaders who will feed, fuel, and clothe the world.

The National FFA Organization is a congressionally chartered school-based national youth leadership development organization that plays an integral role in preparing the next generation of leaders who will change the world.

I sincerely hope my colleagues in the House will consider joining our caucus to support agriculture and the students who are passionate about it.

REFLECTING ON DEMOCRATIC ACHIEVEMENTS OF PAST YEAR

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from North Carolina (Ms. MANNING) for 5 minutes.

Ms. MANNING. Mr. Speaker, as Congress reconvenes for the Second Session of the 117th Congress, I want to take a moment to reflect on the important achievements that the Democrats have made this past year.

The pandemic continues to be a challenge, but thanks to the funding provided by the Democrats' American Rescue Plan Act, the vast majority of Americans have been vaccinated and are protected from severe illness, hospitalization, and death.

We must also acknowledge that the Democrats' commitment to building back stronger and more equitably than before has resulted in unprecedented economic recovery from the initial impact of the pandemic.

Last month, the unemployment rate fell to 3.9 percent, the largest calendar-year decrease in the unemployment rate in history. We reached this rate 5 years before experts anticipated. That is the result of adding 6.4 million jobs to the economy since President Biden took office, regaining 84 percent of the jobs lost during the pandemic.

This economic boom was brought to you by President Biden and the Democrats in Congress who voted for the American Rescue Plan.

The American Rescue Plan supercharged our economic recovery by providing critical support to small businesses as they navigated the pandemic. It expanded the child tax credit, which helped families put food on the table and pay for childcare. It provided rent assistance so families could keep their housing.

Now, the bipartisan infrastructure law is creating millions of good-paying jobs while rebuilding our Nation's crumbling infrastructure and combating the climate crisis.

Through the American Rescue Plan and the bipartisan Infrastructure Investment and Jobs Act, Democrats have delivered for the American people and created historic economic growth.

We have more important work to do. We must encourage the Senate to pass the voting rights protections that we in the House passed months ago that are critical to ensure that all citizens can exercise their most precious right to vote.

I look forward to working with my colleagues to continue our important work, building back stronger and more equitably than ever before.

□ 1045

RECOGNIZING TAYLORVILLE JUNIOR HIGH SCHOOL'S SEVENTH GRADE GIRLS' BASKETBALL TEAM

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. RODNEY DAVIS) for 5 minutes.

Mr. RODNEY DAVIS of Illinois. Mr. Speaker, I rise today to recognize my hometown Taylorville Junior High School's seventh grade girls' basketball team on their 2021 State championship win.

After a back and forth game, the score was tied at 16–16 with 4 seconds to go. The Tornadoes came out triumphant after Grace Rogers hit a clutch shot.

The seventh grade girls' basketball team ends their season with an overall record of 26–2. This team's hard work, dedication, and sportsmanship shine throughout our entire Taylorville community.

I give a big tip of the hat and personally congratulate my good friend and head coach, Doug Bowsher. I congratulate all the girls on this wonderful, championship team for their hard work and dedication, and I am excited to see what the future holds for this championship Taylorville Tornado team.

CONGRATULATING DAVID BROWN

Mr. RODNEY DAVIS of Illinois. Mr. Speaker, I rise today to congratulate my good friend David Brown for his retirement after more than 30 years at WAND in Decatur, Illinois.

David's ancestors moved from New Hampshire to Illinois in 1867 in a search for new farming opportunities. David is a centennial farmer, and his son is the sixth generation from his family to farm in central Illinois. After graduating from Millikin University, David also worked at WSOY radio.

David first joined the WAND news team as an ag reporter when the Farm Progress Show came to central Illinois in 1991. At WAND, many of his colleagues described him as a mentor, a friend, and one of the hardest workers they have come to know.

Throughout David's tenure at the station, he was loved by all and received an award for Media Excellence in Agriculture. According to David, he had the best of both worlds, working at his passion, and then getting to share the importance of agriculture with the viewers as a farmer and as an ag broadcaster.

Mr. Speaker, I congratulate David on his retirement. It is well deserved. Now David has a little more time to spend with his four children and six grandchildren.

RECOGNIZING RAY AND BARBIE SWINDA

Mr. RODNEY DAVIS of Illinois. Mr. Speaker, I rise today to recognize Decatur residents Ray and Barbie Swinda and their Facebook page, Support Decatur IL Business.

Ray his wife, Barbie, have been using their Facebook page to show off local Decatur businesses and restaurants they have been enjoying, and encouraging others in the community to follow their lead in buying and eating local.

Ray and his wife started their page in response to larger chains harming the diversity of options for food and services in the Decatur area that Ray remembers existing as a kid. Many of the businesses that have been featured on their page have been shocked by the increase in traffic. Ray and Barbie have received responses from others in the community, including Mayor Julie Moore Wolfe herself, and have become local leaders simply through their work in promoting local businesses and restaurants.

I urge everybody, if you are traveling through Decatur, Illinois, and you want a good recommendation, go visit Ray and Barbie's Facebook page, and you will see some great plates of delicious food.

I also personally congratulate Ray and Barbie on the success of their Facebook page and thank them for being pillars of the community and encouraging so many others to invest in our local businesses.

CONGRATULATING THE GEORGIA BULLDOGS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Georgia (Mr. CARTER) for 5 minutes.

Mr. CARTER of Georgia. Mr. Speaker, I rise today to celebrate as a proud alumnus of the recently crowned 2022 College Football National Champions, the Georgia Bulldogs.

Going 12–1 on the season, the Georgia Bulldogs came into Indianapolis to face the Alabama Crimson Tide.

In true heavyweight fashion, the grudge match opened as a hard-nosed defensive battle without one touchdown being scored in the first half of play.

The Dogs came out down in the second half and captained by head coach, Kirby Smart, Georgia was able to score the first touchdown to take the lead.

With a defense championed by the likes of Jordan Davis and Nakobe Dean, the Bulldogs managed to hold Alabama to one touchdown all game.

Quarterback Stetson Bennet, who by the way is from Blackshear in Pierce County in the First Congressional District of Georgia that I have the honor and privilege of representing, quarterback Stetson Bennett completed his Cinderella-story season, stepping up when it mattered most.

With an interception returned for a touchdown to seal the deal, the University of Georgia was victorious.

It has been four decades and some change since the University of Georgia brought a national title home to Athens, and I am so excited to see it finally happen.

I was especially excited to see several players from the First District, the aforementioned Stetson Bennett, Nolan Smith from Savannah, and Jack Podlesny from Glynn County help secure this amazing victory.

Congratulations to the Georgia Bulldogs. You will live in the hearts of Georgia fans forever. Athens is title town again. Go Dawgs.

CELEBRATING THE 100TH BIRTHDAY OF CHARLEY TRIPPI

Mr. CARTER of Georgia. Mr. Speaker, I rise today to celebrate the momentous 100th birthday of the Georgia Bulldog legend, Charley Trippi.

Charley is a fixture in Dawg Nation and the football community.

A member of both the college football and pro football Hall of Fame, Charley was a dual athlete at the University of Georgia, playing both baseball and football in 1942, 1945, and 1946.

While in college, Charley played halfback and quarterback and received the Maxwell Award given to the Nation's top all-around player.

Charley was also honored as a unanimous All-American SEC player of the year and as a two-time All-SEC player.

In 1942, Charley helped lead the Georgia Bulldogs to their first national championship.

Selected as the first pick in the first round by the Chicago Cardinals in the NFL draft, Charley continued to have an illustrious career in the pros.

The Cardinals organization inducted Charley into the Arizona Cardinals Ring of Honor following his time in the NFL.

We are so happy and excited that Charley has reached this milestone. Happy birthday, Charley.

CONGRATULATING THE BENEDICTINE CADETS HIGH SCHOOL FOOTBALL TEAM

Mr. CARTER of Georgia. Mr. Speaker, I rise today to congratulate the Benedictine Cadets High School football team for winning the 2021 Georgia 4A State title.

Winning football games in Georgia, where the sport practically runs through our veins, is hard. But winning the State title requires exceptional grit, determination, and perseverance.

After the Benedictine Cadets suffered a loss in the 2020 State playoff semifinals, they entered the 2021 season with one goal: Winning a State title.

Benedictine has consistently exhibited drive, dedication, and the winner's mentality.

Head coach Danny Britt has tirelessly worked to lead this team to a State title, and their work has finally paid off.

The Georgia 4A State title included Division 1 talent on both sides and was a battle from the beginning. Winning by only a touchdown, it truly was a game for the ages.

We here in the First District of Georgia are so proud of the Benedictine Cadets and all that they have accomplished and will accomplish.

Let's do it again next year.

OREGONIANS HAVE A RIGHT TO KNOW

The SPEAKER pro tempore. The Chair recognizes the gentleman from Oregon (Mr. BENTZ) for 5 minutes.

Mr. BENTZ. Mr. Speaker, I rise today in opposition to S. 192, the so-called River Democracy Act.

This bill, contrary to what the title implies, has nothing to do with democracy.

Instead, it would, if passed, label some 4,700 miles of Oregon's rivers, creeks, and streams as ''wild and scenic.'' A more appropriate phrase would be just waiting to be burned and ruined.

However, this is not your typical wild and scenic river bill. This bill would designate a mile-wide corridor running the length of every inch of those 4,700 miles of waterways as wild and scenic. This mile is double the half-mile-wide corridor normal for such designations. This means that under this act, 4,700 square miles—an area about the size of Connecticut—would be locked up and left to the high probability of burning up.

Many of the miles of streams, creeks, and gullies to which the bill would apply are within the 20 counties making up my district. Many of those miles run through Oregon's most important watersheds, which are absolutely essential to the life of my communities, particularly in times of drought. Given the damaging impact of such designations to activities necessary to protect these streams, it is no wonder this bill is deeply unpopular, something that has been made crystal clear to me by the overwhelming majority of my 62 county commissioners. They have serious and unanswered concerns about the dangers the act presents.

Chief among them is that this designation will prevent what needs to be done to protect these watersheds, placing them in a bureaucratic wasteland where it will take years, if not decades, to initiate and then complete plans which may or may not allow the treatment activities needed right now.

Also, a top-down approach to land management is wrong because it completely ignores the interests of well-informed local people, businesses, and stakeholders.

The approach the bill's sponsors used in developing this bill was seriously flawed because the river and stream nominations were solicited from various groups and the general public without any clear legal or scientific analysis to identify those rivers, streams, and creeks that would qualify as scenic. If a scientific or legal analysis exists, the sponsors should share it.

Additionally, the public deserves to know which special interest groups crafted the bill, provided the unofficial maps of the streams affected, and conducted the outreach to the public.

It is absolutely clear, whatever the process was, that local stakeholders, elected officials, county commissioners, landowners, users, and experts should have been consulted, and they were not.

Let me explain why so many who truly want to protect our public lands are so outraged by this bill.

So far this year, over half a million acres of forests and other lands have burned up in my district. Last year it was even worse with over a million acres laid to waste by fire.

Inexplicably, the bill focuses upon only one method of protecting this 4,700-square-mile proposed area from fire, and that is by what are called ''prescribed burns.'' I cannot emphasize how dangerous it is to prescribe prescribed burns in overgrown, densely packed, dry forests without thinning the forest first. Prescribed burning before thinning puts at extreme risk the very rivers and watersheds this designation is supposed to protect. It is like dropping a match in a tinderbox. It is impossible to contain these types of fires once they start.

The River Democracy Act, if passed, would threaten watersheds, homes, businesses, ranches, livestock, and most importantly, human lives.

The bill contains provisions throughout that leave the door wide open for frivolous litigation by far-left special interest groups, who have profited for years from lucrative sue-and-settle tactics.

The bill contains no explicit protections for the current multiple uses of the land, including sustainable timber harvests, hunting, grazing, fishing, and mining.

Regardless of legislative intent, the applicable agencies will have broad authorities to restrict these activities.

To date, no official maps have been provided. Oregonians need to have access to clear official maps to see just how much land is affected by this bill. I believe no further action should be taken with regard to this bill until the questions I have raised today and necessary maps are made available to the public so that Oregonians know exactly what this bill would do.

PAYING TRIBUTE TO THE LIFE AND LEGACY OF JANICE GALLAGHER

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. FITZPATRICK) for 5 minutes.

Mr. FITZPATRICK. Mr. Speaker, it is with a heavy heart that I rise today to pay tribute to the life and legacy of an extraordinary person, Mrs. Janice Gallagher, who our community tragically lost.

Born in Philadelphia, Janice was a lifelong resident of Bensalem and was a proud graduate of Archbishop Ryan High School and Holy Family University.

Janice worked at her family's farm market, D-G's Farm Market, for over 30 years. Janice went on to own and operate her own market, J&M Deli and Produce for many more years. Janice spent the last 5 years, Mr. Speaker, working at the Bensalem Police Department, a phenomenal organization of tremendously courageous women and men where she was widely respected by our law enforcement community throughout Bucks County.

A longtime volunteer of St. Ephrem Catholic Church, Janice will always be remembered for her kind and giving spirit.

I send my deepest condolences to Janice's beloved husband of 45 years, District Judge Mike Gallagher, her son, her siblings, and all who knew and loved her. I know I speak for our entire community when I say that we are all grateful for Janice's contributions during her incredible 66 years of life on this planet.

Mr. Speaker, may the spirit of her generosity and service continue to inspire everybody in our community and everybody in this Chamber.

□ 1100

NATIONAL HUMAN TRAFFICKING AWARENESS DAY

Mr. FITZPATRICK. Mr. Speaker, today is National Human Trafficking Awareness Day, and I rise in support of the more than 40 million men, women, and children, who are victims of this global tragedy.

Human trafficking is a $150 billion criminal industry that exploits vulnerable individuals and strips them of their fundamental human rights.

Mr. Speaker, while this criminal conduct may seem a world away, it is very often taking place right in our own backyards. Human trafficking is reported in cities, suburbs, and rural areas in all 50 States in this Nation. Last year alone, the National Human Trafficking Hotline reported 221 cases of human trafficking in my home State of Pennsylvania and more than 10,000 cases nationwide.

These staggering and horrific numbers underscore the need for increased victim support services, education and awareness, and legislative advocacy surrounding human trafficking.

On this National Human Trafficking Awareness Day, let us renew our commitment to the global fight to end this abhorrent crime against humanity and redouble our efforts for the millions of survivors and their victims.

VOTING FALSEHOODS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Georgia (Mr. CLYDE) for 5 minutes.

Mr. CLYDE. Mr. Speaker, I rise today to express my sincere concern for the falsehoods Democrats are spreading across the country regarding Americans' ability to vote.

Over the last year, Democrats have repeatedly alleged that the 2020 election was the most secure election in American history, bludgeoning any dissent or legitimate election integrity concerns as ''the big lie.''

Yet in the same breath, the left has also spent the last year championing an election reform bill, the so-called For the People Act, that aims to federalize our elections processes, ban voter ID, and fund incumbent campaigns with Americans' hard-earned tax dollars—in the name of improving election security.

In fact, the Senate Democrats are attempting to destroy 200 years of precedent by removing the filibuster to solidify Democrat control of elections, thinly veiled as election reform.

But why is it necessary for the Federal Government to take over our elections process—a role specifically designated to the States by our Founding Fathers—if that process is working soundly and securely?

You see, Democrats are willing to put political gains above morality in order to quench their ever-longing thirst for power. This is a perfect example of ''the ends justify the means.'' And that is wrong.

It is really quite simple: Republicans want to make it easier to vote, but harder to cheat. We should all want that. But no, Democrats are tenaciously gearing up to destroy our Republic as we know it by making it easier to cheat.

Take my home State of Georgia. Today, the Vice President and the President will travel to Atlanta to spread more misinformation about voting rights as an attempt to pressure the Senate to eliminate the filibuster. Yet, Biden will conveniently leave several facts out of his remarks:

He will refuse to admit that before this year his home State of Delaware denied voters in-person early voting, and now only requires 10 days of early voting—less than Georgia's minimum of 17.

Why? Because this reality flies in the face of Biden's false narrative that our democracy is under attack by Republican efforts. This is more hypocrisy.

He will fail to mention that just last week, Georgia finally launched an investigation into alleged illegal ballot harvesting in the 2020 election.

Why? Because this truth does not support Biden's vilification of Republicans that raise concerns about the 2020 election.

He will ignore the fact that New York is attempting to grant more than 800,000 noncitizens the right to vote in municipal elections.

Why? Because Biden is willing to overlook illogical and dangerous solutions to obtain control over Americans' lives. Instead, he will comically claim that many Republican States, including Georgia, are attempting to disenfranchise Americans when in fact their State voting laws strengthen election integrity to ensure every solitary American has free, fair, and honest elections. One citizen, one vote.

I firmly reject Democrats' dangerous and deceptive ploy to centralize elections in Washington. It is wrong for Americans. It is wrong for election security. And it is wrong for the future of our Republic.

CONGRATULATING UNIVERSITY OF GEORGIA'S COLLEGE FOOTBALL TEAM

Mr. CLYDE. Mr. Speaker, I rise today to congratulate the 2022 College Football Playoff National Champions, my alma mater, the University of Georgia.

During a thrilling game last night, the Bulldogs defeated the University of Alabama 33 to 18. This exciting win marks the first time the University of Georgia will bring home the College Football Playoff national championship trophy to Athens and our second national championship trophy in the history of Georgia Collegiate Football. What a triumphant ending to an exceptional season.

Congratulations to the talented young men that put their all into the game, and to head coach, Kirby Smart, and the coaching staff for leading the Dawgs to a monumental win. May God bless the great State of Georgia as we now hail two champions from the 2021 season—the Atlanta Braves and the Georgia Bulldogs.

Go Dawgs. Soli Deo Gloria.

The SPEAKER pro tempore. Members are reminded to refrain from engaging in personalities toward the President.

RECOGNIZING THE LIFE OF RANDY POTTER

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from New York (Ms. TENNEY) for 5 minutes.

Ms. TENNEY. Mr. Speaker, in life there are names that once spoken give rise to great emotion. The name ''Randy Potter'' is one of those names in our community.

Today, I recognize the life of one of Upstate New York's most colorful and original characters, Randy Potter. Simply mentioning Randy's name puts smiles on the faces of all who knew him. Seeing his crazy hair and fun attire always covered in campaign slogans and buttons put a smile on the faces of people who didn't know him.

Randy was a music aficionado and a diehard Grateful Dead fan who attended hundreds of concerts, and he will always be fondly remembered for his love of music. He also enjoyed sports, and it didn't matter which team was playing; as long as it was a New York team, Randy was always their biggest fan.

Perhaps most importantly to Randy, he was someone who cared a lot about our community and about politics and the importance of government, and our community depended on him to get the message out.

Sadly, Mr. Potter passed away quietly on the evening of December 23. A treasure trove of stories, jokes, and the smiles of many, many residents across

Upstate and Central New York will be remembered by our loss of Randy Potter. Today, we remember his life and the many moments of joy he shared throughout our community. May we all learn a lesson from his life and zest for sparking joy and laughter in those around him.

RECOGNIZING THE LIFE OF JOE FUSCO, JR.

Ms. TENNEY. Mr. Speaker, I rise today to recognize the tragic passing of one of my district's great public servants, the Honorable Joseph Fusco, Jr., the former mayor of Rome, New York.

Mayor Fusco was a dedicated public servant, who led an incredible life. He first served as Rome City councilman and then as the 42nd mayor of Rome from 2011 to 2015, a job he performed with integrity, passion, and determination.

Joe led by example. He was always a smiling face and a helping hand. He oversaw the completion of the Mohawk River Trail, and in what little spare time he had, would participate in volunteer work across the community. He also hosted a terrific charity motorcycle ride across our beautiful region, an event I always looked forward to participating in each year. His dedication to public service carries on through his son, Joseph, III, who became a Rome firefighter in 2007.

I have no doubt that Rome, New York, is a better place because of the legacy of Mayor Fusco and the legacy that he leaves behind. I also extend my deepest condolences to Mayor Fusco's family, as they are grieving deeply at this time. This includes his beloved wife and dear friend, Laurie, his son, Joe, and many grandchildren. He will be greatly missed by many. Again, his legacy will not be forgotten.

RECOGNIZING PRISCILLA ''PEEP'' WILLIAMS FOR HER ATHLETIC AND ACADEMIC ACHIEVEMENTS

Ms. TENNEY. Mr. Speaker, I rise today to recognize Ms. Priscilla, also known as Peep, Williams, a standout athlete and student from New York's 22nd District.

As an 8th grader in 2017, Peep was named to the Fellowship of Christian Athletes Lacrosse Girls National Middle School Team. From there, the honors just keep pouring in.

As a freshman in the spring of 2019, Peep stormed into the Seton Academy lacrosse scene, breaking the school's individual scoring record that was previously held by Seton's first Naval Academy appointee, who also happened to be her big sister, Maddie, who I had the distinguished honor of recommending an appointment to the U.S. Naval Academy.

Peep is a 2021 USA Lacrosse Academic All-American and a member of the U–18 National Team. In this year's off season, Peep also won the New York State Sectional Tennis Championship. Ms. Williams recently signed her letter of intent to travel nearly 3,000 miles from home where she will play for an institution with a standard of excellence in both athletics and academics, the Stanford Cardinals.

Please join me in congratulating Peep and wishing her all the best in her future endeavors and know she will continue to represent our community with grace and determination. I wish the best to her parents, wonderful members of our community as well.

RECOGNIZING DR. HAROLD BLACK

The SPEAKER pro tempore. The Chair recognizes the gentleman from Tennessee (Mr. BURCHETT) for 5 minutes.

Mr. BURCHETT. Mr. Speaker, I rise today to recognize my dear friend, Dr. Harold Black. The University of Georgia, his alma mater, recently announced it will name a new residence hall in his honor.

He was the first Black student to enroll in the university's Terry College of Business, graduating with a bachelor of business administration in economics. He completed his education by earning his master of the arts and Ph.D. in economics from Ohio State University.

Dr. Black then led an accomplished career working for financial institutions. He served as Deputy Director of the Department of Economic Research and Analysis in the United States Office of the Comptroller of the Currency, Director and Chairman of the Nashville branch of the Federal Reserve Bank of Atlanta, and consulted for several major banking corporations.

Dr. Black later used his public and private sector experience to teach finance in the higher education system. Following tenures at several universities, Dr. Black eventually settled at my alma mater, the University of Tennessee in Knoxville.

Dr. Black shared his knowledge with students in the Haslam College of Business for 24 years until his retirement in 2011. Throughout his career, Dr. Black published his financial research in outlets like the American Economic Review, the Journal of Banking and Finance, and the Journal of Monetary Economics. He received many awards for his teaching and research. Dr. Black continues to write, publishing a weekly column in my favorite newspaper, the Knoxville Focus.

Congratulations on your recent recognition from the University of Georgia, Dr. Black. Our community is proud of your achievements, and I for one enjoy reading your views on economics, and for making it so even a person of my intelligence level can understand what you are saying. I really appreciate it.

HONORING PETTY OFFICER SECOND CLASS CHRIS AL-BRETT

Mr. BURCHETT. Mr. Speaker, I rise to honor Petty Officer Second Class Chris Al-Brett as Tennessee's Second District's Veteran of the Month.

Chris enrolled in avionics school at the Naval Air Technical Training Center in Millington, Tennessee, in 1969. Later that year, he reported to Attack Squadron 174 based at Naval Air Station Cecil Field, which defended the beaches of Northeast Florida against a potential communist invasion.

He worked on an A–7 Corsair 2 Light Attack Bomber. Chris later transferred to Attack Squadron 176 in Virginia. In 1972, he embarked aboard the aircraft carrier USS Franklin Delano Roosevelt for a mission in the Mediterranean Sea. After serving overseas, Chris was honorably discharged from the U.S. Navy in 1974.

In 2015, Chris joined the Captain Bill Robinson Chapter 1078 of the Vietnam Veterans of America. He became the chapter's public information officer, and the chapter received the Vietnam Veterans of America's 2017 Chapter of the Year award thanks in part to his leadership.

In December 2020, Chris joined the United Veterans Council of East Tennessee's Board of Directors as its public information officer. He was recently elected as the board's president, a position he will assume this year.

Mr. Speaker, we thank Chris for his service to our country and to his fellow veterans. I wish him the very best at the start of his new position.

□ 1115

COMBATING HUMAN TRAFFICKING AND ONLINE SEXUAL EXPLOITATION

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Missouri (Mrs. WAGNER) for 5 minutes.

Mrs. WAGNER. Mr. Speaker, today is National Human Trafficking Awareness Day, and I rise to bring attention to the horrific increase in human trafficking and online sexual exploitation.

Since the pandemic began, trafficking and sexual exploitation have skyrocketed in my own home State of Missouri and across the United States of America and the world.

I have made it a priority to support survivors and hold websites accountable for facilitating sex trafficking.

I am proud to be the only Member of Congress in over 20 years to successfully amend section 230 of the Communications Decency Act with my bill, the Fight Online Sex Trafficking Act, or FOSTA.

In the coming weeks, Mr. Speaker, I will introduce multiple pieces of legislation to combat human trafficking, child sexual exploitation, and online sexual exploitation.

We must come together to eliminate this barbaric trade.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until noon today.

Accordingly (at 11 o'clock and 16 minutes a.m.), the House stood in recess.

HOUSE OF REPRESENTATIVES
TUESDAY, JANUARY 11, 2022

The House met at noon and was called to order by the Speaker.

PRAYER

The Chaplain, the Reverend Margaret Grun Kibben, offered the following prayer:

Great and wonderful God, Your knowledge is too wonderful for us. Yet, You have put at our disposal minds that You Yourself designed and the wisdom of the centuries.

May we be responsible stewards of these grace gifts.

Your Spirit abides with us wherever we go. We cannot flee from You. Whether we explore the skies or reside in our innermost thoughts, You are there.

May we find ourselves this day to be of Your enduring presence.

If we travel to far-flung places or find ourselves far from our own homes, wherever we are, distance means nothing to You. Your hand offers guidance, Your word direction.

May we take heed of how You are steering our lives.

And when we are lost in the darkness of decision, when night falls on our hope for agreement and mutual accord, cause our night to shine like the day.

Relieve our darkness with the light of Your truth.

In Your gracious and merciful name we pray.

Amen.

THE JOURNAL

The SPEAKER. Pursuant to section 11(a) of House Resolution 188, the Journal of the last day's proceedings is approved.

PLEDGE OF ALLEGIANCE

The SPEAKER. Will the gentlewoman from Pennsylvania (Ms. DEAN) come forward and lead the House in the Pledge of Allegiance.

Ms. DEAN led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

ANNOUNCEMENT BY THE SPEAKER

The SPEAKER. The Chair will entertain up to 15 requests for 1-minute speeches on each side of the aisle.

MESSAGE FROM THE SENATE

A message from the Senate by Ms. Byrd, one of its clerks, announced that the Senate has passed bills of the following titles in which the concurrence of the House is requested:

S. 450. An act to award posthumously the Congressional Gold Medal to Emmett Till and Mamie Till-Mobley.

S. 3451. An act to include certain computer-related projects in the Federal permitting program under title XLI of the FAST Act, and for other purposes.

THE NEED FOR AFFORDABLE HOUSING

(Ms. DEAN asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. DEAN. Madam Speaker, last week a fire in Philadelphia killed 12 people, including 8 children. While our city mourned, just days later, a fire in New York killed 17, including 8 children.

These two events have at least three things in common: a high loss of life, an extraordinary number of children killed, all in public housing overcrowded with families who cannot afford to move.

Too many families are in this position because of our Nation's housing crisis. We say we need affordable housing, so let me speak plainly. We need more housing, affordable public and private housing, that families with low income can actually afford.

In the Philadelphia area, there are tens of thousands of people on waiting lists that are nearly a decade closed or years long.

We in Congress have a role to play. In the Build Back Better Act is $150 billion to repair and restore existing housing and to build more public and affordable private housing. That will be a powerful start.

As the Senate stalls, more families are in danger. It is time this House, and their house, helps others find theirs.

HONORING THE LIFE OF TROOPER JOHN HORTON

(Ms. FOXX asked and was given permission to address the House for 1 minute.)

Ms. FOXX. Madam Speaker, I rise today to honor the life of Trooper John Horton of the North Carolina Highway Patrol. On January 3, he passed away in a tragic accident in the line of duty. He was a 15-year veteran of the unit and was assigned to Rutherford County.

His two younger siblings, James and Joe, served alongside him at one point in the Highway Patrol. They were the first and only trio of siblings to ever work simultaneously in the Highway Patrol in North Carolina's history.

My prayers go out to Trooper Horton's family, his wife, and six children. May his memory and service to his community serve as an inspiration for future generations of law enforcement officers to come.

KEEPING HOMES SAFE AND WARM

(Mr. HIGGINS of New York asked and was given permission to address the House for 1 minute.)

Mr. HIGGINS of New York. Madam Speaker, temperatures this week in Buffalo and western New York are in single digits.

My community has some of the oldest housing stock in the country. Keeping these homes safe and warm is expensive. Failing to do so can be life threatening.

This year, Congress approved $876 million in additional Home Energy Assistance Program funding for seniors and families in New York to afford energy. The infrastructure bill goes further, providing a historic $3.5 billion nationwide for weatherization. This funding means that old houses will better withstand extreme weather as well as supporting green energy jobs.

But we can't stop there. We must do more. This Congress must enact the renewable energy provisions in Build Back Better so entire neighborhoods in my community can be retrofitted for long-term resilience. I urge the Senate to enact these provisions now.

HONORING AGNES TURK'S 108TH BIRTHDAY

(Mr. STAUBER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. STAUBER. Madam Speaker, I rise today to honor Agnes Turk, a constituent from the great Eighth District of Minnesota, who is celebrating her 108th birthday this week.

Born in Pennsylvania, Agnes soon after moved to the Twin Ports area and has lived there ever since.

As a young woman, Agnes valued her education so much that she walked 2 miles to school every day, rain or snow. She later went to business school, showing the spirit of hard work instilled in her.

Since the 1930s, Agnes has lived a beautiful life in Duluth, Minnesota, where she and her husband, John, raised three boys.

While John worked for U.S. Steel and the family operated a theater and an oil service station together, they happily lived out their American Dream.

Additionally, Agnes is a dedicated mother; a patriotic citizen, who has never missed voting in an election; and a faithful churchgoer.

She has touched the lives of so many people in the Northland, and her impact on Duluth will always be remembered.

I am proud to wish my good friend Agnes a happy 108th birthday and another year of health and happiness.

RECOGNIZING THE LIFE OF ODELL BARRY

(Mr. PERLMUTTER asked and was given permission to address the House for 1 minute.)

Mr. PERLMUTTER. Madam Speaker, I rise today to recognize a friend and adviser, a gentleman named Odell Barry of Northglenn, Colorado, who passed away on January 3, 2022.

Born on October 10, 1941, in Memphis, Tennessee, Berry spent most of his childhood in Toledo, Ohio. In 1964, the Denver Broncos took him out of the University of Findlay in the 19th round of the American Football League draft. Barry, a very talented and standout sprinter, opted for pro football over a chance to join the U.S. Olympic team, and he played a couple of seasons with the Broncos.

Once his football career concluded, Barry began his career in public and community service, first as the City of Northglenn recreation director and then as the owner of Colorado's first full-service Dairy Queen in the early 1970s. From 1972 to '79, Barry served on the Northglenn City Council and then he became mayor. Along the way, he took pride in organizing the Multiple Sclerosis Dinner of Champions for many years and running Northglenn's football camp. Other highlights include his membership in the Colorado Baseball Commission in the early 1990s, which helped pave the way for the Rockies.

Barry was a devoted husband to Glenda, a loving father of two, and he loved spending time with his grandchildren. I am deeply grateful for his lifetime of service to our community and the great State of Colorado, and I personally will miss him.

RECOGNIZING KOREAN AMERICAN DAY

(Mrs. STEEL asked and was given permission to address the House for 1 minute.)

Mrs. STEEL. Madam Speaker, January 13 is Korean American Day, a day to recognize the countless contributions of Korean Americans and celebrate the arrival of the first Korean immigrants to the United States in 1903.

As one of the first Korean-American women to ever serve in Congress, this day is very special to me. I was just 19 years old when I came to America, and I achieved what I never thought was possible, to serve this country as a Member of Congress.

So many Korean-Americans like me came to this country with the hope of achieving their own American Dream. We must work together to inspire and support the next generation of Korean-American leaders.

Today, we celebrate the vibrant community of Korean-Americans in the United States and all that they have worked to achieve.

Happy Korean American Day.

NEED FOR EXPANDED COVID–19 TESTING

(Mr. COSTA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. COSTA. Madam Speaker, I rise to discuss the surge in the coronavirus cases that Americans are struggling with. Part of that is the access to COVID tests. Many are waiting in long lines to get PCR tests and 2 to 3 days to receive their results. We should and can do better.

Households cannot find rapid tests in stores and wait weeks in line for online orders.

In Fresno County, which I represent, the demand for testing has increased 30 percent in the last several weeks.

We must expand testing. I call on the administration to prioritize our testing systems. Access to testing and timely results are critical to determine if someone is infected with COVID–19 and enables them to take steps to avoid spreading it to others. It is that simple.

It is vital that every American has access to the rapid test at no cost. It is critical for our economic recovery.

At this stage, no one should have to wait long hours or pay a single dime for same-day results. We can and we should do better.

We are not out of the woods yet. We can end this pandemic through robust testing and getting vaccinated. That is what we must do.

□ 1215

HONORING THE LIFE OF MARY HAYNES

(Mr. LAHOOD asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LAHOOD. Madam Speaker, I rise to honor the life of former Peoria City Clerk Mary Haynes, who passed away at the end of 2021. Mary Haynes represented the best of Peoria.

In 1985, Mary was elected as the first woman Peoria city clerk. For over 25 years, she made local government work better. Being the city clerk was a passion of Mary's, and she was beloved by her colleagues. She ensured transparency in city government and worked to educate other city clerks throughout Illinois.

One of her most satisfying roles during her time as clerk was heading up the Rediscovering City Hall project, which restored Peoria City Hall to its monument form.

Above all, Mary was a devoted mother and grandmother and one of the kindest people you could meet. She was a friend to everyone who knew her, and her presence will be missed dearly in Peoria.

My prayers are with Mary's children, grandchildren, and loved ones. May she rest in peace.

SURGING INFLATION DEVASTATES FAMILIES

(Mr. WILSON of South Carolina asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WILSON of South Carolina. Madam Speaker, on Friday, I completed an annual districtwide legislative agenda media tour. The issue of greatest concern was inflation affecting everyday people and gas up 61 percent.

Bidenflation has surged to a 40-year high. It is clear that $4.5 trillion spending bills devastate pocketbooks. Even a recent analysis from the Federal Reserve of San Francisco agrees that the relief package has impacted inflation.

Sadly, only 17 percent of workers have received raises that have kept up with inflation, according to the Democrat New York Times.

The Democrat elite think they are smarter than everyone and think Democrat voters and Democrat media are ignorant to believe that trillion-dollar spending bills cost zero dollars.

In conclusion, God bless our troops, who successfully protected America for 20 years in the global war on terrorism, as it continues moving from the Afghanistan safe haven to America.

Congratulations to Congressman MIKE WALTZ and Dr. Julia Nesheiwat on the birth on January 7 of Arman ''Armie'' Waltz.

HONORING DUBUQUE POLICE CHIEF MARK DALSING UPON HIS RETIREMENT

(Mrs. HINSON asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. HINSON. Madam Speaker, I rise today to recognize retired Dubuque Police Chief Mark Dalsing. He retired after 32 years of service to the city of Dubuque, Iowa.

Chief Dalsing is an absolute pillar in the community of Dubuque because of his devotion to protecting his community. He built a phenomenal legacy of successfully incorporating community engagement into law enforcement.

While serving as Dubuque's police chief, he instilled a passion for public service into his team of officers, bringing community engagement to the forefront of their work.

Chief Dalsing's years of service are a testament to the love that he has for his fellow Iowans and the compassion he led with.

I wish Chief Mark Dalsing and his family all the best in this exciting new chapter of life and thank him for his selfless service and dedication to the city of Dubuque for the past three decades.

REMEMBERING THE LIFE OF SHERIFF SYDNEY ''DUKE'' SCHIRARD

(Mrs. BOEBERT asked and was given permission to address the House for 1 minute.)

Mrs. BOEBERT. Madam Speaker, I rise to honor and remember the life of Sheriff Sydney ''Duke'' Schirard, the longest serving sheriff of La Plata County, Colorado.

His lifetime of public service included time as a soldier in the Army,

as a Durango police officer, as the Bayfield marshal, as a deputy in the sheriff's office, and finally as the La Plata County sheriff for 20 years.

Sheriff Schirard fought the good fight, and he finished his race well. His watch may be over, but the community he protected will forever be better because of his efforts day in and day out.

While others ran away from danger, he ran toward it and woke up with courage each and every day to serve and protect his community. He strove to create peace, for ''blessed are the peacemakers, for they will be called children of God.''

I grieve with the people of La Plata County and with Sheriff Schirard's family—his two sons, four stepchildren, and three grandchildren—and with his extended family in the La Plata County Sheriff's Office who were positively impacted by Sheriff Schirard's exemplary life of service.

RECOGNIZING NATIONAL MENTORSHIP MONTH

(Ms. SCANLON asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. SCANLON. Madam Speaker, as chair of the Congressional Youth Mentoring Caucus, I rise to recognize National Mentoring Month, a time to celebrate the impact of mentoring and raise awareness about the critical need for caring adults to become mentors, as our youth face the often-overwhelming challenges of our time.

One-third of young people in the United States don't have a meaningful connection with adults outside their homes, and the pandemic has only made it harder for them to call on caring adults for support.

Mentoring has been one of the most rewarding experiences of my adult life, allowing me to participate in the personal and professional growth of scores of young people. I am fortunate to be able to continue that mentoring with some of the best and brightest young people in my district through our Congressional Youth Cabinet, where high school juniors and seniors in my district, on a monthly basis, explore the policy and government issues facing our community and our country.

I urge all adults to think about how they can serve their communities and the next generation by becoming a mentor, whether through sports, career exploration, school, or faith-based programs.

ADDRESSING PRESIDENT BIDEN'S COVID CRISIS

(Mrs. BICE of Oklahoma asked and was given permission to address the House for 1 minute.)

Mrs. BICE of Oklahoma. Madam Speaker, I rise today to address the devastating impacts on American lives and business because of Biden's lack of preparedness in handling COVID–19.

The disruptive testing shortages and record-breaking number of cases are a direct result of Biden's failed leadership.

In the spring, the administration ignored a request from a health agency to purchase millions of rapid tests and then rejected a proposal for free rapid tests for the holidays back in October.

To solve this self-inflicted shortage, this administration's new plan will require private insurers to cover the cost of tests instead of using the nearly half a trillion dollars from the COVID relief bill passed last March.

Madam Speaker, Biden has failed to deliver on his promises to the American people. He said he would shut down COVID–19 and that all Americans would have access to regular, reliable, and free testing. Sadly, that couldn't be further from the truth.

CAITLIN CLARK SETS NEW RECORD

(Mrs. MILLER-MEEKS asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. MILLER-MEEKS. Madam Speaker, I rise today to recognize a record-setting student-athlete at the University of Iowa.

On January 2, sophomore guard Caitlin Clark became the fastest player in Big Ten history to reach 1,000 career points. She accomplished this in just 40 games, passing the previous record holder from Ohio State.

Reaching this mark against Evansville University, Caitlin put up a career-high 44 points in the 93–56 win for the Hawkeyes.

A lifelong Iowan, Caitlin was named a high school All-American before coming to Iowa City and earning numerous accolades as a freshman, including Big Ten Freshman of the Year, First Team All-Big Ten, National Freshman of the Year, and First Team All-American honors.

Congratulations to Caitlin. I look forward to watching her continue to dominate for the next 2 years. Go Iowa, and Go Hawkeyes.

PRESIDENT BIDEN'S FAILURES CAUSE SUFFERING

(Mr. CARL asked and was given permission to address the House for 1 minute.)

Mr. CARL. Madam Speaker, I am a firm believer that when the President of the United States does well, be it Republican or Democrat, we as America benefit the most. Unfortunately, President Biden's performance during his first year in office has been absolutely terrible, and virtually all Americans are suffering because of his failures.

There is so much about this President that actually frustrates me. He left behind Americans in Afghanistan, and he has completely refused to secure our southern border. Meanwhile, he is punishing hardworking Americans by imposing illegal vaccine mandates on them.

All across America, businesses are struggling to keep their doors open and their shelves stocked, but President Biden has done nothing to fix these issues.

I am urging President Biden to show up and work on leadership for a change. The American people deserve much, much more and much better than what they are receiving today.

BIDEN ADMINISTRATION ALLOWS BORDER VIOLATIONS

(Mr. PALAZZO asked and was given permission to address the House for 1 minute.)

Mr. PALAZZO. Madam Speaker, I rise today to remind the American people that our national security is still under attack at the U.S.-Mexico border. The violation of our borders has been allowed to happen and is even facilitated by the Biden administration for nearly a year.

Since Joe Biden took office, over 1.7 million illegal immigrants have been apprehended at the southern border. What is worse, Joe is flying these individuals deeper into our Nation with a ticket you paid for.

Because of President Biden's failed open border policies, more drugs have been smuggled into our neighborhoods than ever before. CBP estimates that nearly 1,200 pounds of fentanyl were apprehended last year alone, doubling from the prior year.

Fentanyl flowing through Joe's open border has caused unthinkable harm by poisoning our communities and killing our children.

The Biden administration's failure has had costly consequences. Cartels are profiting while Americans are paying with their tax dollars, safety, and lives.

Border security is national security. It is time to stop risking the safety of innocents for the sake of politics. This crisis has gone on long enough. Americans deserve better. They deserve a closed border, and they deserve to be safe.

PREVENTING CHRONIC WASTING DISEASE

(Mr. MOORE of Alabama asked and was given permission to address the House for 1 minute.)

Mr. MOORE of Alabama. Madam Speaker, I rise today to discuss an important issue in Alabama and across the Nation. Chronic wasting disease is a neurological disease that affects deer, moose, and elk, and it is 100 percent fatal. Unfortunately, there is no known cure. CWD could absolutely devastate deer hunting in Alabama and the revenue it brings in each year.

I am a proud cosponsor of H.R. 5608, the Chronic Wasting Disease Research and Management Act, which passed the House of Representatives last month.

This bill will help research and prevent chronic wasting disease from spreading further, protecting Alabama's deer herds, outdoor economy, and traditions.

Last week, the first case of CWD was reported in Alabama. While there is currently only one case, it is important that we do what we can to prevent this terrible disease from spreading even further. I am hopeful the Senate will answer the call and take up this legislation so important to Alabama and our Nation.

I will do whatever I can in Washington to help prevent CWD from taking hold in Alabama.

PROVIDING FOR CONSIDERATION OF H.R. 1836, GUARD AND RESERVE GI BILL PARITY ACT OF 2021; PROVIDING FOR CONSIDERATION OF H.R. 4673, ENSURING VETERANS' SMOOTH TRANSITION ACT; AND FOR OTHER PURPOSES

Mr. PERLMUTTER. Madam Speaker, by direction of the Committee on Rules, I call up House Resolution 860 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 860

Resolved, That upon adoption of this resolution it shall be in order to consider in the House the bill (H.R. 1836) to amend title 38, United States Code, to ensure that the time during which members of the Armed Forces serve on active duty for training qualifies for educational assistance under the Post-9/11 Educational Assistance Program of the Department of Veterans Affairs, and for other purposes. All points of order against consideration of the bill are waived. In lieu of the amendment in the nature of a substitute recommended by the Committee on Veterans' Affairs now printed in the bill, an amendment in the nature of a substitute consisting of the text of Rules Committee Print 117–25 shall be considered as adopted. The bill, as amended, shall be considered as read. All points of order against provisions in the bill, as amended, are waived. The previous question shall be considered as ordered on the bill, as amended, and on any further amendment thereto, to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Veterans' Affairs or their respective designees; (2) the further amendments described in section 2 of this resolution; and (3) one motion to recommit.

SEC. 2. After debate pursuant to the first section of this resolution, each further amendment printed in part A of the report of the Committee on Rules accompanying this resolution shall be considered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, may be withdrawn by the proponent at any time before the question is put thereon, shall not be subject to amendment, and shall not be subject to a demand for division of the question. All points of order against the further amendments printed in part A of the report of the Committee on Rules are waived.

SEC. 3. Upon adoption of this resolution it shall be in order to consider in the House the bill (H.R. 4673) to amend title 38, United States Code, to provide for the automatic enrollment of eligible veterans in patient enrollment system of Department of Veterans Affairs, and for other purposes. All points of order against consideration of the bill are waived. An amendment in the nature of a substitute consisting of the text of Rules Committee Print 117–26 shall be considered as adopted. The bill, as amended, shall be considered as read. All points of order against provisions in the bill, as amended, are waived. The previous question shall be considered as ordered on the bill, as amended, and on any further amendment thereto, to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Veterans' Affairs or their respective designees; (2) the further amendments described in section 4 of this resolution; (3) the amendments en bloc described in section 5 of this resolution; and (4) one motion to recommit.

SEC. 4. After debate pursuant to section 3 of this resolution, each further amendment printed in part B of the report of the Committee on Rules accompanying this resolution not earlier considered as part of amendments en bloc pursuant to section 5 of this resolution shall be considered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, may be withdrawn by the proponent at any time before the question is put thereon, shall not be subject to amendment, and shall not be subject to a demand for division of the question.

SEC. 5. It shall be in order at any time after debate pursuant to section 3 of this resolution for the chair of the Committee on Veterans' Affairs or his designee to offer amendments en bloc consisting of further amendments printed in part B of the report of the Committee on Rules accompanying this resolution not earlier disposed of. Amendments en bloc offered pursuant to this section shall be considered as read, shall be debatable for 20 minutes equally divided and controlled by the chair and ranking minority member of the Committee on Veterans' Affairs or their respective designees, shall not be subject to amendment, and shall not be subject to a demand for division of the question.

SEC. 6. All points of order against the further amendments printed in part B of the report of the Committee on Rules or amendments en bloc described in section 5 of this resolution are waived.

SEC. 7. House Resolution 188, agreed to March 8, 2021 (as most recently amended by House Resolution 829, agreed to December 2, 2021), is amended by striking January 21, 2022'' each place it appears and inserting (in each instance) ''February 4, 2022''.

□ 1230

The SPEAKER pro tempore (Mrs. HAYES). The gentleman from Colorado is recognized for 1 hour.

Mr. PERLMUTTER. Madam Speaker, for purposes of debate only, I yield the customary 30 minutes to the gentleman from Pennsylvania (Mr. RESCHENTHALER) pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. PERLMUTTER. Madam Speaker, I ask unanimous consent that all Members be given 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Colorado?

There was no objection.

Mr. PERLMUTTER. Madam Speaker, yesterday the Rules Committee met and reported a rule, House Resolution 860. The rule provides for consideration of H.R. 1836, the Guard and Reserve GI Bill Parity Act under a structured rule. The rule provides 1 hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Veterans' Affairs, makes in order two amendments, and provides one motion to recommit.

The rule provides for consideration of H.R. 4673, the EVEST Act, under a structured rule. The rule provides 1 hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Veterans' Affairs. The rule also makes in order five amendments, provides the chairman of the Committee on Veterans' Affairs with en bloc authority, and provides one motion to recommit.

Finally, the rule provides for recess instructions, suspension authority, and same-day authority through February 4, 2022.

Madam Speaker, I am pleased we are here today to provide for consideration of two important bills to support our Nation's veterans.

H.R. 1836, the Guard and Reserve GI Bill Parity Act will make important improvements to the way GI Bill benefits are calculated for our National Guard and Reserve veterans. Since 9/11, our seven individual Reserve and Guard components of the United States Armed Forces have played a larger and larger role in military operations. Despite putting on the same uniform and taking on many of the same risks as their Active Duty counterparts, these servicemembers don't have access to the same benefits.

Under current law, active component servicemembers receive credit for every day they serve while reserve component and National Guard servicemembers earn credit depending on their duty status. H.R. 1836 would expand eligibility for the GI Bill to count every day a servicemember is paid and in uniform toward benefit eligibility and ensure parity for National Guard and Reserve members. It only makes common sense. This service would include all training and general duty for which basic pay is warranted.

These men and women answer the call to serve without hesitation. Our National Guard has stepped up these last several years to assist in the fight against COVID–19, help communities affected by natural disasters, as in Colorado, we had a terrible wildfire a week ago and the National Guard stepped up, and even protecting our Capitol following a domestic terrorist attack. It is past time these servicemembers have access to the GI benefits they deserve.

I commend Congressman MIKE LEVIN for sponsoring this legislation to provide parity, and I am proud to support this bipartisan bill.

The rule also provides for consideration of H.R. 4673, the EVEST Act, to improve healthcare benefits for departing Active Duty servicemembers as they transition into VA healthcare and civilian life, again, something that is just common sense and I thought was already part of the law.

Approximately 200,000 servicemembers transition out of military service each year. This service is difficult, demanding, and dangerous, and the transition from military to civilian life can be challenging for servicemembers who suffered a service-related injury or a traumatic experience. A recent survey of 10,000 veterans showed their chief concern in their first year after leaving the military is their health and their mental well-being.

At this moment, veterans eligible for VA healthcare must choose to enroll in the VA's healthcare system using its online, phone, or in-person services. However, veterans are often confused regarding their eligibility status for enrollment despite all veterans being eligible for VA healthcare benefits for 5 years after separation from the military.

A 2014 study found symptoms of PTSD can be significantly improved if veterans receive prompt mental healthcare, and for each year a veteran waited to initiate treatment, there was a 5 percent increase in the odds of their PTSD not improving or even worsening. Simply put, our veterans cannot afford to not get the healthcare they need and deserve.

The EVEST Act requires the VA to enroll veterans in its patient enrollment system within 60 days of receiving relevant information and notice from the Department of Defense. This bill uses existing DOD systems through the Transition Assistance Program as well as VA's existing patient enrollment system to enable a warm handoff from DOD to VA. The bill would require the VA to provide veterans notice of enrollment and instructions for how the veteran can opt out if they so wish.

Smoother access to VA healthcare has never been more important than it is today. It is time to shift the burden from the veteran to the DOD and the VA where it belongs.

I thank Chairman TAKANO for introducing this commonsense legislation to improve the health of our recently separated veterans, and I also recognize the gentleman from Pennsylvania for his service to the country as part of our military.

Mr. Speaker, I reserve the balance of my time.

Mr. RESCHENTHALER. Madam Speaker, I yield myself such time as I may consume.

I thank my good friend from Colorado for his kind words and also for yielding me the customary 30 minutes.

Madam Speaker, before I get into debate, I do want to talk about my good friend from Colorado. I know that he may be moving on in some months. I want to say I truly am looking forward to working with my good friend for the next few months. He is a gentleman and a good friend both on and off the floor.

Madam Speaker, the rule before us today makes in order two pieces of legislation, H.R. 1836, the Guard and Reserve GI Bill Parity Act of 2020 and also H.R. 4673, the EVEST Act.

As a former Navy JAG, I am deeply committed to supporting the military men and women who make sacrifices every day to protect our freedoms, both at home and abroad.

And that is why I am incredibly disappointed that neither of these measures received a legislative hearing in the House Veterans' Affairs Committee this Congress.

Without input from the VA, VSOs, and other stakeholders, it is absolutely unclear the impact these bills would actually have, let alone whether these are actually workable bills.

Take for example H.R. 1836. Republicans agree that we must address the benefit and equity for our National Guardsmen and simplify the law so that any time spent on Active Duty for service other than training would count towards GI Bill eligibility. But unfortunately, the broad expansion of benefits in H.R. 1836 could have very real impacts on retention in both the Reserves and Active Duty.

Additionally, it would be helpful to hear from VSOs and other stakeholders about the impact that increased interest fees would have on veterans' access to housing. This is a real problem, and I don't think we have properly addressed it or debated it.

These are issues that could have been explored. They could have been explored during a legislative hearing. They could have been explored to ensure a final product that meets the needs of our guardsmen and our veterans.

At the same time, while I agree that we must support transitioning servicemembers and we must do it by connecting them with VA hospital care and medical services, this has been an incomplete legislative process that makes H.R. 4673 completely problematic.

According to the VA 2022 Budget documents, 9.2 million veterans are enrolled for care and medical services while 7.1 million veterans actually receive treatment at VA or community care facilities. So given that the budgets are determined by historical enrollment versus actual utilization, increasing enrollment without understanding the impact on the VA healthcare system could create an imbalance between the budgetary needs and what reality will show. It would also be helpful to understand H.R. 4673's potential impacts on access to care for current veterans and the ability of VA staff and facilities to handle the influx of the new enrollees.

To that end, last Congress we passed the Commander John Scott Hannon Veterans Mental Health Care Improvement Act of 2019. This required the VA to submit a strategic plan to provide a healthcare plan to any veteran during the 1-year period following their discharge or release from Active Duty service. This strategic plan is currently expected to be released early in 2022. So it would make a lot more sense to wait until we receive the strategic plan before we move forward with a legislative solution.

Again, Madam Speaker, these are issues that could have been discussed at a legislative hearing. These issues could have helped ensure a veteran-focused approach to enrollment eligibility for VA healthcare. Instead, the majority is moving forward without a true understanding of the real-world impacts of these measures. I, therefore, urge my colleagues to oppose this rule.

Madam Speaker, I reserve the balance of my time

Mr. PERLMUTTER. Madam Speaker, I yield myself such time as I may consume. I would say in response to my friend, this is a situation in the Guard and Reserve GI Bill Parity Act where the National Guard and the Reserves are standing side-by-side with active military, and they are entitled to the same benefits that the active military has when it comes to the GI Bill. So that one, in my opinion, is a no-brainer.

The other, and I would say, the VSOs, the veteran service organizations supporting the Guard and Reserve GI Bill Parity Act, H.R. 1836, are Student Veterans of America, National Guard Association of the U.S., Enlisted Association of the National Guard of the United States, and the Reserve Officers Association of the U.S.

□ 1245

With respect so the EVEST legislation, H.R. 4637, again, here we are, people have acted with military service and then have to opt in as opposed to just let the system move quickly for them to become part of the veterans medical care and benefits system. And we have a number of different organizations that support that.

VSOs supporting that are the Paralyzed Veterans of America, the Disabled American Veterans, the Nurses Organization of Veterans Affairs, and the Veterans Healthcare Policy Institute.

Madam Speaker, I yield 3 minutes to the gentlewoman from North Carolina (Ms. ROSS), a distinguished member of the Committee on Rules.

Mr. ROSS. Madam Speaker, I thank my esteemed colleague, Congressman PERLMUTTER, for yielding.

Madam Speaker, the bills included in this rule serve as an expression of gratitude for all veterans, regardless of their official service status.

My State of North Carolina alone has nearly 12,000 National Guard members, each of whom deserves to be recognized

for their sacrifice on behalf of our Nation.

Reservists and National Guard members take on challenging, admirable, and oftentimes lifesaving work, especially throughout the COVID–19 crisis. We owe it to these exceptional Americans to provide gold-standard education benefits, medical care, and mental health support.

A critical inflection point in all veterans' lives is their transition to civilian life. We know that during this period, veterans disproportionately face mental health crises. That is why in partnership with Congresswoman GONZÁLEZ-COLÓN, Congressman BOWMAN, Congresswoman MOORE, I have offered an amendment to H.R. 1836 that takes proactive steps to offer support.

Our amendment requires the VA to provide new veterans with information on the medical services they can access, including the mental health care and military sexual trauma resources to which they are entitled.

My father served as a psychiatrist in the Air Force during the Vietnam era, a particularly challenging time for our veterans. He witnessed firsthand the need for mental health care among this population.

In addition, one of the issues—military sexual trauma, leaving veterans with scars, both physical and psychological—is affected by this legislation. I have introduced other legislation on this issue and I am committed to helping veterans who have experienced this trauma access support.

Veterans can't benefit from VA services unless they know about them. Unfortunately, many veterans lack information of the full range of resources available. Our amendment will raise awareness among transitioning veterans about VA services and the care they deserve.

Madam Speaker, I urge my colleagues to support the amendment, the rule, and the underlying bill.

Mr. RESCHENTHALER. Madam Speaker, during my opening statement, I referenced the strategic plan that the VA is undertaking that we are supposed to get in early 2022. And the reason for that is we typically need data before we legislate, but we do have data on another topic, and that is the damage that our children are facing by being kept out of school.

Madam Speaker, we have nearly 2 full years of data that show that keeping kids out of classrooms has caused massive learning loss, a mental health epidemic, particularly among our youth, and stressful situations for millions of families. Recently, children in Chicago have been forced to endure virtual hearings after the Chicago Teachers Union refused to do their jobs and show up for in-person classes.

House Republicans believe schools should be open and that our children come first. In some municipalities, bowling alleys have opened before our schools. It is shameful.

Madam Speaker, that is why if we defeat the previous question, I will personally offer an amendment to the rule to immediately consider H.R. 682, the Reopen Schools Act.

Madam Speaker, I ask unanimous consent to insert the text of my amendment into the RECORD, along with any extraneous material, immediately prior to the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Pennsylvania?

There was no objection.

Mr. RESCHENTHALER. Madam Speaker, I yield 3 minutes to the gentlewoman from Iowa (Mrs. HINSON), my good friend, the legislation's author, here to explain the amendment.

Mrs. HINSON. Madam Speaker, I thank the gentleman from Pennsylvania for yielding.

Madam Speaker, our amendment would ensure that students are no longer kept out of the classroom and forced to learn from behind a screen. It would ensure that parents are able to return to the workplace. It would help combat the ongoing youth mental health crisis spurred by school closures.

Madam Speaker, my bill, the Reopen Schools Act, would condition Federal COVID grants to schools on those schools actually being open and operating in the first place, which is what that money was intended to do.

I am proud that my home State of Iowa—and I am thankful to our Governor, Kim Reynolds—for ensuring that Iowa students could go back to school. In Iowa, kids have been back in the classroom, where they belong, for over a year. They get to socialize with their peers and they get hands-on learning help from their teachers. They get to run and jump at recess. They get to raise their hands to ask and answer questions instead of clicking a button from behind a screen. They get to write on white boards during their lessons.

Unfortunately, this is not the case in the rest of the country. So many students are still trapped behind screens. And what about the students who don't have regular computer and broadband internet access? What about students in households without computers or even households with only one computer where mom and dad are maybe trying to use it for work.

Virtual learning means we are leaving behind our most vulnerable students, our rural students, our students with additional learning challenges, and even kids who have every virtual advantage are struggling. Families are struggling. Working parents are challenged like never before, and American kids are suffering and paying the price for it.

As a mom, I have personally felt this pressure, and I know many of my colleagues on both sides of the aisle know what it is like to have kids trying to learn at home while you are trying to work at the same time. So this is not a partisan issue. This is about our kids. This is about supporting working families. Kids need to be in school.

Madam Speaker, I urge my colleagues to join me in defeating the previous question so we can reopen schools and prevent taxpayer dollars from keeping kids at home.

Mr. PERLMUTTER. Madam Speaker, I appreciate the comments of Mr. RESCHENTHALER and Mrs. HINSON about schools. But this, in a word, is the Congress of the United States. This is not the Des Moines school board or the Punxsutawney school board where they may have individual respective issues for their area.

Madam Speaker, my wife is a teacher—as you are—and in Jefferson County, Colorado, the schools are open.

Now, are people getting sick? Is there a lot of pressure on teachers? You bet there is. But those schools are open.

So I appreciate the comments of my friends about wanting to open the schools in Chicago or maybe wanting to open them someplace else, but they are open. And so I am not exactly sure what they are railing against other than maybe the school board of Chicago or the school board of Des Moines.

Madam Speaker, I yield three minutes to the gentlewoman from Texas (Ms. JACKSON LEE).

Ms. JACKSON LEE. Madam Speaker, spoken like my good friend from Colorado, Mr. PERLMUTTER—who I really insist that he remain in this body for his astuteness and his way of analyzing—might I just take a quick moment to say that the schools of America are open. But today, the hospitalization rate for omicron is the highest ever since we have had COVID–19.

And so I believe that school superintendents, teachers, parents, and others—like Madam Speaker—are making decisions for our children to be in school but also to be safe.

Madam Speaker, I move on these two very important legislative initiatives, H.R. 1836 and H.R. 4673. I thank the gentleman from Colorado. I thank my good friend who has served in the United States military from Pennsylvania. I thank him for his service as well.

Madam Speaker, I rise enthusiastically on this legislation for a number of reasons, but more importantly, I have worked extensively with the Guard, particularly the Texas National Guard. We in Texas can sometimes be called disaster alley as it relates to hurricanes and tornadoes, as it relates to COVID–19. And alongside of us on those battles, if you will, saving lives have been the National Guard. We are grateful for their service. They are citizen soldiers.

I think we don't acknowledge that what the Guard is is individuals who put on the uniform, leaving being a bus driver or a teacher or a mechanic, lawyer or doctor; and in doing so, they sacrifice and leave their families. So I am excited about H.R. 1836 by Mr. LEVIN because right now in terms of education, it is Active Duty, those individuals in active military service, including full-time training and annual

training. But H.R. 1836 will expand the eligibility criteria to include those training in full-time National Guard duty. They are on the front lines.

In my hospital during COVID–19, it was the Guard that came as nurses and support systems when we were literally overwhelmed with patients. It is the Guard that is coming back again to be able to help us now that we are also at the peak. Texas Children's Hospital seeing more sick COVID–19-impacted children in their history, the Guard is vital.

And I would just say that this is not about data. It is about the lives of our Guard. And I want to move to say how important it is to get our young soldiers on to the healthcare system under the bill of Mr. TAKANO as quickly as they come out. It is not about data, it is about saving lives.

And that leads me to Governor Abbott's untimely and wrong policies in Texas. I will be seeking an official investigation from the department in Washington, the Secretary of Defense and the Pentagon.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mr. PERLMUTTER. Madam Speaker, I yield an additional 1 minute to the gentlewoman from Texas.

Ms. JACKSON LEE. Madam Speaker, the issue is very clear. In his wrongheaded dispatching of our guard to the border—of course, this is a Federal responsibility, the southern border—we now have documented crises, guards committing suicide, guards not getting their paychecks, and guards having their education tuition slashed. Yes, that is what is happening in the State of Texas.

Madam Speaker, I am a fighter for the Guard. They have worked without ceasing and question. And I demand that this Congress, this Committee on Armed Services, the Pentagon, investigate when the commander of a particular State abuses those individuals who have put on the uniform as citizen soldiers and who are in desperate need of our help.

Suicide? Not getting your paychecks timely because you are dispatching people to the border without order and without understanding?

Madam Speaker, I support this legislation, but I am calling upon my colleagues to help me, help these young soldiers with family members who, at this point as we stand here, are not getting the kind of treatment equating to their dignity, their service, and their sacrifice.

Madam Speaker, I rise to speak in support of the Rule for House consideration of H.R. 1836, Guard and Reserve GI Bill Parity Act, and H.R. 4673, EVEST Act.

I thank Rules Committee Chairman MCGOVERN for shepherding this legislation to the floor.

I also thank House Veterans Committee Chair MARK TAKANO, for his stewardship of the committee and unwavering commitment to our nation's veterans.

H.R. 1836, the Guard and Reserve GI Bill Parity Act will expand eligibility criteria for certain education benefits.

Current law defines the term "active duty" as those individuals who are on full-time duty in the active military service of the United States, including full-time training duty, annual training duty, and attendance, while in the active military service, at a school designated as a service school by law or by the Secretary of the military department concerned.

H.R. 1836, will expand eligibility criteria to include those training in fulltime National Guard duty, which includes the National Guard, the Army National Guard, and the Air National Guard, as well as those same members when performing active duty.

H.R. 4673, the EVEST Act, would forward the goal of seamless enrollment in health care coverage.

Specifically, this bill will require the Department of Veterans Affairs (VA) to automatically enroll new veterans into VA health care, and notify veterans of their enrollment and instructions on how to un-enroll, if desired.

I rise today to pay tribute to all the men and women who have served in the Armed Forces of the United States and risked their lives to defend our freedoms and way of life and took and lived the oath to "support and defend the Constitution of the United States against all enemies, foreign and domestic" and bore true faith and allegiance to the same, an obligation they took freely, without any mental reservation or purpose of evasion.

Veterans are truly heroes walking among us.

I want to thank all of our armed serviceman and women for their selfless dedication to our protection every day.

Today's Rule includes a very important bill that provides for our nation's reservists, H.R. 1836, Guard and Reserve GI Bill Parity Act. When it is signed into law it will repair a disparity issue by placing the Guard and Reserve on equal footing with regards to GI bill benefits.

This Rule, in which we further the benefits and recognition that our veterans deserve, also reminds us that we have an overriding duty to protect the health and dignity of those service today.

For this reason, I would like to discuss the actions of the Texas Governor, because he is taking whatever steps he can to prevent local jurisdictions and municipalities in Texas from promulgating and enforcing any mandate that may be necessary to respond to and mitigate the substantial threat posed by the COVID–19 coronavirus pandemic.

It is no exaggeration to say that Executive Orders issued by the Texas Governor have consigned thousands of Texans to needless death and suffering.

According to virtually all public health experts, these deaths and suffering could be alleviated by taking the simple but life-saving precautions of getting a vaccination shot, wearing a protective face covering, and maintaining recommended social distancing.

To date, the COVID–19 virus has afflicted more than 35.3 million persons in the United States and more than 5.09 million Texas.

In Harris County alone, the number is approaching 753,000 cases and already 9,821 persons have died of the virus, which represents more than 10 percent of the 76,839 Texas lives claimed by this lethal disease.

To exacerbate matters, in March 2021, the Texas Governor launched the ill-fated and ineffective Operation Lone Star which he claimed was necessary to stem a so-called invasion of migrants at Texas' southern border.

As of November 2021, more than 10,000 Texas National Guardsmen have been deployed to the southern border in pursuit of this folly.

According to published media accounts, National Guard members who have been activated for Operation Lone Star are experiencing habitual pay delays and poor working conditions during the border mission, including being exposed to COVID–19, and many are missing the equipment necessary for safety and mission success.

Finally, just last week the Texas Governor filed a frivolous lawsuit in federal court challenging the authority of President Biden, the Commander-in-Chief of the Armed Forces to require that members of the National Guard be vaccinated against COVID–19.

There is no merit to this nuisance law suit as demonstrated by the summary rejection of similar arguments raised by neighboring Oklahoma Governor Stitt.

The Texas Governor's failure to comply with the policies intended to reduce the spread of COVID–19 among the Armed Forces will mean that there will be less military personnel available national disasters that have struck Texas in recent years, such as the winter freeze of last year.

This will also mean that there are fewer personnel to respond to any attacks on the homeland.

Encouraged by Governor Abbott's obstinacy, about 40 percent of the members of the Texas Army National Guard are refusing to get vaccinated, which puts at risk their colleagues and the persons they are sworn to defend and protect.

This Rule governs debate of excellent and common-sense bills that will enhance the respect and benefits of our servicemen and women.

We must also act to ensure that our servicemen and women are protected from COVID–19, both for their own safety and the safety of our nation.

Mr. RESCHENTHALER. Madam Speaker, I yield myself such time as I may consume. I appreciate my good friend from Texas talking about suicide. If we want to talk about suicide, let's look at the youth of this country. Here is the statistic:

The number of ER visits for suspected suicide attempts by 12- to 17-year-old girls rose by 51 percent in 2021 compared to 2019. Suicide attempts are up 51 percent. So let's talk about suicide and let's talk about the effect that these shutdowns are having on our youth.

I know my good friend from Colorado said this is just an issue in Chicago when we were talking about Chicago. Chicago is just an example of the shutdowns.

There are over 4,500 schools across the country that chose to begin the week of January 2 by shutting down, which clearly disrupted learning.

□ 1300

This isn't just a Republican stat. I have a New York Times article that has even more facts on this. Remember, it was President Biden who promised that he was going to shut down the

virus, not shut down the economy and not shut down schools. He has actually done the exact opposite.

Here is another statistic. More Americans have died from COVID–19 in 2021 than in 2020. That is under President Biden's watch.

We can hear excuses all day long about what can be done, but the fact is this: This is a crisis that Joe Biden and the other party across the aisle own. There is no excuse. They control the White House and the Senate, and they have the majority in the House. This has been done on their watch.

Madam Speaker, I yield 2½ minutes to the gentleman from Oklahoma (Mr. HERN) to talk more about this topic.

Mr. HERN. Madam Speaker, I thank my dear friend from Pennsylvania for yielding me 2½ minutes to speak about something today that we need to shed light on, which is an issue impacting an entire generation of students.

Children from preschool age through college have been barred from their classrooms for the better part of 2 years now. Many of us have stated from the start that shutting down schools would create more problems than it would solve, and now the data proves us right.

Still, some teachers' unions refuse to work. They refuse to put the well-being of the students' futures first.

Americans are sick and tired of the Federal Government moving the goalposts and changing the ''science'' to fit whatever narrative they want.

The President of the United States repeatedly caved to the teachers' unions, ignoring the needs of our students to the detriment of our children across the country. Now that he has seen the polling on school closures, he says the schools should reopen, continuing to move the goalposts.

Suicide and self-harm among students hit record highs while schools were closed. Mental health problems are on the rise among kids of all ages. Test scores are abysmal. All of these issues trace back to the closure of our schools.

When schools remain closed, our children are harmed. Parents are having to take their children to work, to their jobs, because they have no way of having their children cared for during the day.

Students need to be in school environments for more than just an education. The social skills developed through their school years have a direct impact on the adults and members of society that these children will grow into.

What will the next generation of leaders look like? What will the next generation of doctors, scientists, or engineers look like if this is their education today? In 20 years, our society will be dependent on this generation in the workforce and throughout our society. We are failing to prepare our children for it.

The future of our Nation belongs to the children. Yes, it really is for the children. Can anyone in this Chamber look at the actions of the last 2 years and say we are serving our children's best interests? The answer is a resounding no.

Madam Speaker, I urge consideration of Congresswoman HINSON's legislation to ensure our students are back in the classroom.

Mr. PERLMUTTER. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I would just respond to my friend from Oklahoma, as well as the gentleman from Pennsylvania. Obviously, they have some issues with their school systems if this is the problem that they are bringing up.

In Colorado, schools are open. I can tell you that my wife, Nancy, is pretty stressed because COVID is still around and the teaching ranks have been hit by COVID. There is a lot of stress on teachers, but the schools are open.

Maybe those gentlemen need to talk to their school boards. In Colorado, we believe in local control. In Colorado, we have kept these open.

I would just suggest to the gentlemen to take a look at their own school boards instead of having some national standard that they want to create here about keeping schools open, because they are open.

Madam Speaker, Mr. RESCHENTHALER mentioned something about the economy. Let's talk about the economy. Let's start with the stock market.

The stock market is up 10,000 points since Joe Biden took office. Madam Speaker, 10,000 points. Do you know what that means? It is $1.4 billion per point. It means the stock market is up $14 trillion in 1 year under Joe Biden. Since Donald Trump lost, the stock market is up $14 trillion.

If that weren't enough, let's talk about how many jobs have been added since Joe Biden won and Donald Trump lost. Madam Speaker, 6.2 million jobs have been added in the last year.

Wages have increased by 4.7 percent, at levels we haven't seen for decades.

We had the sharpest drop in unemployment since Joe Biden won and Donald Trump lost, over the course of the last year, down to 3.9 percent.

The stock market is up. Jobs are up. Wages are up. My friends are complaining about the economy. Well, they have to complain about something, so that is what they want to complain about.

Madam Speaker, I reserve the balance of my time.

Mr. RESCHENTHALER. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I am actually glad the economy came up because this is truly a disaster. We can talk about the stock market, but I can tell you that the people in my district don't care about Wall Street. They are focused on Main Street.

When everything they buy every day, whether it is bacon at the grocery store or gasoline at the gas station, costs more, it takes money out of their paychecks.

Don't take my word. Let's turn to some statistics.

The December jobs report was the worst of Joe Biden's Presidency, with the U.S. economy actually adding just under 200,000 jobs when it was projected to add roughly half a million jobs, grossly falling short of what all the economists were projecting.

The December jobs report was the worst of the Biden Presidency. The labor force participation rates decreased for the following demographics. African-American men 20 and older declined in job participation. African-American teenagers, Asian Americans, and Hispanic and Latino Americans all had falling numbers under the Biden economy.

Again, let's just look at inflation. Gasoline is up 58 percent. We haven't seen increases like this in gasoline since the last time that Joe Biden was in the White House. Car and truck rentals are up over 37 percent. As I referenced, bacon is up over 21 percent. Fish and seafood are up 10 percent. Eggs are up 8 percent. Coffee is up 7.5 percent.

What this means is the real wages of American workers, which have stagnated, are even worse than they were before this Presidency because everything the American worker buys costs more thanks to Joe Biden and thanks to the party across the aisle's economic policies.

I want to talk more about schools that were referenced. Let's talk about schools. I have a New York Times article. ''No Way to Grow Up'' is the title. American children are in crisis. It was published on January 4. This is a New York Times article.

Among third through eighth graders, math and reading levels were lower than normal this fall, according to NWEA, which is a research group.

Many children and teenagers are experiencing mental health problems aggravated by the isolation and disruption of the pandemic.

Three medical groups, including the American Academy of Pediatrics, recently declared a national state of emergency in children's health.

What is really shocking about this is the party across the aisle claims to be the party of science. I think the party across the aisle has forever forfeited the right to call themselves the party of science because nothing that they have done has been based on science—maybe political science, but not real science.

Here is the real science. Data now suggests that the many changes to school routines are of questionable value in controlling the virus' spread. Some researchers are skeptical that school closures actually reduce COVID cases in most instances.

Here we have the so-called party of science using unscientific rationale to shut down schools, which we know is damaging kids both from an education

point of view and a mental health point of view, damaging kids while having zero science to back that up.

Madam Speaker, I yield 2 minutes to the gentleman from Utah (Mr. MOORE).

Mr. MOORE of Utah. Madam Speaker, I rise today to urge my colleagues to defeat the previous question so that we can immediately consider H.R. 682, the Reopen Schools Act.

As a father of four, I know just how important it is to families across the country that our schools stay open and our kids keep learning.

I want to pause for a moment to highlight what we are hearing right now. I fully appreciate my Democrat colleagues talking about federalism. I am very supportive of that in the face of sweeping Federal mandates that are going to inflict an enormous workforce burden on all of our private-sector companies in my district with a Federal vaccine mandate. We are trying to say: Don't do that. That is not the right approach.

I am hearing the same thing, that it is not the right approach to tell each school board what they are doing. Let me set just a clear concept of what we are talking about here. There is Federal money involved. We want school boards to make decisions—I have even incorporated it into my speech that I will share here in a minute—to use these Federal dollars that are designed to help keep schools open.

We need to make sure that these schools stay open. Let's all embrace federalism. That is the goal. President Biden just realized it a few weeks ago when he said we can't solve this at the Federal level. We fully embrace that.

In-person learning is critical for our children's well-being. From mental health to reading and math skills, American students are struggling.

COVID is spreading, and we can embrace commonsense precautions, embracing federalism, like masks and testing, where relevant. But our kids need to be in the classroom.

Rolling school closures are exacting a staggering toll on our children, particularly those with special needs or those who are already vulnerable or behind academically.

Low-income families with parents who work outside the home are most at risk when schools shut down. Moms and dads race to find makeshift childcare just to be able to go to work and feed their families, and vulnerable kids fall further and further behind on their schoolwork. We cannot fail these students.

Congress allocated $54.3 billion for the Elementary and Secondary School Emergency Relief Fund to help schools reopen and stay open. Those funds must be used to prioritize the expenses that keep schools open.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. RESCHENTHALER. Madam Speaker, I yield an additional 30 seconds to the gentleman from Utah.

Mr. MOORE of Utah. Madam Speaker, I am grateful for Utah's educators and superintendents who are working hard to do what is right by our students. They are working hard; I see it. Families across the country are trying the best they can, and we must commit to supporting them in return.

A vote for the previous question is a vote for our students and our future.

Mr. PERLMUTTER. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I appreciate the comments of the gentleman from Utah, as well as my friend from Pennsylvania. They are focusing on schools. Okay, focus on schools. Obviously, I think local control of these school districts is the appropriate way to go and not kind of a Federal mandate.

Obviously, we would like to see vaccines used more and COVID eliminated. If we got everybody vaccinated and people wore masks, I think that would be the direction we would go.

What these bills are about, and what this rule is about, is the mental health of our National Guard and Reserve troops. We are talking about the National Guard, and we are talking about the Reserves.

They may want to bring in a school bill, which is completely unrelated to the topic at hand, but what we are talking about here should have been either passed under some kind of an expedited fashion or it should be the law already. Obviously, they want to argue about something that is not before the body because they can't argue against these two bills.

We want to make sure that there is parity that exists between the National Guard and Reserve and active military when it comes to the GI Bill and the ability of those individuals to take advantage of the benefits of the GI Bill, which will benefit this Nation greatly.

My dad had a saying about the original GI Bill. He said: America has made many investments, but of the two best investments that America made, the Louisiana Purchase was second only to the GI Bill in terms of the value to America.

Here we are, talking about all sorts of other things and not parity for National Guardsmen, Reserve officers, and Reserve troops with the ability to access the GI Bill.

We are also ignoring the mental health issues that so many coming out of the military may experience once they are out of the Department of Defense, out of their active service. We want to make sure there is a seamless approach to them entering into the VA system.

Madam Speaker, I understand my friends arguing about everything else, but what we have before us are very important matters that have to be addressed.

Madam Speaker, I reserve the balance of my time.

□ 1315

Mr. RESCHENTHALER. Madam Speaker, again, I just want to reiterate that I have said if we defeat the previous question I will personally offer an amendment to the rule to immediately consider H.R. 682, the Reopen Schools Act, to help our children who are in school who are suffering. That is why this is now an issue.

To speak more on that, Madam Speaker, I yield 3 minutes to the gentleman from Wisconsin (Mr. TIFFANY).

Mr. TIFFANY. Madam Speaker, I want to say thank you to the gentleman from Pennsylvania for a few minutes here. I appreciate it.

Madam Speaker, I rise to oppose the previous question and in support of the Reopen Schools Act. We are hearing today that, in terms of priorities here, what could be more important than schools and getting our schools open with the damage that has been done over the last couple years?

During the early days of the pandemic many schools across the country were shuttered. But now some 2 years in, I believe we have the tools and resources to keep our schools open—something we all know is in the best interest of our kids.

Since March of 2020, the Federal Government has provided $190 billion in pandemic aid to schools to upgrade their mitigation systems and get kids back in the classrooms safely. Unfortunately, last week the teachers union in Chicago decided to walk out on their students. The standoff has kept 340,000 students—the third largest school system in the United States—out of the classroom. Worryingly, we are now seeing other teachers unions across the country looking to follow their lead and pushing for a return to remote learning.

So our colleague across the aisle here asked: What are we railing against?

Aren't we in support of local control?

Of course we are. But what we are seeing in the State of Wisconsin now is that the Department of Health Services, at the behest of the Governor, is pushing for more restrictions. A letter just went out today to all school districts across the State of Wisconsin: You should be putting more restrictions in place.

It is very similar to what the Centers for Disease Control has done. It is extremely hard for someone at the local level to simply stand up against this onslaught of regulations and suggestions that you have to do this otherwise children are going to be damaged.

How are you going to stand up against that when you are just a small, local school district?

Even the Education Secretary, Miguel Cardona, took a stand by saying that students have suffered enough and schools should stay open. I agree.

Last year's school closures were extremely hard on parents and students leading to significant learning loss. That is a scenario we cannot afford to repeat this academic year. We owe it to

our kids to get back to in-person instruction. H.R. 682 ensures that the additional $190 billion in pandemic aid actually goes towards what it was intended: getting kids back in the classroom.

Madam Speaker, I just want to close by saying this: I remember back in April of 2020, a couple weeks into the shutdowns and lockdowns, we knew whom this was going to affect the most, and we knew that children are at very low risk.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. RESCHENTHALER. Madam Speaker, I yield the gentleman from Wisconsin an additional 10 seconds.

Mr. TIFFANY. In fact, the head of the CDC at that time, Dr. Redfield, said that kids should be back in school. They are at less risk than the cold and flu with COVID. Kids should be back in school.

Madam Speaker, I urge defeat of the previous question so we can consider this critical piece of legislation put forward by the gentlewoman from Iowa.

Mr. PERLMUTTER. Madam Speaker, may I inquire as to how much time each side has remaining?

The SPEAKER pro tempore. The gentleman from Colorado has 9½ minutes remaining. The gentleman from Pennsylvania has 8½ minutes remaining.

Mr. PERLMUTTER. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I appreciate my friends wanting to talk about the Chicago Teachers Union because, again, they don't want to talk about the National Guard; they don't want to talk about the Reserve; they don't want to talk about the GI Bill; and they don't want to talk about mental health benefits or health benefits generally for veterans because they don't have any complaint about that. There is just a whole other conversation going on here.

Again, I don't know what is going on in Wisconsin, whether the gentleman has a complaint against collective bargaining in Wisconsin; I don't know if it is the problem in Pennsylvania if there is an issue with collective bargaining. That is not the issue before the House today.

Madam Speaker, we need to get these National Guard and Reserve pieces of legislation passed, and I reserve the balance of my time.

Mr. RESCHENTHALER. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I am a veteran in the Navy. I was a naval officer. I deployed to Iraq. I will talk about veteran issues all day long, and we can start by talking about the VA loan that needs reform so veterans can actually use this loan in a hot market where sellers simply will refuse to accept that loan. I will sit up here and talk about that all day, and I have been talking about veterans' issues.

But let's just step back. We have had almost 1 year of one-party rule, one party controlling the White House, the Senate, and the House for 1 year.

And what has that given us?

It has given us an absolute crisis—a disaster—at the southern border. It has given us rampant COVID deaths that actually exceed what they were last year despite the fact that this President inherited from President Trump Operation Warp Speed which gave him three vaccines and a list of therapeutics that could be used. Despite all that, this is still an unmitigated disaster that Biden and his Democratic colleagues have created.

We also have inflation and stagnation. American workers have less money to buy the goods and services they need. We have Russia poised to invade Ukraine. We have Communist China daily invading the airspace of the free and independent nation state of Taiwan. And don't even get me started on the fact that we ceded Afghanistan to the Taliban after 18 months of stability in a nation that saw zero American fatalities and stability for our Afghan allies, and we handed it over to the Taliban.

That is what 1 year of one-party rule has given this country: an unmitigated disaster.

Now, getting back to schools, I know that my colleagues on the left want to say that this is just an issue for Chicago or some other city. Forty-five hundred schools shut down the first week of January is a national issue.

Madam Speaker, I yield 2 minutes to the gentlewoman from Louisiana (Ms. LETLOW) to talk more about it.

Ms. LETLOW. Madam Speaker, I rise to oppose the previous question so we can immediately consider H.R. 682, the Reopen Schools Act. I believe that this legislation is critical for our students, to ensure success in the current school year, and also address the learning gap that has arisen during this pandemic.

As parents, we know that education is the most essential cornerstone in the foundation of our children's future. Throughout the past year I have heard from countless parents who had to put their lives on hold to assume the role of teacher in their child's virtual classroom, while other family priorities, including returning to work, took a backseat.

As a former educator myself, I know how crucial classroom discussion is to the learning process. The statistics clearly show that students learn better when they are able to participate in person and interact with their peers and teachers, and not reduced to just a face on a screen.

I also want to note that in rural areas such as my district, successful virtual learning is nearly impossible because of the lack of access to broadband internet. In my home State of Louisiana, our standardized tests show that the number of students in grades 3 through 8 who achieved the State's proficiency goals fell by nearly 5 percent during the pandemic.

Over the past 2 years, Congress has appropriated billions of dollars so schools can take the necessary steps to reopen safely. I want to be clear: We are not asking schools to put either students or teachers into unsafe environments. We did not send States and districts that funding for them to simply shut their doors again.

Madam Speaker, it is absolutely critical for us to move forward on this legislation to ensure that American students can continue to learn in safe, face-to-face classrooms across this country.

Mr. RESCHENTHALER. Madam Speaker, I would like my friend from Colorado to know that I have no further speakers and that I am prepared to close.

Mr. PERLMUTTER. Madam Speaker, I would just like to thank the gentlewoman from Louisiana for talking about the need for broadband because in the American Rescue Plan there is funding for broadband for rural areas such as she represents as well as in the infrastructure bill.

Madam Speaker, I reserve the balance of my time so my friend can close.

Mr. RESCHENTHALER. Madam Speaker, I yield myself the balance of my time.

Madam Speaker, as a former Navy JAG, I strongly support efforts to ensure our military men and women receive the care and benefits they deserve both during and after their periods of service. It is, therefore, incredibly disappointing to me that the two bills made in order under today's rule present numerous issues and numerous uncertainties that could have been addressed through what could have been just a robust discussion with the VA, VSOs, and other stakeholder groups.

I really hope that moving forward we can just work together to ensure that through the legislative process we address the needs of our Nation's veterans.

Again, I would urge my colleagues to vote ''no'' on the previous question so that I can offer the amendment to Reopen Schools Act.

So, again, Madam Speaker, I urge my colleagues to vote ''no'' on the previous question and ''no'' on the rule, and I yield back the balance of my time.

Mr. PERLMUTTER. Madam Speaker, I yield myself the balance of my time.

I want to just recognize my friend for his service to our country both in the military and here in the United States Congress.

I want to thank my colleagues for joining me here today to speak on the rule, the Guard and Reserve GI Bill Parity Act, and the EVEST Act and how we provide and care for our Nation's veterans.

We have an opportunity through passage of both bills to improve the healthcare of our separating servicemembers and ensure our National Guard and Reserve component members receive parity in their GI Bill benefits to thank them for their service to

our country. I again want to thank the Veterans' Affairs Committee for their work along with Chairman MARK TAKANO and Representative MIKE LEVIN for sponsoring these important bills.

As we kick off 2022 and continue the House's work for the people, I am glad we are starting with our Nation's veterans. I want to thank my friend and colleague, Mr. RESCHENTHALER, and the numerous other veterans who have served in this body for, again, service both in the military and service here in the United States Congress. I have always fought hard for our Nation's veterans throughout my time in Congress as my way to show my gratitude for their service and fulfill my belief that it is our country's responsibility to care for our Nation's veterans after they have cared for us.

Madam Speaker, I encourage a ''yes'' vote on the rule and the previous question.

The material previously referred to by Mr. RESCHENTHALER is as follows:

At the end of the resolution, add the following:

SEC. 8. Immediately upon adoption of this resolution, the House shall proceed to the consideration in the House of the bill (H.R. 682) to encourage local educational agencies to resume in-person instruction at elementary and secondary schools, and for other purposes. All points of order against consideration of the bill are waived. The bill shall be considered as read. All points of order against provisions in the bill are waived. The previous question shall be considered as ordered on the bill and on any amendment thereto to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Education and Labor; and (2) one motion to recommit.

SEC. 9. Clause 1(c) of rule XIX shall not apply to the consideration of H.R. 682.

Mr. PERLMUTTER. Madam Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. RESCHENTHALER. Madam Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3(s) of House Resolution 8, the yeas and nays are ordered.

The vote was taken by electronic device, and there were—yeas 219, nays 203, not voting 10, as follows:

[Roll No. 2]

YEAS—219

Adams
Aguilar
Allred
Auchincloss
Axne
Barragán
Bass
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bourdeaux
Bowman
Boyle, Brendan F.
Brown (MD)
Brown (OH)
Brownley
Bush
Bustos
Butterfield
Carbajal
Cárdenas
Carson
Carter (LA)
Case
Casten
Castor (FL)
Castro (TX)
Chu
Cicilline
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Connolly
Cooper
Correa
Costa
Courtney
Craig
Crist
Crow
Cuellar
Davids (KS)
Davis, Danny K.
Dean
DeFazio
DeGette
DeLauro
DelBene
Delgado
Demings
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Escobar
Eshoo
Espaillat
Evans
Fletcher
Foster
Frankel, Lois
Gallego
Garamendi
García (IL)
Garcia (TX)
Golden
Gomez
Gonzalez, Vicente
Gottheimer
Green, Al (TX)
Grijalva
Harder (CA)
Hayes
Higgins (NY)
Himes
Horsford
Houlahan
Hoyer
Huffman
Jackson Lee
Jacobs (CA)
Jayapal
Jeffries
Johnson (GA)
Johnson (TX)
Jones
Kahele
Kaptur
Keating
Kelly (IL)
Khanna
Kildee
Kilmer
Kim (NJ)
Kind
Kirkpatrick
Krishnamoorthi
Kuster
Lamb
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lawson (FL)
Lee (CA)
Lee (NV)
Leger Fernandez
Levin (CA)
Levin (MI)
Lieu
Lofgren
Lowenthal
Luria
Lynch
Malinowski
Maloney, Carolyn B.
Maloney, Sean
Manning
Matsui
McBath
McCollum
McEachin
McGovern
McNerney
Meeks
Meng
Mfume
Moore (WI)
Morelle
Moulton
Mrvan
Murphy (FL)
Nadler
Napolitano
Neal
Neguse
Newman
Norcross
O'Halleran
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Perlmutter
Peters
Phillips
Pingree
Pocan
Porter
Pressley
Price (NC)
Quigley
Raskin
Rice (NY)
Ross
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Schrader
Schrier
Scott (VA)
Scott, David
Sewell
Sherman
Sherrill
Sires
Slotkin
Smith (WA)
Soto
Spanberger
Speier
Stansbury
Stanton
Stevens
Strickland
Suozzi
Swalwell
Takano
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Underwood
Vargas
Veasey
Vela
Velázquez
Wasserman Schultz
Waters
Watson Coleman
Welch
Wexton
Wild
Williams (GA)
Wilson (FL)
Yarmuth

NAYS—203

Aderholt
Allen
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bentz
Bergman
Bice (OK)
Biggs
Bilirakis
Bishop (NC)
Boebert
Bost
Brady
Brooks
Buchanan
Buck
Bucshon
Budd
Burchett
Burgess
Calvert
Cammack
Carey
Carl
Carter (GA)
Carter (TX)
Cawthorn
Chabot
Cheney
Cloud
Clyde
Cole
Comer
Crawford
Crenshaw
Curtis
Davidson
Davis, Rodney
DesJarlais
Diaz-Balart
Donalds
Duncan
Dunn
Ellzey
Emmer
Estes
Fallon
Feenstra
Ferguson
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Fortenberry
Foxx
Franklin, C. Scott
Fulcher
Gaetz
Gallagher
Garbarino
Garcia (CA)
Gibbs
Gimenez
Gohmert
Gonzales, Tony
Gonzalez (OH)
Good (VA)
Gooden (TX)
Gosar
Granger
Graves (LA)
Graves (MO)
Green (TN)
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hagedorn
Harris
Harshbarger
Hartzler
Hern
Herrell
Herrera Beutler
Hice (GA)
Hill
Hinson
Hollingsworth
Hudson
Issa
Jackson
Jacobs (NY)
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Katko
Keller
Kelly (MS)
Kelly (PA)
Kim (CA)
Kinzinger
Kustoff
LaHood
LaMalfa
Lamborn
Latta
LaTurner
Lesko
Letlow
Long
Loudermilk
Lucas
Luetkemeyer
Mace
Malliotakis
Mann
Massie
Mast
McCarthy
McCaul
McClain
McHenry
McKinley
Meijer
Meuser
Miller (IL)
Miller (WV)
Miller-Meeks
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Mullin
Murphy (NC)
Nehls
Newhouse
Norman
Obernolte
Owens
Palazzo
Palmer
Pence
Perry
Pfluger
Posey
Reed
Reschenthaler
Rice (SC)
Rodgers (WA)
Rogers (KY)
Rose
Rosendale
Rouzer
Roy
Salazar
Scalise
Schweikert
Scott, Austin
Sessions
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spartz
Stauber
Steel
Stefanik
Steil
Steube
Stewart
Taylor
Tenney
Thompson (PA)
Tiffany
Timmons
Turner
Upton
Valadao
Van Drew
Van Duyne
Wagner
Walberg
Walorski
Weber (TX)
Wenstrup
Westerman
Wilson (SC)
Wittman
Womack
Young
Zeldin

NOT VOTING—10

Cartwright
Cline
Higgins (LA)
Huizenga
McClintock
Rogers (AL)
Rutherford
Waltz
Webster (FL)
Williams (TX)

□ 1406

Mr. LONG changed his vote from ''yea'' to ''nay.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

MEMBERS RECORDED PURSUANT TO HOUSE RESOLUTION 8, 117TH CONGRESS

Adams (Brown (MD))
Auchincloss (Clark (MA))
Babin (Sessions)
Baird (Walorski)
Barragán (Beyer)
Bass (Cicilline)
Beatty (Kaptur)
Bera (Kilmer)
Bishop (GA) (Carter (LA))
Blumenauer (Beyer)
Blunt Rochester (Brown (MD))
Bonamici (Kuster)
Bourdeaux (Clark (MA))
Boyle, Brendan F. (Swalwell)
Brownley (Kuster)
Bush (Bowman)
Butterfield (Kildee)
Cárdenas (Soto)
Casten (Underwood)
Chu (Clark (MA))
Cohen (Beyer)
Cooper (Clark (MA))
Crawford (Stewart)
Crist (Soto)
DeFazio (Brown (MD))
DeGette (Brown (MD))
DeSaulnier (Beyer)
DesJarlais (Fleischmann)
Deutch (Rice (NY))
Doggett (Raskin)
Evans (Mfume)
Frankel, Lois (Clark (MA))
Gaetz (Boebert)
Garamendi (Sherman)
Gohmert (Weber (TX))
Gonzalez, Vicente (Correa)
Grijalva (García (IL))
Grothman (Fitzgerald)
Hagedorn (Carl)
Herrera Beutler (Moore (UT))
Hudson (McHenry)
Jacobs (NY) (Garbarino)
Jayapal (Raskin)
Johnson (GA) (Raskin)
Johnson (TX) (Jeffries)
Jones (Jacobs (CA))
Kahele (Case)
Katko (Meijer)
Kim (CA) (Steel)
Kim (NJ) (Pallone)
Kind (Connolly)
Kinzinger (Meijer)
Kirkpatrick (Pallone)
Lamborn (McHenry)
Langevin (Lynch)
Lawson (FL) (Soto)
Lee (CA) (Khanna)
Leger Fernandez (Clark (MA))
Lieu (Beyer)
Lofgren (Jeffries)
Lowenthal (Beyer)
Mace (Timmons)
Maloney, Sean Patrick (Jeffries)
Matsui (Thompson (CA))
McBath (Trone)
McCaul (Ellzey)
McEachin (Wexton)
Meng (Kuster)
Moore (WI) (Beyer)
Moulton (Beyer)
Nadler (Pallone)
Napolitano (Correa)
Ocasio-Cortez (Escobar)
Omar (Bowman)
Panetta (Kildee)
Payne (Pallone)
Pfluger (Mann)
Pingree (Cicilline)
Pocan (Raskin)
Porter (Wexton)
Pressley (García (IL))
Price (NC) (Connolly)
Roybal-Allard (Correa)
Ruiz (Aguilar)
Ruppersberger (Trone)
Rush (Kaptur)

Salazar (Gimenez)
Sarbanes (Raskin)
Schrier (Spanberger)
Sewell (Cicilline)
Sires (Pallone)
Smucker (Joyce (PA))
Speier (Escobar)
Stansbury (Jacobs (CA))
Stanton (Levin (CA))
Stefanik (Meuser)
Suozzi (Raskin)
Titus (Connolly)
Tlaib (Khanna)
Torres (NY) (Cicilline)
Van Drew (Reschenthaler)
Vela (Correa)
Waters (Takano)
Watson Coleman (Pallone)
Welch (McGovern)
Williams (GA) (Jacobs (CA))
Wilson (FL) (Cicilline)

The SPEAKER pro tempore (Mrs. DINGELL). The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. RESCHENTHALER. Madam Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3(s) of House Resolution 8, the yeas and nays are ordered.

The vote was taken by electronic device, and there were—yeas 219, nays 203, not voting 10, as follows:

[Roll No. 3]

YEAS—219

Adams
Aguilar
Allred
Auchincloss
Axne
Barragán
Bass
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bourdeaux
Bowman
Boyle, Brendan F.
Brown (MD)
Brown (OH)
Brownley
Bush
Bustos
Butterfield
Carbajal
Cárdenas
Carson
Carter (LA)
Case
Casten
Castor (FL)
Castro (TX)
Chu
Cicilline
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Connolly
Cooper
Correa
Costa
Courtney
Craig
Crist
Crow
Cuellar
Davids (KS)
Davis, Danny K.
Dean
DeFazio
DeGette
DeLauro
DelBene
Delgado
Demings
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Escobar
Eshoo
Espaillat
Evans
Fletcher
Foster
Frankel, Lois
Gallego
Garamendi
García (IL)
Garcia (TX)
Golden
Gomez
Gonzalez, Vicente
Gottheimer
Green, Al (TX)
Grijalva
Harder (CA)
Hayes
Higgins (NY)
Himes
Horsford
Houlahan
Hoyer
Huffman
Jackson Lee
Jacobs (CA)
Jayapal
Jeffries
Johnson (GA)
Johnson (TX)
Jones
Kahele
Kaptur
Keating
Kelly (IL)
Khanna
Kildee
Kilmer
Kim (NJ)
Kind
Kirkpatrick
Krishnamoorthi
Kuster
Lamb
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lawson (FL)
Lee (CA)
Lee (NV)
Leger Fernandez
Levin (CA)
Levin (MI)
Lieu
Lofgren
Lowenthal
Luria
Lynch
Malinowski
Maloney, Carolyn B.
Maloney, Sean
Manning
Matsui
McBath
McCollum
McEachin
McGovern
McNerney
Meeks
Meng
Mfume
Moore (WI)
Morelle
Moulton
Mrvan
Murphy (FL)
Nadler
Napolitano
Neal
Neguse
Newman
Norcross
O'Halleran
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Perlmutter
Peters
Phillips
Pingree
Pocan
Porter
Pressley
Price (NC)
Quigley
Raskin
Rice (NY)
Ross
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Schrader
Schrier
Scott (VA)
Scott, David
Sewell
Sherman
Sherrill
Sires
Slotkin
Smith (WA)
Soto
Spanberger
Speier
Stansbury
Stanton
Stevens
Strickland
Suozzi
Swalwell
Takano
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tonko
Torres (CA)
Torres (NY)
Trahan
Trone
Underwood
Vargas
Veasey
Vela
Velázquez
Wasserman Schultz
Waters
Watson Coleman
Welch
Wexton
Wild
Williams (GA)
Wilson (FL)
Yarmuth

NAYS—203

Aderholt
Allen
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bentz
Bergman
Bice (OK)
Biggs
Bilirakis
Bishop (NC)
Boebert
Bost
Brady
Brooks
Buchanan
Bucshon
Budd
Burchett
Burgess
Calvert
Cammack
Carey
Carl
Carter (GA)
Carter (TX)
Cawthorn
Chabot
Cheney
Cloud
Clyde
Cole
Comer
Crawford
Crenshaw
Curtis
Davidson
Davis, Rodney
DesJarlais
Diaz-Balart
Donalds
Duncan
Dunn
Ellzey
Emmer
Estes
Fallon
Feenstra
Ferguson
Fischbach
Fitzgerald
Fitzpatrick
Fleischmann
Fortenberry
Foxx
Franklin, C. Scott
Fulcher
Gaetz
Gallagher
Garbarino
Garcia (CA)
Gibbs
Gimenez
Gohmert
Gonzales, Tony
Gonzalez (OH)
Good (VA)
Gooden (TX)
Gosar
Granger
Graves (LA)
Graves (MO)
Green (TN)
Greene (GA)
Griffith
Grothman
Guest
Guthrie
Hagedorn
Harris
Harshbarger
Hartzler
Hern
Herrell
Herrera Beutler
Hice (GA)
Hill
Hinson
Hollingsworth
Hudson
Issa
Jackson
Jacobs (NY)
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Katko
Keller
Kelly (MS)
Kelly (PA)
Kim (CA)
Kinzinger
Kustoff
LaHood
LaMalfa
Lamborn
Latta
LaTurner
Lesko
Letlow
Long
Loudermilk
Lucas
Luetkemeyer
Mace
Malliotakis
Mann
Massie
Mast
McCarthy
McCaul
McClain
McHenry
McKinley
Meijer
Meuser
Miller (IL)
Miller (WV)
Miller-Meeks
Moolenaar
Mooney
Moore (AL)
Moore (UT)
Mullin
Murphy (NC)
Nehls
Newhouse
Norman
Obernolte
Owens
Palazzo
Palmer
Pence
Perry
Pfluger
Posey
Reed
Reschenthaler
Rice (SC)
Rodgers (WA)
Rogers (KY)
Rose
Rosendale
Rouzer
Roy
Salazar
Scalise
Schweikert
Scott, Austin
Sessions
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spartz
Stauber
Steel
Stefanik
Steil
Steube
Stewart
Taylor
Tenney
Thompson (PA)
Tiffany
Timmons
Turner
Upton
Valadao
Van Drew
Van Duyne
Wagner
Walberg
Walorski
Waltz
Weber (TX)
Wenstrup
Westerman
Wilson (SC)
Wittman
Womack
Young
Zeldin

NOT VOTING—10

Buck
Cartwright
Cline
Higgins (LA)
Huizenga
McClintock
Rogers (AL)
Rutherford
Webster (FL)
Williams (TX)

□ 1431

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PERSONAL EXPLANATION

Mr. CLINE. Madam Speaker, I am not recorded because I was absent due to illness. Had I been present, I would have voted "nay" on rollcall No. 2 and "nay" on rollcall No. 3.

MEMBERS RECORDED PURSUANT TO HOUSE RESOLUTION 8, 117TH CONGRESS

Adams (Brown (MD))
Auchincloss (Clark (MA))
Babin (Sessions)
Baird (Walorski)
Barragán (Beyer)
Bass (Cicilline)
Beatty (Kaptur)
Bera (Kilmer)
Bishop (GA) (Carter (LA))
Blumenauer (Beyer)
Blunt Rochester (Brown (MD))
Bonamici (Kuster)
Bourdeaux (Clark (MA))
Boyle, Brendan F. (Swalwell)
Brownley (Kuster)
Bush (Bowman)
Butterfield (Kildee)
Cárdenas (Soto)
Casten (Underwood)
Chu (Clark (MA))
Cohen (Beyer)
Cooper (Clark (MA))
Crawford (Stewart)
Crist (Soto)
DeFazio (Brown (MD))
DeGette (Brown (MD))
DeSaulnier (Beyer)
DesJarlais (Fleischmann)
Deutch (Rice (NY))
Doggett (Raskin)
Evans (Mfume)
Frankel, Lois (Clark (MA))
Gaetz (Boebert)
Garamendi (Sherman)
Gohmert (Weber (TX))
Gonzalez, Vicente (Correa)
Grijalva (García (IL))
Grothman (Fitzgerald)
Hagedorn (Carl)
Herrera Beutler (Moore (UT))
Hudson (McHenry)
Jacobs (NY) (Garbarino)
Jayapal (Raskin)
Johnson (GA) (Raskin)
Johnson (TX) (Jeffries)
Jones (Jacobs (CA))
Kahele (Case)
Katko (Meijer)
Kim (CA) (Steel)
Kim (NJ) (Pallone)
Kind (Connolly)
Kinzinger (Meijer)
Kirkpatrick (Pallone)
Lamborn (McHenry)
Langevin (Lynch)
Lawson (FL) (Soto)
Lee (CA) (Khanna)
Leger Fernandez (Clark (MA))
Lieu (Beyer)
Lofgren (Jeffries)
Lowenthal (Beyer)
Mace (Timmons)
Maloney, Sean Patrick (Jeffries)
Matsui (Thompson (CA))
McBath (Trone)
McCaul (Ellzey)
McEachin (Wexton)
Meng (Kuster)
Moore (WI) (Beyer)
Moulton (Beyer)
Nadler (Pallone)
Napolitano (Correa)
Ocasio-Cortez (Escobar)
Omar (Bowman)
Panetta (Kildee)
Payne (Pallone)
Pfluger (Mann)
Pingree (Cicilline)
Pocan (Raskin)
Porter (Wexton)
Pressley (García (IL))
Price (NC) (Connolly)
Roybal-Allard (Correa)
Ruiz (Aguilar)
Ruppersberger (Trone)
Rush (Kaptur)
Salazar (Gimenez)
Sarbanes (Raskin)
Schrier (Spanberger)
Sewell (Cicilline)
Sires (Pallone)
Smucker (Joyce (PA))
Speier (Escobar)
Stansbury (Jacobs (CA))
Stanton (Levin (CA))
Stefanik (Meuser)
Suozzi (Raskin)
Titus (Connolly)
Tlaib (Khanna)
Torres (NY) (Cicilline)
Van Drew (Reschenthaler)
Vela (Correa)
Waltz (Mast)
Waters (Takano)
Watson Coleman (Pallone)
Welch (McGovern)
Williams (GA) (Jacobs (CA))
Wilson (FL) (Cicilline)

MARSHALL FIRE

(Mr. NEGUSE asked and was given permission to address the House for 1 minute.)

Mr. NEGUSE. Madam Speaker, just over a week ago, on December 30, a devastating disaster hit the Boulder community. Fueled by hurricane-force winds, exacerbated by months of drought and dry conditions, the Marshall fire spread through the suburban neighborhoods of Louisville and Superior with a speed and magnitude that we have never witnessed before.

Over 1,000 homes and businesses destroyed. Over 30,000 individuals evacuated. Countless families and community members dealing now with unprecedented loss left only with the clothes on their backs and the items carried in their departure. One known fatality and still one member of our community missing. Our hearts ache for every single person touched by this disaster.

For every first responder and firefighter that worked to keep our community safe, we owe you a debt of gratitude.

Madam Speaker, finally, I close by saying that I have lived in this community for many, many years. And we know that even in this unprecedented and terrible tragedy, that we are strong, that our community is resilient, and that our community will get through this together.

RECOGNIZING ERIC BERGREN'S 27 YEARS OF SERVICE TO KENTUCKY'S SECOND DISTRICT

(Mr. GUTHRIE asked and was given permission to address the House for 1 minute.)

Mr. GUTHRIE. Madam Speaker, I rise today to recognize Eric Bergren's 27 years of service to Kentucky's Second District.

Eric, a graduate of UMass, started working for Kentucky's Second District in 1994. Eric worked his way up from an intern to become the chief of staff under Congressman Lewis, my predecessor. During that time, Eric met his wife, Kathy Reding, a native of Howardstown, Kentucky, in the Second District. Eric and Kathy are now proud parents of Cecelia and Julia.

Eric has been at my side since 2009 when I was sworn in. I believe I have had the best chief, and others have affirmed that. On a personal note, we have both watched our kids grow up and shared with each other the joys of being a father.

Madam Speaker, I am losing a chief but I am not losing a great friend. Thanks for everything, Eric, and I wish you the best for your next chapter.

SALUTE TO HARRY REID

(Ms. JACKSON LEE asked and was given permission to address the House for 1 minute.)

Ms. JACKSON LEE. Madam Speaker, I rise today to salute the late majority leader, Harry Reid, who served his Nation for 48 years in public service by appointment or election. But Harry Reid can be more than the public service that he has given. He is and was a true patriot, a family man, and someone who cared enough to not only secure this Nation but to mentor and to love his State and to love America.

Thousands—no, millions of Americans, at all economic levels, have healthcare because of Harry Reid. Nevada was prevented from being a nuclear waste dumping ground because of Harry Reid. And I stood by him, glad to have known him—I, as a member of the United States House; he, then in the United States Senate.

It is with deep sympathy that I offer to his family and friends and the people of Nevada for he truly was an American patriot—tough, but strong and kind. And may I say, he served as a U.S. Capitol Hill police officer. What a man—a boxer, but always a patriot.

May he rest in peace and may he know that his 48 years—44 of them in the United States Congress—counts toward his historical mark of changing America, making America the place where no matter who you are you have an opportunity to succeed and to overcome. He did that and helped others as well.

Thank you to patriot Majority Leader Harry Reid. May he rest in peace and may he rest in power.

106TH ANNUAL PENNSYLVANIA FARM SHOW

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Madam Speaker, I rise today to celebrate the 106th Annual Pennsylvania Farm Show, the largest indoor agriculture show under one roof in the country.

Each year, I have the privilege to tour the Pennsylvania Farm Show Complex, meet with commodity groups and industry leaders, and host a public listening session.

I thank those who joined me in 2022: Pennsylvania Congressional Delegation Members Congressman KELLER and Congressman MEUSER, and House Agriculture Committee's Subcommittee on Commodity Exchanges, Energy, and Credit, Ranking Member MICHELLE FISCHBACH—all strong allies of the agriculture community.

I also thank Pennsylvania's Secretary of Agriculture, Russell Redding, for his participation, and the farmers and ranchers and producers we visit with for sharing their concerns, voicing their questions, and more importantly, clothing and feeding our great Commonwealth, country, and world.

I know there is no experience that replaces the value of meeting with our producers face to face. The Pennsylvania Farm Show truly does bring together so many different people in the ag community on the local, State, and Federal level. It is an event like no other.

AMERICA'S ECONOMIC COMEBACK

(Ms. KAPTUR asked and was given permission to address the House for 1 minute.)

Ms. KAPTUR. Madam Speaker, I rise today to highlight the economic comeback we are seeing in Ohio and across our Nation.

In April of 2020, before the Biden administration took office, America's unemployment rate was nearly 15 percent. With Democrats in charge, that rate is down to 3.9 percent, millions of jobs across our country. Under President Biden's and our Democratic Congress, we passed the American Rescue Plan to prevent communities, universities, hospitals from going bankrupt, to keep police officers and firefighters on the job, and put our people back to work. And indeed, last year, 2021, 6.4 million new jobs were created across our country—an unprecedented number. That is a wow by any measure. And 100 percent of Republicans voted ''no'' on the rescue bill.

Now, thanks to the Jobs and Infrastructure Act, Democrats just passed billions of dollars, and good construction jobs are going out across this country to rebuild roads, bridges, airports, renewable energy, next generation manufacturing, and keep the progress moving. And guess what, 94 percent of Republicans voted ''no.''

I say thank you to the Biden administration. Thank you to the Democratic party for picking this country up during the worst pandemic in a century.

CONGRATULATING DAVID H. ESTES ON HIS APPOINTMENT AS PROSECUTOR

(Mr. CARTER of Georgia asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CARTER of Georgia. Madam Speaker, I rise today to congratulate David Estes on his appointment to be the new top prosecutor for the Southern District of Georgia.

David has been the Acting U.S. Attorney since February of 2021. In 2018, David joined the U.S. Attorney staff as the First Assistant U.S. Attorney for the Southern District.

David began his career in 1997 with the Alabama Attorney General's Office, violent crimes division, as a violent crimes prosecutor. David also recently retired from the military with 34 years of experience under his belt.

From 2004 to 2005, David was deployed to Iraq with the 122nd Corps Support Group where he served as the deputy staff judge advocate and chief military justice.

He has been awarded the Bronze Star for his service in Iraq. And in 2013, he was promoted to colonel and continued his service to our country as staff judge advocate for the 167th Theatre Sustainment Command.

Twice, David was awarded the Legion of Merit medal for his accomplishments, and we are very excited to have him and his experience.

□ 1445

CELEBRATING 75TH ANNIVERSARY OF CARROLL DANIEL CONSTRUCTION

(Mr. CLYDE asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CLYDE. Madam Speaker, I rise today to celebrate the 75th anniversary of the Carroll Daniel Construction Company in Gainesville, Georgia.

Since Carroll Daniel launched the company in 1946, the family-owned construction business has grown exponentially. Currently, Carroll Daniel Construction is led by a third-generation

Daniel, Mr. Brian Daniel, who prides the company's success on his family's decision to focus on people.

It is no wonder that his business in Hall County enjoys numerous accolades, such as one of the ''Best Places to Work'' award, in addition to other awards recognizing the company's remarkable projects, including being named one of the ''Top Contractors in the Southeast.''

While Carroll Daniel Construction has strong roots in Gainesville, the company has built some of the most impressive buildings across northeast and southeast Georgia. Some of its well-known projects include the observatory on Brasstown Bald and Lanier Technical College. Additionally, the Carroll Daniel Construction Company had the incredible privilege of pouring the concrete for the launching pad at the Kennedy Space Center in Florida.

I am truly honored to represent such an outstanding family-owned business that improved the communities in Georgia's Ninth District one project at a time.

Congratulations, Carroll Daniel, on 75 strong and successful years. May you have many more to come. Thank you. Soli Deo gloria.

RECOGNIZING 100TH BIRTHDAY OF COLONEL BUD ANDERSON

(Mr. LAMALFA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LAMALFA. Madam Speaker, I rise today to recognize a great American hero, World War II triple ace fighter pilot and a man I am lucky to know and call a friend, Colonel Bud Anderson.

Colonel Anderson will be turning 100 on January 13, just a few days from now.

Bud is a California native, born in Oakland, California, and he grew up on a farm near Newcastle in Placer County in north California. He learned to fly when he was only 19 years old and joined the U.S. Army as an aviation cadet shortly after the attack on Pearl Harbor in 1941.

Bud was decorated 25 times during his successful 30-year military career. He is the highest scoring living U.S. fighter ace and the only surviving U.S. triple ace.

Bud has certainly impacted me and my staff as a friend and as a person in the community in Placer County with his leadership and his all-around kindness as a person of such heroic status.

I met him over a decade ago and had a chance to do various events with him, including a statue dedication for him. I watched him receive the Congressional Gold Medal as an elite group of American fighter aces. One of my favorite memories was with him at an air show when a P–51 Mustang, which he flew in World War II in Europe, flew by. Really, it is the sound of freedom.

Congratulations and happy birthday, Colonel Bud. God bless you.

PAYING TRIBUTE TO JOHN MADDEN

The SPEAKER pro tempore (Ms. BROWN of Ohio). Under the Speaker's announced policy of January 4, 2021, the gentleman from California (Mr. SWALWELL) is recognized for 60 minutes as the designee of the majority leader.

GENERAL LEAVE

Mr. SWALWELL. Madam Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and include extraneous material on the subject of the Special Order.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

Mr. SWALWELL. Madam Speaker, I rise today to pay tribute to one of our Nation's most beloved and revered sports figures, John Madden. Since his passing in late December, words such as ''legendary'' and ''iconic'' have deservingly been used to describe John Madden.

Residents of Pleasanton and the Tri-Valley region I represent in California's 15th Congressional District had the privilege of knowing John as a devoted and down-to-earth husband to Virginia, father to Mike and Joe, and a fixture at his grandchildren's games and throughout the community.

John Madden was simultaneously a larger-than-life Hall of Fame coach and broadcaster but also someone you could hang with and have a cold Miller Lite with at the Outback Steakhouse in Dublin after his grandson's football game, bump into at Ace Hardware on a Saturday afternoon looking at power tools, or join for ham and eggs after mass on a Sunday morning at Vic's All Star Kitchen on Main Street in Pleasanton.

While our Nation mourns his passing at the age of 85, the loss is particularly felt in the Tri-Valley community we share.

Whether you were from an older generation of fans that simply knew him as ''coach''; my generation of fans that connected with him as ''John'' from his years in the broadcast booth, hosting SNL, and starring in commercials; or the younger generation who simply knew him as ''Madden'' from the video game, it can be stated that few if any individuals have had a greater impact on football and popular culture in the last 50 years.

It is rare to find someone who connected with so many generations over so many different mediums. In fact, New England Patriots head coach, Bill Belichick, recently marveled at his success at coaching, broadcasting, commercials, video game planning, and real estate, stating that while most of us make an impact with one successful professional career, John Madden had five of them.

It doesn't appear that Coach Belichick was aware of Madden's proficiency as a restaurant owner, grape grower, and almond farmer. For those scoring at home, that is actually—boom—eight successful careers that John Madden had.

Yet, in the end, as NFL Commissioner Roger Goodell stated, Madden ''was football.'' That was his passion. Simply put, John Madden made football and the NFL what it is today.

Hired by the Oakland Raiders in 1969 at the age of 32 as the league's youngest coach, Madden was on the sidelines during a transformational time in the NFL. He posted a 103–32–7 regular-season record, which is still the highest winning percentage for a coach with 100 or more games coached in NFL history.

Despite their reputation as free-spirited renegades, Madden's teams never had a losing season in his 10 years at the helm, and he led them to a Super Bowl victory in 1977. Beyond the numbers, many of Madden's games actually have names. Whether it was the ''Immaculate Reception,'' ''Ghost to the Post,'' ''Sea of Hands,'' or ''Holy Roller,'' never has one coach been involved with so many instant, iconic classics of a golden era of football. Madden never hid his emotions on the sidelines and is featured in many of the game's lasting images.

After retiring from football in 1978, Madden quickly became one of the greatest ambassadors the sport of football has ever known. He moved to the broadcast booth to become the most popular commentator in all of professional sports.

Madden would describe his teaming with his longtime broadcast partner Pat Summerall ''like the day that peanut butter met jelly.'' He won 16 Emmys sharing his insights, humor, and love for the game of football while working for every major network. He also lent his name to the popular football game ''Madden NFL,'' which ranked among the top-selling titles of all time.

During that time, it would be hard to argue that any person did more for the growth of the popularity of football. Players and fans knew that if Madden was calling their game, it was the biggest and best game of the week.

Madden's enthusiasm for football through the television set inspired passion, while his voice also literally taught the game of football to millions of kids through their video game controller.

Despite many of the other descriptors of John Madden, one that I like to use is ''teacher'' because I don't feel that anybody has taught the game of football to more people over the years in his capacity as coach, broadcaster, and video game producer than John Madden.

John Madden was that rare communicator who was both a teacher and entertainer. He innovated both the telestrator and the yellow ''line to

gain'' for first downs that is standard for every broadcast today.

Madden also educated audiences about the intricacies of football and communicated in a straightforward manner and plain language that everyone could easily understand. He never overcomplicated things, but his analysis touched the football novice as much as the die-hard fan just the same.

He was truly authentic. I can tell you, what you saw on TV is what you would see in real life.

Like any great teacher, Madden was in a never-ending quest to learn about his subject and to perfect his craft. Whether it was analyzing freshman football games that his son coached at Foothill High School, watching game film, attending his grandson's practices, talking to coaches, facilitating production meetings, his preparation was unparalleled. He had a lot of time to prepare as he traveled the country to and from games coast to coast, first on Amtrak trains and later the Madden Cruiser bus.

John Madden loved people, and the people loved John Madden. John Madden stopped throughout 48 of the continental United States at a number of diners, drive-ins, and dives before that was even a TV show, and he shared his story and countless meals with hundreds and thousands of Americans.

Speaking of meals, Madden became a part of every American families' Thanksgiving tradition as he would broadcast a game every year from 1980 to 2009. He literally termed the meal ''turducken,'' a combination of turkey stuffed with duck stuffed with chicken.

Even as his health declined in recent years, he would still raise money at home to support high school football programs throughout his hometown region of the Tri-Valley as well as various local charities through the annual Madden-Mariucci Bocce Tournament. He also continued to advocate for measures to increase safety in the game of football that he loved so much, with a focus on youth football.

Whether you talk about his coaching career, broadcasting career, video games, or various commercials, his greatest legacy to those who knew him was that he achieved national fame but remained one of us. He stated at his Pro Football Hall of Fame induction in 2006 that he never worked a day in his life and that he was one of the luckiest men alive.

But the lucky ones are all of us who had the privilege of laughing, learning, and sharing his passions for football and life.

The first time I met John Madden was about 10 years ago. We were at a barbecue in a friend's backyard. He said to me: ERIC, things are pretty screwed up back there in Congress.

He didn't use the word ''screwed.'' I looked at him and said: Coach, I will try to do better.

He said: Do better. Just try to find the deals.

Things have been pretty tense around this place over the last 10 years, but I am happy that I am about to yield right now to my friend, RODNEY DAVIS of Illinois, a Raiders fan.

Coach, I don't know how many deals we can find right now, but RODNEY and I have a deal today that we think you are the greatest. We think you have inspired millions. The game of football and the country is better because you coached it, and you taught all of us.

Madam Speaker, I yield to the gentleman from Illinois (Mr. RODNEY DAVIS), my Republican friend.

Mr. RODNEY DAVIS of Illinois. Madam Speaker, I thank my friend and colleague from California. It was 10 years ago when we all came in as brand-new freshmen. One of the first questions I asked any of my colleagues from the State of California when I got here was: Are you a Raiders fan?

Today, we are all Raiders fans, but just so everybody knows, he is a 49ers fan. That is okay.

As my friend says, there is a lot of disagreement in this place. He and I don't agree on a lot of issues that are coming in front of this institution during this week or the upcoming weeks or, frankly, the past few years. But we are here all together to celebrate the life of a man who had an impact on all of us in this great Nation, especially on a young Raiders fan who became that Raiders fan when I lived in the State of Iowa.

Anyone who knew me as I was growing up knows that there is only one football team that I root for, and that is the Oakland Raiders, then the Los Angeles Raiders, then the Oakland Raiders, and now the Las Vegas Raiders.

Most people in this country know John Madden as that broadcaster. This is the guy who actually broadcast professional football games on every single television network. What a feat that is. People knew him for being afraid to fly and driving a bus, talking about food, and writing with the little scribbler pen on the screen. What they don't know about John Madden is that his life was football before he became that broadcaster.

He helped make my life about football because, one day on January 9, 1977, my family, as I was 7 years old, sat down to watch the Super Bowl. It was the first football game I had ever watched in my life.

□ 1500

Now, many people who know me are not going to be surprised by this. Everybody else in my house was rooting for the Vikings, so I had to be obstinate and say: I guess I am going to root for the Raiders.

What I saw in that game was something that I still have never forgotten. I didn't know who John Madden was, but I learned about what he meant to that team. All I knew was there was a great team led by a great quarterback, Ken Stabler, whom John Madden allowed to call his own plays.

Madam Speaker, can you imagine that in today's day and age, allowing the quarterback to call their own plays?

Bill Belichick probably is having a seizure right now thinking about that. There is no way they are going to let people call their own plays. But John Madden believed in his players, and those players believed in him. They went out there, and they did their job that day.

I was hooked, watching Jack Tatum knock Sammy White's helmet off in an incomplete pass. I knew when I got to play football, I had to play defensive back. That was the coolest thing I had ever seen in my life. Ever since that day, there were Raider shirts, Raider pajamas, and Raider helmets. I actually still have my first one that I used to use in grade school, and it still has No. 30 on the back because my hero growing up was Mark van Eeghen, the fullback for the Raiders.

My good friend and colleague BURGESS OWENS, who played on the next Super Bowl team, not for Coach Madden, but for Coach Flores, actually has promised me a chance to meet Mr. van Eeghen, so I am going to take him up on that. But to hear BURGESS talk about stories of being a Raider, it is what John Madden, Al Davis, and the Al Davis family built and the entire Raiders organization built that made players want to come to Oakland and be a part of that winning atmosphere.

John Madden helped create that winning atmosphere. Players like Ken Stabler, Mark van Eeghen, BURGESS OWENS, Jack Tatum, George Atkinson, Otis Sistrunk, Dave Casper, Fred Biletnikoff, Cliff Branch, you name it, Madam Speaker, they were there, and they created that atmosphere.

But they needed a leader, and that leader in the 1976 season leading up to January 1977 was none other than John Madden, a great coach, a Hall of Famer. And from what I hear—because I never had the great chance to meet him—he was just a great person.

As time has worn on, I have gotten to know people in the Raiders organization, and they epitomize the same values John Madden did. When you look at what is happening right now with the leadership of Mark Davis; the president of the team, Dan Ventrelle, my good friend; and so many others, they are taking that same John Madden attitude. We saw what happened on Sunday when they willed themselves through great players and great leadership into the playoffs.

I know John Madden's family lit the flame that day in honor of Al Davis, and that flame was also lit that day in honor of John Madden. I am so glad the Raiders had a victory. I wish them well.

Go Raiders. This week, beat the Bengals. And let's never forget the impact of John Madden.

Mr. SWALWELL. Madam Speaker, I thank my friend from Illinois for that very personal tribute. I grew up the only 49ers fan in an all-Raiders household, so there is a lot of influence there on me, and rightfully so.

Mr. RODNEY DAVIS of Illinois. Will the gentleman yield?

Mr. SWALWELL. I yield to the gentleman.

Mr. RODNEY DAVIS of Illinois. Weren't the Raider fans Republicans, too?

Mr. SWALWELL. Yes, of course. And I was the only Giants fan in an all-A's household, the only 49ers fan in an all-Raiders household, and the only Democrat in an all-Republican household, so outnumbered in every way. But my mom and dad loved John Madden in the way you just described him because of what he taught all of us.

I thank the gentleman for coming down with his helmet, and I think we are all rooting for a Raiders win this weekend.

Madam Speaker, I yield to my colleague from the Central Valley of California, who I believe will tell us that Mr. Madden had almond orchards in his district.

Madam Speaker, I yield to the gentleman from California (Mr. COSTA).

Mr. COSTA. Madam Speaker, I thank my good friend and colleague ERIC SWALWELL, RODNEY DAVIS, and JERRY MCNERNEY. I think we are all here to celebrate a life well-lived.

Coach John Madden had such an extraordinary career in so many different areas that I think reflected, with all of that fame and all of that success, a common touch, a common touch that we honor today.

I don't think there is anything difficult about being a Raider fan from California and being a 49er fan because the Raiders played in the AFC and the 49ers played in NFC. I think we have had a good run here for many decades because of those two incredible franchises. The same could be said for the San Francisco Giants and the Oakland A's.

But as a kid, John Madden was a hero of mine. He actually started in a very humble way playing at Cal Poly. Cal Poly's program was a smaller collegiate program in those days.

Sadly, there was a plane crash in 1961 that took place. Madden was able to avoid that disaster. I think that probably brought about his fear of flying for the rest of his life. But he never forgot Cal Poly, and he continued to support the university as he supported so many worthwhile causes, whether it was athletics in Pleasanton and East Bay or whether it was other important efforts.

As my friend noted, I don't know whether his record will ever be topped, with 103 victories, 32 losses, and 7 ties, a regular-season record, and the youngest coach to win a Super Bowl.

What a lot of people don't realize, Madam Speaker, unless you are from California, is the San Joaquin Valley that I have the honor and privilege to represent has always had a large group of Raider Nation fans there. Tom Flores, who was born in Fresno and raised in Sanger, the first Hispanic quarterback in the NFL, was succeeded by Daryle Lamonica, who was at Clovis and was a quarterback for the Raiders.

I think the Raiders have something that they really focus on, and they want their quarterbacks from the valley because Derek Carr is a Fresno State guy and, of course, had that great victory Sunday. We hope that continues through the post-season.

I was talking to Coach Flores, who was just inducted into the Hall of Fame—long overdue. Coach Flores was a valley guy. After he quit, after he retired as quarterback, he came back to the Raiders and coached as an assistant coach with Tom Flores. He talks about what kind of atmosphere Coach Madden had in the Raiders organization, and the players loved him. He said that when you have assistant coaches, you have rivalries, and you have coaches who want to then move on to become their own head coach. But he said that Madden had a great way. They would sometimes argue a difference on a game plan, but Coach Flores said that, in his opinion, Coach Madden, over the years and decades that he played in the NFL and coached, was a great game-day coach. In other words, the players not only trusted and had faith in him, but when they developed the plan to go out on that field on that Sunday afternoon, as the dynamics were changing and shifting, Madden's focus on the ability to be flexible and to make those adjustments were a large degree of his success as a head coach.

From one Hall of Fame head coach to another Hall of Fame head coach, I think that is an incredible compliment, and it reflects both on Coach Tom Flores and Coach John Madden.

I would be remiss if I didn't talk about the person who I think a lot of people know today, and that is Coach Madden, the man with a common touch. In his multitude of successes, he got involved in valley agriculture and got to know a number of my good friends in Merced in the area where he farmed grapes and almonds. Dan Fiahlo and a lot of the folks there used to love to get together with Coach Madden as well as with Dominic Mercurio from Cafe Fina on Fisherman's Wharf in Monterey.

What did these gentlemen all have in common?

First of all, Coach Madden would be a guy you would be attracted to because of his larger-than-life personality. But they loved the common touch. They loved the ability to grow things that people could consume, whether it be almonds or whether it be grapes, and the appreciation of the hard work it took to put that food on America's dinner table every night. So the love of food, for people who understood Coach Madden, was really part and parcel with his friends.

There was a card game for 27 years that Dominic Mercurio and Dan Fiahlo and others participated in, a legendary card game apparently that one could only hope to be a part of. Of course, both Danny and Dominic loved to cook and were great barbecue extraordinaires, and Coach Madden would hang out at Cafe Fina where he first got to know Dominic for his legendary chowder, which developed into a regular fixture, so when Coach Madden was inducted in 2006, he asked restaurateur Dominic Mercurio of Cafe Fina, Danny Fiahlo, and their team if these folks would come back to do the barbecue. You have thousands of people for the Hall of Fame induction in August, but Madden had his plan, and they fed over 500 people.

And Coach Madden says: Look, we are going to do it this way.

He is giving instructions.

Everybody who comes, whatever they are going to eat, there is going to be a multitude of foods. There has to be enough for everybody, whether you want chicken, whether you want brisket, sausages, whatever.

What they did was, after they fed everybody, they had an abundance of food left over that they gave to the charities, to the churches.

But that is what Coach Madden did in all the things that he was a part of. If there was stuff left over, you give it back to other people who need it most.

I think that there are a lot of reasons why we honor Coach Madden here today and his incredible, celebrated career, but the common touch, the fact that whether he was in Los Banos, California, or in the upper crust, one might say, of Carmel-by-the-Sea, he was still the same person. He was Coach John Madden, whom you would love to have breakfast or lunch with, talk about football, talk about other things that were important, important to communities and neighborhoods, as he related to you as a Representative.

I am honored today to celebrate the life of an American who made a difference, who made a difference in so many different ways. He touched so many people in so many different ways because he knew people, and he liked people. That was evident in terms of any capacity that you ever came across John Madden with.

We celebrate that larger-than-life legend today. We see him as a role model who impacted people throughout California and throughout not only the professional football league and other professional sports but his understanding of collegiate sports because he came from that. His understanding that and making changes and protecting collegiate athletics was something that John Madden knew well.

I thank Congressmember ERIC SWALWELL for allowing me to give my own thoughts about a person whom I will remember.

I can only close by saying one thing: Coach Madden, God bless you, and thank you for all you have done. Go Raiders.

Mr. SWALWELL. Madam Speaker, I yield to the gentleman from California (Mr. MCNERNEY), who is my colleague from the bay area who represented

Coach Madden for many years before redistricting changed the districts in 2012. JERRY MCNERNEY is my neighbor and friend.

□ 1515

Mr. MCNERNEY. Madam Speaker, I thank my friend for allowing me to speak today.

Madam Speaker, I rise and join my colleagues in honoring the late Pro Football Hall of Fame Inductee, John Madden.

John Madden was a giant in the world of football who brought an appreciation and an understanding of the game into the homes of Americans.

Selected in the 21st round of the 1958 NFL draft, Madden suffered a severe knee injury during his rookie training camp, ending his pro football playing career when it was just getting started.

Undeterred by his injuries, Madden's love for the game of football propelled him to pursue a coaching career. In 1969, he was hired as the head coach for the Oakland Raiders, making him the youngest head coach in the NFL, with only 1 year of coaching experience.

Now, somebody saw something to promote him to head coach in just 1 year of coaching. As head coach, he amassed an incredible record of 103 regular season victories, with only 32 losses in 10 seasons. That gave him the second-highest winning percentage for NFL coaches.

Madden's ferocious will to win would not be denied in Super Bowl XI, the first Super Bowl championship for the silver and black.

While already a legendary Hall of Fame head coach, John Madden cemented his legacy as an icon of the sport from the broadcasting booth, becoming the first sports analyst to have worked all four of the ''Big Four'' U.S. television networks, and earning an incredible 16 Emmy awards.

With a career in professional football spanning 4 decades, very few have transcended generations the way John Madden has, and his legacy will live on forever in the memories of players, fans, friends, and through the memories made by millions who played the best-selling Madden NFL Football game.

On a personal note, I had the privilege of meeting John Madden and, yes, he was kind, he was personable, and it is true, we all ate very well that day.

Not everyone gets to make a difference to so many people in this life, and John Madden was one of those people.

Mr. SWALWELL. Madam Speaker, it is very evident from the tribute today across the aisle, and across California, that we grieve Coach Madden's loss, but we have all tremendously benefited as a country because he so humbly coached, and because when he interacted with everyday Americans, he treated everyone with respect, and he treated everyone the same.

So to the Madden family, we grieve with you. And to Coach, rest in peace, to a great coach.

Madam Speaker, I yield back the balance of my time.

A RESOLUTION TO HUMBLE OURSELVES AND ENTREAT WISDOM FROM GOD

The SPEAKER pro tempore. Under the Speaker's announced policy of January 4, 2021, the gentlewoman from Washington (Mrs. RODGERS) is recognized for 60 minutes as the designee of the minority leader.

GENERAL LEAVE

Mrs. RODGERS of Washington. Madam Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and submit extraneous materials.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Washington?

There was no objection.

Mrs. RODGERS of Washington. Madam Speaker, I rise today to offer a resolution. I do not offer this resolution on my own behalf. I offer it as a representative of the people of the United States, to formalize the unspoken sentiments and concerns that abound in our Nation right now. Any authority I have is given to me by the people.

And this is what we believe:

Our Nation is unique. It is distinctive, exceptional. American exceptionalism is too often misunderstood to mean something that it is not. It does not mean justification to dominate or condescend to other nations, or indulgent flattery to ourselves that we are better. It does not mean that we are a chosen people, or that circumstances give us privilege to circumvent law. Our Nation is bound by the same universal moral principles that must bind and shape the behaviors of all civilized nations. In this regard, we are all the same, as nations, and yet, we are different, very different in a very important way.

It is not wealth or military power that makes us exceptional. It is not our institutions nor the genius of our written Constitution or our Bill of Rights; not directly. These are manifestations of something more fundamental and profound.

Our exceptionalism is based on something else, a singular belief, a proposition you might call it, a proposition underlying all legal and constitutional beliefs. Our assertions of human equality and unalienable rights: life, liberty, and the right to pursue happiness, the right to find meaning and purpose and value in our individual lives, derives from a single assertion—that life, given to us by Creator God, is the moral basis of the unshakeable bedrock of our Republic.

That proposition, the thing that makes us distinctive, is that we believe a Creator God endowed us with rights. Not just us. Everybody, everywhere. It is a gigantic revolutionary belief, and it is a belief. It is our faith statement. It is what speaks to the soul of our Nation.

There are many great and ancient nations that believe in freedom as we do. Most countries in the world claim the rule of law and have written constitutions. Many of us use the language of rights and equality and declare for human dignity. But none have a coherent basis for doing so. We alone occupy that space. God gave us rights; made us in his image and, therefore, demonstrated all human beings are created equal, even the unborn, from conception. The poor, the infirm, the old, the weak, all colors and kinds, all races, all of us, are endowed by the Creator equally because we are made in His image.

Without this fundamental belief, rights become only social protocol, conventions, historic inheritances, creatures of state citizenship, class, identity and features of consensus. They become malleable and fading creatures in the capricious hands of willful men.

But America is different. God endowed us with rights, and that belief is either true or it is false. If it is false, then we Americans, among all mankind, are most to be pitied. The experiment must fail. It cannot and must not succeed.

But if it is true, then we have built our country on a foundation that cannot be shaken, if we are true to it, we are anchored in the eternal bedrock of all truths. As Lincoln said: ''As a nation of free men we will live forever or die by suicide.''

To those who are given much, much is expected.

And somewhere, deep down inside ordinary Americans know this. It is the air that we breathe.

Only we ourselves can end this great experiment. There are no external mortal forces that can overcome the bulwarks of that eternal truth.

And therefore, what we believe matters, Madam Speaker. Our invisible immaterial beliefs are the strength of our national soul. The things that we hold on to and serve are the foundations of our institutions, our laws, our liberty, and the hope of our Nation.

When the Founders established this Republic 250 years ago, and created the institutions that guide us, they were well aware that those institutions were insufficient in themselves to govern a free people. The lifeblood and the heartbeat of the Nation is moral character, not the institutions. Not the institutions, or even the laws themselves. For laws and institutions are corruption without the rectitude and wisdom of a moral, decent people. Without the people bracing themselves to wisdom and the holdfasts of character, our institutions have no power to preserving us.

If the people ever lose their love of truth, justice, goodness, and the efflorescence of beauty that flourishes in them, there can be no hope in the parchment barriers of a Constitution,

or the institutions created by it; no matter how noble that hope is. In effect, everything rises and falls in our Republic as a consequence of the character of the people.

As a Nation, we live or die by the standards of our own moral character. The Founders knew this, but many of us know we are forgetting it.

''We have no government armed with power capable of contending with human passions unbridled by morality and religion. Avarice, ambition, revenge, or gallantry would break the strongest cords of our Constitution as a whale goes through a net. Our Constitution was made only for a moral and religious people. It is wholly inadequate to the government of any other.''

John Adams wrote that to the militia of Massachusetts. What he is saying is this: The power of the State is not secured by the power of arms. It is anchored in the honesty and decency of the people.

Today, this may seem a quaint notion. I hope it is not. But the Founders who experimented in government to create a just and free society understood explicitly that freedom and justice are not the products of institutions, but, rather, institutions that defend freedom and justice are the product of a moral people.

Freedom cannot exist without morality. George Washington understood this. John Adams understood this. Abraham Lincoln understood this. Dr. Martin Luther King understood this. I believe this, not because they believed it, but because it is true. I believe that most Americans understand this.

When we drift from the Creator, we drift from the source of our own liberty. When we forget our duties to God, we forget our duties to each other. When we become proudful and lazy and forget the father of all rights, we become orphans of oppression. We are lost without the guiding hand of the Almighty.

It may seem that Congress is not the place to introduce an appeal to God. I disagree. Insofar as all our rights and all our institutions are based upon the presumption of a just and Almighty God, and since this Congress itself rests upon the foundation that our Creator gave us the right to govern ourselves, to quote my hero, Abraham Lincoln: ''It is altogether fitting and proper that we do this.''

It is precisely because of America's distinctive belief that I rise in this House to offer a resolution to humble ourselves and entreat wisdom from God, the Father of all blessings and mercy; a resolution of contrition, prayer, and fasting; a resolution in the great tradition of our free people.

We have, as His guidance many times before, a resolution to return to the wellspring of liberty and our rights; a resolution to depart from iniquity and entreat His guidance; a prayer that we remember Him as the Father of every good thing that we have, and everything as a Nation and people we aspire to be.

Whereas, We the People of the United States of America continue our search for a more perfect union and;

Whereas, we are a people conceived in liberty and dedicated to the proposition that all are created equal, yet like in the days of Abraham Lincoln, when he observed that ''We have forgotten the gracious hand which preserved us in peace and multiplied, and enriched, and strengthened us;''

Whereas, ''We have vainly imagined, in the deceitfulness of our hearts, that all these blessings were produced by some superior wisdom and virtue of our own;''

Whereas, we confess we are self-consumed, prideful, and unloving, quick to point out the speck in another person's eye while missing the log in our own;

Whereas, we are trusting in our wealth and skill, and leaning on our own understanding;

Whereas, we have become ungrateful, lovers of pleasure, stubborn, hardhearted, divisive, and unforgiving;

Whereas, we confess that instead of speaking of forgiveness, we cry out for vengeance. We have allowed the poisonous root of bitterness to grow up and trouble us;

Whereas, the global pandemic of COVID–19 has intensified fear, unknowns, chaos, and confusion;

Whereas, the impact of lockdowns and isolations has been severe, further exacerbating the breakdown of mental health, families, communities, and our Nation;

Whereas, we are divided, perhaps like we haven't seen since the Civil War, when Abraham Lincoln, President Abraham Lincoln, by faith, prayed, saying:

May we again devote ourselves to prayer and acknowledge as a people and as a Nation our dependence upon the overruling power of God. Let us confess our sins and transgressions in humble sorrow, yet with the assured hope that genuine repentance will lead to mercy and pardon;

□ 1530

Whereas, by faith, at the 1787 Constitutional Convention, when the outlook looked grim, Benjamin Franklin appealed to the delegates and urged prayer, asking: ''I have lived a long time, and the longer I live, the more convincing proofs I see of this truth—that God governs in the affairs of men. And if a sparrow cannot fall to the ground without his notice, is it probable that an empire can rise without his aid?'' and

Whereas, during World War I and at the signing of the Armistice, President Wilson proclaimed: ''Complete victory . . . God has indeed been gracious, let us thank him.'' and

Whereas, this year marked the 80th anniversary of the initial National Bible Week declaration made by President Franklin D. Roosevelt just weeks before the start of World War II; and

Whereas, George Washington Carver, born a slave during the Civil War, testified in 1921 in front of the House Ways and Means Committee expounding on the myriad of ingenious uses for the peanut transforming the economy and which had been revealed to him by faith as he regularly walked through the woods at 4 a.m., and

Whereas, President John F. Kennedy said: ''The guiding principle of this Nation has been, is now, and ever shall be 'In God We Trust,' '' and

Whereas, Reverend Dr. Martin Luther King, Jr., encouraged to us ''Pray daily to be used by God in order that all men might be free,''

Therefore, be it resolved by those assembled, we pray that in this hour of our great need, our Sovereign God will come and do again as He has done in days gone by; we pray for a time of healing from our brokenness, broken lives, broken families, broken communities, and broken systems.

We resolve to humble ourselves, pray, seek God's face, turn from our wicked ways, and thank and praise the God of our ancestors who has given us wisdom and strength and who controls the course of events; and

Therefore, it behooves us to call upon the people of our Nation to humble ourselves before our Creator and acknowledge our complete dependence upon Him, to repent of our pride and selfishness, and to ask the Lord to break our hearts for the things that break His heart;

That we may not miss hearing His voice, and that He will pour out His spirit, once again, on our Nation and leaders; and

We proclaim a year of National Humiliation, Fasting, and Prayer. What might God do in the next 365 days if we commit to reading His Word daily and praying together for our Nation? In our families? For the young generation, this generation in misery and despair? We are expectant that He will do immeasurably more than all we could ask or imagine and that He will hear from heaven, forgive our sins, and heal our land. May He be as original with us as He has been with others. Amen.

THE FENTANYL CRISIS IN AMERICA

The SPEAKER pro tempore. Under the Speaker's announced policy of January 4, 2021, the Chair recognizes the gentleman from Ohio (Mr. RYAN) for 30 minutes.

Mr. RYAN. Madam Speaker, I appreciate the opportunity to come to the floor this afternoon about a topic I wish we didn't have to address. This is the plague in our country of fentanyl and fentanyl overdoses that so many families throughout this country have had to deal with.

Coming from Ohio, we have, unfortunately, been on the front-end of the opiate crisis. We have been on the front-end of the heroin crisis. And now we are on the front-end of the fentanyl crisis.

I have a picture here of Rachel, who is from Akron, Ohio, who died at 17

years old. Her life was tragically cut short because she took a fatal overdose of cocaine that was unknowingly laced with the synthetic opioid carfentanil.

Carfentanil, for those of you who haven't been paying close enough attention to all of these issues, is 100 times more potent than fentanyl and 10,000 times more potent than morphine.

So we have young, talented, beautiful people—in this case, a high school student—who had so much promise, so much life, so much personality. I speak with her mom often and listen to stories about and see pictures of this beautiful young woman.

Now, her mom, Cindy, carries on her daughter's legacy, providing peer-to-peer programming at local schools and in the local community.

We failed Rachel. This country failed Rachel and her mom and her family and all of the families across this country.

We thought we had at one point enough attention on the issue of opioids, on the issue of heroin, now on the issue of fentanyl. Then the pandemic came, and this issue has been on the back burner.

My remarks here today on the floor of the United States House of Representatives, one of the greatest deliberative bodies in the entire world, are to try to bring attention to this issue, to try to scream from the rafters so that we don't have any more Rachels, we don't have any more families that have to experience the heartache, the tragedy, the gut-wrenching experiences that so many families have had over the past few years.

This is something that we can do. Think about this: 80 percent of the overdoses in Ohio are from fentanyl.

The fentanyl starts in China, it goes to Mexico to get processed, and then it comes over the border. So as a country, we have to focus—and I will give the Biden administration a credit. We have seen progress in this regard. We have seen progress. We have seen an increase in people getting busted at the border, which is appropriate, but we have a long, long way to go.

We need an awareness campaign across the country so that young kids, who otherwise would make a simple mistake and now it ends their life, that they know, that their peers know, that their schools know. There is not a corner of Ohio, Madam Speaker, that I can go to that I won't meet families who have experienced this kind of tragedy.

It is incumbent upon us. As one of the co-chairs of the Addiction, Treatment and Recovery Caucus, we have been dealing with this in a bipartisan way. We passed the Comprehensive Addiction and Recovery Act, the CARA Act, in a bipartisan way.

We know that there are so many issues we can fight about. There are so many issues we can argue about here in this body. But I hope and pray that one of them isn't this issue that we need to address collectively here in the United States Congress.

We need to, I think, begin by going back to the opiate issue, going back to the Sackler family, going back to all the profits that were made off of getting so many millions of Americans hooked on opiates, hooked on painkillers, and merge that in with a broken economy where there is so much hopelessness in so many quarters of the United States, where so many communities have been disinvested in, deindustrialized, left to rot. Then you have families that are knowingly increasing the amount of opiates, playing with the FDA, going through the loopholes, which is what the Sackler family has done. They need to be punished to the point where they don't get the right to the deal that they want, Madam Speaker; they don't get the right to the deal that they want, because that is how it has been in the United States.

If you are a wealthy corporation, you can get away with just about anything. If you are a rich person in the United States, it almost doesn't matter what crime you commit; you are going to get away with it.

But, meanwhile, in Youngstown, Ohio; Steubenville, Ohio; Portsmouth, Ohio; or Akron, Ohio, it trickles down. It has been those communities who have suffered greatly, including Dayton, Ohio, because of this epidemic.

Over the holidays, my wife and I were able to watch an amazing documentary on Hulu called ''Dopesick,'' with Michael Keaton, Rosario Dawson, and others, that went through the Sackler family approach to painkillers. It was set in Virginia. Michael Keaton is from western PA and a graduate of Kent State in Ohio. They were highlighting Virginia, but this is an issue everywhere, where these good and honest and decent people found themselves getting hooked because of the wealth and profits that one family wanted to earn on the backs of the American people.

So here we are today. We need to make sure that the Sackler families of the world are punished and put out of business, quite frankly, and we need to also make sure that we begin to take the bold steps we need to take to make sure that the Rachels and the other kids and the other people across this country, to the tune of a 100,000 deaths last year, because of fentanyl.

So I believe we need to take a firmer stance. While I support what the Biden administration has done, we need to go a hell of a lot further. I believe we need to start having a conversation in this country, knowing that China knows that they are sending fentanyl to Mexico that makes its way into the United States, that they need to be punished with tariffs. They need to be punished. They are killing our kids. This is killing our kids.

We can't just stand around. We need to take the money from the tariffs, support our border, support the cops who are on the beat in these different communities. We need to put that money towards addiction treatment, to make sure everybody can get better if they have got some issue, and we need to grow the economy in these communities.

□ 1545

But we can't just stand by and hope this problem goes away, because it is not. It will get worse, and there will be more families, more destruction, more hopelessness, more ruined lives.

As we are trying to compete against China economically, we need to make sure that Rachel and these other young, bright minds are on the economic field playing for the United States of America. That is what this is all about.

So we have to have a whole-of-government approach. We have a whole-of-government approach when it comes to the pandemic, right? The only way you can have any success is when you have a whole-of-government approach. This means Federal, State, and local coordination. This means coordination with nonprofits. This means coordination with law enforcement. This means coordination with the Border Patrol.

This is about us all coming together. You can't tell me we don't have the imagination in the United States to figure this out. This is about making it a priority.

What I am doing here tonight, and what many activists across the country are doing, is trying to get this back on the front burner because other than a few articles in the paper, it has been on the back burner.

We need to make sure we increase the resources necessary to keep this garbage out of our country or to know who has it the second they bring it in here. We have to make sure all of our kids are aware that this could be put in cocaine or meth or something else and that if you have an issue with drugs, you can actually get the treatment that you need and that no one is priced out of the market so that they can get better and get healthy and become self-sufficient and become good citizens and members of society and off to the races we go to try to outcompete China because we care about our citizens. That is what this is all about.

You are going to be hearing a lot from me in the coming weeks and months. We are building a coalition of the families around Ohio and across the country who want to begin to move this issue forward.

I do want to take a minute or two to talk about the power of fentanyl. I mentioned carfentanil. But 1 kilogram of fentanyl—1 kilogram; 1—has the potential to kill 500,000 people.

The money that is being made off of this substance will blow your mind, which is why it continues to come over the border from China, from Mexico. Much of the fentanyl comes through the southern border that is being looked at by the cartels. A lot of the China-sourced fentanyl comes through the international mail, and some comes from China through Canada.

As I said, fentanyl is responsible for 80 percent of Ohio's overdose deaths. Roughly 79 percent of meth, cocaine, psychostimulant overdose deaths in Ohio were from supplies contaminated with fentanyl. The pervasiveness of fentanyl contaminating other drugs has made overall fatality rates for all drugs much higher than before, and we are seeing it across the board.

We have the STOP Fentanyl Act. We have legislation with ANNIE KUSTER and others. There is a Manchin-Portman bill in the Senate, which permanently makes fentanyl-related substances a schedule I controlled substance. This is something that we have to address, and we have to address it in a bipartisan manner.

I would just like to say, lastly, Madam Speaker, that these parents have been through the ultimate tragedy. Having to put one of your own kids to rest, there is no greater heartbreak. There is nothing worse that could happen to a parent.

So I am pledging, and I know other Members are pledging, to keep up the fight because, as some of these parents have told me, there is nothing left to lose for them. These parents have had their hearts ripped out of their bodies. They live with the pain every day. They wake up in the middle of the night and open their eyes and hope it was a nightmare, open their eyes in the morning and hope it didn't really happen, that they could walk down the hall and their kid would still be lying in their bed.

There is nothing more inspiring than seeing these giants, these parents who are taking their pain, taking their experience, taking their heartache and are saying: We have to fight. We can't let this happen to another parent, to another brother or sister, to another family member.

People like Cindy started Rachel's Angels, which is a group back in Akron, Ohio, and there are so many groups across the country that have sprung up because of these tragedies. We want to unite these groups. We want to take the fight to the American people, to Congress, here in the House and in the Senate, and get the resources we need to make sure that these overdose deaths stop, that the companies producing these kinds of drugs get punished, that the people peddling this stuff get punished, and that we get the resources we need to keep this garbage out of our country.

While this may be the first time this year that I stand up and speak on this topic, it will not be the last. We are encouraging everybody, Madam Speaker, to reach out to their Members of Congress, whether they are Democrats or Republicans, and let's get this issue of fentanyl deaths back on the front burner of the agenda here in the United States Congress.

Madam Speaker, I yield back the balance of my time.

PAYING TRIBUTE TO AMERICA'S ABOLITIONIST HEROES

The SPEAKER pro tempore. Under the Speaker's announced policy of January 4, 2021, the Chair recognizes the gentlewoman from New York (Ms. TENNEY) for 30 minutes.

GENERAL LEAVE

Ms. TENNEY. Madam Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and submit extraneous materials.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from New York?

There was no objection.

Ms. TENNEY. Madam Speaker, today is a very special day. I want to thank my good friend and colleague, Congressman BURGESS Owens. BURGESS OWENS and I are leading the charge here in Congress to tell the courageous stories of America's abolitionist heroes, particularly those from upstate New York.

It was an honor for me to welcome Burgess recently, in October, to upstate New York to tour our region's sacred abolitionist sites, including the Gerrit Smith Estate National Historic Landmark and the National Abolition Hall of Fame in Peterboro, as well as the home of abolitionist, suffragette, and true American heroine Harriet Tubman.

Opposite me, there is a photo here of Gerrit Smith. This is a picture of Gerrit Smith from Peterboro. Peterboro is named after his father, a guy named Peter Smith, and I just wanted to tell a little bit about how this all happened in Peterboro, New York. I am sure a lot of people don't know the history.

It all kind of started with an abolitionist named Reverend Henry Highland, who told his good friend Frederick Douglass, when describing Peterboro, New York—which, by the way, I am honored to represent here in Congress. Many people don't even realize this little hamlet of Peterboro, up in bucolic Madison County, which happens to be my mother's home county, played a vitally important role during the abolitionist movement.

This was in large part due to one of its most famous residents, Gerrit Smith. As I said, the little hamlet of Peterboro was named in honor of his father.

Mr. SMITH was a successful businessman and a committed philanthropist. He previously served this body, actually, as a Representative from New York's 22nd Congressional District, the same district that I currently represent. He was also a three-time Presidential candidate.

Gerrit Smith always opposed slavery, but he firmly joined the political cause of abolitionism in 1835. He was at a meeting of about 600 abolitionists in a church in the nearby city of Utica, which is in Oneida County. Upon learning of the meeting, a violent mob stormed the church and disrupted the proceedings, forcing the abolitionists to flee.

Smith realized then that he could put his wealth and property to use. He invited the abolitionists to his home in Peterboro. A year later, he was elected president of the New York State Anti-Slavery Society. The rest, as they say, is history. We are going to tell you a little bit about that today with Congressman OWENS.

In Smith's view, slavery was completely incompatible not only with our founding documents but also with the natural laws of God. We were born free, and no law or institution could take away another man or woman's innate right to freedom.

From 1835 until his death in 1874, Gerrit Smith dedicated his whole heart to the abolitionist cause, and Peterboro was his base of operation. Giants like Harriet Tubman, Frederick Douglass, William Lloyd Garrison, Elizabeth Cady—eventually Stanton, whose husband, Henry Stanton, was actually a cousin of Smith's—spent considerable time there, strategizing and mobilizing support.

Gerrit Smith played a key role in funding abolitionist causes across our country. Smith maintained a lifelong friendship with Frederick Douglass and provided funding and other support to The North Star, which was Douglass' abolitionist newspaper. In today's terms, Gerrit Smith would be considered a billionaire, and he gave what then was $100 a month to Frederick Douglass' cause to pay for his newspaper, which in today's dollars, with inflation, would be about $7,000 per month to make sure that this newspaper was able to continue to thrive and flourish and inform people.

In a letter from Douglass following Smith's death in 1874, Douglas credited Smith's generous support as the financial engine that kept his abolitionist movement going.

Smith's estate in Peterboro was also a stop along the Underground Railroad. As enslaved people made their way north to Canada, Smith would offer them shelter, food, and support. Exact numbers are hard to come by, but it is safe to say Smith bought and helped secure the freedom of hundreds of enslaved people from around the country.

This is why Reverend Henry Highland said: ''There are yet two places where slaveholders cannot come, Heaven and Peterboro.'' Peterboro was synonymous with freedom.

Just a short drive from Gerrit Smith's estate in upstate New York is the home of another titan of the abolitionist movement, the great Harriet Tubman. Like Congressman OWENS, this was my first visit to Harriet Tubman's home in Auburn. I want to show you a little picture of mighty Harriet Tubman, who is an amazing figure. I may have to go back to some of these. This is a great photo of Congressman OWENS and me at Harriet Tubman's

home in Auburn, New York, where we were able to tour and see where she lived and where she operated her Underground Railroad, right in our own communities.

This was an amazing experience. I was in awe of Harriet Tubman, her accomplishments, and her tenacity. She had every reason to be in despair. She was strong; she was compassionate; she was generous; and she was only 4'11'', which is amazing.

The home we visited was where Harriet spent her later years, after she escaped slavery in Maryland, served as a conductor of the Underground Railroad, and then a scout, spy, and nurse for the Union Army during the Civil War.

Harriet lived for almost a century. She was 91, almost 92 years old. She was an indomitable force. She was the first Black woman to lead a combat assault, organizing about 150 Black Union troops on a raid in South Carolina. She later freed 750 enslaved people as part of that operation.

She suffered from narcolepsy her adult life after being hit by a metal weight when she was a teenager. Despite this, she persevered. She brought at least 70 slaves to freedom on the Underground Railroad and never lost a single passenger.

□ 1600

At her core, Harriet was a woman of compassion. In her later years she helped so many who came through her home in Auburn providing them shelter, medical attention, and love.

Despite the obstacles she faced, Harriet Tubman never gave up, nor was she ever consumed by anger or cynicism. She led with integrity and was incredibly resilient, and she is certainly an amazing role model for all of us.

It was important to tell Gerrit Smith's story and Harriet Tubman's stories, and now more than ever we must understand our shared history and learn from those who came before us.

Our great Nation was founded on the promise that all men are created equal, that they are endowed by their creator with certain unalienable rights, among them life, liberty, and the pursuit of happiness. No other republic before ours guaranteed such rights to its citizens. In fact, before America, there were no citizens at all, only subjects.

Yet in the earliest days of our Nation's founding, it is clear we failed to live up to our ideals. We failed to end the slave trade or to free those who were tied down in bondage. While this grave mistake will forever be part of our history, so, too, will be the courageous stories of Gerrit Smith, Harriet Tubman, Frederick Douglass, and so many more Americans of different races, creeds, and religions who fought for a better America.

Gerrit Smith and Harriet Tubman personify the spirit of America, and their stories should be a lesson to all of us. Their tenacity, their relentlessness, and their pursuit of ideals are everything that we strive to be as Americans.

As Supreme Court Justice Clarence Thomas recently said, While we as Americans have failed to live up to the ideals of the Declaration of Independence time and again, there is no time in our history when those ideals themselves have actually failed us. The Declaration and its principles endure because they articulate a fundamental truth that all people are born free and equal.

Like Gerrit and Harriet did as citizens of this country we must commit ourselves to the great American project of making sure we live up to our ideals. These ideals are sacred, and the abolitionists who gathered in Peterboro changed the world and they were the authors of our future, and we must thank God that we have the freedom to fight every day to strengthen our institutions and make this a much more perfect Union.

Madam Speaker, I want to end by thanking those who made our recent visit possible and welcomed Congressman OWENS and I on that cold day in October before I yield to him, but I just want to recognize these great people who spend and devote their life to this history.

First is Norman Dann. He was one of our tour guides at Peterboro and the author of ''Practical Dreamer, Gerrit Smith and the Crusade for Social Reform.''

Alden Max Smith, another one of our guides, as well as the cabinet member of the National Abolition Hall of Fame and Museum, which is also in Peterboro.

Dorothy Willsey, another fantastic tour guide and president of the National Abolition Hall of Fame.

John Becker, chairman of the Madison County Board of Supervisors for meeting us there and also for making this all possible.

Cliff Moses, vice-chairman of the Madison County Board of Supervisors.

Mary Cavanaugh, city of Oneida, wards 1, 2, 3 supervisor, who also greeted us there and toured with us.

Yvonne Nirelli, the former supervisor of the Town of Lincoln, who also greeted us and toured with us.

Matt Roberts, city of Oneida supervisor for wards 1, 2, and 3, another person who came to tour with us and was fascinated again by this amazing little hamlet in upstate New York.

Matthew Urtz, our Madison County historian, who was completely intrigued and so excited to welcome the great BURGESS OWENS, who is going to be talking a little more on this today.

Karol Kucinski, trustee at the National Abolition Hall of Fame and Museum.

And Nell Ziegler, the President of the Smithfield Community Association and owner and manager of the Gerrit Smith Estate National Historic Landmark.

For more information about the Gerrit Smith Estate and the beautiful hamlet of Peterboro, I encourage you to visit www.gerritsmith.org.

I also want to thank Karen V. Hill, president and CEO of the Harriet Tubman Home, as well as our fantastic tour guides who shared their knowledge and passion with us again on this beautiful cold day.

There it is again, this photo of our tour of Peterboro. It was wonderful to have BURGESS OWENS there, a really special moment for all of us.

Madam Speaker, it is with great honor that I yield to the gentleman from Utah (Mr. OWENS), who I think this was a great experience for him. I think he never realized what existed up in upstate New York. And that is why we want everyone in the world to know just how important it is that we learn our history and we celebrate everyone who had a path and who had courage and who had the tenacity and the boldness to stand up for what was right against the grain at a very difficult time in our country. I have one little thing for you, too. I have a special Harriet Tubman pad for you I grabbed.

Mr. OWENS. Madam Speaker, I thank the gentlewoman for yielding.

A couple months ago, as Claudia mentioned, my good friend from New York's 22nd District invited me for a tour of two of upstate New York's historic sites impacted by Harriet Tubman. Harriet has been one of my heroes since I was 12 years old in the seventh grade.

This was my first visit to Peterboro. What a remarkable experience it was to see firsthand the property of my longtime hero, someone who once was the property of someone else. I encourage everyone who visits the northeast to make this stop as part of your trip.

I thank my good friend for her invitation and for sharing this time as we discuss courageous Americans who understood the blessing of freedom.

I rise today to honor of the extraordinary life and unmatched legacy of Harriet Tubman, one of the most notable abolitionists in American history.

As many of you know, Harriet escaped the horrors of slavery and through her work during the abolitionary movement overcame unspeakable odds to secure the dreams of future generations.

My great-great-grandfather Silas Burgess came to America shackled in the belly of a slave ship. He was sold on an auction block in Charleston, South Carolina, to the Burgess Plantation. In his youth, he escaped to west Texas along the southwestern route of the Underground Railroad. He later became a successful entrepreneur, starting the first Black church, the first Black elementary school in his town and purchased 102 acres of farmland that he paid off in 2 years.

There are thousands upon thousands of untold stories of slavery to success all due to courageous conductors like Harriet Tubman. The true miracle of

the Underground Railroad though is something that most of us miss. It was total trust in faith between conductors like Harriet and the facilitators of the Freedom Railroad. Whether it was south to north or south to west, as with my great-great grandfather, White, Christian Americans took the great risk of reprisal from the prevalent KKK in their community as they opened up their barns, cellars, and food pantries to create a safe and secret route to freedom for over 100,000 slaves prior to the Civil War.

I have been inspired by the story of the American heart since I was 12 years old, growing up in my proud southern, segregated Black community.

Born enslaved in Maryland in 1822, Harriet spent her childhood as a nursemaid, field hand, cook, and wood cutter.

When Harriet was 12, it was reported that she refused to help an overseer punish another slave resulting in a severe injury when a 2-pound iron weight was thrown at her head. This caused her to suffer seizures and bouts of uncontrollable narcolepsy throughout her life.

Harriet married John Tubman, a free Black man, in 1844.

After rumors spread that Harriet was about to be sold, she fled to Philadelphia, then to Baltimore after returning to rescue her parents, sister, and two children.

Over the next decade, Harriet led dozens of these trips rescuing more than 70 slaves along the Underground Railroad. As the railroad's most famous conductor, it has been said that she never lost a passenger. In 1858, Harriet bought a small farm in upstate New York where her family resided, later to be named the Harriet Tubman Home.

During the Civil War, Harriet served Union forces as a scout, spy, nurse, cook, recruiter, and laundress. Under the command of Union Colonel James Montgomery, Harriet became the first woman to lead a major military operation in the United States when she and 150 African-American Union soldiers rescued about 700 slaves in the Combahee Ferry Raid.

After the Civil War, Harriet opened her home to serve orphans and the elderly. She joined Elizabeth Cady Stanton and Susan B. Anthony in their quest for women's suffrage. She believed in equal rights for everyone and lived a life of courage, serving others until around the age of 92.

I often say that the Black American history is so rich because of the heroes who have come before us, heroes like Harriet Tubman, Gerrit Smith, Frederick Douglass, Sojourner Truth, Lucretia Mott, and so many others who recognized injustice, strove to help their brothers and sisters, and dreamed of a world outside the chains of slavery. Each focused on building pockets of freedom that would soon spread throughout our country. It was a movement that has inspired untold millions around the world.

Indeed, we all stand on the shoulders of these great people who came before us, but the Black community, particularly my proud race, holds our ancestors especially dear. They fought hate, overcame the horrors of slavery, and on their backs built a world in which we can own and build our homes and businesses, get an education, worship our faith, vote, run for office, and stand on the floor of the House of Representatives, honoring the legacy of one of the most notable abolitionists in American history.

What a difference men and women pursuing their dreams in a free country can make. It is our responsibility to never forget or allow history to be erased as to what we the people have done together over our 240-year history. This as we continue to resolve to grow together as a more perfect Union.

I have just a few thoughts I want to leave you with before I conclude. And that is a little bit of the highlights of the good hearts of our American people. It is our Nation's mission statement that ends with the idea that we can have not only second chances but as an imperfect Union that we can become more of a perfect Union.

I start with my great-great grandfather Silas Burgess. To show what a more perfect Union looks like is the fact that he came to this country in the belly of a slave ship, lived through the evils of a plantation, and yet escaped by going west because of good Americans, German and Mexican Americans who opened up their homes and their barns and their fields to give him an opportunity to move forward and keep his hopes alive. And even though he saw the evils of being a slave, he saw the good hearts of these good Americans that led him to become a Christian, led him to be able to forgive, to build and serve instead of destroy.

I see the form of a more perfect Union with my dad in the fifties who came back from World War II and could not get his postgraduate degree in Texas because of Jim Crow laws, was able to go to Ohio State because some White administrator, who I will never know who that was, said yes and gave my father an opportunity to get his Ph.D., and again, to help form a more perfect Union.

I experienced this myself in the sixties when going to the University of Miami I was the fourth Black student to get a scholarship in the most southern school down south. At that time there was a commitment by the President, Henry Stanford, to end segregation and it allowed me to move forward based on my character versus the color of my skin.

I saw a more perfect Union in the seventies when a Jewish owner of the Oakland Raiders, Al Davis, committed to ending the Jim Crow barriers of the NFL and put meritocracy above color, and we had the first Hispanic quarterback, the first Hispanic coach, the first Black coach, the first female CEO because meritocracy has no color.

What we have seen in our country and we have to continue to remember is the power of we the people, the power of the team. We think about Harriet Tubman as a conductor, Frederick Douglass, Booker T. Washington, Martin Luther King, all conductors. We have many conductors today throughout our country, and at the same time we have many more people who built our freedom highways and railroads.

We the people roll up our sleeves and give hope to others. We need to rediscover our history, remember the havens of Peterboro, places where Americans across this country, regardless of skin color, came together to allow others to have an opportunity to see what freedom is all about.

We can see those experiences in Booker T. Washington in Tuskegee in the early 1900s. We can see that experiments succeeded in Tulsa, Oklahoma, in the early 1900s of Black Wall Street. And we can see it today throughout our country. We see it here in this House.

What we must remember is our past should give us hope for a much greater future, and we also must remember to sprint away from anyone who leaves us hopeless.

Ms. TENNEY. Madam Speaker, I thank the gentleman for those great words and for bringing up so many people. And, again, our community was so honored to have you there.

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To have you at Peterboro and to have more people discover and have this audience around our country and the world watching know that there are great people out there that did care about the cause of freedom. You brought up Martin Luther King, and I always remember studying him when I was a college student, and just discovering his great relationship with Gandhi and talking about peace and peaceful protests and how important it was. And how that is a founding principle of our country.

Just to have you there in Peterboro meant so much. Everyone in Peterboro was so excited to have you there. People are recognizing that there are people that are not on everyone's radar, on the national radar, but there are people that have done great things, that are doing it quietly but they are doing it for a great cause.

And those little acts, like you just mentioned, the administrator that let your dad into Ohio State, you will never know who it was, but that person enabled us to have the great BURGESS OWENS here today.

Mr. OWENS. Madam Speaker, if I can add to that, because I think the most important thing about our Nation is to remember our history, to really understand that we have within our hearts, because of our foundation, this desire to want others to succeed. We want to feel good that we have been part of something that makes a difference. And it is not just the 2000s, it is actually throughout our country's history.

And to know what happened, again, from my great grandfather, throughout our history, again we can find those moments in which we have helped each other. We have all given some credence, something given back to this country, the more we know about that, the more we will feel better about who we are today and our vision for the future. So we have to make sure we keep that in mind, for sure.

Ms. TENNEY. I agree. I think we have to focus on the people who are helping us, not the people who aren't. And I think that this is what we wanted to do today, and we are grateful to you to be able to focus on people who actually help, not the people tearing us down, the people trying to bring our country to its knees, but people trying to make us rise up and be better, and be a better America than we are today. And that is our striving for our future. That is what we want our children to be. We want America to be better for our children and our grandchildren.

And I think by recognizing that there were great people in our past who have done amazing things who never got the recognition, but often those people go unnoticed. And I think that is why it meant so much for us to have you there.

Madam Speaker, I urge anyone if you want to come up on a beautiful fall day, or you can come in the warm summer days, it is a little warmer—it is a little snowy right now—to come to visit Peterboro and meet with some our great docents, who I mentioned in my remarks, who are studying and uncovering documents and trying to show the true history so we understand it and so we can learn from it.

Even though I had been to Peterboro when I was younger—I knew about it when I was a kid because it was my mom's home county—I never knew the depth of it, or I learned so much more just by that experience. And I am sure if I go again to the Abolitionist Hall of Fame, I think I would learn even more there. But just learning about Harriet Tubman and going to her house and being in the same room where you know that she was providing so much aid and comfort and love to people she didn't know but people she believed in and knew needed to understand and feel that taste of freedom, just standing there with you and the people that worked there and how much it meant to them, they conveyed that sort of, you know, that wonderful feeling to us as well.

So I feel like I just would love to have everyone come and have that experience. And anywhere else in the country, we would love to encourage our colleagues to come out and tell us about great experiences and great Americans that are out there that might not get the recognition. They might not be getting the clicks on twitter or Facebook or social media, but there are people out there doing great works and uncovering great heroism.

Mr. OWENS. If I could add a little about Peterboro. This was, again, a new experience for me. And what that particular place represented for so many Americans, particularly Black Americans, was a place of hope. They knew that once they got to Peterboro, they were literally very close to Canada, which was their, really, freedom. That was it.

They could then know they weren't going to be hiding and going through all the stealth and knowing they could be recaptured. So that hope is a big factor we talked about. And I hope that those that are listening to our conversation know that actually our country is built on that.

What we have done so far today is talked about what our country is capable of because we have done it in the past. And the more hope we can give to our fellow Americans that this is a country, the best in the history of mankind, that we can serve each other, that we can build, not destroy, and that we can become a much better country because that is actually within our mission statement, to be a more perfect union. And we can do that, and that is what we have done, again, very successfully.

I am just very excited to have this opportunity to spend this time with you. It was a great opportunity. I can't wait to get back. If I can say, for anyone who is listening, please check this place out. Harriet Tubman, as always, for many of us we know she is a hero, go to her place to see her property—a person that once was the property of someone else—her property and what she did and what she gave away to so many because she just loved the process of service. It was a great experience, and I can't wait to get back and check it out again.

Ms. TENNEY. We can't wait to have you back.

And also, I just think about that last moment when we were in Gerrit Smith Estate, in the barn. We went back in the barn and we saw these conditions where horses and mules were put, and that they actually had to hide people in there.

We came out of the barn, and there was this gleaming sunlight on us on that cold day. And I looked above, and there was a sign that said ''Heaven in Peterboro,'' the two places where the slaves were safe and symbolized freedom.

So it was just an honor for me to represent the community. And then to have you standing there with that gleaming sunlight on us and knowing that so many people in our past, that was their gateway to freedom and gateway to finding a new life, I think it was a tremendous experience. We hope maybe you can come again and we can invite our colleagues and others to come and experience Peterboro.

Mr. OWENS. I would love to.

Ms. TENNEY. And Harriet Tubman's home, of course.

Mr. OWENS. If I could just leave one message as my last final word to those who are watching. This country is a place that has thrived because people can envision themselves doing much, much better. And we do that when we, the people, get together and we really put our hearts and soul into making sure our next generation is a much better place than our time is, and we do that better than any other country.

I am thankful for the opportunity to visit the home of my hero since I was 12 years old, and that was kind of exciting to hear that you were that close to the area and to have the invitation to come up and see it. So thank you so much for that.

Ms. TENNEY. Yes, thank you. And what a great discovery it was, just sitting on the floor of the House Chamber, BURGESS and I. And I said, you have never been to Peterboro? How about this?

Who would think that I would be hosting a famous person like BURGESS OWENS, a hero in our communities, in my own little community, and that we would have that common bond with Harriet Tubman.

But we are grateful. We are just grateful for you and your service and everyone here. And I just hope that my colleagues and anyone who wants to join Peterboro—again, I hate to do too much of a pitch—but go to www.gerritsmith.org. It is an amazing place. It is humble, but it is just majestic and the accomplishments that were made in that wonderful place.

Madam Speaker, I thank my colleague, Mr. BURGESS, for joining us, and thank him for everything he has done, for standing courageously and boldly for our communities and for our country, and standing up for our Constitution and freedom. Because that is really what is going to unite us.

Let's talk about what unites us, not what divides us. We have a lot of great history that can really bring us together in the future. And so I thank you.

Mr. OWENS. Thank you so much. Exactly the same. We have a remarkable freshman team. I am so honored to be serving with you at this point. Let's keep this thing moving forward, for sure.

Ms. TENNEY. Thank you so much. The honor is all mine.

Madam Speaker, I yield back the balance of my time.

ADJOURNMENT

The SPEAKER pro tempore. Pursuant to section 11(b) of House Resolution 188, the House stands adjourned until noon tomorrow.

Thereupon (at 4 o'clock and 23 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, January 12, 2022, at noon.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

EC–3088. A letter from the Chairman, Council of the District of Columbia, transmitting D.C. Act 24-266, ''Alpha Phi Alpha Way Designation Act of 2021'', pursuant to Public Law 93-198, Sec. 602(c)(1); (87 Stat. 814); to the Committee on Oversight and Reform.

EC–3089. A letter from the Chairman, Council of the District of Columbia, transmitting D.C. Act 24-267, ''Jamal Khashoggi Way Designation Way Act of 2021'', pursuant to Public Law 93-198, Sec. 602(c)(1); (87 Stat. 814); to the Committee on Oversight and Reform.

EC–3090. A letter from the Chairman, Council of the District of Columbia, transmitting D.C. Act 24-268, ''Electronic Proof of License, Permit, or Identification Card Amendment Act of 2021'', pursuant to Public Law 93-198, Sec. 602(c)(1); (87 Stat. 814); to the Committee on Oversight and Reform.

EC–3091. A letter from the Chairman, Council of the District of Columbia, transmitting D.C. Act 24-269, ''John Lewis Elementary School Designation Act of 2021'', pursuant to Public Law 93-198, Sec. 602(c)(1); (87 Stat. 814); to the Committee on Oversight and Reform.

EC–3092. A letter from the Chairman, Council of the District of Columbia, transmitting D.C. Act 24-270, ''Tenant Safe Harbor Temporary Amendment Act of 2021'', pursuant to Public Law 93-198, Sec. 602(c)(1); (87 Stat. 814); to the Committee on Oversight and Reform.

EC–3093. A letter from the Chairman, Council of the District of Columbia, transmitting D.C. Act 24-271, ''Inspector General Oversight Consistency Temporary Amendment Act of 2021'', pursuant to Public Law 93-198, Sec. 602(c)(1); (87 Stat. 814); to the Committee on Oversight and Reform.

EC–3094. A letter from the Chairman, Council of the District of Columbia, transmitting D.C. Act 24-272, ''Medical Marijuana Patient Access Temporary Amendment Act of 2021'', pursuant to Public Law 93-198, Sec. 602(c)(1); (87 Stat. 814); to the Committee on Oversight and Reform.

EC–3095. A letter from the Chairman, Council of the District of Columbia, transmitting D.C. Act 24-273, ''Non-Public Student Educational Continuity Second Temporary Amendment Act of 2021'', pursuant to Public Law 93-198, Sec. 602(c)(1); (87 Stat. 814); to the Committee on Oversight and Reform.

EC–3096. A letter from the Chairman, Council of the District of Columbia, transmitting D.C. Act 24-274, ''Anti-SLAPP Temporary Amendment Act of 2021'', pursuant to Public Law 93-198, Sec. 602(c)(1); (87 Stat. 814); to the Committee on Oversight and Reform.

EC–3097. A letter from the Chairman, Council of the District of Columbia, transmitting D.C. Act 24-275, ''Analyzing Additional Emergency Procurement Activity Temporary Amendment Act of 2021'', pursuant to Public Law 93-198, Sec. 602(c)(1); (87 Stat. 814); to the Committee on Oversight and Reform.

EC–3098. A letter from the Chairman, Council of the District of Columbia, transmitting D.C. Act 24-265, ''Ward Redistricting Amendment Act of 2021'', pursuant to Public Law 93-198, Sec. 602(c)(1); (87 Stat. 814); to the Committee on Oversight and Reform.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mrs. DINGELL:

H.R. 6371. A bill to address the needs of individuals with disabilities within the Jeanne Clery Disclosure of Campus Security Policy and Campus Crime Statistics Act; to the Committee on Education and Labor.

By Mr. GALLEGO (for himself, Mr. COLE, Ms. DAVIDS of Kansas, and Ms. LEGER FERNANDEZ):

H.R. 6372. A bill to ensure that facilities of the Indian Health Service, facilities operated by an Indian tribe, tribal organization, or inter-tribal consortium, and facilities operated by an urban Indian organization receive items from the strategic national stockpile and qualified pandemic or epidemic products directly from the Department of Health and Human Services; to the Committee on Energy and Commerce.

By Mr. PHILLIPS (for himself, Mr. CROW, Ms. ADAMS, Mrs. AXNE, Mr. BLUMENAUER, Ms. BLUNT ROCHESTER, Mr. CÁRDENAS, Mr. CASTRO of Texas, Mr. CICILLINE, Mr. COHEN, Mr. CONNOLLY, Mr. COSTA, Mr. DANNY K. DAVIS of Illinois, Ms. DEAN, Ms. DELBENE, Ms. ESCOBAR, Mr. GOTTHEIMER, Mr. GREEN of Texas, Mr. GRIJALVA, Ms. JACKSON LEE, Mr. JOHNSON of Georgia, Mr. LEVIN of Michigan, Mr. MALINOWSKI, Ms. MCCOLLUM, Mr. MCNERNEY, Mr. MOULTON, Mr. NEGUSE, Ms. NORTON, Mr. PANETTA, Mr. PAYNE, Mr. QUIGLEY, Ms. STEVENS, Mr. SUOZZI, Mr. SWALWELL, Mrs. TORRES of California, Mrs. WATSON COLEMAN, Mr. WELCH, Ms. WILLIAMS of Georgia, Mr. BRENDAN F. BOYLE of Pennsylvania, Mr. SHERMAN, Mr. JONES, Mr. DESAULNIER, Ms. SPANBERGER, Mr. SAN NICOLAS, Mr. PETERS, Mr. BOWMAN, Mr. CORREA, Mrs. BUSTOS, Mr. CARSON, Ms. NEWMAN, Mrs. HAYES, Mr. PALLONE, Mr. RUSH, Mr. LARSON of Connecticut, Mr. ALLRED, Mr. MCGOVERN, Ms. SCHAKOWSKY, and Mr. FOSTER):

H.J. Res. 68. A joint resolution amending title 36, United States Code, to direct the President to issue an annual proclamation establishing Democracy Day; to the Committee on Oversight and Reform.

By Mr. FITZPATRICK (for himself and Mrs. MURPHY of Florida):

H. Res. 865. A resolution raising awareness and encouraging the prevention of stalking by designating January 2022 as ''National Stalking Awareness Month'' to the Committee on the Judiciary.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mrs. DINGELL:

H.R. 6371.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority of Congress to enact this legislation is provided by Article I, section 8 of the United States Constitution.

By Mr. GALLEGO:

H.R. 6372.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18.

By Mr. PHILLIPS:

H.J. Res. 68.

Congress has the power to enact this legislation pursuant to the following:

Under Article I, Section 8, Clause 18, Congress has the power to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 38: Mr. BILIRAKIS.
H.R. 58: Mrs. MILLER of Illinois.
H.R. 82: Mr. BLUMENAUER.
H.R. 310: Mr. WELCH.
H.R. 398: Mr. CLOUD.
H.R. 616: Ms. CHU.
H.R. 622: Mr. LAWSON of Florida, Ms. ROSS, and Mr. GARAMENDI.
H.R. 708: Ms. BOURDEAUX.
H.R. 748: Mr. RUIZ, Mr. LAMB, and Ms. STANSBURY.
H.R. 783: Ms. JACKSON LEE.
H.R. 841: Mr. KHANNA and Ms. BARRAGÁN.
H.R. 849: Ms. BASS.
H.R. 1012: Mr. DONALDS and Ms. HERRERA BEUTLER.
H.R. 1198: Miss RICE of New York and Ms. SLOTKIN.
H.R. 1255: Ms. MATSUI, Ms. BARRAGÁN, Mr. KRISHNAMOORTHI, Mr. KATKO, Mr. SMITH of Nebraska, Mr. ELLZEY, Mr. HIMES, Ms. MANNING, Mr. STANTON, Ms. JAYAPAL, Mr. LANGEVIN, Mr. CÁRDENAS, Ms. JOHNSON of Texas, and Mr. LUCAS.
H.R. 1263: Mrs. MILLER of Illinois.
H.R. 1289: Mr. DESAULNIER.
H.R. 1304: Ms. WILLIAMS of Georgia.
H.R. 1316: Ms. PRESSLEY and Mr. SCOTT of Virginia.
H.R. 1397: Ms. WILLIAMS of Georgia, Ms. ADAMS, and Ms. KELLY of Illinois.
H.R. 1486: Mr. DONALDS.
H.R. 1531: Mr. MANN and Mr. BUDD.
H.R. 1577: Mr. CICILLINE.
H.R. 1627: Mr. MICHAEL F. DOYLE of Pennsylvania, Mr. MCNERNEY, Ms. MENG, Mr. SWALWELL, and Mr. CARSON.
H.R. 1676: Mr. STANTON and Mr. BLUMENAUER.
H.R. 1707: Mr. GOSAR.
H.R. 1859: Mr. CASTEN.
H.R. 1905: Mr. COHEN, Mr. NEAL, Mr. QUIGLEY, Ms. NEWMAN, Mrs. AXNE, and Ms. CHU.
H.R. 1978: Ms. BOURDEAUX and Ms. WILLIAMS of Georgia.
H.R. 1983: Mr. LEVIN of Michigan.
H.R. 2003: Mrs. MILLER of Illinois and Mr. GOSAR.
H.R. 2004: Mrs. MILLER of Illinois and Mr. GOSAR.
H.R. 2026: Ms. BARRAGÁN.
H.R. 2047: Ms. VAN DUYNE.
H.R. 2234: Mr. RUIZ.
H.R. 2255: Mr. SCHRADER.
H.R. 2307: Ms. HOULAHAN.
H.R. 2325: Mr. LEVIN of Michigan.
H.R. 2354: Mr. MANN.
H.R. 2419: Mr. GOLDEN.
H.R. 2487: Mrs. LESKO.
H.R. 2517: Mr. REED, Mr. STEUBE, and Ms. BOURDEAUX.
H.R. 2542: Mr. AUCHINCLOSS and Ms. OCASIO-CORTEZ.
H.R. 2558: Mrs. MILLER of Illinois.
H.R. 2565: Mr. LEVIN of Michigan.
H.R. 2581: Mrs. MILLER-MEEKS.
H.R. 2616: Mr. HIGGINS of New York.
H.R. 2638: Ms. VELÁZQUEZ, Mrs. CAROLYN B. MALONEY of New York, Mr. ESPAILLAT, Ms. PRESSLEY, Mr. GARCÍA of Illinois, Ms. SCHAKOWSKY, Mr. PAYNE, Ms. TLAIB, Mr. SUOZZI, and Ms. DEAN.
H.R. 2639: Mr. WALBERG.
H.R. 2759: Mr. MASSIE.

H.R. 2773: Mr. SABLAN, Mrs. MCBATH, and Mr. YOUNG.
H.R. 2807: Mrs. MURPHY of Florida.
H.R. 2924: Ms. LEE of California, Ms. BASS, Mr. AGUILAR, Ms. JACOBS of California, and Mr. COOPER.
H.R. 3155: Ms. WILLIAMS of Georgia.
H.R. 3172: Mr. JOHNSON of Ohio.
H.R. 3337: Ms. ADAMS, Ms. MANNING, Mr. SUOZZI, Ms. TLAIB, Ms. OMAR, and Mr. MCKINLEY.
H.R. 3402: Mr. FITZPATRICK and Ms. WEXTON.
H.R. 3460: Mr. CLOUD.
H.R. 3488: Mr. QUIGLEY, Ms. PORTER, and Mr. TAKANO.
H.R. 3513: Ms. WILLIAMS of Georgia.
H.R. 3519: Mr. LARSEN of Washington.
H.R. 3525: Mr. GOMEZ and Mr. MCGOVERN.
H.R. 3577: Mr. MALINOWSKI, Mr. NEAL, and Mr. LARSEN of Washington.
H.R. 3648: Ms. STANSBURY.
H.R. 3686: Mr. LAMBORN and Ms. DEGETTE.
H.R. 3783: Ms. UNDERWOOD and Ms. SPANBERGER.
H.R. 3800: Mr. RUIZ.
H.R. 3807: Mrs. SPARTZ and Mr. MRVAN.
H.R. 3826: Ms. PINGREE.
H.R. 3857: Ms. MOORE of Wisconsin and Mr. EVANS.
H.R. 3884: Mr. COSTA.
H.R. 3897: Mr. GRAVES of Louisiana, Mr. MCKINLEY, Ms. HERRERA BEUTLER, Ms. SALAZAR, Ms. GRANGER, Mr. CARTWRIGHT, Mrs. RODGERS of Washington, Mr. GONZALEZ of Ohio, and Mr. WELCH.
H.R. 3988: Ms. BROWNLEY, Mr. RUPPERSBERGER, and Mr. LYNCH.
H.R. 4176: Ms. JACOBS of California, Mr. KHANNA, Mr. RUIZ, and Ms. SCANLON.
H.R. 4198: Ms. WILLIAMS of Georgia.
H.R. 4286: Ms. DAVIDS of Kansas.
H.R. 4312: Mr. WILSON of South Carolina.
H.R. 4319: Mr. MALINOWSKI.
H.R. 4385: Mr. YOUNG and Mr. CONNOLLY.
H.R. 4407: Mr. AGUILAR.
H.R. 4479: Ms. SEWELL.
H.R. 4546: Mr. SUOZZI.
H.R. 4552: Ms. SLOTKIN and Mr. COSTA.
H.R. 4603: Mr. COHEN.
H.R. 4609: Mr. TRONE and Ms. ROSS.
H.R. 4750: Mr. SHERMAN.
H.R. 4819: Mr. PHILLIPS.
H.R. 4865: Ms. DEAN and Mr. HILL.
H.R. 4880: Mrs. LESKO and Mr. KILMER.
H.R. 4943: Ms. CASTOR of Florida, Ms. ADAMS, Ms. KELLY of Illinois, Ms. MENG, and Ms. WILLIAMS of Georgia.
H.R. 4944: Ms. CASTOR of Florida, Ms. ADAMS, Ms. KELLY of Illinois, and Ms. WILLIAMS of Georgia.
H.R. 4946: Ms. WASSERMAN SCHULTZ.
H.R. 4951: Mr. LEVIN of Michigan.
H.R. 5062: Mr. GOOD of Virginia.
H.R. 5145: Mr. HUFFMAN.
H.R. 5162: Mr. CLYDE, Mrs. MILLER of West Virginia, Mr. THOMPSON of Pennsylvania, and Mr. STAUBER.
H.R. 5232: Ms. CHU, Mr. HIMES, and Ms. MCCOLLUM.
H.R. 5244: Mr. DESAULNIER, Mr. MAST, Mr. AGUILAR, Mr. CARTWRIGHT, Mr. YARMUTH, Ms. TITUS, and Ms. CHU.
H.R. 5261: Mr. KRISHNAMOORTHI.
H.R. 5338: Ms. ESCOBAR and Ms. MENG.
H.R. 5348: Ms. ROYBAL-ALLARD.
H.R. 5370: Ms. MALLIOTAKIS.
H.R. 5407: Mr. TORRES of New York.
H.R. 5418: Mr. BILIRAKIS.
H.R. 5430: Mr. SWALWELL, Ms. OCASIO-CORTEZ, and Mr. THOMPSON of California.
H.R. 5483: Mr. GOTTHEIMER.
H.R. 5497: Ms. SALAZAR and Mr. CURTIS.
H.R. 5524: Ms. DELBENE, Mr. ESPAILLAT, Ms. NORTON, and Mr. BEYER.
H.R. 5526: Ms. WILD.
H.R. 5541: Mr. BLUMENAUER.
H.R. 5556: Mr. DONALDS.
H.R. 5577: Mr. OWENS and Mr. JACOBS of New York.
H.R. 5580: Mrs. LURIA.
H.R. 5625: Mr. FITZPATRICK.
H.R. 5648: Mr. BLUMENAUER.
H.R. 5663: Mr. RUTHERFORD.
H.R. 5684: Ms. TITUS, Mr. NEGUSE, and Mr. SCHIFF.
H.R. 5692: Mr. THOMPSON of California.
H.R. 5754: Ms. WEXTON, Mr. MURPHY of North Carolina, Mr. JOYCE of Ohio, Mr. JACOBS of New York, and Mr. MEIJER.
H.R. 5757: Mr. KIM of New Jersey and Mr. COURTNEY.
H.R. 5772: Mr. PHILLIPS.
H.R. 5776: Mr. HIGGINS of New York.
H.R. 5916: Mr. PAPPAS.
H.R. 5922: Ms. ROSS.
H.R. 5927: Mr. NEGUSE.
H.R. 5963: Ms. BROWNLEY.
H.R. 5999: Mr. DANNY K. DAVIS of Illinois, Mr. COOPER, Mr. PAYNE, Mr. PETERS, Mr. KRISHNAMOORTHI, and Mr. QUIGLEY.
H.R. 6006: Mr. AUCHINCLOSS.
H.R. 6059: Mr. WELCH, Miss GONZÁLEZ-COLÓN, Mr. CÁRDENAS, and Mr. QUIGLEY.
H.R. 6060: Mr. TAYLOR.
H.R. 6089: Mr. GARCIA of California and Mrs. LESKO.
H.R. 6095: Mrs. WATSON COLEMAN.
H.R. 6096: Ms. BROWNLEY and Mr. COOPER.
H.R. 6100: Ms. BROWNLEY and Mr. CROW.
H.R. 6101: Mr. CARL.
H.R. 6129: Mr. YOUNG and Mr. BLUMENAUER.
H.R. 6132: Mr. CASE.
H.R. 6161: Mr. JOYCE of Pennsylvania, Mr. EVANS, Mrs. DEMINGS, Mr. YOUNG, Mr. GONZALEZ of Ohio, Mr. BLUMENAUER, Ms. HOULAHAN, Mr. CASE, Mr. FITZPATRICK, Miss RICE of New York, Ms. MATSUI, Mr. LAWSON of Florida, Mr. BACON, Mr. PANETTA, Ms. SALAZAR, Mr. WELCH, Mr. JOHNSON of Ohio, and Mr. KATKO.
H.R. 6205: Ms. HOULAHAN.
H.R. 6206: Mrs. BOEBERT.
H.R. 6227: Ms. LOFGREN, Mr. VARGAS, Ms. SCHRIER, and Mr. KILMER.
H.R. 6229: Mr. C. SCOTT FRANKLIN of Florida.
H.R. 6232: Mrs. RODGERS of Washington.
H.R. 6244: Mr. CLYDE.
H.R. 6247: Mr. KUSTOFF.
H.R. 6251: Mr. KELLER.
H.R. 6255: Mrs. STEEL.
H.R. 6267: Mr. MEEKS and Mr. TONKO.
H.R. 6272: Mrs. BEATTY, Mr. BISHOP of Georgia, and Ms. BROWN of Ohio.
H.R. 6291: Ms. STEVENS.
H.R. 6297: Mr. DONALDS.
H.R. 6299: Mrs. HINSON, Mr. C. SCOTT FRANKLIN of Florida, and Mr. JACKSON.
H.R. 6303: Ms. NORTON and Ms. BROWNLEY.
H.R. 6322: Mr. JACKSON.
H.R. 6329: Ms. SCHAKOWSKY.
H.R. 6367: Mr. CHABOT, Mr. WILSON of South Carolina, Mr. MEUSER, Mr. PALAZZO, Mr. HILL, Mr. LAMBORN, and Mr. WOMACK.
H.J. Res. 53: Mr. SARBANES.
H.J. Res. 58: Mr. JOHNSON of Ohio.
H.J. Res. 67: Mr. SMITH of New Jersey.
H. Con. Res. 29: Ms. WILLIAMS of Georgia.
H. Con. Res. 45: Ms. MALLIOTAKIS.
H. Res. 103: Mr. MFUME, Mr. CARBAJAL, Mr. NEGUSE, and Ms. MANNING.
H. Res. 289: Mr. EVANS and Mr. SEAN PATRICK MALONEY of New York.
H. Res. 493: Mrs. MILLER of Illinois.
H. Res. 558: Mr. KRISHNAMOORTHI, Mr. HIMES, and Mrs. KIM of California.
H. Res. 714: Ms. BROWNLEY.
H. Res. 744: Mr. MOULTON, Mr. KILMER, Mr. POSEY, Ms. SCHRIER, Mr. BUCSHON, Mr. CARBAJAL, Mr. KRISHNAMOORTHI, Mr. LAMALFA, and Ms. MENG.
H. Res. 752: Mr. DESAULNIER.
H. Res. 784: Mrs. HAYES.

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PROCEEDINGS AND DEBATES OF THE 117th CONGRESS, SECOND SESSION

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Senate

(Legislative day of January 10, 2022)

The Senate met at 11 a.m., on the expiration of the recess, and was called to order by the President pro tempore (Mr. LEAHY).

PRAYER

The PRESIDENT pro tempore. Today's opening prayer will be offered by Rabbi Moshe Feller, the director, Upper Midwest Merkos Chabad-Lubavitch, from St. Paul, MN.

The guest Chaplain offered the following prayer:

Almighty God, Master of the Universe, the Members of this august body, the U.S. Senate, convene here today to fulfill one of the Seven Commandments which You issued to Noah and his family after the Great Flood: the commandment that all society be governed by just laws.

As stated in the book of Genesis and its sacred commentaries, You issued at that time the following seven laws: to worship You and You alone; never to blaspheme Your Holy Name; not to commit murder; not to commit adultery, incest, or any sexual misdeeds; not to steal, lie, or cheat; not to be cruel to any living creature; and that every society be governed by just laws based on the recognition and acknowledgement of You, O God, as the sovereign Ruler of all humankind and all nations.

Grant, Almighty God, that the Members of the Senate constantly realize that by enacting just laws they are doing Your will. Almighty God, I beseech You today to bless the Senate and our entire Nation in the merit of two spiritual giants of our time and of our country, Rabbi Yosef Yitzchak Schneerson of saintly blessed memory—the sixth Lubavitch Rebbe—and his successor, the Rebbe, Rabbi Menachem Schneerson, of saintly blessed memory.

Tomorrow, the 10th day of the Hebrew month of Shevat, is the anniversary of the transition of their leadership. It is a day of reflection and action and one which should energize us to be God-conscious beings. Their holy mission continues through our acts of goodness and kindness, hastening the harmonious era of the messianic redemption. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

RESERVATION OF LEADER TIME

The PRESIDENT pro tempore. Under the previous order, the leadership time is reserved.

CONCLUSION OF MORNING BUSINESS

The PRESIDENT pro tempore. Morning business is closed.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

The PRESIDENT pro tempore. Under the previous order, the Senate will proceed to executive session and resume consideration of the following nomination, which the clerk will report.

The legislative clerk read the nomination of Alan Davidson, of Maryland, to be Assistant Secretary of Commerce for Communications and Information.

Mr. PETERS. I suggest the absence of a quorum.

The PRESIDENT pro tempore. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. PETERS). Without objection, it is so ordered.

RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER. The Republican leader is recognized.

FILIBUSTER

Mr. MCCONNELL. Mr. President, something disturbing is happening in Washington this week. A group of politicians are trying to set aside election results, overrule American voters, and break—break—our institutions to get a political outcome they want.

I am speaking, of course, about the Senate Democratic leader and the radical left. The Senate Democratic leader is trying to bully his own Members into breaking their word, breaking the Senate, and silencing the voices of millions of citizens so that one political party can take over our Nation's elections from the top down.

In January 2021, a mob tried to intimidate and change the Senate, and they failed. In January of 2021, the Senate stayed true to itself, and it stood strong.

But in January of 2022, some of the Senate's own Members want to permanently damage this institution from within. They want to shatter its central feature. The Democratic leader is using fake hysteria—fake hysteria—about 2021 State laws to justify a power grab he began floating actually back in 2019 and an election takeover that was first drafted in 2019.

President Biden has spread so much misinformation about the basic facts of State voting laws that he was called out and debunked by—listen to this—the Washington Post. A sitting President of the United States who pledged to lower the temperature and unite America now invokes the brutal racial hatred of Jim Crow segregation to smear—to smear—States whose new voting laws are more accessible than, for example, Delaware. Ten days of early voting and excuse-only absentees in Delaware is just fine, but 17 days of

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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early voting and no-excuse absentees in Georgia is racist Jim Crow?

The Senate Democratic leader pretends it is a civil rights crisis that Georgia has enshrined more early voting and more absentee balloting than his own State of New York has ever allowed. This is misinformation. It is a Big Lie designed to reduce faith in our democracy, justify a top-down election takeover, and justify smashing the Senate itself. Some years back, a veteran Democratic Senator explained:

[The] nuclear option is ultimately an example of the arrogance of power . . . [it] would transform the Senate from the so-called cooling saucer our Founding Fathers talked about . . . to a purer majoritarian body.

That was then-Senator Joe Biden. He continued:

At its core, the filibuster is not about stopping a nominee or a bill, it is about compromise and moderation.

Now, before President Biden abruptly reversed this position he held for decades, he was actually in very good company. Senator Robert Byrd of West Virginia, the legendary Senate institutionalist, was this crucial tradition's fiercest defender. The current Democratic leader has tried to invoke Senator Byrd in support of this push to vandalize the Senate. This is more misinformation. Senator Byrd went out of his way to rebut Leader SCHUMER's arguments, years in advance. Here is a direct quote from Senator Byrd:

Proponents of the so-called nuclear option cite several instances in which they inaccurately allege that I blazed a procedural path toward an inappropriate change in Senate rules. They're dead wrong—

Said Senator Byrd—

Dead wrong. They draw analogies where none exist and create cockeyed comparisons that fail to withstand even the slightest intellectual scrutiny.

That is how Senator Byrd felt about it. Down to his final public statements before his death in 2010, Senator Byrd was completely consistent:

I oppose cloture by a simple majority, because it would immediately destroy the uniqueness of this institution . . . minority rights would cease to exist in the U.S. Senate.

Senator Byrd, shortly before his death.

That Democratic leader knew how to serve and protect the Senate.

This Democratic leader wants power so badly he will misrepresent his own late predecessor if it helps him get it. Senator Byrd's successor, the current senior Senator from West Virginia, has eloquently restated the very same points. Our colleague Senator MANCHIN published an op-ed explaining why ''there is no circumstance in which I will vote to eliminate or weaken the filibuster''—Senator MANCHIN.

He pointed out that finding compromise across party differences and differing regional interests was ''never supposed to be easy . . . but it is the work we were elected to do.'' He noted that current rules guarantee ''that rural and small states and the Americans who live in them . . . always have a seat at the table.''

Our colleague also pointed out that the 60-vote threshold keeps Federal law durable and predictable:

If the filibuster is eliminated or budget reconciliation becomes the norm, a new and dangerous precedent will be set to pass sweeping, partisan legislation every time there is a change in political control . . . our nation may never see stable governing again.

This has been a key point for Senators on both sides going back generations. In his farewell address before retirement, our former colleague, Lamar Alexander, put it this way: The Senate rules exists to ''force broad agreements on controversial issues that become laws that most of us will vote for and that a diverse country will accept.''

In other words, major changes need major buy-in. Otherwise, every policy would ping-pong wildly whenever the gavels change hands.

This is a point which our colleague, the senior Senator from Arizona, has explained powerfully. As Senator SINEMA wrote just a few months ago, ''the 60-vote threshold . . . compels moderation and helps protect the country from wild swings . . . and radical reversals in Federal policy.''

Sometimes the effect of the filibuster is to block bills outright. Republicans are using the tool to stop one-party election takeovers. In 2020, Democrats used it to kill Senator TIM SCOTT's police reform bill. But as President Biden argued decades ago, the filibuster is about more than what gets blocked. It shapes almost everything the Senate actually does pass. It gives all kinds of citizens and all kinds of States a meaningful voice in nearly everything.

By breaking the Senate, this Democratic leader wants to silence the voices of millions and millions of Americans. He wants to throw whole regions of the country into a political power outage because those voters don't agree with his radicalism. We will see which Senators have the courage and the principle to put a stop to it.

Finally, on a more practical level, I want to make something very, very clear. Fifty Republican Senators, the largest possible minority, have been sent here to represent the many millions of Americans whom Leader SCHUMER wants so badly to leave behind. So if my colleagues try to break the Senate to silence those millions of Americans, we will make their voices heard in this Chamber in ways that are more inconvenient for the majority and this White House than what anybody has seen in living memory.

Last year, the Senate passed major bipartisan legislation on infrastructure, on hate crimes, on government funding, on competing with China. Last year, Senators helped speed through noncontroversial nominations.

So what would a postnuclear Senate look like? I assure you, it would not be more efficient or more productive. I personally guarantee it.

Do my colleagues understand how many times per day the Senate needs and gets unanimous consent for basic housekeeping? Do they understand how many things would require rollcall votes, how often the minority could demand lengthy debate?

Our colleagues who are itching for a procedural nuclear winter have not even begun to contemplate how it would look. Our colleagues who are itching to drain every drop of collegiality from this body have not even begun to consider how that would work.

If the Democratic leader tries to shut millions of Americans and entire States out of the business of governing, the operations of this body will change. Oh, yes, that much is true. But not in ways that reward the rulebreakers, not in ways that advantage this President, this majority, or their party—I guarantee it.

The PRESIDING OFFICER. The Republican whip.

VOTING RIGHTS ACT

Mr. THUNE. Mr. President, later today, President Biden will be speaking in Georgia as part of Democrats' effort to convince the American people that voting rights are under attack so they can justify their attempt to abolish the Senate filibuster to pass their partisan election legislation.

A noted Democrat operative once famously said that you should never let a good crisis go to waste. He meant, of course, that a crisis could give you the opportunity to push things through that you might not be able to get done in the ordinary course of things. It is a lesson the Democrats have learned well.

Last March, for example, Democrats used the cover of the COVID crisis to pass a so-called COVID relief bill that had very little to do with COVID relief and had a lot to do with expanding the role of government and providing payoffs to Democrat constituencies.

But, unfortunately for Democrats, when it comes to election legislation, there is no crisis for Democrats to exploit, so Democrats have spent the past year busily trying to manufacture one. I say the past year, but Democrats have actually been claiming there is a voting crisis for much longer.

The source of the election bill that we will likely vote on this week is H.R. 1—election legislation that was first introduced by Democrats back in 2019. Back then, Democrats told us that our election system was broken and that we needed this bill to fix it. After all, a Republican had won the last Presidential election and beat a favored Democrat candidate. Surely, surely, that meant our system was in trouble. But then the 2020 elections came along, and Democrats won the Presidency and a majority—albeit a narrow majority—in both Houses of Congress. Voter turnout was massive, and a Pew Research Center poll found that 94 percent of people found it easy to vote—94 percent. So all of a sudden, it was pretty

difficult for Democrats to claim that our system was broken. But they still wanted to pass their election legislation, so they came up with a new crisis.

In 2021, a number of States passed updates to their voting laws—partly because of the challenges and special circumstances that arose as a result of the pandemic. Democrats decided that these commonsense, mainstream updates represented an unprecedented attack on voting rights.

Georgia, which was one of the first to enact voting legislation, has become the poster child for the Democrats' campaign to convince Americans that their voting rights are in danger.

So what terrible voter suppression measures are States imposing? Well, one provision of the Georgia law that has come in for a lot of Democrat outrage is its measure forbidding partisan political organizations from providing individuals with food or water within 150 feet of a polling place. Yes, apparently preventing partisan political organizations from providing lunch to voters threatens the very stability of our entire democracy.

Now, nothing in Georgia's law prevents outside groups from providing food and water to individuals outside the 150-foot radius, and Georgia's law explicitly allows nonpartisan election workers, as opposed to political groups, to make water available to voters. Of course, I am pretty sure any voter can bring his or her own food and water. But none of that has prevented Democrats from suggesting that rules about food and water distribution at polling places represent a grave threat to voting rights.

Ironically, the State of New York has a similar provision in its election law prohibiting any refreshment or provision to a voter at a polling place except if the retail value of what is given is less than $1 and the person or entity providing it is not identified. Yet I don't see the Democrats traveling to New York to decry the threat to democracy posed by the New York Legislature.

After Georgia passed its voting law, President Biden got up and attacked the law for supposedly ending voting early to prevent working people from voting. He made that accusation repeatedly. The problem? There was exactly zero truth to his claim. In fact, as the Washington Post's Fact Checker column pointed out, ''experts say the net effect of the new early-voting rules was to expand the opportunities to vote for more Georgians, not limit them.''

That is from the Washington Post's Fact Checker. Let me just repeat that:

> [E]xperts say that the net effect of the new early-voting rules was to expand the opportunities to vote for most Georgians, not limit them.

The Fact Checker gave the President four Pinocchios—a rating the column reserves for ''whoppers''—for his false claim that the law was designed to keep working Americans from voting.

I would also like to point out that not only is Georgia's election reform law thoroughly mainstream, Georgia's laws are actually more permissive in some respects than voting laws in some Democrat States.

Georgia offers no-excuse absentee voting. The Democrat leader's home State—Senator SCHUMER's home State—does not. In fact, voters in the Democrat leader's home State actually just rejected a ballot measure that would have allowed no-excuse absentee voting. I guess the Democrat leader thinks that those voters are trying to destroy our democracy.

Georgia also has way more days of early voting than the Democrat leader's home State. So does Arizona, another State that has come under fire from Democrats for updating its election laws. Yet red States, according to Democrats, are the States attempting to suppress votes.

It is also important to note that the Georgia law was written to address concerns from Republican and Democrat voters, including concerns raised by Stacey Abrams-affiliated groups over the 2018 Georgia gubernatorial election.

There is no question—no question—we should make voting easy and accessible, but there are a lot of different ways to do that. States can have different requirements and still all offer ample opportunities to vote.

Also, I think my Democrat friends need a little perspective check. There are countries where individuals would consider it a privilege to be able to stand in line to vote in a free election—even if someone didn't provide them with food and water.

Of course, no one wants voters to have to stand in long lines, and, in fact, Georgia's election law will make it less likely that they have to. But Democrats' dramatic claims that a long line or a lack of a drop box or, say, 9 as opposed to 10 days of early voting somehow threatens the right to vote in this country are nothing short of absurd. I have faith that Americans are capable of voting even without the Democratic Party providing them with a boxed lunch.

There is no election crisis in this country. This last election—biggest turnout in American history in 120 years. You have to go back to the year 1900 to find a time when the election turnout in an American election was equal to or exceeded what we had in 2020. What there is, is a partisan Democrat election bill the Democrats have wanted to pass since long before the Georgia Legislature reformed their election laws because they think it will give them an advantage in future elections. You don't have to take my word for it; more than one Democrat has openly admitted the Democrats want to pass a Federal election takeover because they think it will give their party an advantage in the next election.

If Democrats were really concerned about the security of our democracy and the integrity of our elections, if they really cared about affirming Americans' faith in our electoral system, they would not be seeking to break the Senate rules to pass a totally—totally—partisan election bill on a totally partisan basis. A partisan Federal election takeover is not going to do anything to strengthen Americans' faith in our system. On the contrary, it will sow mistrust and division and heighten partisanship.

Instead of changing the rules to gain an advantage in the next election, I would suggest that my Democrat colleagues instead try coming up with an agenda that would appeal to a broad majority of Americans—perhaps starting with a plan to address the inflation crisis the Democrats have helped create. That would be a far better use of their time than undermining faith in our electoral system with a partisan rules change and a partisan Federal takeover of elections.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. GRAHAM. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. GRAHAM. Mr. President, I will speak today on two topics—No. 1, the substance of the bill, which is, I guess, yet to be known, regarding voting rights, which I consider to be a Federal takeover of State elections, and the constant threat of changing the rules of the Senate to do away with the legislative filibuster as we know it.

I would say to my Democratic colleagues, this has been going on for quite a while, the constant threat by Senator SCHUMER to change the rules to pass whatever legislation you-all can come up with.

All I can say is, things were different when we were in charge. We had the House, the Senate, and the White House. President Trump constantly urged Senator MCCONNELL and all of us on the Republican side to change the rules of the Senate so he could pass his agenda unimpeded; that anything that came out of the House, which was under Republican control, could sail right through the Senate with Republican votes only.

It was pretty clear to my Democratic colleagues that was not a good outcome, I thought for the country, but I guess for them.

We signed a letter on April 7, 2017—61 signatures: 28 Republicans, 32 Democrats, and 1 Independent. The letter was sent to Senator MCCONNELL, who was the majority leader, and the minority leader was Senator SCHUMER at the time, urging both leaders that, no matter what differences we have had regarding Executive nominations and judges, we should preserve the minority's rights under the so-called legislative filibuster.

Apparently, it made perfect sense to my Democratic colleagues that the Senate not change to accommodate Donald Trump and his wishes. I was assuming that the statement by my Democratic colleagues was about the institution, not just about the Trump Presidency and the times in which we lived in 2017.

Apparently, I was wrong—except for a handful. And to Senators SINEMA and MANCHIN, you have led from the front, not from the rear. You have taken your fair share of criticism as you have opposed changing the Senate rules to accommodate the voting rights bill, and it has been—the argument goes that this is so fundamental to democracy, voting, that the Senate has to give way in this instance.

All I can say is that when many of us were in your shoes, we didn't make an exception for a piece of legislation that we thought was critical to the future of the country. And it would be easy to find an exception here and there and everywhere, to the point that the rule bends with the exception. Now, I appreciate your steadfastness in that regard, and, apparently, as you read the news, a few more Democrats are becoming publicly unnerved by the thought of changing the legislative filibuster—just a handful. And we are supposed to be in over the weekend, I think, maybe even into Monday, to have the change—rules change—but that may be in flux now because it appears a handful of Democrats are showing some distaste for changing the rules. I don't know why they are coming out now. I appreciate it.

I don't think it would be very popular in certain States to change the rules of the Senate that would pave the way for the most radical agenda in my lifetime. I don't know if that has got something to do with it or if there is a newfound religion here by a handful.

To the rest, I won't forget this. I was 1 of the 28 Republicans who signed the letter to the leaders of the Senate asking that the institution maintain the legislative filibuster, and not because it benefited me personally but because I thought it benefited the American people.

The day you make the Senate the House, we are going to have wild policy changes. When we are in charge, we will go down one road; when Democrats are in charge, they will go down another road, and there will be a just unnerving aspect of this, in my view, and I think for well over a century, the Senate has prevented these wild changes. And that means you don't get what you would like as conservatives. The same people who are applauding my resistance to changing the filibuster today were all over me when we were in charge wanting me to change the filibuster. I understand that.

Ideological people want their way, and they don't particularly care how they get it. Most Americans have a more balanced approach about how the legislative process should work, and I think, over time, the requirement to get a handful of people from the other party to pass legislation, particularly major legislation, has served the country well.

There are things that we would do completely different than our Democratic friends because we have different views, and some of these ideas just never make it through the Senate. And every now and then we will come up with solutions to hard problems that are bipartisan because we have to, as long as the legislative filibuster is around.

So the idea of changing the legislative filibuster would pave the way, if Democrats have all branches of government here, to make DC and Puerto Rico a State. I think they would. It paves the way for increasing the number of Justices on the Supreme Court because liberals don't like the current makeup. I think there would be a move to abolish the electoral college, which would be devastating for South Carolina.

And to all the people in this body, adding two more States may serve your interests, but it certainly dilutes the power you have as an individual State.

So the legislative filibuster is a stop sign to the most radical agenda I have seen since I have been up here, and it was a stop sign to the Trump agenda, and you just fill in the blanks.

This effort by Senator SCHUMER to abolish the legislative filibuster under the guise of a single exception is cynical and I think a sign of desperation.

I like Senator SCHUMER. I have been able to work with him—immigration and other hot-button issues—but the truth of the matter is, this all started back when President Bush's judicial nominees were filibustered en mass that led to the Gang of 14, spearheaded by Senator Byrd, sort of one of the icons of the Senate, to make sure that filibustering judges would be done only in extraordinary circumstances. We broke the logjam. We lost a couple of good conservative judges as part of the compromise, and that held until it no longer held.

In 2013, I got a call from Senator SCHUMER—I never will forget it—that we are going to push for a rules change when it comes to court of appeals and district court judges—I think in 2013.

I remember the reaction I had and Senator McCain's, and they were able to do that. And when President Trump became President and had a couple of Democratic—excuse me—a couple Supreme Court vacancies to fill, they were all filibustered, starting with Gorsuch, to the point that we changed the rules so that he could get some people on the Court who I think were highly qualified. So the bottom line is, when it comes to judges, the ship has sailed. Executive appointments, maybe that should have been changed. The effect on the judiciary, I think, is going to be detrimental over time.

The most ideological elements of each conference will have a large say about what kind of judges we put on the court, and you will see a change over time from the right and the left because you no longer have to reach across the aisle to put a judge on the court.

Apply that to legislation and, again, it would be devastating to the country and this body to not require some form of consensus when it comes to legislation and deny the minority the ability to require that consensus.

As to voting rights itself, I think this is the most hyped, manufactured issue in a long time. This is a problem in search of—it is not a problem in search of a solution; it is a manufactured problem.

States under our Constitution are supposed to run elections. In my State, I think we do a pretty good job. There are some efforts to change election laws throughout the country. As more and more people vote by mail, I think it is incumbent that you have the same voter identification requirements by voting by mail as you do in person. It would be so easy to manipulate that system.

The bottom line here is this is an effort by the Democratic leader to basically say that Republicans, at our heart, are a bunch of racists when it comes to voting; that the reason they are having to do this is that States are changing laws to disenfranchise people of color and minorities.

I find that, like, incredibly offensive—I mean, just beyond offensive. In my State, which is 30 percent-plus African American, we have robust opportunity to vote. All these laws that are being changed to implement voter integrity, I think, are necessary in the times in which we live.

But the bill coming before the body, whatever it is, is a federalization of the election process. It is not about enfranchising the voters; it is about enfranchising the ability of the left to take over the electoral process to skew it to their favor, and I think almost all of us see it that way over here.

So, you know, as a Republican, particularly from the South, you sort of get used to being called a racist. It is never pleasant, but you sort of get used to it. It is the cheapest form of politics. It is very unsavory to the people in my State.

I went through that process in 2020, and I hope I have lived a life to convince reasonable people that, whatever flaws I have, being a racist is not one of them.

And to clothe this exercise here as some kind of moral imperative that if we don't do this bill, then people throughout the country will lose their right to vote because Republicans, at the end of the day, don't want people of color to vote is beyond offensive, and I hope it fails and that we can get back to some sense of regular order around here.

But I will end with this: When the shoe was on the other foot, most of us didn't do this. Your country needs you

right now to speak up. If you support changing the legislative filibuster one time for the voting rights bill, you support the end of it because there will be no end to the exceptions.

And most of you over there have been hiding in the corner, letting other people take the arrows. It is time for you to speak up. I actually hope we have a vote because I want to know where people are, whom I can count on and whom I can't, to understand what is transactional and what is about the body. Time will tell.

I yield the floor to Senator CORNYN.

The PRESIDING OFFICER. The Senator from Texas.

Mr. CORNYN. Mr. President, considering the way our Democratic friends talk about the state of voting rights in America, it is easy to see why some people have expressed concerns because if you took them at face value, you might be very worried about the state of voting rights in our country, but there is more to the story than that, which I will hope to explain here in the next few minutes.

For example, when it comes to the alarmism about voting rights, look no further than the Democratic majority whip, Senator DURBIN from Illinois, who said there is an ''insidious effort to suppress the rights of voters of color.''

Senator SCHUMER, the majority leader, Senator from New York, has said the right to vote is ''under attack in ways we have not seen in generations.''

President Biden himself has said there is a ''21st century Jim Crow assault'' on the right to vote.

If you were to take these at face value and accept them, obviously, you would be very concerned about the state of voting rights.

But there is more to the story, as I said. If you just listen to these statements, you would think that the States—the 50 States—had just imposed literacy tests on voting. You would think the disgusting and subjective determinations of ''good moral character'' that existed before the civil rights movement had somehow sprung back to life. You might even wonder if the Supreme Court of the United States has struck down the Voting Rights Act itself.

(Mr. KELLY assumed the Chair.)

Obviously, none of these things are true. There is simply no concerted effort to attempt to prevent voters of color or any eligible voters from casting their ballots.

The Voting Rights Act—one of the most important pieces of legislation in our Nation's history—is alive and well. I think the Voting Rights Act has done more to change our country for the better than any other piece of legislation that I can think of.

So, to be frank, the facts simply don't support our Democratic colleagues' alarming rhetoric about the state of voting in America. This narrative of widespread voter suppression is nothing more than a scare tactic to achieve a political outcome.

Our colleagues across the aisle have introduced many different versions of their Federal takeover of State elections bill, but the justification seems to always change. First they said it was a matter of election security; then of voter confidence; and then and now, a way to remove obstacles that prevented people from voting. Today, our colleagues on the other side of the aisle claim that this legislation is necessary because the States have passed new laws that restrict voting access. So let's just take a look at what some of those laws entail.

One of those laws in my State of Texas, where the goal is pretty simple, which is to make voting easier and to make it harder to cheat—Texas already offers 2 weeks of early voting in person, and the new law didn't make any changes in that. For 2 weeks, you can show up and vote in person before election day—hardly a restriction on people's access to the ballot.

This law did, in addition to making sure that people had 2 weeks to vote in person early, extend voting hours in more than 60 different Texas counties and clarify that voters who were in line at the time the polls closed would still be able to cast their ballot. It doesn't sound like voter suppression to me.

But the law also took some measures to reduce opportunities for fraud or mischief. Texas voting systems must now be tested before an election to ensure there are no technical difficulties. I am sure all of us are familiar with the occasional problem with voting machines, technical difficulties that need to be fixed to make sure it counts each legitimate vote. And we did make sure that voting rolls reflected only qualified voters. In other words, voters who passed away were removed from the voting rolls.

My State, like others, has clarified that the temporary, pandemic-related measures were not intended to be permanent. We did take some extraordinary precautions in the midst of COVID–19 to make sure people had access to the ballot. But these are hardly—restoration of the status quo before COVID–19 is hardly an example of voter repression.

I mentioned Texas and its expansive right to cast your ballot in person and to make sure everybody in line when the polls close could still cast their ballot.

Another State that has come under fire is Georgia. As a matter of fact, the Attorney General of the United States has sued Texas and Florida and Georgia under the Voting Rights Act. And, of course, President Biden is highlighting the Georgia laws because he is visiting today doing what I have never seen a President do before, and that is, villainize a State's new voting law, which, to me, is a bizarre thing for a sitting President to do, to travel to a State for the purpose of villainizing that State's law.

I doubt he will mention the fact that Georgia actually extended early voting to 17 days. That is not an example of voter suppression, of trying to restrict people's access to the ballot. As a matter of fact, that is much more generous than what President Biden's home State of Delaware has offered in terms of early access to the ballot.

So these clearly are not examples of Jim Crow voter suppression. These are commonsense measures designed to encourage people's confidence in the integrity of the voting systems and to make sure that they are both accessible and secure. These efforts should not be villainized; they should be applauded. They shouldn't be twisted beyond recognition, trying to manipulate the facts in order to achieve a political outcome.

If these State voting laws, then, are not designed to restrict access to the ballot, you might wonder whether there was a preexisting problem. So let's have a look.

Did voters actually have a problem casting their ballot during the last election? Well, following the 2020 election, the Pew Research Center conducted a poll of the voting experience, and it found that the vast majority of voters, 94 percent—94 percent—said that voting was easy. I don't think you could get 94 percent of people to agree that the Earth is round anymore, but here we have 94 percent of the voters who voted with ease in 2020. This is a stark contrast with the claimed assault on voting rights that we have heard so much about from our colleagues on the left.

Despite what the radical left might lead you to believe, there is no nationwide assault on voting rights. If there were, every person in this building would be lined up to defend the right to vote, not just Democrats. This is a manufactured crisis designed to achieve a political outcome.

There are plenty of safeguards already in place to prevent discriminatory voting laws from taking effect, the most important of which, as I have already said, is the Voting Rights Act. Because of this legislation, the Justice Department has the authority to take action against any State, any political entity that discriminates on the basis of race, color, or membership in a language-minority group. This has been the case for half a century, and no one—no one—wants to weaken or eliminate those protections.

Unfortunately, some of our colleagues on the left have misrepresented the picture of voting rights in America to justify this partisan power grab. The legislation they have introduced does more to enhance their own power than it does to address voting rights. These bills aren't about supporting disenfranchised voters or fighting voter suppression because, as we know, there is no nationwide assault on the right to vote, notwithstanding what some have claimed. This is simply about enhancing the political power of the Democratic Party. They want to seize States' constitutional authority to

manage their own elections and use it for their own benefit.

That is one of the most curious things about this debate that we are hearing from some of our Democratic colleagues. They want to actually vote for a nationwide, one-size-fits-all standard, to the detriment of their own States' voting laws.

It is pretty strange to come here representing a State—let's say I was in the shoes of the Democrats. If I were to come here to say ''Well, my State has passed voting laws. I represent my State, but I want the Federal Government to take over the voting laws and to suppress and supersede the voting laws in my State''—that is what our Democratic colleagues are asking for.

President Biden, apparently, rather than changing the voting laws in his home State of Delaware, wants the Federal Government to create a one-size-fits-all answer to voting rights in America—again, something that is inconsistent with the Constitution and makes no sense at all.

Well, to make matters even worse, some of our colleagues are even advocating blowing up the Senate in order to achieve their goals because they know they don't have 60 votes in order to close off debate.

Now, the 60-vote requirement is the subject of a lot of controversy, but, frankly, it makes good common sense. In a country as big and diverse as America, do you really want to have a partisan majority of 51 writing the laws that affect 330 million people, only to have, after the next election, the next majority undo those or change them in some other way? Wouldn't you want a mechanism that forces us to do what we might consider to be a little unnatural, which is actually to build consensus and build bipartisanship to make sure that the laws we pass are not only adequately debated and thought out, but they could endure beyond the next election because they enjoyed the support of bipartisan majorities?

That is what the 60-vote cloture requirement is really about. It is about making sure that purely partisan outcomes don't succeed and forcing us to do what I believe is in the best interest of the American people, which is force us to work together to achieve bipartisan consensus.

The election takeover bill may be the first one our Democratic colleagues try to pass if they eliminate or weaken the filibuster, but it won't be the last. This isn't going to be a one-and-done exercise. Anybody who says you can carve out voting laws and everything else will remain the same is just kidding themselves and the American people. If the Democrats created a carve-out for election-related bills, there would be nothing—nothing—stopping them from resurrecting early versions of the election takeover bill and passing them on a completely partisan basis.

Previous versions of this bill would have turned the historically bipartisan Federal Election Commission into a partisan body. They would have mandated ballot harvesting and seized States' constitutional authority to draw their own congressional districts. These are the types of radical measures that we could see under what our colleagues call a modest carve-out.

If our Democrat colleagues eliminated the bipartisan 60-vote requirement, the floodgates of partisan legislation would surely open. Last year, our colleagues tried to pass legislation that exploits the cause of pay fairness to send a wave of business to trial lawyers. They pushed for another bill that would impose crushing legal penalties on those who refuse to comply with woke social norms.

If the filibuster—the 60-vote bipartisan filibuster—were eliminated, Republicans would have no way of stopping these bills from becoming law. And it doesn't stop there. The threat doesn't stop there.

Think of the most controversial bills that our Democratic colleagues have proposed. They could add new States to the Union—DC statehood, Puerto Rican statehood. They could pack the Supreme Court of the United States with liberal Justices. They could pass laws that infringe on the Second Amendment to the Constitution, the right to keep and bear arms, or legalize abortion up until the time a baby is delivered in the third trimester. They could impose job-killing taxes and kick-start the Green New Deal.

So what is at stake here this week is far more than the fate of one or two bills. Our colleagues are proposing to put a thumb on the scale to benefit the Democratic Party.

If the filibuster, the bipartisan 60-vote requirement, is eliminated, our colleagues on the other side of the aisle will have unchecked power to write the laws affecting 330 million Americans. We know they are already willing to manufacture a voting rights crisis to increase their own power. If they are willing to do that, what aren't they willing to do? I know I am not alone in saying I hope we never find out.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The majority leader.

Mr. SCHUMER. Mr. President, will my colleague from Texas yield for a request, just a request. I would like to borrow his chart.

Mr. CORNYN. I have yielded the floor.

Mr. SCHUMER. OK. My colleague, I would yield to you. I have the floor.

Do you mind if I borrow your chart? Great. Thank you.

Now, my good colleague from Texas says 94 percent of voters said voting was easy in 2020. So why don't we keep it that way?

Isn't it true that all of the changes that we are arguing about are post-2020, and is it an overwhelming likelihood that this number, if these changes are allowed to go into effect, will go way down? So, yes, we agree. Keep the 2020 laws. Maybe we should improve them. Right now, what we are combating is a series of legislatures—19—and 33 laws that will make this number surely go down because it makes voting less hard. So we agree that 2020 worked out OK. I guess my friend is saying the Big Lie is false because Donald Trump said it was fraudulent, the election results.

I would thank my colleague for his chart and will be using it again.

Mr. CORNYN. Mr. President, would the Senator yield for a question?

Mr. SCHUMER. I sure would.

Mr. CORNYN. Would you give me an example of one of the laws passed in Georgia or in Texas since the 2020 election which you believe suppresses the right to vote.

Mr. SCHUMER. There is a long list of them, which I have listed in my speeches. Let me just give one or two: one, making early voting places and dropoff voting places many fewer; No. 2, in the largest county—Democratic county, African-American county—in Georgia, taking away the bipartisan ability to collect those votes; No. 3, in Georgia, making it a crime that, if you are standing in line, you can't be fed, and the lines, by the way, according to the reports I get, are much longer in African-American communities than in White suburban communities, making it much, much harder—making it a crime, rather—to give people water or a sandwich.

So I am going to now give my remarks, but I thank my colleague for the question, and I am going to take the floor.

Mr. CORNYN. Mr. President, I have one more question to clarify your response.

Mr. SCHUMER. The last question, yes.

Mr. CORNYN. Is the Senator suggesting that ballot harvesting should be required in all 50 States? That is the ability of a partisan or a participant in a political election to go around to nursing homes or to other vulnerable populations and collect ballots and turn them in.

Mr. SCHUMER. If the Senator would yield, as long as there is no fraud, if a person in a nursing home can't get to the polling place and wants to vote and someone collects their ballot, there is nothing wrong with that. In fact, that is good. That makes it easier for them to vote.

With all of these things that they bring up, there has been no evidence of fraud—none. Donald Trump has not produced any evidence of fraud. He lost by 7 million votes. Yet he is saying he won the election.

We all know what is motivating our colleagues on the other side of the aisle—obeisance to Donald Trump. I would guess most of them know that the election was not stolen, that the Big Lie doesn't take effect, but Trump has such power over the Republican Party—such power—that they do what he wants in the legislatures and here in the Senate.

I would remind my good friend from Texas that his fellow Texans George H. W. Bush and George W. Bush proudly supported an extension of the Voting Rights Act. They proudly did that. It was bipartisan until Donald Trump came over and, in my opinion, poisoned the Republican Party on voting rights. We could use a little resistance to Donald Trump. We see it from a good number of Republicans out in the country, and we see it from a good number of Republican commentators, but we don't see it here in the Senate, and that is unfortunate.

I am not going to yield for a further question.

Mr. President, as I begin my remarks, let me begin with the following figure—and we will have a debate later.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER. The majority leader is recognized.

Mr. SCHUMER. Mr. President, let me begin with the following figure: 55 million people; that is the estimated number of eligible voters who now live within States that have passed legislation restricting the right to vote and potentially undermining the electoral process.

Today, President Biden will travel to one such State, Georgia—home to one of the most egregious voter suppression and election subversion laws we have seen in a long time. I believe the President will give a strong speech and will urge that we in the Senate change the rules so that we can prevent these awful and nasty laws from being implemented. In an address to the Nation, he will use the bully pulpit of the Presidency to make the case that the time has come for the Senate to pass voting rights legislation and take whatever steps necessary to address this Chamber's rules in order to accomplish that goal.

The Senate is going to act as soon as tomorrow. It is my intention to, once again, bring legislation to the floor to fight back against the threats to democracy and protect people's access to the ballot.

Once again, I urge my Republican colleagues to take up the flag of the traditional Republican Party, not only of Lincoln but of Reagan and H. W. Bush and W. Bush and vote yes to move forward so we can have a debate like the debate we just had or the discussion we just had. But if Republicans continue to hijack the rules of the Senate to prevent voting rights from happening, if they continue paralyzing this Chamber to the point where we are helpless to fight back against the Big Lie, we must consider the necessary steps we can take so the Senate can adapt and act.

For the past few months, Senate Democrats have been holding talks within our caucus to discern how we can best move forward to restore the function of the Senate and, more importantly, pass legislation to defend democracy and protect voting rights. Last night, I held another round of talks with a number of my colleagues about the path forward, and we did so again this morning.

Over the past few days, our Republican colleagues have escalated their attacks against our efforts to pass voting rights legislation.

Listen to this one: Last night, the Republican leader worked to place a number of ''gotcha'' bills onto the legislative calendar as some sort of payback for pursuing legislation to protect the sacred right to vote. He was basically saying: Here are 18 bills that Democrats don't like. Let's go for 50 votes on those. Well, I proposed to the Republican leader, in a unanimous consent request, that it would be perfectly fine with us taking votes on his bills on a simple majority threshold if, in exchange, he agreed to do the same for the Freedom to Vote Act and the John R. Lewis Voting Rights Advancement Act. Of course, the Republican leader immediately objected—immediately objected—to having all of them done with 50 votes: the 18 bills he proposed and our 2 voting rights bills.

The Republican leader made clear last night that the true worry on the other side isn't about the rules of the Senate—rules they were perfectly happy to change to pursue their own objectives when they were in the majority. Republicans, in truth, are afraid of the possibility that legislation to defend democracy, to fight the power of dark money, and to protect voting rights could move forward in this Chamber.

As I mentioned to my colleague from Texas, that is not all Republicans. That is not Republicans out in the country—a lot of them want to protect voting rights—but it is the Republican Party as now run by, and it is fair to say run by Donald Trump, who has propagated the Big Lie that the election was stolen and that he really won, even though he lost by 7 million votes and even though he has no evidence—nor have the commentators to that effect. Now we have at least Republicans in the Senate and the House and in lots of State legislatures completely going along with this Big Lie.

The danger there is that it jaundices our democracy. If people of color, if young people, if older people, if people in urban areas feel that their right to vote is being diminished compared to other people's—because they are not aiming this at everybody—democracy begins to wither. We have not seen an assault on voting rights since the days of the Old South, since the forties and fifties and sixties and seventies. Why would we want to regress? Why would we want to regress? So we must fight back.

Now, I understand our Republicans are going to continue their opposition through a flurry of speeches, decrying any effort by Democrats to undo these voter suppression laws and make it easier for Americans to vote.

By the way, I would remind my colleagues that this has been the grand tradition of America. When the Constitution was written, in most States, you had to be a White male Protestant property owner to vote. No one says let's go back to those days. In general, America, with our march to freedom and our march to equality, embodied in our Constitution and in the great minds of the Founding Fathers—the greatest group of geniuses ever assembled—has marched forward. There have been regressions, but we have marched forward. We Democrats want to continue that march. We want to stop these types of laws.

The Republican leader doesn't have much to say so he has latched onto a talking point. He said the Big Lie is actually the warnings of voter suppression that come from Democrats, even though there are so many laws that are, obviously, done to suppress votes, and a lot of these Republican legislators say it openly.

So I would say to the Republican leader that his attempts to misdirect from the danger of Donald Trump's Big Lie and to try to say it is Democrats who are doing it is gaslighting, pure and simple. There is no evidence—no evidence.

The leader did it again yesterday and today on the floor, implying one more time that because the 2020 election was, indeed, successful, somehow voter suppression doesn't exist. Now, I answered my friend from Texas when he held up that chart. The Republican leader cherry-picked examples to distract from the real, unmistakable changes that are taking place in the States.

I would ask the Republican leader and the Republican Senator from Texas and every other Republican, if the 2020 election were as successful and secure and safe as he says it was, then why have Republican State legislators rushed to make it harder for people to vote in the aftermath of the 2020 election? Why can any Republican cling to the view that the election was stolen—Donald Trump's Big Lie—when JOHN CORNYN, my friend from Texas, is up there, with a chart, saying the 2020 election was successful, and the Republican leader said the same thing?

Doesn't that rebut Donald Trump? Doesn't that rebut those who came to the Capitol, motivated by Donald Trump's propagation of the Big Lie? Doesn't it rebut all of the State legislators who want to make it harder to vote if the 2020 election were successful?

Despite the Republican leader's best efforts, I have yet to hear from my Republican colleagues as to why it is OK for States like Georgia to make it a crime to give food and water to people who are waiting on line at the polls when we hear that, in minority areas and in urban areas, the lines are much longer than in rural areas.

I have yet to hear from Republicans why States like Texas and Arizona have made it a felony—a felony—for nonpartisan election workers to send

unsolicited mail ballot applications to voters. What is wrong with sending that? What is wrong with encouraging people to vote? The participation in elections is much higher in many Western countries than in ours.

Again, Texas didn't just prohibit nonpartisan election workers from sending mail ballots out to voters. They made it a felony—a felony. These States have effectively made it a crime—a crime—for election workers to proactively help people to vote. Where is the justification?

Where is the evidence of this massive fraud that Donald Trump talks about? No one gives any. Yet they predicate their policy moves here in the Senate on that.

To date, I have heard no explanation from the other side why States like Texas, Iowa, and Montana have reduced polling locations and hours. In Iowa, early voting of any kind has been cut by 9 days. How does that make the election more secure? Why is that in the grand tradition of making it easier for Americans to vote?

In Georgia, according to the Atlanta Journal-Constitution, the leading newspaper of Atlanta, the number of absentee drop boxes in four large counties in Atlanta, in the Atlanta area, will drop from 111 to 23—111 to 23. One of the justifications is that these boxes are no longer helpful, but this ignores the fact that over 300,000 voters used them in the last election—the last successful election, according to my friend from Texas. Republicans know that most of the people who used those drop boxes, of course, were Democrats. They tend to use them more, and that is why they are cutting them off.

The examples go on and on, unfortunately. This is not just a one-off or in one State or another. This is a massive campaign, which, if we do nothing, will continue and get worse.

States like Texas, Florida, Kansas, Iowa, New Hampshire, and Montana have passed laws making it harder—harder—to register to vote.

States like Alabama, Iowa, and Texas have passed laws that increase the potential for people with disabilities.

And, again, in Georgia, one rural county, Lincoln County, is trying to limit their polling places to just one in the whole county—just one place to vote for an entire county—causing people to potentially drive as many as 23 miles to cast a ballot. This wouldn't make voting easier. It turns it into a burden.

The truth is, our Republicans can't defend these laws. They are not going to mention them here today. Let's hear some Republicans defend these laws and point to evidence of the massive fraud that they say motivates them to do it. It is bunk—bunk.

The policies they have put forward have one purpose—one purpose only: making it harder for younger, poorer, non-White, and typically Democratic voters to access the ballot, to give Republicans a partisan advantage at the polls by making it harder for democratic-leaning voters to vote.

Again, in a democracy, when you lose an election, you figure out why and try to win over the voters you lost. You don't stop the voters you lost from voting. That is what happens in autocracies, in places like Hungary, where Donald Trump just endorsed Orban, who is whittling away at democracy in Hungary.

It is cynical—cynical—for our Republican colleagues to argue that just because these voter suppression laws don't spell their intentions out in the open, that there is nothing sinister at play. But these laws have real impact, potentially divisive.

In Arizona, Mr. President, your State, the secretary of state has concluded that new laws could purge as many as 200,000 voters from their early voting list. And as you know better than me, Arizona has a long tradition of early and mail-in voting that, I think, was set up by Republicans, if I am not wrong.

In Georgia, over 1.3 million voters used absentee ballots in the last election, which could now be affected by the restriction.

Senate Democrats in Iowa argue that if today's voter suppression laws had been in effect in 2020, over 6,500 absentee ballots would not have been counted in the last election.

This isn't all that difficult to comprehend. When you pass laws that raise barriers to voting, fewer people end up voting. That is a fact. So as the President will say later, we are approaching a decisive moment for the country.

Voting rights, defending democracy have long been bipartisan issues in this Chamber. The Voting Rights Act of 1964 is one of the crowning achievements not only of the civil rights era but of the history of this Chamber. It is in no way a power grab to say the Senate will pass laws that make it easier, simpler, and safer for American citizens to exercise their most fundamental right. That has been part of the grand tradition of this country—usually, as I mentioned several times before, bipartisan.

I will add: As we proceed, we cannot hang our hats on the false hopes of inadequate or sometimes chimerical solutions.

Substituting the Electoral Count Act for the much needed reforms that we have in the Freedom to Vote and John Lewis Voting Rights Act is insufficient, unacceptable. Obviously, it doesn't affect the House and Senate. Obviously, it is not immediately urgent because it affects 2024. But most importantly, scorekeeping matters little if the game is rigged, and the game is in danger of being rigged if State Republicans empower themselves to arbitrate the results of future elections instead of it being arbitrated by what traditionally has happened in America by nonpartisan election workers.

So we need to work in this Chamber to pass real solutions that go to the heart of the problem. We need to proceed with the John Lewis Voting Rights Act. We need to proceed with the Freedom to Vote Act.

All of us in this Chamber must make a choice about how we will do our part to preserve our democratic Republic. We can't be satisfied in thinking that democracy will win out in the end if we are not willing to put in the work to defend it.

So we need to pass these bills so our democracy can long endure after this present danger. To continue blocking these efforts is to offer an implicit endorsement of Donald Trump's Big Lie, which, unfortunately, is alive and well in 2022.

I yield the floor.

The PRESIDING OFFICER. The Senator from Alabama.

Mr. TUBERVILLE. Mr. President, I ask unanimous consent to complete my remarks before the scheduled recess.

The PRESIDING OFFICER. Without objection, it is so ordered.

FILIBUSTER

Mr. TUBERVILLE. Mr. President, last year ended with the best Christmas present that this Congress could have given to the American people—the Democrats' failing to pass President Biden's reckless tax-and-spending spree. But, sadly, the Democrats' failure doesn't seem to have made them realize the reality they are operating in: a 50–50 Senate, where they have to actually work with both sides of the aisle to deliver bipartisan wins for the American people.

They have now pivoted from a reckless tax-and-spend spree that would break the piggy banks of Americans to wanting to break the longstanding rules of the U.S. Senate. They have set their sights on changing the very core of this institution by eliminating the legislative filibuster.

Some Americans may not even know what the filibuster is. The Senate follows many rules and procedures to pass legislation, and the filibuster is an important tool that gives the minority party the ability to voice concerns and help shape any bill the majority party may bring up.

The filibuster serves as a check against the majority party wishing to act without input from the minority. Basically, with the filibuster, the majority has to work with the minority. That is the bottom line.

Voting to end debate on a bill is commonly referred to as ''ending a filibuster.'' It simply means that the Senate agrees that there has been enough debate, including amendments, and it is now time to take a vote. And as one of the Senate rules, it requires 60 votes to end debate and move to passing the bill.

Even if you aren't familiar with complicated Senate procedures, just know that the filibuster is important because it protects the deliberative nature of the Senate.

It ensures we function as an institution rooted in compromise, common

ground, and a sense of unity. We represent all Americans, not just a few.

Looking back on the history, you will see it has been utilized as a standard Senate practice by Republicans, Democrats, and Independents alike.

It is so important that in 2005, Senator SCHUMER, whom you just heard speak, said: ''The ideologues in the Senate want to turn what the Founding Fathers called 'the cooling saucer of Democracy' into the rubber stamp of dictatorship.''

Yes, he said that doing away with the filibuster would effectively create a dictatorship.

More recently, in 2017, Senator SCHUMER doubled down on the need to keep the filibuster in a letter to Leader MCCONNELL. In his letter, Senator SCHUMER argued for the protection of ''existing rules, practices and traditions as they pertain to the right of members to engage in extended debate on legislation before the United States Senate.''

To sum that up, he said no way should we cancel the filibuster.

That letter was signed by 33 Democrats, many of whom are still serving in this Senate as we speak. One of the signers who served at that time who signed this document is now the Vice President of the United States.

And it is not just the Vice President who has warned against ending the filibuster. In 2005, on this very floor, Senator Joe Biden warned that if the ability to filibuster were abolished, done away with, the Senate would become the House of Representatives.

I recognize that both sides of the aisle have, at some point, diminished the filibuster on nomination votes. In 2013, then-Senator Harry Reid lowered the vote threshold for Presidential appointments, other than Supreme Court nominees, to 51. In 2017, the Republicans turned around and lowered the standard to 51 for Supreme Court nominees.

Based on that, the left may call our opposition now hypocritical. But there is a big difference between legislation and nominations, including policy and our budget and nominees.

Debating legislation should include input from all Senators and be subject to compromise through the amendment process in order to be made better.

A nominee's qualifications are not subject to input or change. Voting on a nominee is a take-it-or-leave-it vote. You can't change their background or qualifications with more debate or more amendments. That is why they moved the vote to 50.

But the filibuster on legislation forces the majority to take into account the minority's position and to make the changes necessary to earn their support.

So now that the Democrats seem to be changing their tune on the legislative filibuster, it might be worth asking what has caused the Democrats to flip-flop and why now?

Well, there is one notable reason. Between 2017 and 2022, who is in control of the White House and Congress now?

Back in 2017, when the Democrats were in the minority, they understood the value of the minority's vote. But now they are in the majority, and all bets are off. They want to race through their party's Big Government socialist agenda with as little or no debate or opposition as possible. And Senate Democrats have embraced a radical, win-at-all-cost game plan for passing their progressive agenda, and they intend to and will break the Senate if they do it.

Democrats say their war on the filibuster has to do with strengthening voting rights, and they want to make it easier to vote and harder to cheat. If that were true, Democrats wouldn't have any problem passing this on a bipartisan level.

We all want to safeguard our elections so that all Americans have confidence in the integrity of our country's election process. But if access to the ballot box were an issue, it might come as a surprise that the 2020 election saw the largest voter turnout in over a century.

The Democrats are simply operating under a false idea. The States should run our election system, not the Federal Government.

What is more is, they will tell you they are embarking on this crusade to ''save our democracy.'' But the problem is, they want to do it by blowing up our democracy, blowing up this room.

Ending the filibuster means we would govern only by majority rule, stifling the voice of all minority and millions and millions of people who voted for the people who are in here in the minority.

Instead of saving it, this one-party rule would be the end of our democracy as we know it.

Instead of including the minority's voice in legislation that should serve all Americans, we would have radical swings back and forth every time the majority changed hands in this room.

Right now, there are few Democratic Senators who have stood up for the filibuster. They understand the important role of the minority's voice. This is not the House of Representatives. They understand the importance of making sure we listen to the voices of the millions of Americans who voted for the minority party, whoever it is. They know what even a small ''exemption,'' or what they call a ''carve-out,'' could lead to—devastation to this room.

So I ask the rest of my colleagues on the other side of the aisle: Why not join us and save the filibuster? That is what makes us the voice of all Americans. Why not focus on what you can do to lead in the face of many crises actually facing the American people?

In a recent poll, nearly 50 percent of Americans disapproved of President Biden's handling of COVID. The disapproval ratings were even higher when it came to the economy, taxes, crime, government spending, and immigration. It is clear that, right now, Americans need more adults in this room and more leadership, and I can guarantee that the American people do not want leadership that resorts to changing the rules to get their way, to notch a win. The American people want leaders who actually address the problems they face, like COVID and inflation.

We cannot allow the failed leadership of Big Government socialists to be a scapegoat for eliminating the filibuster and fundamentally changing our country for the worse.

I yield the floor.

RECESS

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess until 2:15 p.m.

Thereupon, the Senate, at 12:46 p.m., recessed until 2:15 p.m. and reassembled when called to order by the Presiding Officer (Ms. SINEMA).

EXECUTIVE CALENDAR—Continued

The PRESIDING OFFICER. The Senator from Washington.

NOMINATION OF ALAN DAVIDSON

Ms. CANTWELL. Madam President, I rise to speak in support of our next vote, the nominee to head the National Telecommunications and Information Administration at the Department of Commerce, Alan Davidson.

My colleagues know now, in an information age, how important access to broadband is. They know because of COVID–19 how important it is for healthcare, how important it is for education, and how important it is for people to have the flexibility in all parts of the United States to have access to the ability to connect and to connect with people around the world.

We have long talked about the need for an NTIA Administrator who understands the public sector and understands the private sector. Mr. Davidson does that. He comes to us with a wealth of experience in both sectors, and he is coming at a time when my colleagues have been asking for more leadership from the administration on broadband issues. That is to say, many of my colleagues, like Senator WICKER, Senator KLOBUCHAR, and many others, have asked for coordination between various programs that exist within the Department of Commerce, the Department of Agriculture, and the issues in coordination with the FCC and oversight of their programs to better maximize the delivery of broadband.

The Presiding Officer knows how much money is now on the table for broadband. We all know that this implementation is going to take a very skilled hand at trying to address both the issues of affordability and access. But more importantly, we will be getting with Mr. Davidson somebody who understands these issues well and will help us strive to get America better connected as quickly as possible.

We can't say enough about how important that is as COVID–19 continues across the United States of America with different variants. I am not saying it is going to be the new normal and continue for the next several years, but we know this: We need Mr. Davidson's help. We need his help effectively and speedily to get broadband deployed to both sectors of our economy—those who are unserved and those who are underserved.

We look forward to advancing this nominee and putting him to work as quickly as possible, and I personally look forward to working with him on these very important issues. There is much to do to leverage the dollars we have made available, but we have to work cooperatively with all parts of the United States to make that a reality.

Nothing could be more important now to upgrading U.S. infrastructure than getting fiber deployed, getting broadband to American homes, and making our grid more secure. With all of these things, I look forward to working with Mr. Davidson, and I appreciate his comments to me about his commitment to those issues as well.

I yield the floor.

VOTE ON DAVIDSON NOMINATION

Ms. CANTWELL. Madam President, I ask unanimous consent that the scheduled vote occur immediately.

The PRESIDING OFFICER. Without objection, it is so ordered.

The question is, Will the Senate advise and consent to the Davidson nomination?

Ms. CANTWELL. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

The PRESIDING OFFICER. There appears to be a sufficient second.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. DURBIN. I announce that the Senator from California (Mrs. FEINSTEIN), the Senator from Minnesota (Ms. KLOBUCHAR), the Senator from Oregon (Mr. MERKLEY), the Senator from Georgia (Mr. OSSOFF), the Senator from California (Mr. PADILLA), the Senator from Vermont (Mr. SANDERS), and the Senator from Georgia (Mr. WARNOCK) are necessarily absent.

Mr. THUNE. The following Senators are necessarily absent: the Senator from Louisiana (Mr. CASSIDY) and the Senator from Mississippi (Mrs. HYDE-SMITH).

The result was announced—yeas 60, nays 31, as follows:

[Rollcall Vote No. 4 Ex.]

YEAS—60

Baldwin	Carper	Hassan
Bennet	Casey	Heinrich
Blumenthal	Collins	Hickenlooper
Blunt	Coons	Hirono
Booker	Cortez Masto	Inhofe
Brown	Duckworth	Kaine
Burr	Durbin	Kelly
Cantwell	Fischer	King
Capito	Gillibrand	Leahy
Cardin	Graham	Lee
Luján	Reed	Sullivan
Manchin	Romney	Tester
Markey	Rosen	Tillis
Menendez	Rounds	Van Hollen
Moran	Schatz	Warner
Murkowski	Schumer	Warren
Murphy	Shaheen	Whitehouse
Murray	Sinema	Wicker
Peters	Smith	Wyden
Portman	Stabenow	Young

NAYS—31

Barrasso	Grassley	Risch
Blackburn	Hagerty	Rubio
Boozman	Hawley	Sasse
Braun	Hoeven	Scott (FL)
Cornyn	Johnson	Scott (SC)
Cotton	Kennedy	Shelby
Cramer	Lankford	Thune
Crapo	Lummis	Toomey
Cruz	Marshall	Tuberville
Daines	McConnell	
Ernst	Paul	

NOT VOTING—9

Cassidy	Klobuchar	Padilla
Feinstein	Merkley	Sanders
Hyde-Smith	Ossoff	Warnock

The nomination was confirmed.

The PRESIDING OFFICER. Under the previous order, the motion to reconsider is considered made and laid upon the table, and the President will be immediately notified of the Senate's action.

CLOTURE MOTION

The PRESIDING OFFICER. Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The bill clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the nomination of Executive Calendar No. 465, Amitabha Bose, of New Jersey, to be Administrator of the Federal Railroad Administration.

Charles E. Schumer, Maria Cantwell, Patrick J. Leahy, Martin Heinrich, Tim Kaine, Gary C. Peters, Chris Van Hollen, Jeanne Shaheen, Jack Reed, Tina Smith, Thomas R. Carper, Mazie K. Hirono, John W. Hickenlooper, Edward J. Markey, Sheldon Whitehouse, Jacky Rosen, Tammy Baldwin.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on the nomination of Amitabha Bose, of New Jersey, to be Administrator of the Federal Railroad Administration, shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The bill clerk called the roll.

Mr. DURBIN. I announce that the Senator from California (Mrs. FEINSTEIN), the Senator from Minnesota (Ms. KLOBUCHAR), the Senator from Oregon (Mr. MERKLEY), the Senator from Georgia (Mr. OSSOFF), the Senator from California (Mr. PADILLA), the Senator from Vermont (Mr. SANDERS), and the Senator from Georgia (Mr. WARNOCK) are necessarily absent.

Mr. THUNE. The following Senators are necessarily absent: the Senator from Louisiana (Mr. CASSIDY), the Senator from Mississippi (Mrs. HYDE-SMITH), and the Senator from Pennsylvania (Mr. TOOMEY).

The yeas and nays resulted—yeas 61, nays 29, as follows:

[Rollcall Vote No. 5 Ex.]

YEAS—61

Baldwin	Grassley	Rosen
Barrasso	Hassan	Rounds
Bennet	Heinrich	Schatz
Blumenthal	Hickenlooper	Schumer
Blunt	Hirono	Shaheen
Booker	Kaine	Sinema
Brown	Kelly	Smith
Burr	King	Stabenow
Cantwell	Leahy	Sullivan
Capito	Luján	Tester
Cardin	Manchin	Thune
Carper	Markey	Tillis
Casey	Menendez	Van Hollen
Collins	Moran	Warner
Coons	Murkowski	Warren
Cortez Masto	Murphy	Whitehouse
Duckworth	Murray	Wicker
Durbin	Peters	Wyden
Fischer	Portman	Young
Gillibrand	Reed	
Graham	Romney	

NAYS—29

Blackburn	Hagerty	McConnell
Boozman	Hawley	Paul
Braun	Hoeven	Risch
Cornyn	Inhofe	Rubio
Cotton	Johnson	Sasse
Cramer	Kennedy	Scott (FL)
Crapo	Lankford	Scott (SC)
Cruz	Lee	Shelby
Daines	Lummis	Tuberville
Ernst	Marshall	

NOT VOTING—10

Cassidy	Merkley	Toomey
Feinstein	Ossoff	Warnock
Hyde-Smith	Padilla	
Klobuchar	Sanders	

The PRESIDING OFFICER. On this vote, the yeas are 61, the nays are 29.

The motion is agreed to.

EXECUTIVE CALENDAR

The PRESIDING OFFICER. The clerk will report the nomination.

The bill clerk read the nomination of Amitabha Bose, of New Jersey, to be Administrator of the Federal Railroad Administration.

The PRESIDING OFFICER. The Senator from Illinois, the majority whip.

GUANTANAMO BAY

Mr. DURBIN. Madam President, 20 years ago today, a C–141 Starlifter made its final descent toward a naval base in the Caribbean. As the plane landed, two white schoolbuses waited on the apron, together with a swarm of military humvees and a large contingent of armed soldiers.

The plane door opened, and the passengers were offloaded. Heads shaven, legs shackled, the passengers were removed from the plane one by one, each wearing the same identical outfit: a fluorescent orange jumpsuit, a matching ski cap, and earmuff-style noise protectors. Some were also wearing blackout goggles over their eyes to completely deprive them of any sentient experience.

This was the scene as the first 20 detainees were hauled off to Guantanamo

Bay 4 months to the day after September 11 and the hideous terrorist attacks.

That afternoon, former Secretary of Defense Donald Rumsfeld assured the public and made a statement. Listen to his words carefully. This is what the Secretary said:

> We do plan to, for the most part, treat [the detainees] in a manner that is reasonably consistent with the Geneva Conventions.

Madam President, that Orwellian double-talk kicked off a 20-year saga at Guantanamo Bay, a chapter in American history that it is time to close.

As we now know, the detention facility at Guantanamo Bay was deliberately created to avoid the requirements of the Geneva Conventions and other time-honored treaties that America used to brag about being party to. In the words of one senior official in the Bush administration, Guantanamo exists ''in the legal equivalent of outer space.'' The facility was designed to be a legal black hole, where detainees could be held incommunicado, beyond the reach of laws, beyond public scrutiny, and subjected to torture and unspeakable abuse. It is where due process goes to die.

Perhaps the most shameful lie surrounding the creation of Guantanamo's detention facility was that it would help deliver justice to the families of the thousands of Americans who died on 9/11.

In March 2002, then-President George W. Bush delivered a speech before Congress where he promised that the terrorists who attacked America on 9/11 would ''not escape the justice of this nation.'' Yet, two decades later, the families who lost loved ones that day are still awaiting justice. The case against the alleged 9/11 coconspirators has not been resolved. In fact, it has not even gone to trial 20 years later. At this very moment, those terror suspects are sitting in cells in Guantanamo without any resolution in sight.

Think about how the world has changed since September 11, 2001. Osama bin Laden has been hunted down. The war in Afghanistan, our Nation's longest war, is over. Four Presidents—four different Presidents—have presided over the facility at Guantanamo Bay. But despite all these changes and all this history, one tragic truth remains: America has failed to provide closure to the families of the victims who suffered those unimaginable losses on September 11, and that is simply because Guantanamo was never intended to deliver justice.

If justice delayed is justice denied, Guantanamo speaks for itself, and the documented history of Guantanamo Bay cannot be disputed.

Last month, the Judiciary Committee, which I chair, held a hearing on closing Guantanamo Bay finally, once and for all. One of the witnesses who was particularly touching was Colleen Kelly, whose brother Bill died in the North Tower on 9/11. During her testimony, she said:

> Five men stand accused in the military commissions at Guantanamo of responsibility for planning and supporting the 9/11 attacks. Today . . . a trial has not even begun. Instead, family members have heard years of argument in pre-trial hearings. While these hearings have produced no legal justice for 9/11, they have revealed the shocking role of torture in undermining [any] 9/11 prosecution.

At the end of her testimony, Ms. Kelly said:

> My brother Bill was killed in what was likely the most public event in human history. My family does not have any of my brother's remains, nor do one-third of 9/11 families.

She said directly to us:

> I am asking this Committee and the Biden Administration to deliver the next best thing—a resolution to the 9/11 Military Commission that provides answers to our questions, accountability for unlawful acts, justice too long denied, and a path to closing Guantanamo.

When Ms. Kelly spoke before the committee, she wasn't just speaking for her family; she was speaking for our Nation.

For 20 years, Guantanamo Bay has defied our constitutional values and the rule of law. It has actually weakened our national security. It costs us dearly—morally, monetarily.

Listen to the subsidy which American taxpayers give to Guantanamo Bay. It is a subsidy that subverts justice. Today, most Americans couldn't answer this question: How many detainees are there in Guantanamo? Thirty-nine. Taxpayers spend $550 million a year to keep that facility open. Do the math. That is almost $14 million per year on each prisoner.

Moreover, two-thirds of the remaining prisoners have never been charged with any crime. That is right—never charged. Yet they are being detained indefinitely, in violation of our basic constitutional principles.

Of the 27 uncharged men, more than half of them have already been approved for transfer. Think of that. Some have been approved for years. Another was approved just yesterday. These individuals are languishing in Guantanamo for no justifiable reason and contrary to any notion of liberty or justice.

Every day Guantanamo remains open is a victory for our Nation's enemies. It is a symbol of our failure to hold terrorists accountable and our failure to honor the sacrifices of our servicemembers. These failures should not be passed on to another generation. They should end with the Biden administration.

Last fall, I introduced an amendment to the National Defense Authorization Act to close Guantanamo. It was ambitious, I know, but it was a goal that I felt is most consistent with who we are as Americans and what we say about justice. I was disappointed that the Senate didn't take up any amendments literally or this amendment particularly. Instead, it voted once again to prohibit the use of Federal funds to transfer Guantanamo detainees to the United States and made it even harder to transfer detainees to foreign countries willing to accept them. That just delays the Guantanamo experience even longer.

But let me be clear, even with these legislative restrictions in place, there is more the Biden administration can and must do to accelerate the closure of Guantanamo.

First, the administration should repatriate or resettle the 14 detainees who have been cleared for transfer. There is no excuse, none, for any further delay, which is why President Biden should appoint a special envoy at the State Department to negotiate transfer agreements with other nations.

Additionally, the Biden administration should appoint a senior official within the White House who will be accountable for leading the process of closing Guantanamo.

Finally, the Justice Department should bring its legal positions in alignment with President Biden's stated goal of closing Guantanamo in his first term. The Department has yet to correct course on a number of troubling legal positions, including failing to acknowledge that our Constitution's due process clause applies to prisoners held in Guantanamo.

It is time to stop hiding from our values. Our Federal courts have proven more than capable of handling even the most serious and complex terrorism cases. They have done so swiftly and efficiently.

Since 9/11, hundreds of terrorism suspects have been tried and convicted in our Federal court system. Many are now being held safely in Federal prisons. Meanwhile, as I mentioned, the case against alleged conspirators in the 9/11 attacks still has not come to trial. In the face of unimaginable horror, such as the attacks on the World Trade Center and the Pentagon, we must turn to our system of justice to hold our enemies accountable. Legal black holes like Guantanamo are anathema to American values and accountability.

One of the military officials who testified in last month's hearing was Michael Lehnert. He was the very first commandant at the facility at Guantanamo. Where does he stand today on that facility? He is calling publicly for its swift closure.

During his testimony, General Lehnert said that ''most of America has forgotten about Guantanamo. But hear me when I tell you that our enemies have not. Closing Guantanamo responsibly restores the reputation of America,'' the general said, ''ensures accountability for those who have committed crimes against us, and provides closure for the families of those they have harmed.''

By allowing Guantanamo to remain open, we are giving our enemies the power to define who America is. It is time to reclaim that power and prove to the world that America is not a nation defined by our darkest moments.

We are a nation defined by our values. Let us start living up to them.

I yield the floor.

The PRESIDING OFFICER (Mr. MURPHY). The Senator from Mississippi.

ELECTIONS

Mr. WICKER. Mr. President, a few years back, I was watching a television news show and I saw video that struck me as strange. It was a video taken by a security device outside of a residence. Basically, someone is knocking on the door—multiple doors at this particular apartment—and the person knocking on the door basically said this: I am a volunteer for the Democratic Party, and I am here to collect ballots from those who wish to vote Democrat in the next election.

I found that strange until I learned that that practice called ballot harvesting is perfectly legal in the State of California; in other words, it is all right for me as a volunteer for my party to go and knock on the door and say: I am here to collect your absentee ballot but only if you are voting for the candidate I am for.

That is perfectly legal. That is called ballot harvesting. I hope my colleagues can see the opportunity for abuse in this particular practice.

I think most State legislatures that have prohibited this sort of practice see the opportunity for abuse. What is to stop me from saying, ''Knock. Knock. Knock. I am a volunteer for party X, and I am here to collect ballots for people who like to vote for candidates of party X,'' getting those ballots and then perhaps forgetting to turn them in or perhaps losing them or not turning them in at all?

That sort of practice is rife for abuse, and I think it is the reason that most States prohibit that.

Soon we will be taking up a bill, which I am told, if it comes to us in the form that it is in now, would allow that sort of ballot harvesting. To me, if California wants to try this, that is their right. I think it is rife for abuse, and I wish they wouldn't do it. But to impose these sorts of requirements on the rest of the Nation—our friends on the other side of the aisle propose this week to vote on destroying a provision that has served this Senate and this Republic well for over two centuries, and that is what is known as the filibuster but what I call the consensus-building, 60-vote rule.

This is a time-honored way that this body has been unique, and it has enabled us to craft some of the most long-lasting and widely accepted legislation in the history of this Republic. The Civil Rights Act of 1994 was passed with consensus because this Senate had to have 60 votes or more. In that case, it may have been a 66-vote rule. The Voting Rights Act of 1965 was passed with that consensus-building technique. Medicare, Social Security—time-honored legislation that has served this Republic and its citizens has been passed with this consensus-building tool.

And the leadership of my friends across the aisle would bring a measure to the floor later this week to repeal that and make us just like the House of Representatives, make us just like every Parliament in socialist countries around the world: majority rule, 51 votes—you get it—destroying that one tool that makes us come together and reach compromise.

And it wasn't just bills passed decades ago. In recent years, during your term and mine, Mr. President, we passed major—major—veterans legislation with Johnny Isakson on one side and BERNIE SANDERS on the other side coming together to build more facilities for veterans, to provide more choice for veterans.

Senator MURRAY of Washington and former Senator Alexander of Tennessee came together with a major rewrite of an education bill. And we did it with the filibuster in place. We had to come to an agreement. We had to get over 60 votes, and the bills were better because of that.

For that reason, in April of 2017, when a Republican President—a President I voted for—said we ought to think about abolishing the filibuster, 28 Republicans signed a letter saying, ''Let's don't do that.'' They were joined by 32 Democrats and by 1 Independent who caucuses with the Democrats. If I might take the time to read the two short paragraphs:

To Majority Leader MCCONNELL and Democratic Leader SCHUMER:

> We are writing to urge you to support our efforts to preserve existing rules, practices, and traditions as they pertain to the right of Members to engage in extended debate on legislation before the United States Senate. Senators have expressed a variety of opinions about the appropriateness of limiting debate when we are considering judicial and executive branch nominations. Regardless of our past disagreements on that issue, we are united—

Said these 28 Republicans and 32 Democrats and 1 Independent—

> [we are united] in our determination to preserve the ability of Members to engage in extended debate when bills are on the Senate floor.

And now I am told, unless I have been sadly misinformed, that every Senator from across the aisle, save two—save two—are prepared to go against what was specifically said in this letter and, on election laws, say that we are going to make all the decisions in Washington, DC, and take that away from the States.

I heard the distinguished majority leader say earlier today—and I had to ask about it. I heard the distinguished majority leader say Georgia has, of all things, made it a felony to give water to people standing in line to vote. I sat listening to the majority leader in astonishment. How could that possibly be? It turns out that if a charitable group or if a neutral person wants to come and give somebody water in line in Georgia, that is all right. What is against the law in Georgia is for me as candidate X to come up with a bottle of water that says ''Vote for Candidate X'' and give it to somebody in line. Apparently, the people in Georgia in a decision-making role had decided, once you get in line to vote, you are no longer fair game. Politicians should leave you alone once you get in line to vote.

It is not a matter of giving somebody water; it is a matter of electioneering: Hi. I am ROGER WICKER, running for Senator. Here is a bottle of water. I hope you will remember me in another 50 feet when you get into the polling place.

The people of Georgia, in their wisdom, have decided that is going too far.

And I am told—and perhaps the distinguished majority leader could come to the floor and correct me and I would stand corrected if he did—I am told that it is against the law in New York to do the same thing. Once you are in line in New York, somebody comes and hands you something that advocates for one candidate or another, that is forbidden not only under Georgia law but under New York law—and I can see the wisdom in that.

Two months ago, there were two amendments to the New York Constitution that were presented before the voters—the November 2 election, 2021, in the State of New York. One would have deleted the current requirements that a citizen be registered to vote for 10 days. In my State, you have to be registered for 30 days. In New York State, it is 10 days. The law is you have to be registered for 10 days or you can't vote. A proposition was put on the ballot to eliminate that, allow same-day registration. Guess what the voters of New York did on that proposal a short 2 months ago. They voted 56.3 percent no against that.

Are we to assume that the voters of the State of New York are Jim Crow on steroids, as the President of the United States would suggest or can we possibly assume they thought a 10-day period before voting was appropriate and that we should keep it that way? I choose to think that we want 30 days in Mississippi. If Maine wants same-day registration and if the voters of New York say 10 days is all right by a double-digit margin, they have the right to do that.

And, again, if the distinguished Democratic leader can prove me wrong, I would accept that and apologize to him for that.

There was another issue on the ballot, and I hope not to take too much more time because I see my distinguished colleague from Louisiana here. The amendment would have deleted the requirement that an absentee voter give an excuse, and these are the excuses you have in New York right now. You have to be able to—unable to appear because of absence from the county or because of illness or physical disability. That is a requirement in New York. Somebody put on the ballot: Delete that requirement. Guess what the voters of New York decided. They decided to keep that requirement by a

vote of, again, double digits—55.03 percent of New Yorkers voted no on that.

I don't condemn them for doing that. I am sure they had a reason for doing that. But I think the leadership of the State of New York and the voters of the State of New York had a right to do that and I don't condemn them for doing it and I would not—I would certainly not break a two-century, consensus-building provision that has withstood the test of time to tell New York they can't do that, to tell all the 50 States that they must conform to an election law that we devise here in Washington, DC.

This is a pivotal week. This is a week that will decide the future not only of the Senate but of the future of our government—our representative government—and the future of our Republic.

I urge my colleagues to think twice about this. Sometimes, I have had to stand up to my party and say: I can't vote with you on that one. I know you want me to. I know I will suffer some reproach for not going with the team, but I am begging Members of both parties to search their hearts and decide in this case we are going to preserve the one consensus-building, compromise-encouraging provision that has withstood the test of time. I hope that happens.

I yield the floor.

The PRESIDING OFFICER. The Senator from Iowa.

VOTING RIGHTS ACT

Ms. ERNST. Mr. President, and, hey, folks, did you hear about the attempt to steal an election? Maybe you heard this about a year ago or so, big attempt to steal an election, just last year. We had Washington insiders colluding to overturn the will of the people in a fair and free election.

Yes, you heard it right, an attempt to steal an election, but it is probably not the election that you are thinking about. Speaker of the House of Representatives NANCY PELOSI attempted to steal a seat in the House. Iowa's Second District Congresswoman won her election in 2020 and was certified by Iowa's secretary of state, 24 county auditors of both parties, and the bipartisan State Board of canvassers.

And she is here with me today, Representative MARIANNETTE MILLER-MEEKS. I thank the Representative for being here today.

In a blatant political power grab, the Speaker of the House spent over $600,000 of taxpayer money in an attempt to unseat the duly-elected Congresswoman MILLER-MEEKS. Even some reasonable Members of the Democratic Party sounded the alarm bell on this brazen attempt to reverse the election results. Representative DEAN PHILLIPS said at the time: ''Losing a House election by six''—yes, by six—''votes is painful for Democrats, but overturning it in the House would be even more painful for America.''

Voters in Iowa and across America should choose their representatives without interference from politicians in Washington. Guaranteeing both the right to vote as well as the integrity of our election system ensures fair and free elections which are the foundation of our Republic.

The attempt to overturn the Iowa election results was the opening salvo in the left's ongoing rush to take over elections. Democrats' proposals are seeking to limit voter ID, legalize ballot harvesting, provide taxpayer money to campaigns, and weaponize the Federal Election Commission. Using fake hysteria, they are trying to blow up the Senate and fundamentally change our country. However, their very effort is unpopular, unnecessary, and unacceptable.

I served as a local county auditor and commissioner of elections. My home State has seen various commonsense election reforms throughout the years. In fact, in 2017, the Iowa Legislature modernized our laws, which also included requiring voter ID.

At the time of its passage, Democrats warned the law was dangerous and an unnecessary hurdle and a significant barrier for anyone who was not a White male. They could not have been further from the truth. Three times since the new Iowa voter law was implemented, the State has seen record high turnout for elections, record high turnout—huge voter participation.

This includes record high absentee voting during the 2020 Presidential election. The 2021 elections also boasted record off-year turnout. My friends on the other side of the aisle will have you believe that voters are being suppressed in red States all over this country.

The irony here is that New York, home of the Democratic leader, and Delaware, home of President Biden, have some of the most restrictive voting laws in the entire country. And Iowa, because it has modernized our elections in the course of the number of past years, has been demonized by Democrats when, oddly enough, Iowa's election laws are much more progressive than Delaware and New York.

Just this past November, New Yorkers overwhelmingly voted down a ballot initiative to allow no-excuse absentee voting. New York voters also rejected a proposition that would have allowed individuals to register to vote and cast a ballot on election day.

By the way, Iowa has same-day voter registration, thank you.

Now, the senior Senator from New York is threatening to destroy the Senate to override the wishes of the residents of his very own State who voted against the policies he is trying to impose on every other State. Does that sound like democracy to you? It is not.

While the media will have you believe that Senate Republicans are blocking the Democratic leader's agenda, it is really the voters of his own State. Liberal States have some of the most restrictive election laws in the country—and don't take my word for it.

An expose recently published in The Atlantic found some States that the Democrats control in the northeast make casting a ballot more difficult than anywhere else and that the voting bill being pushed in Congress would hit some blue States just as hard, if not harder—now, that is The Atlantic—than the red States they claim are limiting the right to vote. And I will remind you Iowa is much more progressive than these States.

Plain and simple, Washington Democrats are gaslighting the American people. There is not a voting crisis in this country. It is manufactured. Their push to blow up the Senate and take over elections isn't about voter access, it is about power, the same power that liberal elites in Washington abused in their rush to steal Iowa's Second Congressional District—now held by Congresswoman MILLER-MEEKS—and silence Iowans' voices.

What was attempted in Iowa should never be allowed to happen anywhere ever again.

I yield the floor.

The PRESIDING OFFICER. The Senator from Louisiana.

FILIBUSTER

Mr. KENNEDY. Mr. President, my friend Senator SCHUMER, and some of my Democratic friends would like to change one of the enduring institutions of this institution. They want to get rid of the filibuster—and I call it the 60-vote threshold.

And a reasonable person might ask: Well, why not? Institutions change all the time. Change is the law of life. I will tell you why not. I want you to hear these words of wisdom:

We are on the precipice of a crisis, a constitutional crisis—

Getting rid of the filibuster.

the checks and balances which have been at the core of this Republic are about to be evaporated by the nuclear option—

Getting rid of the filibuster.

the checks and balances which say if you get 51 percent of the vote you do not get your way 100 percent of the time—

If you get 51 percent of the vote, you do not get your way 100 percent of the time in the U.S. Senate—

that is what we call abuse of power. There is, unfortunately, a whiff of extremism in the air.

Those are words of wisdom by Senator CHUCK SCHUMER, May 18, 2005.

If we change the 60-vote threshold, if we change this institution which is part of the institution of the U.S. Senate, it will gut this body like a fish—like a fish. And everybody in this body knows that if that is accomplished, our institution will look like a scene out of ''Mad Max.''

America is a—God, what a wonderful place. It is a big, wide, open, diverse, sometimes dysfunctional, oftentimes imperfect, but good country with good people in it. And I want to emphasize the diversity part. What constitutes the good life in my State may not constitute the good life in Connecticut or in California or in Florida or in Maine.

And that is one of the reasons that we have and have had the institution of the 60-vote threshold. If you are going to make a law that is going to impact the entirety of this big, wide, open, diverse country, then you ought to have 60 votes because if you only have 51 votes, 51 percent of the vote does not get your way 100 percent of the time.

It has worked for a long time.

Now, I don't want to sound like I am lecturing, because I get it. I get it. I get that my Democratic friends and some of my Republican friends, who, frankly, are probably thinking about this—but I get that my Democratic friends want to—that they want to serve their President. We all want to serve our President. But you especially want to serve your President when the President is of your own party.

I remember when President Trump—now like President Biden—said: Change the filibuster. Get rid of it. I can't get my bills passed.

We said no. And by ''we,'' I mean Republicans and Democrats. Here is the letter right here. It was led by Senator COLLINS, a Republican, and Senator CHRIS COONS. I signed it. We said no.

Now President Biden wants to do the same thing. That is what Presidents do. They try to pass their bills. So I get it.

To my Democratic colleagues and any Republican colleagues who are thinking about voting for Senator SCHUMER's change of heart, I want to tell them: I get it too. I get it. I know the frustration. I have felt it. I have talked about it on this floor before.

You know, we all come up here for one reason: to make this country better. And we are ready to go to work, and we want to debate, and we want to decide. We didn't come up here for delay. We didn't come up here for stultification. So I get it. I get the frustration. But you don't satisfy those aims by not following these words of wisdom by Senator SCHUMER.

Now, once passions have cooled, I don't want my words to be construed as an assertion that everything about our body is perfect. There are changes, once passions have cooled and the filibuster is intact, the 60-vote threshold is intact—I use ''60-vote threshold'' because ''filibuster'' to some has negative connotations, and it is a positive rule, not a negative rule. But once passions have cooled, there are a lot of questions that we need to sit down and talk about, and if my Democratic friends want to talk about them, I will be there. Call the meeting. I will pounce on it like a ninja.

I mean, there are questions that we need to be asking ourselves about this body; how we can make it better. Do we give our majority leader too much authority? It is not personal. Do we give our minority leader too much authority? It is not personal, but that is a fair question.

Every Member of this body knows about the diminution of our committee system. Why do we even have committees anymore, for God's sake? I mean, you go work your committee, and you get a bill out, and it is a bipartisan bill, and you are feeling all toasty and ready to go, and you learn pretty quick around this place that doesn't matter. It is probably dead as fried chicken if the majority leader doesn't want to bring it up. And that is true whether the majority leader is Republican or Democrat. We need to have an honest conversation about the diminution of the committee process.

Our amendment rules. My God, there is not a single Member of this body who really understands those rules. I mean, if you ask—pick 10 Senators at random and say: Tell me the truth, now. Do you understand the rules of the Senate about how to offer an amendment? Nine out of ten will tell you no, and the tenth is lying. We ought to have an amendment process that looks like somebody designed it on purpose, and we don't. We ought to talk about that.

We ought to talk about the fact that this body—it didn't happen just yesterday—has ceded an enormous amount of our power, under a Madisonian system of separation of powers, to the executive branch and to the administrative staff.

After this is over, if any of my Democratic friends want to have that talk and see if we can't come up with a way to improve this body and ask some hard questions, I will be there happily, and I hope we can make progress. But to my colleagues, I say: Please, please, don't do this.

I yield the floor.

The PRESIDING OFFICER. The Senator from Nebraska.

Mrs. FISCHER. Mr. President, President Biden wants to pass a new New Deal. In fact, in some ways, the reckless spending the President is pushing for actually dwarfs the New Deal. But Joe Biden is not FDR, and we are not living in the Great Depression. The New Deal passed the House and the Senate on the back of huge Democratic supermajorities.

Today, Americans have elected a 50–50 Senate and a razor-thin Democratic majority in the House. The American people voted for bipartisanship and compromise in the U.S. Congress, not a blanket mandate for progressives to reorganize American life as they see fit. But some Democrats in Congress seem to think they did.

Because they haven't reached out to Republicans to work together on important issues, they haven't been able to pass their Build Back Better plan, so they have turned their attention to another kind of Federal Government overreach: overhauling the way our country runs elections. Their argument is that lawmakers in red States are trying to make it harder for people to vote, and so it is necessary for Washington Democrats to take over election administration in all 50 States.

One important point: The first part of that is simply not true. The right to vote is not under assault. According to Pew Research, 94 percent of Americans believe that voting is easy. In my home State of Nebraska, we achieved a record 76 percent voter turnout in the 2020 election, in the middle of a pandemic, because of all the different ways that my State made it easier for Nebraskans to vote, including expanded early voting and no-excuse absentee voting. But Democrats still want to pass a Federal takeover of elections.

Because the rules don't allow them to pass every single law they would like to in a 50–50 Senate, many of my Democrat colleagues are flip-flopping to oppose the filibuster. President Biden, who defended the filibuster during his nearly 40 years in the Senate, now wants a special carve-out for Democrats' election takeover. But who says it is going to stop there? The majority leader said in 2005, when Democrats were in the minority, that doing away with the filibuster would ''wash away 200 years of history'' and mean ''doomsday for democracy.'' Today, no one is pushing harder to end it than he is. And Democrats were perfectly happy to use the filibuster hundreds of times during the 4 years of the Trump Presidency, when the majority leader was the minority leader and Republicans had even larger majorities in Congress.

This isn't some debate about some arcane Senate rule. This is about protecting the rights of the minority in our democracy. This is about providing stability and certainty to our people. If the majority is able to constantly push through their views and policy every few years, drastic swings in policy will take place. Tax policy, social policy, health policy, foreign policy, defense policy—the laws of the United States will start just to whip back and forth, following where the power lies in this Chamber, and those shifts will weaken our Nation both here at home and abroad.

In 2017, the senior Senator from Maine and the junior Senator from Delaware led a bipartisan letter urging Senate leadership to preserve the 60-vote threshold for legislation.

While I appreciate their efforts, I did not sign that letter. I was concerned that many Democrats only signed it because they were afraid the GOP—that Republicans were going to end the filibuster. I believed that many of my Democratic colleagues would soon turn against the letter's own arguments and they would go back on their word. I believed that because a few years earlier, I had listened to reasons they gave for changing the executive filibuster for Presidential nominations when they

were in the majority, and I had then watched them reverse those positions when they were back in the minority. I felt they would flip again for political reasons as soon as they returned to the majority.

Of the 61 Senators who did sign that letter, 30 were Democrats, 28 are still in office, and I am sorry to say that they have proved me right. But when Republicans were in the majority, we said we wouldn't abolish the legislative filibuster, and we have kept our word.

The truth is that some of my Democratic colleagues want to remake the American system only in their own image, not considering the views of about half of our citizens. To do that, they have to take an ax to the filibuster. But I urge them to think about the consequences their actions may have.

Without the filibuster, any Senate majority would be free to ignore the other side to pass their own agenda. Bipartisanship? Well, it would become a relic of the past. I know that Democrats don't want that to happen. I don't want it to happen, either, and that is why I have consistently supported the Senate filibuster no matter who is in power.

I urge my colleagues to think beyond the passions of the moment and to do what is best for this country in the long term: Leave the filibuster in place. Democrats may want to use it again as soon as next year.

I yield the floor.

The PRESIDING OFFICER. The Senator from Indiana.

Mr. YOUNG. Mr. President, in a letter written in 1789, Thomas Jefferson declared that the ''earth belongs to the living, not the dead.'' Relationships between generations, he explained, are but that of a distant set of independent nations.

Mr. President, I don't know how many of my Democratic colleagues still admire Mr. Jefferson, but they are certainly taking his words to heart. There is little concern on one side of this Chamber about the impact of our actions beyond our own time here. There is a belief that the importance of this hour's partisan ambitions outweighs the value of centuries-old institutions.

Abandoning the 60-vote threshold in order to seize control of America's elections isn't simply shortsighted, it is clueless. It is the exact opposite of what the people who sent us here want.

Back home in Indiana, I hear from anxious Hoosiers because these are anxious times. I know what is on their minds—rising inflation, the cost of putting food on their table and gas in their tanks. I hear from them about paying to heat their homes. Many are struggling to pay next month's rent.

They are tired of and still worried about a pandemic that President Biden promised to shut down, and they are angry. Many are angry about a southern border that this President has left wide open.

In the middle of all this—an affordability crisis, an ongoing pandemic, a broken border—changing the Senate rules to nationalize Indiana's elections, to repeal popular voter ID laws, to use tax dollars to fund political campaigns are not high among Hoosier priorities or the priorities of the American people.

Do you know what is, though? Congress coming together, finding compromise, actually addressing, in a collective way, our shared national challenges. It is one of the most widely ignored messages of the last election. Every one of my colleagues should take note. If America wanted a radical, extreme, partisan set of changes put forward, they wouldn't have evenly divided the U.S. Senate. Believe it or not, they want us to collaborate, and we have shown them we are capable of doing that.

Let me remind my colleagues, we formed a united front against China when it comes to competitiveness and trade policy. We helped American workers and small businesses hurt by the pandemic. We gave our troops a pay raise. Now, these and so many other achievements are really important. They are achievements that will benefit Americans now and in the years to come. We need to do more working together.

Now, look, I have been around here long enough. I understand that my Democratic colleagues are frustrated. I say to my colleagues, you have had less success with your reckless multitrillion-dollar social spending bill than you would like. I understand that. Your proposal to federalize and politicize American elections has been a tough sell. I understand that.

As a result, America's democracy, we are told, is in peril, and the only way to save it is to kill the 60-vote threshold. But the 60-vote threshold is not the source of our Nation's dysfunction. I say to my colleagues, your Democratic radical agenda is driving much of the angst, the anxiety, and the frustration among the American people. The so-called legislative filibuster is not a threat to our democracy; ending it is.

My advice is to rethink your priorities. If you want to end gridlock, do the difficult work of actually building coalitions of support: introduce bills to be referred to the committees of jurisdiction that Republicans can actually vote for, allow for an open amendment process as we did with the China bill.

Now, this is the entire point of the 60-vote threshold. It is a forcing mechanism, during fraught times like these, that gives the minority a say in the process. It forces majorities to find ways to compromise. It incentivizes bipartisan collaboration among Senators representing diverse parts of our Nation with differing values, differing priorities. Americans want us to go through this hard work of finding common ground, of reconciling our differences. That is our job. And, yes, it is an obstacle to simple majority rule. It is an obstacle to one party—either party—razing our institutions by the slimmest of margins. But need I remind my colleagues, this is not a direct democracy, this is a republican—small ''r''—form of government.

Frustrating as it may be, the filibuster, in its way, is a source of and sometimes the source of order and even unity in Congress.

Now, if you think our current political division is troubling, colleagues, torch the filibuster, foist your unpopular partisan priorities on all Americans, and then check the health of our democracy. Pour gasoline on this raging fire. Don't be shocked by its sorry state after you do so.

I will close with a familiar caveat. Majorities, no matter their size, never endure. Looked at in the light of human history, all of us, even the most long-tenured, are here for a little more than a hiccup in time. Yes, what one party sows today, the other will of course reap tomorrow. Clearing the path for every grandly ambitious Democratic priority aimed at reshaping our country would only clear the way for a future Republican effort to repeal and replace it with one of our own, with even greater scale.

Beyond this, though, as much as I admire Thomas Jefferson, I do not believe that the Earth belongs only to the living. No. Citizens place both their trust and their destiny in a set of shared institutions. In America, this forms a compact that stretches across centuries and generations. It includes those in the grave and those yet unborn. And for the moment, we—Republicans, Democrats, Independents—we are its custodians.

If we give in to temporary passions, if we tear our institutions to shreds rather than work through them to serve the people, rewriting the rules when we don't win the game, we are failing in our jobs. We are breaking that compact.

So, as I said in my first speech on this floor, standing right over there—and I will repeat it until my last speech—we are, above all else, the custodians of the common good—the common good. Remember that, colleagues, before you take a hammer to one of the Senate's signature means of advancing it.

I yield the floor.

The PRESIDING OFFICER. The Senator from Arkansas.

Mr. BOOZMAN. Mr. President, I have had the privilege of serving Arkansans in the U.S. Senate and U.S. House of Representatives in both the majority and minority. So I know how unmistakably important it is to protect the rights of the minority in the interest of individual States—especially those like Arkansas that are more rural and less populated.

That is what our country's Founders had in mind when they designed the

Senate. The Senate is sometimes referred to as ''the world's greatest deliberative body''—the key word being ''deliberative.''

It is not crafted to quickly approve or reject legislation passed by the House as a mere formality. Instead, it offers equal representation to each State and a procedural process that incentivizes and rewards consensus.

Allowing individual Senators to secure and, just as importantly, stop dramatic policy changes is what sets this body apart. The filibuster provides each of us leverage that must be preserved.

Unfortunately, many of our colleagues on the other side have succumbed to shortsighted political calculations and are endorsing changing the Senate's rules in order to jam through their legislative priorities.

However, the ability to prevent radical, swift, and far-reaching changes that would surely sow confusion and uncertainty is invaluable. As such, I intend to continue protecting the filibuster.

Our Democratic friends, with some exceptions, are now abandoning their previous support for the filibuster, which, while in the minority, they argued was indispensable and utilized with zeal to great effect.

Even President Biden, who enjoyed a long career in the Senate and exercised his right to stop or hamper legislation and nominees he had concerns with, has decided his decades-long embrace of the filibuster is no match for the loudest voices in his party demanding to discard it.

The justifications all point in one direction: keeping power.

Today, the Biden administration and Senate Democrats believe a supposed threat to our democracy requires abandoning the minority party's ability to pump the brakes on the excesses of one-party control in Washington.

Worse, the grave threat to the fabric of our society and experiment in self-government they are touting amounts to nothing more than duly elected State legislatures reining in some of the most overly accommodating voting policies that were enacted during the COVID–19 pandemic: things like reasonable limits on absentee voting, commonsense registration rules, and practical deadlines.

Instead, they want to bring the full weight of the Federal Government down on States like Arkansas that have sought to protect election integrity by instituting voter ID, blocking ballot harvesting, or ensuring the accuracy of voter rolls.

These commonsense safeguards are not an existential threat to our Nation, nor do they warrant breaking the Senate and being unconstitutionally superseded.

It is concerning that most Members of the majority are now singing quite a different tune when it comes to tinkering with longstanding rules of the Senate to achieve partisan ends.

I think it is important to applaud our colleagues on the other side of the aisle who remain committed to protecting the filibuster and, by extension, the very integrity of this institution. They have come under intense pressure. Yet I recognize and they recognize how important this tool is, the harm that would come from abandoning or undermining it, and that majorities in the Senate do not last forever.

Should the Senate go down this path, it would result in exceedingly scorched Earth, where consensus is even harder to find and shifting majorities implement drastic policy transformations when a President is willing to rubberstamp whatever Congress approves.

I have opposed this ill-advised tactic in the face of opposition from my own side of the aisle in the past and understand it is not always an easy thing to do.

My colleagues and I will not acquiesce on this question, and I hope the Senate can move on, in a bipartisan way, to addressing the challenges that our country is facing and finding solutions that actually help Americans facing real-world problems instead of spending any more time on partisan threats that upend this body's traditions that would ultimately diminish its unique and necessary place within a government that is truly the envy of the world.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from Wyoming.

Mr. BARRASSO. Mr. President, I come to the floor today to join my distinguished colleague from Arkansas. I agree with everything that he has said about this latest power grab by the Democrats in the U.S. Senate—of their effort to change the rules, to rig the rules, of course, through an agenda which I see, as do so many Americans, as radical and extreme and dangerous and scary. What the Democrats are proposing right here is to muzzle the voices of half of the country.

So why are they doing this? Well, it really has nothing to do with the priorities that are the priorities of the folks from my home State of Wyoming or from the previous speaker's home State of Arkansas or from the next speaker's home State of West Virginia. Oh, no, it has nothing to do with that. It has nothing to do with the priorities that the Gallup poll tells us are the concerns all around America: the coronavirus and the crisis we face there; the crisis at the southern border, where we are looking at almost 2 million illegal immigrants coming into the United States; crime in the cities, with murders up year after year and just amazingly up this year.

Then, of course, there are the raging fires of inflation, which are cutting into people's paychecks so that money doesn't go as far. When families in home States are looking at the fact that they are going to be paying about $3,500 more next year than the last and the year before that just to keep up, to maintain the quality of living, they have a lot of concerns. What the Democrats are trying to do isn't even one of them because the Democrats are trying to take a Federal takeover of elections. That is what they are trying to pass. They want to cram through a bill that they know otherwise would not pass.

So what is in the bill? Well, the Democrats want to do things like ban voter identification. You know, in my home State of Wyoming and I know in the previous speaker's State of Arkansas and the soon-to-be speaker's State of West Virginia, we know that people believe, if you want to get a ballot and if you want to vote, you should have to prove you are who you say you are.

In the home State of the Presiding Officer and the former Presiding Officer and in many States, if you want to go to a restaurant, you have to show your papers to prove you were vaccinated or to go into a building or to go to a sporting event. Yet the Democrats are proposing that you shouldn't have to show anything to prove you even are who you say you are in order to vote.

What about the incumbents who want to vote for this thing? Oh, did we mention there are taxpayer dollars going to incumbent Members of Congress to pay for their political campaigns? No wonder so many of the Democrats have voted for this. It is money into their own pockets.

The Democrats want Washington, DC, to micromanage elections across the country. They want to rig the rules of the Senate so they can enact this unpopular bill to take over elections in America.

The American people aren't asking for this. This recent Gallup poll that I alluded to asked people what they thought was the most important issue facing the country. Voting laws didn't even crack the top 20. In a list of 23, it came in as 23rd. It is the Democrats' No. 1 priority, and it is the last priority of the American public. It wasn't even an asterisk. It didn't even get 1 percent of the vote.

If the Democrats take over the Senate to take over elections and break the rules of the Senate, there will be no stopping them from passing the rest of this dangerous and extreme agenda.

Democrats know that there is an election coming in November. They can read the polls. They know it is not looking good for them. They know there is a very unpopular President in the White House. They know that their numbers are sinking, that their ship is sinking, and that they will soon be in the minority in both the House and the Senate.

Frankly, the election for the Democrats in the election after that doesn't look so good either because it only took 1 year for the people all across the country to recognize that the current President of the United States, Joe Biden, is both overwhelmed and ineffective as the President of the United States. There is no denying that.

Changing the rules, as the Democrats are proposing to do, really is their last chance to pass their leftwing, fringe ideas. It is the last chance to pack the Supreme Court. The Democrats in this body introduced legislation to pack the Supreme Court, to add four Democrats to the Court. It is the last chance to add new States to the Union. It is the last chance to give amnesty to millions of illegal immigrants. It is the last chance before Democrats lose control of the Congress.

So why do they want to change the rules? It is because their agenda is so unpopular with the American people. They understand, as one Democrat said to another, that we have got to do it now because it is our last chance to force socialism on the American people whether they want it or not.

Instead of changing the rules, the Democrats should change their agenda. The Democrats should focus on what the American people say is important to them. It is our constituents who determine what is important to them. They are to communicate it to us. We are to represent them.

What is important to them? Well, it is getting ahead of the coronavirus, it is securing the border, and it is really to stop adding fuel to the fire of inflation when paychecks can't keep up with the costs of gas and groceries.

A Wall Street Journal story yesterday was about all of the Democrats who signed a letter saying: money from New England, Members of this body—they said energy costs are so high, the government should do something about it. This is after Joe Biden kills the Keystone XL Pipeline and stops oil and gas exploration, and their own home States are blocking pipelines which could carry inexpensive energy to the people who live there. Yet the Democrats want the government to do more. The government has done enough damage already.

There are lots of ideas that could pass the Senate and the House and be signed into law that would actually help the American people. Those are the things the American people are asking for. The American people are not asking for a blatant Democrat power grab to force through a very liberal agenda. People don't want to be muzzled. They don't want to have their voices silenced. They want real solutions. They don't want the Democrats' radical agenda.

I yield the floor.

The PRESIDING OFFICER (Mr. MARKEY). The Senator from Connecticut.

ORDER OF BUSINESS

Mr. MURPHY. Mr. President, I ask unanimous consent that the Senate vote on confirmation of the Bose nomination at a time to be determined by the majority leader in consultation with the Republican leader.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

The Senator from West Virginia.

FILIBUSTER

Mrs. CAPITO. Mr. President, I rise today to deliver I think one of my more important speeches that I will give as a Member of this body, and that is to defend the longstanding rules of the U.S. Senate.

We are at a critical moment, make no mistake. With the slimmest of majorities, the Democrats haven't been able to pass their wildly unpopular agenda, so they are considering using the nuclear option—just think of the term ''nuclear option'' to show you how draconian it is—to eliminate the Senate's 60-vote threshold for legislation. They are doing it under the guise of protecting voting rights, but make no mistake—this power grab is not about voting rights. Instead, it is about advancing one party's agenda.

So I would like to take a look back at what Democrats, including President Biden, have said on the issue and why they are changing their tune. We can also debunk the argument that, if given the chance, Republicans would change the rules and eliminate the filibuster as the Democrats wish to do now.

Finally and most important to me, I am going to talk about how this shortsighted move would impact West Virginians, those whom I represent here in the Senate. They are the ones who will ultimately be hurt by this reckless and irresponsible change, and it is my responsibility to do what I can to stop it.

So President Biden is in Atlanta today, taking the bully pulpit to protest a State's law that he does not like as a reason to end the filibuster. He even says this is one of those defining moments. It really is. People are going to be judged as to where they were before and where they are after the vote.

It is interesting that he would say that because I would like to remind President Biden where he was when he was Senator Biden and what he had to say about eliminating the filibuster on this very floor in 2005.

He said:

> It is not only a bad idea; it upsets the constitutional design, and it disservices the country.

Well, Senator Biden, I couldn't agree more. But he is not the only one who has done a complete 180 when it comes to the filibuster.

Majority Leader SCHUMER once said it would be ''doomsday for democracy''—that sounds pretty bad, ''doomsday for democracy''—if the filibuster were to be eliminated, and he was right. More recently, he has called the filibuster the most important distinction between the House and the Senate. Again, I couldn't agree more.

Then, from my home State of West Virginia, the late Senator Robert Byrd, a longtime Democrat, was unequivocal in his defense of preserving Senate rules.

He wrote in 2010:

> The Senate has been the last fortress of minority rights and freedom of speech in this Republic for more than two centuries. I pray that Senators will pause and reflect before ignoring that history and that tradition in favor of the political priority of the moment.

What would he say today?

Again, this is not about voting rights. It is important to note that we did have a record turnout in 2020. More people voted than ever before. More than 158 million ballots were cast in 2020, which is a 7-percent increase from 2016, and we didn't have this voting rights legislation. In West Virginia, we had thousands more people vote than voted in 2016. As a matter of fact, the total number of ballots that were cast in 2020 was more than in any election in our history with one exception—the 1960 election of President John F. Kennedy.

So don't believe the hyperbole. Don't believe the rhetoric. Don't take the bait. The party-wide flip-flop we are now seeing has nothing to do with voting rights. Instead, it has everything to do with paving the way for an aggressive and progressive agenda that the Democrats wish to enact.

One of the arguments from the other side that I hear all the time is, well, the Republicans would do the same thing and change the rules if given the chance. Guess what. We could have done that. Unfortunately, that argument doesn't carry much weight. Leader MCCONNELL, while sometimes under intense pressure to do this, never wavered, and we protected this institution. We didn't change the rules on the legislative filibuster when we didn't get our way. We could have, but we didn't.

Again, he knows, just as President Biden and Leader SCHUMER know, that if you can't get what you want, changing the rules is no way to govern. I certainly wouldn't run my household like that. It is no way to govern because it ultimately hurts those who sent us here to represent them.

In my home State of West Virginia, do you know what they want? They want us to work together like they saw us do on the bipartisan infrastructure bill. I hear this all the time. Bipartisanship is critical to making good and better policy, and if the Senate rules are changed, it would be a relic of the past. We just passed and signed into law the infrastructure bill that I worked to negotiate. We also passed the CARES Act. We passed opioid. We passed the Great American Outdoors Act—bipartisan.

We can do this, but if we change the rules to where only 50 votes are needed to pass legislation, there will be zero incentive or motivation for the two sides to work together. Just as bad, legislative accomplishments could be done or undone or redone and done over and over with just one flip of a Senate seat. Policies harmful to my State could be enacted: the Green New Deal, court packing, the federalizing of our elections. By the way, 54 of my 55 county clerks oppose that legislation. There would be packing the Senate with new States, defunding the police, attacking

the Second Amendment for law-abiding Americans, and more.

We don't even have to imagine what the Democrats would do or would want to do; we can just look at New York and what they just did. They are going to allow 800,000 noncitizens to vote. To put that in context, in my State of West Virginia, we only had 794,000 voters who voted for President in 2020.

Ramming radical policies through Congress without even attempting to gain consensus is not what our Founders envisioned, and it is not how Americans want us to operate.

Rest assured, those willing to change the rules to benefit themselves will do it again and again and again. Today, supposedly, it is voting rights. Tomorrow, it could be gun control. The next day, it could be open borders. I can only imagine.

I am asking my fellow Senators on the other side of the aisle: Don't do this. You will come to regret it, I think, if you do.

But I think that we need to preserve the rights of the minority.

We need to preserve the chance for bipartisanship. We need to preserve the traditions of the Senate. If you destroy this tradition, unfortunately, the country will suffer the consequences.

Thank you.

The PRESIDING OFFICER. The Senator from Kansas.

Mr. MARSHALL. Mr. President, I may be one of the Senate's newest Members, but that does not mean I don't understand the importance of the filibuster to this body or to this Nation as a whole.

Like Senators before me, I have observed the practice from the other side of the Capitol as a Member of the House and have heard the calls from a frustrated majority to eliminate it for the sake of jamming through an agenda and cashing in the political gain that would come from doing so.

But anyone who has an appreciation for our founding knows the purpose of the filibuster is indeed to frustrate the majority, to serve as an additional check in our government, and drive consensus and cooperation. Its purpose is to protect the rights of the minority and prevent the tyranny of the majority—in short, to save us from ourselves.

The Senators supporting the majority leader's effort to eliminate the 60-vote threshold seemed to once understand this too. Just a few years ago, 25 of them cosigned a letter opposing ''any effort to curtail the existing rights and prerogatives of Senators to engage in full, robust, and extended debate.''

Sadly, we are now witnessing the most blatant hypocritical policy switch we have ever seen, as many current Democrat Senators and the President have abandoned these principles.

This flip-flop appears to be all in the name of greed and power. They want to break the filibuster so they can break other institutions, such as the Supreme Court and State-run elections, to rig our political system in their favor because they can't win on their own radical socialist policies.

Without the filibuster, we will see tax laws, immigration rules, and more major policy go up and down like a roller coaster, negatively impacting our economy, creating uncertainty, and making it impossible for long-term business planning.

The filibuster is meant to force both parties to work together to come up with long-lasting policies which will help all Americans.

Take, for example, voting legislation. I want to make it easier to vote and harder to cheat—easier to vote, harder to cheat. With NANCY PELOSI's power grab act and other radical election proposals, the Democrats want to let the Federal Government take over our elections, which is unconstitutional, make it easier to commit fraud, pave the way for mass ballot harvesting, let felons vote, take integrity out of the elections process by prohibiting voter ID—something I am proud to say Kansas requires, voter identification, and it is working—and, finally, route taxpayer dollars toward funding political candidates they may not agree with.

I hope that Members of this body can come together, in a bipartisan way, to tackle the important issue of election integrity without destroying the 60-vote threshold in the Senate.

We have shown, in recent weeks, we can work together in a bipartisan fashion. The Senate voted 88 to 11 to pass the annual Defense authorization bill in December. The HELP Committee is currently working through a bipartisan bill to help tackle future pandemics. We can still tackle major issues in the Senate without abandoning our principles.

The right to extended debate for Members of this body has been preserved for two centuries, longer than the constitutional method of electing Senators via their home State legislature, which was ended when the 17th Amendment was ratified.

It is a dark day that Senators are being forced to come to the Senate floor to defend the 60-vote threshold. It would be one of the body's darkest days if 51 Senators changed the rules and removed our rights to robust debate and the right of our home States to have equal representation in this most distinguished legislative body. And it will come back to haunt them.

The answer to these partisan times is not to double down on partisanship and blow up the filibuster. I pray cooler and wiser heads will prevail, and we will maintain this important function of the Senate. Otherwise, our Nation is destined to become a winner-takes-all system, where the rights of the minority will never again be considered, and our Nation will suffer for it.

I yield the floor.

The PRESIDING OFFICER. The Senator from North Carolina.

Mr. TILLIS. Mr. President, I rise today to express my opposition to the majority leader's plan to change the Senate rules. It will open the door wide for the filibuster to be eliminated for all legislation moving forward.

The bottom line is very simple: The ideologues in the Senate want to turn what the Founding Fathers called the ''cooling saucer of democracy'' into the rubberstamp of dictatorship. They want to because they can't get their way. They want to wash away 200 years of history. They want to turn this country into a banana republic, where if you can't get your way, you change the rules. It would be a doomsday for democracy.

These are strong words, and these are wise words, but they are not my words. They are direct quotes from Senator SCHUMER back in 2005, when he was a staunch opponent of weakening the filibuster. That is because during that time, the then-junior Senator from New York and his Democratic colleagues were making unprecedented use of the filibuster to derail President George W. Bush's judicial nominees.

The majority leader at one point profoundly admitted that ''[y]es, we are blocking judges by filibuster. That is part of the hallowed process around here of the Founding Fathers saying the Senate is the cooling saucer.''

But things have certainly changed two decades later.

President Biden, the majority leader, and their Democratic allies were intent on ending the filibuster the second the Democrats won the Senate last January.

The majority leader's latest attempt is to force a carve-out of the filibuster for what he claims will be just for one piece of legislation. But he knows where it leads: the full elimination of the filibuster and sooner rather than later.

I thought my friend the senior Senator from West Virginia put it perfectly last week. He said:

> The problem with carve-outs is that you end up eating the whole bird.

There is no such thing as a carve-out when it comes to the filibuster. We all know it. I will talk a little bit about that later.

But for more than a century, the filibuster has served as a safeguard for our Republic. It has prevented one party from ramming through an ideological agenda when that party controls both the White House and Congress.

Without the filibuster, both the far left and the far right would have free rein to ram through extreme ideological agendas. Divisive partisan proposals could become law with only a simple majority. And with both parties regularly trading control of Congress, laws can just as easily be overturned and replaced, promoting the kind of chaotic, confusing policymaking we see in some European Parliaments.

By requiring 60 votes to end debate in the Senate, the filibuster promotes stability. It necessitates bipartisan compromise to pass legislation. That is something we need more of, not less.

I saw it firsthand when I was a proud participant in the passage of the bipartisan infrastructure bill. That is the way this Chamber needs to work.

That is why when President Trump demanded, I think some 30 times, that the Republicans should eliminate the filibuster in 2017, 61 Senators joined together in a letter making it clear that we would not let it happen. Thirty-two were Democrats, and 29 were Republicans. I was one of them.

And even though I received my fair share of pushback from my side of the aisle back in North Carolina, I was proud to sign that letter in 2017, and I would be proud to sign that letter today.

Unfortunately, this modest display of political courage has not been reciprocated by many of my friends on the other side of the aisle. Twenty-seven of the Senators who signed that letter are still in the Senate. Twenty-six of them are now supporting the full elimination of the filibuster. What changed? Nothing except the party in power.

Democrats staunchly defended and used the filibuster when Donald Trump was President at an unprecedented level, but Democrats are suddenly against the filibuster now that Joe Biden is President. Many of my Democratic colleagues are practicing situational principles: putting their own party's short-term interests ahead of what they know are the best long-term interests for the Senate and the Nation. It doesn't get more politically cynical than that.

President Biden served in the Senate for 36 years. He was known as a strong defender of the institution, including the filibuster. In this very Chamber, 21 years ago, Senator Biden declared that defending the filibuster was about defending ''compromise and moderation.'' And he noted that his speech was one of the most important he would ever give. But now he favors destroying compromise, moderation, and the institution he had long cherished, all for the sake of political expediency for the next 12 months, until Republicans take back the House and most likely the Senate.

As I noted earlier, the majority leader also shares a partisan double standard with the President. In a ''Dear Colleague'' letter just earlier this month, he wrote that ''Senate Democrats must urge the public in a variety of different ways to impress upon their Senators the importance of acting and reforming the Senate rules, if that becomes a prerequisite for action to save our democracy.''

The Senate rule change he refers to is carving out the filibuster in order to pass one of the far left's priorities; that is, the voting bill that many of my Members or colleagues have talked about today.

But in 2018, the then-Senate minority leader struck a different tone. He said:

> The legislative filibuster . . . is the most important distinction between the Senate and the House. Without the 60-vote threshold for legislation, the Senate becomes a majoritarian institution like the House . . . no Senator would like to see that happen.

What is the difference between today and only a few short years ago? Again, it is the party that is in power.

This same pattern of situational principles also applies to the majority whip. He went on national television when Donald Trump was President to warn that eliminating the filibuster ''would be the end of the Senate as it was originally devised.''

That is Senator DURBIN.

But less than 4 years later, after Democrats won control of the White House and the Senate, the majority whip has a much different take. He recently declared that ''the filibuster is making a mockery of the American democracy.'' He made that statement after he and his fellow Democrats used the filibuster a recordbreaking 328 times between 2019 and 2020, when President Trump was in office. That level hypocrisy is audacious, even by Washington, DC, standards.

And I know Democrats have been pushing back on this claim, claiming they are not trying to end the filibuster. They assure us that this is a one-time deal that will only apply to this one bill.

I would refer them to Newton's third law of physics: ''For every action, there is an equal and opposite action.'' It most definitely applies to Senate rules as well.

In 2013, Senate Democrats invoked the nuclear option to end the 60-vote cloture requirement on judicial and Executive nominees other than the Supreme Court. All Republicans, and even a handful of Democrats, including the senior Senator from West Virginia, pleaded with the Democrats not to do it.

Minority Leader MCCONNELL warned Democrats at the time that ''you'll regret this, and you might regret it even sooner than you think.'' But they did it anyway. And, indeed, there was that reaction.

Four years later, Republicans controlled the Senate, and we used the nuclear option to finish what our Democratic colleagues started on the executive calendar. We ended the 60-vote requirement for Supreme Court nominees.

There is a clear precedent on what happens when we change the Senate rules on a partisan basis for political expediency. It produces long-term consequences that I believe both sides will ultimately regret.

Democrats invoked the nuclear option to get more district judges, but by doing so, they paved the path for Justice Gorsuch, Justice Kavanaugh, and Justice Barrett, who now sit on the Supreme Court today.

What do we think now if the Democrats nuke the filibuster for just one bill? The Senate rule change that the majority leader is pushing is really a proxy vote for ending the legislative filibuster altogether and turning the Senate into the House, full stop.

So I ask my Democratic colleagues to consider this: When President Trump called for ending the filibuster, a large majority of Republican Senators stood up to preserve bipartisanship and to protect and respect this institution. Now, the roles are reversed. President Biden and the majority leader are demanding that you give them your vote to weaken the filibuster so it can ultimately be ended.

To my Democratic colleagues who signed on to the very same letter I did in difficult circumstances, I ask you: Will you stand up for the principles that you stood for just a few years ago and respect and defend this institution?

The PRESIDING OFFICER. The Senator from Utah.

Mr. ROMNEY. Mr. President, I prepared some remarks to give this evening, but I had the occasion to watch President Biden as he spoke in Georgia just a few minutes ago, and he said quite a number of things that simply weren't true. He also accused a number of my good and principled colleagues in the Senate of having sinister, even racist inclinations. He charged that voting against his bill allies us with Bull Connor, George Wallace, and Jefferson Davis—so much for unifying the country and working across the aisle.

More troubling, however, he said that the goal of some Republicans is to ''turn the will of the voters into a mere suggestion.'' And so President Biden goes down the same tragic road taken by President Trump: casting doubt on the reliability of American elections.

This is a sad, sad day. I expected more of President Biden, who came into office with a stated goal of bringing the country together.

Now, our country has defied the odds for a democratic republic. It has survived and thrived for over 200 years. The character of the American people deserves most of the credit for that, but close behind are our vital institutions. Over the last several years, many of us recoiled as foundational American institutions have been repeatedly demeaned: The judiciary was charged with racial bias. The press was called the enemy of the people. Justice and intelligence agencies were belittled. Public health agencies were dismissed. Even our election system was accused of being rigged.

The U.S. Senate is one of our vital democratic institutions, and the power given to the minority in the Senate and the resulting requirement for political consensus are among the Senate's defining features. Note that in the Federal Government empowerment of the minority is established through only one institution: the Senate.

The majority decides in the House. The majority decides in the Supreme Court. The President, of course, is a majority of one. Only in the Senate does the minority restrain the power of the majority. That a minority should be afforded such political power is a critical element of this institution.

For a law to pass in the Senate, it must appeal to Senators in both parties. This virtually assures that the bill did not originate from the extreme wing of either one and, thus, best represents the interests of the broadest swath of Americans. The Senate's minority empowerment has meant that America's policies inevitably tack towards the center. As Senator Biden previously affirmed: ''At its core, the filibuster is not about stopping a nominee or a bill, it is about compromise and moderation.''

Consider how different the Senate would be without the filibuster. Whenever one party replaced the other as majority, tax and spending priorities would change, safety net programs would change, national security policy could change, cultural issues would careen from one extreme to the other—creating uncertainty and unpredictability for families, for employers, and for our friends abroad.

The need to marshal 60 votes requires compromise and middle ground. It empowers the minority. And it has helped to keep us centered as a nation, fostering the stability and predictability that are essential for investments in people, in capital, and in the future. Abandoning the principle of minority empowerment would fundamentally change a distinct and essential role of the U.S. Senate.

But today's Democrats, now with the barest of majorities in a 50–50 Senate, conveniently ignore their own impassioned defense of the filibuster when they were in the minority. Let us be clear that those who claim the filibuster is racist know better.

For President Obama to make this absurd charge after he, himself, made a vigorous and extensive defense of the filibuster just a few years ago is both jarring and deeply disappointing. After all, I don't recall a single claim from Democrats that employing the filibuster hundreds of times over the last several years when they were in the minority was in any way racist.

Over the course of my life, I have found that when presented with a matter of personal advantage that would require abandoning principles, the human mind goes to work overtime to rationalize taking that advantage.

Only a few months ago, some of my Senate Democratic colleagues rationalized that the Senate couldn't function and, therefore, they had to get rid of the 60-vote rule. But then the Senate functioned quite well when it passed the infrastructure bill, armed services legislation, and a bill on innovation.

So, a few months later, some of these colleagues argued that in order to raise the debt ceiling, the 60-vote rule has to go. Then, with bipartisan cooperation, the Senate raised the debt ceiling.

So now, the Democrats' latest rationalization is that their partisan new election law must be passed. But Democrats have filed these voting bills numerous times over numerous years, always without seeking Republican involvement in drafting them. Anytime legislation is crafted and sponsored exclusively by one party, it is obviously an unserious, partisan effort.

Let me note two more truths. The country is sharply divided right now. Despite the truth spoken by a number of good people in my party, most Republicans believe Donald Trump's lie that the 2020 election was fraudulent, stolen by Democrats. That is almost half the country.

Can you imagine the anger that would be ignited if they see Democrats alone rewrite, with no Republican involvement whatsoever, the voting laws of the country? If you want to see division and anger, the Democrats are heading down the right road.

There is also a reasonable chance Republicans will win both Houses in Congress and that Donald Trump himself could once again be elected President in 2024. Have Democrats thought what it would mean for them for the Democrat minority to have no power whatsoever?

And finally, Mr. President, I offer this thought: How absurd is it to claim that, to save democracy, a party that represents barely half the country must trample on the rules of our democracy's senior institution?

The PRESIDING OFFICER. The Senator from Rhode Island.

U.S. SUPREME COURT

Mr. WHITEHOUSE. Mr. President, with my distinguished colleague from Utah here, I would just—before I get to my remarks—suggest that there may be an exception to his rule that when a piece of legislation is only sponsored by Members of one party it can't be serious legislation; and, in my view, that would include climate legislation, where it has been extremely hard to get Republicans to cosponsor any serious climate bill. And I think that has nothing to do with the seriousness of the legislation and everything to do with the influence of the fossil fuel industry.

But that said, Mr. President, I am here to speak for the 11th time in my series discussing the scheme through which a bunch of big, anonymous donors captured our Supreme Court.

Today, I am going to talk about the Biden Supreme Court commission, which could have done a useful, even authoritative investigation of the scheme and all its terrible effects at the Court but which, regrettably, ended up as an exercise in ineffectual time-killing.

I have laid out the scheme in detail in earlier speeches in this series. In a nutshell, there is a very well-studied phenomenon of regulatory capture, sometimes called agency capture, through which big industries try to capture and control the regulatory agencies that are supposed to be policing them.

Well, in the same way, big, rightwing donor interests set out to capture the Supreme Court. And they did it. It worked. Now, the Court's 6-to-3, big-donor-chosen supermajority is delivering massive wins for those donor interests, and the American people can smell what Justice Sotomayor aptly characterized as the ''stench'' of a captured Court.

The problems of the Court are real, and they demand action. Enter the Court commission. Charged with thinking through solutions to the Court's many problems, the commission was perfectly positioned to report on the scheme and offer a blueprint for restoring the Court. But its final findings, released last month, offered instead what I have called faculty-lounge pabulum.

Sure, yes, they gestured toward the need for a code of ethics for the Justices, which makes sense because Supreme Court Justices have the lowest ethics standard of any top Federal official. But pointing that out is a little bit like pointing out a flat tire on a totaled car.

Consider the facts the commission ignored: A private, partisan, anonymously funded organization—the Federalist Society—handpicked the last three Supreme Court Justices. President Trump and his White House counsel admitted they had ''in-sourced''—their word—the Federalist Society to the White House to choose their nominees.

Senator Hatch, our former colleague, former chairman of the Judiciary, was asked if this role was outsourced to the Federalist Society, and he said, ''Damn right.''

No other democracy in the world has had such a ridiculous system for selecting Judges. That is bad. It gets worse. Anonymous donations helped rightwing front groups mount a $400 million push to capture and control the Court with zero transparency into who gave the money or—more importantly—what matters they had before the Court whose Justices they were installing. That is disgraceful. And trust me, nobody spends $400 million without a motive.

There is more. Orchestrated flotillas of amici curiae, so-called friends of the court, funded by dark money, instruct the Court which way to rule, and they score virtually perfect success with the Republican appointees whom dark money ushered onto the Court.

The Court has even allowed peculiar fast lanes for dark money groups to speed cases to the Court for Justices to decide favored, politically helpful cases. In some cases, the Justices even invited the case to be rushed to the Court.

And this mess culminates in a notable, troubling statistical record. The Roberts Court delivered more than 80—80—partisan 5-to-4 decisions benefiting big Republican donor interests. The record in that category of decisions was 80 to 0, and that is before the Court's new 6–3, donor-chosen supermajority.

That is a lot for the Commission to leave out. The Commissioners can't claim they did not have fair notice.

Several of us wrote to the Commission to point out the scheme's telltale footprints. The Commission even received testimony about another pernicious issue: the Court's reliance on fake facts supplied by dark money amici curiae, especially in politically important cases for the rightwing donors like Shelby County and Citizens United. Somehow, none of this made it into the Commission's discussion.

Ducking all these facts was no small feat. As the Presiding Officer knows, one of the first exercises that law professors give their first-year law students is called issue spotting. You get a case, and you are asked to go through it and list all the potential issues it raises, spot the issues. Well, these issues all sat in plain view before the Commission. Yet the Commission flunked the rudimentary law school test of issue spotting.

Now, part of the problem was conflict of interest. Many members of this Commission argue before the Court and need its good will for their bread and butter. Others are law professors eager to plant their students in prestigious Supreme Court clerkships. For many members, rocking the boat could have unhappy consequences.

Clearly, though, some Commission members tried and failed to get these issues considered. Two members—retired Federal Judge Nancy Gertner from the Presiding Officer's home State and Harvard Law School's Laurence Tribe—had an op-ed ready for print the day the report was released. They called for a serious overhaul of the Court due to what they called ''the dubious legitimacy of the way some Justices were appointed,'' due to that stench of bipartisanship Justice Sotomayor has observed, and due to what they called the ''anti-egalitarian direction'' of the Court's political decisions on voting rights and dark money.''

Judge Gertner and Professor Tribe wrote:

> Though fellow commissioners and others have voiced concern about the impact that a report implicitly criticizing the Supreme Court might have on judicial independence and thus judicial legitimacy, we do not share that concern. Far worse are the dangers that flow from ignoring the court's real problems—of pretending conditions have not changed; of insisting improper efforts to manipulate the court's membership have not taken place; of looking the other way when the court seeks to undo decades of precedent relied on by half the population to shape their lives just because, given the new majority, it has the votes.

Judge Gertner and Professor Tribe rightly warned that we can't afford more decisions like Shelby County and Citizens United, which would put the Court on what they called a ''one-way trip from a defective but still hopeful democracy toward a system in which the few corruptly govern the many, something between autocracy and oligarchy.''

Think about that. People distinguished enough to be appointed to this Commission by the President feel that this Court is on a one-way trip from America being a defective but still hopeful democracy toward a system in which the few corruptly govern the many.

They concluded by saying this:

> Instead of serving as a guardrail against going over that cliff, our Supreme Court has become an all-too-willing accomplice—

Accomplice—

> in that disaster.

All of that was kept out of the report.

The fact is evident that dark money political forces had a controlling and anonymous role in the makeup of the present Court. You can't dispute that. It is not surprising that the donor interests who accomplished that should want their due. As I said, you don't spend $400 million on this scheme for nothing.

Just a few days before the Commission unveiled the final draft of its report and right after oral arguments in the big abortion cases that are pending before the Court, there was a telling incident. FOX News host Laura Ingraham lost her cool, and she said on plain television the quiet part out loud. Here is what she said:

> We have six Republican appointees on this court, after all the money that has been raised, the Federalist Society, all these big fat cat dinners—I'm sorry, I'm pissed about this—

Excuse me for that language, but it is a direct quote—

> if this court with six justices cannot do the right thing here . . . then I think it's time to do what Robert Bork said we should do, which is to circumscribe the jurisdiction of this court and if they want to blow it up, then that's the way to change things finally.

Let's deconstruct that little outburst for a second.

First, it basically admits to the scheme: ''all the money that has been raised''—that is the $400 million I talked about; ''the Federalist Society''—that is the big donor-controlled turnstile for rightwing advancement to the Supreme Court; and ''all these big fat cat dinners''—wow. I would love to know more about that. We do know that Justices have taken undisclosed vacations in the company of people with interests before the Court, so what is a little ''big fat cat dinner'' among friends, huh?

Second, that little outburst is a flat-out threat to the Court: Decide the big abortion cases the way we want, the six of you, or we ''circumscribe the jurisdiction of this court''; ''blow it up''; ''change things finally.''

There is a particularly thin-skinned Federalist Society Justice who has been giving speeches condemning an imaginary threat I supposedly made to ''bully'' the Court in a brief maybe read by a couple of hundred people. It didn't actually happen that way, but never mind. Like I said, he is particularly thin-skinned.

But now here comes this plain threat: ''circumscribe the jurisdiction of this court''; ''blow it up''; ''change things finally'' if we don't get the outcome we deserve after all of our money spent through the Federalist Society.

So I am waiting to see what reaction from this Justice there is when this real threat comes, but from the rightwing FOX News channel. The FOX News outburst was particularly rash and indiscreet, but the Republican Justices get marching orders like this all the time at the fat-cat dinners, on junkets with the rightwing donor class, and from the orchestrated flotillas of dark money amici curiae that encircle the Court for big cases launched by the big donors.

The Justices are constantly reminded of who propelled them to the Court and what they are supposed to deliver. And the truth is, the record reveals, the statistics make plain the Republican Justices do deliver over and over and over again—more than 80 partisan wins for scheme donors in those 5-to-4—and now we can expect 6-to-3—partisan decisions.

So the Biden Court Commission missed its moment. It ducked all of this. So on we must go through the stench of partisan capture of the Court, and on I will go exposing the scheme that did it.

To be continued.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER (Mr. PETERS). The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Ms. MURKOWSKI. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

FILIBUSTER

Ms. MURKOWSKI. Mr. President, there has been a lot of discussion on the floor, certainly today and the days leading up to this, as we talk about the importance of protecting minority rights here in the Senate and the consequences of weakening the legislative filibuster to a 50-vote, majority-serving threshold. There is a lot to say, and there has been a lot said already.

I was here listening to the comments from my friend from Utah and have had an opportunity to hear much of what has been said throughout the course of the day. But I am here perhaps as the sole Senate Republican who will vote to begin debate on the John Lewis Voting Rights Advancement Act because I happen to believe that it is important that we focus on improving our election laws, but I also believe very, very strongly that the way to do that is through the regular order process. It might sound kind of boring, but that is actually how you get the good work, the enduring legislation done.

I am also here, I guess, as a senior Member of the Chamber now. I have been around for almost 20 years. I have spent time in both the majority and the minority. But I am also here because I care—I really care—about legislating. I understand what it takes to

work across the aisle to bring good policy into law.

One of the things that I can tell you from firsthand experience is, it is hard. It is hard work. It is hard work to bring people together, particularly on some of these challenging and difficult issues that we have.

When the problems are hard, that means usually the solutions are equally hard. But that is our job as legislators—to bring sides together, to find that common ground.

That is what legislating is all about. And so with all of that in mind, I tell you I believe that weakening the current 60-vote threshold would be a major mistake, a damaging mistake, especially in light of the already deep division that we have within our country today and within the divisions that we have represented in this body today.

So the nuclear option is reportedly coming our way to change the threshold for cloture on legislation—on legislation to 50 votes and to do this with just 50 votes. But I would suggest to you that this will do nothing to cure what actually ails the Senate, and, therefore, we should reject it.

I mentioned that the job that we have as legislators is to come together to knit the good ideas from one side to the other, to really build that consensus that will allow for enduring policy and enduring laws. Gutting the filibuster is not going to do anything to bring both sides together. It will not help bring the parties together. It will, unfortunately, just serve to push them further apart, split us further apart. It would not lead to better or consensus legislation.

It effectively allows the majority to do what it wants to do, when it wants to do it, how it wants to do it without the minority. It effectively allows you to ignore the views from the minority. This rule change would not restore us as the world's greatest deliberative body.

I know that there are those who would suggest that we are far, far from that, but I would suggest that if we do this, it really obliterates that reputation forever.

There has been a lot of talk about the differences between the House and the Senate. We are different. We were designed different. The Framers designed the Senate as an institution where the rights of individual Senators as well as minority groups of Senators are protected. They are highly protected. That is what our rules reflect.

And that is why—why we can hold forth, why an individual—one person—can register objections, why we can place holds and offer motions and filibuster legislation when we deem it necessary. And I know we don't like it when it is being used against us—we don't—because it slows things down. It is frustrating. But it is part of what has been built into our institution.

And some may say, well, it is obviously not working, it is obviously not functioning because I can't get my priority through. Perhaps we need to focus on how we are bringing people together to advance that priority.

This body, the Senate, was never meant to be the House of Representatives. Senator Robert Byrd, who served both as the majority and the minority leader—so I think he had pretty good perspective on things—he also reminded us about the saucer and the role that the House plays—excuse me, that the Senate plays.

The Senate is the proverbial saucer intended to cool the cup of coffee from the House. Nobody likes it, particularly the guys in the House. They don't like it when they say: Oh, you are so slow over here. But we were meant to be deliberative.

The more we become like the House, the less relevant, in my view, we are as an institution and the further we will have strayed from that balance, that careful balance that the Constitution envisions for our branch of government.

So we have been here before. As I was walking over, I was thinking this is like deja vu all over again. How many times have we had these battles over the filibuster? Should we exercise the nuclear option? Should we pull this trigger?

Well, back in 2017, I signed a letter, along with 60 other Members of this Chamber. There were 28 Republicans, 32 Democrats, 1 Independent. We came together as a pretty representative group of lawmakers, and we urged both Republican and Democratic leaders to preserve the 60-vote threshold for legislation—for legislation—because we knew where we had come from. The Republicans had used the nuclear option to eliminate the filibuster for Supreme Court nominees after the Democrats used it in 2013 for eliminating the filibuster for confirmation of the lower court and executive branch.

So it is kind of one of these where they did it, so it is OK for us to do it. Far be it for me to suggest that sometimes the analogies are like what we have when we have got the kids in the back of the car and somebody says: Well, he started it. And the other one says: No, well, then I get to do it. And my response is: Knock it off both of you.

Maybe we just need to have a detente here on whether or not we blow up the filibuster. Maybe we need to just step back from this and realize what it means to all of us because those of us who are in the minority today will one day be in the majority, and those who are in the majority today will one day be in the minority.

And so making sure that there is a balance, that it works, that minority rights are respected—this is why we are here today. I know that there are several Senators who signed that letter back in 2017 who are now seeing their words repeated against them. That has got to feel pretty uncomfortable. I don't want to be one of those who feels like I have to eat my words; that what was good for me when I was in the minority is no longer good for me when I am in the majority or vice versa. It has to work both ways.

So when as Republicans in the majority we were urged mightily by former President Trump to get rid of the filibuster, I was one of those who said: No. No. We should not do that. And that is why my advice today to the majority is be careful, be careful what you wish for because you may look at this and say this may help advance the immediate legislative agenda—what they are talking about now is voting rights. You may be able to advance the immediate legislative agenda there, but the long-term effects might look pretty different.

And I think we have seen a little bit of a suggestion of what that could look like when you don't have the protections in order for the minority. So I think it is good for us to be having this open discussion. I think it is important that we be thinking about the practical effects of weakening the filibuster.

What will happen if it no longer protects the minority and instead only serves to benefit the majority? A 50-vote threshold would allow the majority to push through, to rush through legislation without consideration of the minority views. And keep in mind that we may be in the minority now, a 50–50 minority—pretty skinny minority—but a minority that is elected with support from major portions of the country.

Removing the filibuster would reduce the need for the parties to work together to reach the broad consensus on policy, again, that can endure across elections. And I think that is important for us to just stop and take account of because when you don't have legislation that is enduring, when you move legislation that is wholly partisan, what happens when the tables are turned? The new majority spends all of its time trying to undo what the old majority got passed on a wholly partisan basis.

Now we are not giving certainty to the Nation. We are not helping the economy move along. It is a whipsaw. It is policy whiplash. Who is going to be investing in policies if they just think that what was just passed into law is going to be undone in the next Congress?

We owe it to our constituents, we owe it to the country to give them some certainty with policy, and that comes about when you are working to build consensus.

Eliminating the filibuster would make primary elections into fealty tests, even more, even more than they already are, as each party sets its sights on candidates who are probably unlikely to act independently once in office. I mean, why bother? But, again, it would whipsaw—whipsaw—the country on policy. And as I think about the state of our economy right now, where we need to be investing in—we have got a great infrastructure bill that we are

all poised to try to advance, lots of good things coming for that—we don't want to be undermining investment in our ability to address major challenges if we are looking at a situation where, again, the new majority coming in, they just work to reverse the work of their predecessors.

These aren't good outcomes for a divided nation, and they only take us further from what should be our goal. We have got to be focused. We have got to be focused on finding more ways to work together. And we have got good examples. We had an energy bill that we advanced in 2020, a good bill. We had been working on that for a long time, but it was a very bipartisan product.

I mentioned our bipartisan infrastructure bill. We have the CARES Act as another example. So many measures have shown us that this is absolutely possible.

As part of that, when we consider changing the rules, we need to focus on incentivizing bipartisanship, pushing Members to reach across the aisle, not making it less of a priority. Let's think about how we do that in a positive sense, how we are pushing one another to work to build things rather than dividing one another and just throwing things at one another.

I will vote against any motion to weaken the filibuster or create carveouts within it. Legislation and legislating in and of itself, as I mentioned at the outset, it is not supposed to be easy. We don't have that red ''easy'' button on our desk here. It is deliberately hard.

But as I learned from somebody a couple weeks ago, I don't want to come to talk about the problems without offering up some solutions at the same time. I do have some suggestions for how we could perhaps move forward on voting rights legislation, potential changes to our rules. So for voting rights, the Senate doesn't need to change its rules here; the majority needs to change its approach.

You have me—basically me alone at this point—willing to debate one of the measures that was written. It was written on a partisan basis, but I did my homework. I looked at it. I weighed in. I worked with colleagues on the other side of the aisle and made some good, solid suggestions. I think we have had some good dialogue there. I think it is important. I want to reach a compromise on it. I think that that would be important, but I have acknowledged that there needs to be some changes that would need to be made to that, and I have worked to suggest it.

But what that does for right here right now is it makes it abundantly clear that we don't have agreement right now on voting rights legislation, so it is no wonder that the legislation is being blocked.

Partisan bills don't suddenly become bipartisan just because they have hit the floor. So instead of looking for ways around consensus, we have got to go back; we have got to actually start building it.

So let's take this back. Let's take it to the committee process. Let's look for areas of agreement, like some suggestion has been out in the past couple weeks here, reforming the Electoral Count Act. I don't know how far that can take us, but when something like this is put on the table, let's take a look at this.

Let's work through some of these proposals rather than just summarily dismissing it out of hand. Let's take that time, put in the effort, build a product that can pass and hopefully by more than just the smallest of margins. We did that before with Voting Rights Act historically. We have demonstrated that it can be done.

As far as rule changes, I agree we should be having the debate. But how we do the debate, I think, is also important. We want to have a thoughtful discussion. Both sides need to be involved. Any Member who wants to participate should be doing so.

But these discussions need to focus on the problem, and the problem is that there is not enough consensus building across parties. That is what we need to be focusing on, rather than focusing on eliminating the need for it altogether.

So instead of targeting the filibuster, one of the things that I have suggested to several folks is the development of a consensus calendar. Now, I am not saying it is going to solve everything, but if you have strong, bipartisan bills that have made it through the process, they have demonstrated that good, strong show of support, there ought to be a way that we can move things through on an expedited process, an expedited consideration.

There has also been a lot of talk about eliminating the filibuster on the motion to proceed.

So these are areas where, again, I think you have had thoughtful people willing to sit down and say: Can we reform our processes around here? Can we be more efficient? Can we still be that cooling saucer, that deliberative body, but be more efficient?

I would argue that no rules changes should take effect this year. Whatever we can agree to, let's set the effective date of January of 2023. Make these decisions based on what any majority in any year should have to govern.

We need to make sure that if we are changing the rules, we do it for the right reason. We do it because it is the right thing to do for the Senate, no matter who is in charge. And I think that is just a matter of fairness there.

We all know that filibusters can be so very, very frustrating, and those in the majority feel it directly. I know of which I speak. I have been there. It can be agonizing. It is like you are up against a brick wall.

As I mentioned, when we were advancing my energy bill several years back, I can't tell you how many times I felt like I had the rug pulled out from underneath us. But it was a good legislative product, and so we didn't give up. We kept working at it. And, in fairness, I think we actually worked to improve the legislation.

As difficult as it might have been, it was through that process that we were able to come to some terms on HFCs, probably as significant an effort that we have made when it comes to reducing emissions, and that came about as a result of that very deliberative process that you wanted to pull your hair out over, but it actually worked to advance that legislation.

But I think what happens is this forces us, as Members, to work together and to remember we can overcome these. And in these partisan times, they prevent the majority from simply running over the minority, which only serves to worsen our political divide.

The 60-vote threshold for legislation requires consensus to be part of the legislative strategy. Changing it to 50 votes to serve the narrowest possible majority will lose that essential benefit; it will have lasting consequences for the Senate and for the people that we serve.

So I absolutely think that we can do better than this, better approaches for both voting rights legislation and rules changes. They are available to us. We just have to work. Neither side is going to get everything that it wants out of them, but I absolutely believe that we will be better served, our country will be better served if we have a bipartisan path working together.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from Wyoming.

Mr. BARRASSO. Mr. President, I come to the floor to congratulate and commend the remarks by the senior Senator from Alaska. She certainly knows from whence she speaks.

I remember so well the discussion that she just mentioned with regard to the energy bill and HRCs and the effort for a cleaner environment, and it was through the process that we were able to come up with legislation that we believe—all believe—was a better result for the Nation and for the environment.

It took longer than any of us wish it would have taken, but it was through that process. And had we been in a situation without the ability to filibuster, we would have never gotten to such a good result because a 50–50 Senate is—basically it is a mandate to move to the middle.

So I commend the senior Senator from Alaska. She knows from whence she speaks. She is very high up in seniority in the institution. She has institutional memory, more than many, many Members of this body, and when she says what goes around comes around and the shoe is, at another time, on the opposite foot, she knows what the implications of those are and why what the Democrats are proposing now is in the wrong direction for the country.

So I believe it is misguided, and I concur with her comments.

NORD STREAM 2

Mr. President, I come to the floor today on another matter, and that is to support sanctions on Vladimir Putin and his Nord Stream 2 pipeline.

This body will be voting on that very issue in the next day or so, and I am urging my colleagues to support S. 3436, which is known as Protecting Europe's Energy Security Implementation Act.

Let me just explain why this is so important. And it is important because right now, Vladimir Putin has mobilized close to 100,000 troops near the border with Ukraine. They are nearly encircling the country of Ukraine. Our intelligence community has warned of a potential Russian invasion of Ukraine in the next month or so.

So why is this happening? Well, Vladimir Putin has always wanted to control and dominate Ukraine. This is nothing new. He invaded in 2014. He illegally annexed Crimea and continues to occupy Crimea today. Now, he wants more, and he is now also flush with cash. With Joe Biden in the White House and the Democrat energy policies, Vladimir Putin has hit the energy financial jackpot.

You don't have to take my word for it; take it from the Biden administration. Joe Biden's Under Secretary of State for Political Affairs is one of his top Russia experts for our own State Department. She has spent her entire career working on issues related to Russia, Ukraine, and Europe.

Well, in December, she testified before the Foreign Relations Committee. She testified about increasing Russian aggression on the Ukraine border. She said, ''Energy is the cash cow that enables these kinds of military deployments.''

She said Vladimir Putin ''needs the energy to flow as much as the consumers need'' it to flow.

But why is that? Well, it is because of Russian energy that Putin is able to pursue these dangerous military ambitions.

The late Senator John McCain, with whom I have traveled on several occasions to Ukraine, used to say, ''Russia is a Mafia-run gas company disguised as a country.''

Energy is the only successful sector of the Russian economy. Natural gas is what is propping up the Russian military and the entire Putin regime. Vladimir Putin uses energy as a geopolitical weapon, and he knows how to use it.

He uses energy to coerce and to manipulate our allies and our partners in Europe. If they don't do something that Putin wants or they do something that he doesn't like, he can turn off the power and turn off the heat. We just saw an example of this in November, when Russia threatened to cut off gas flows to the small and neighboring country of Moldova. Moldova had to declare a state of emergency.

Well, under Joe Biden's energy policies, Europe will soon be in a state of energy emergency as well. It is because Europe already gets almost half of its gas imports from Russia. With the Nord Stream 2 pipeline from Russia to Germany, the imports will only need to go up, and they will go up.

Under Secretary Victoria Nuland told the Senate Foreign Relations Committee, ''We have been counseling Europe for almost a decade now to reduce its dependence on Russian energy.''

A decade. A decade includes the administrations of both President Trump and President Obama. Yet Joe Biden has done everything he can to cripple American energy production.

What happens with that? Well, it makes our allies more dependent on Russia for energy. It gives more power to Putin.

Under Joe Biden, American energy production hasn't really recovered yet to the 2019 levels. This is a direct result of the anti-American energy policies of this White House.

On his first day in office, Joe Biden killed the Keystone XL pipeline. He then blocked new oil and gas leases on Federal lands. We are now producing 1.4 million fewer barrels of oil each day than we were before the pandemic.

We are, in the U.S., now, using more oil imported from Russia than we are using oil from our own home State of Alaska. It is a national disgrace to be dependent more upon Russia for oil than we are from our neighboring State of Alaska.

Joe Biden's National Security Advisor even pleaded with Russia to produce more oil—hard to believe, hard to believe that the National Security Advisor for Joe Biden in the White House would plead with Russia to produce more oil.

Well, the administration actually put the Russian energy request on the White House website. Joe Biden would rather have America buy energy from our enemies than sell energy to our friends.

Joe Biden would rather have European nations dependent on Russian energy than increase American energy production and exports from home here to our allies. It is completely backwards.

Under Joe Biden, American energy production is down and energy prices, as any consumer knows, is way up. American families are caught paying the price for these policies of the Democrats and the Biden administration.

In November, we saw the biggest energy price increase in 10 years. CNBC reports that one in five American families can't afford to pay an energy bill this year. Roughly the same percentage have kept their home at an unhealthy low temperature because they can't afford the cost to heat their home. People who traveled for Christmas just faced some of the highest Christmas Day gasoline prices in history. American families are getting squeezed, and Putin is getting rich.

Joe Biden is against American pipelines, but in May, he gave a green light to Vladimir Putin's pipeline between Russia and Germany. This is a betrayal of American energy workers. It is a betrayal of America's allies in Europe.

If the Nord Stream 2 pipeline is completed, it will double the amount of Russian natural gas flowing into Germany. Putin will be able to manipulate the price and the availability of energy to European nations in the middle of winter. He will be able to hold half of Europe hostage.

Stopping this pipeline should be an area of bipartisan agreement in this body. In fact, it was an area of bipartisan agreement until Joe Biden became President. Even Joe Biden said that he was against the pipeline—well, until he was for it.

Many Democrats voted for the sanctions against the pipeline on more than one occasion, but when Joe Biden flip-flopped, so did they.

Senate Democrats now are running interference for Joe Biden. But Democrats just spent 4 years talking about Russia, Russia, Russia—obsessed with Russia. They spent 4 years going on TV, spreading conspiracy theories, all of which were false.

Yet now, the Democrat caucus is attempting to protect the Kremlin's greatest geopolitical weapon.

For the Democratic Party, this is a return to tradition. Democrats were soft on Russia during the Cold War, soft on Russia under the Obama administration. Hillary Clinton gave the Russians a great big reset button. President Obama was caught in a hot-microphone moment telling the Russian President at the time that he would have more flexibility: Tell Vladimir I will have more flexibility after I am reelected.

Democrats talk tough—they did under the last administration, that is. But now we are back to the old Democratic playbook. This is the kind of Washington, DC, partisanship the American people hate—the same thing Democrats did with Iran when Barack Obama was in the White House.

An American President must always negotiate from a position of strength. Democrats tend to think if you give Putin or the Ayatollah something they demand, that they will then play nice. That is not how the real world works. Vladimir Putin is cunning, he is opportunistic, and he is aggressive. He sees an opportunity, and he takes it. He can smell weakness. He respects strength, not statements.

The Nord Stream 2 Pipeline from Russia to Germany will be an enormous transfer of wealth from our allies to our enemy. It will make our allies weaker, and, of course, it will make Vladimir Putin stronger. When Putin gets stronger, he gets even more aggressive.

History should not be kind to those who gifted Putin a pipeline, pointed like a gun into the heart of Europe.

This vote to support sanctions on the Nord Stream 2 Pipeline is our chance

to undo a great mistake, and it may also be our chance to prevent an even greater mistake.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from North Dakota.

RECOGNIZING THE NDSU 2022 NCAA DIVISION II CHAMPIONSHIP TITLE

Mr. HOEVEN. Mr. President, I rise today to honor the 2022 Football Championship Subdivision national champions, the North Dakota State University Bison.

This past weekend, North Dakotans once again filled Toyota Stadium in Frisco, TX, where the NDSU Bison seized their 17th NCAA championship, earning victory over the Montana State University Bobcats by a score of 38 to 10.

I had the opportunity to join Bison Nation in Frisco to cheer on the team, and, as always, the fans created an overwhelming atmosphere of support and team spirit.

At the same time, the Bobcats should come away from the game with pride, having capped off a successful season. The Bison have now won 9 of the past 11 FCS championships—an achievement that goes unmatched in modern collegiate football history.

Further, this victory followed a strong season for the Bison, where they had a 14-win and 1-loss record—a continuation of a decades' worth of excellence and skill. Since 2011, the NDSU Bison have had 149 wins to only 12 losses, which includes a streak of 39 consecutive wins. Such a record stands as a testament to the hard work and dedication of the players and staff, including Head Coach Matt Entz.

Accordingly, I am joining with my colleague Senator CRAMER to introduce a resolution honoring the NDSU Bison's achievements. We congratulate all of the players, coaches, and university leadership, including Athletic Director Matt Larsen, NDSU President Dean Bresciani, and others, on building this tremendously successful program. We recognize the important support of Bison Nation, which helps drive this team to victory year after year.

The NDSU Bison are the pride of North Dakota. Their accomplishments, character, and work ethic represent the very best of our State. We say congratulations again to the national champions, and, as always, we say: Go Bison.

I ask unanimous consent to have the resolution printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

RESOLUTION

Congratulating the North Dakota State University Bison football team for winning the 2022 National Collegiate Athletic Association Division I Football Championship Subdivision title.

Whereas, the North Dakota State University (referred to in this preamble as ''NDSU'') Bison football team won the 2022 National Collegiate Athletic Association (referred to in this preamble as the ''NCAA'') Division I Football Championship Subdivision (referred to in this preamble as the ''FCS'') title game 1n Frisco, TX, on January 8, 2022, in a well-fought victory over the Montana State University Bobcats by a score of 38 to 10;

Whereas, including the 2022 NCAA Division I FCS title, the NDSU Bison football team has won 17 national football championships;

Whereas, the NDSU Bison football team has won 9 of the last 11 NCAA Division I FCS titles, an achievement that continues to be unmatched in modern collegiate football history;

Whereas, the NDSU Bison have displayed tremendous resilience and skill since 2011, with 149 wins to only 12 losses, including a streak of 39 consecutive wins;

Whereas, head coach Matt Entz and his staff led the NDSU Bison football team to a dominant season and a second championship in his 3 years as head coach at NDSU, continuing the NDSU Bison football program's culture of excellence;

Whereas, thousands of Bison fans once again attended the championship game in Frisco, TX, reflecting the tremendous pride and dedication of Bison Nation, which has supported and helped drive the achievement of the NDSU Bison football team; and

Whereas, the 2022 NCAA Division I FCS title was a victory for both the NDSU Bison football team and the entire State of North Dakota: Now, therefore, be it

Resolved, That the Senate—

(1) congratulates the North Dakota State University Bison football team for winning the 2022 National Collegiate Athletic Association Division I FCS title;

(2) commends the players, coaches, and staff of the North Dakota State University Bison football team for—

(A) their tireless work and dedication; and

(B) fostering a continued tradition of excellence;

(3) congratulates North Dakota State University President Dean Bresciani, North Dakota State University Athletic Director Matt Larsen, and all the faculty and staff of North Dakota State University for creating an environment that emphasizes excellence in both academics and athletics; and

(4) recognizes the students, alumni, fans, and all of Bison Nation for supporting the North Dakota State University Bison football team so well during its successful quest to bring home yet another NCAA Division I FCS trophy for North Dakota State University.

Mr. HOEVEN. Mr. President, before I turn to my colleague Senator CRAMER, I want to mention that I was at the national championship game. It was just fantastic.

As I say, Bison Nation, which is all our Bison fans from North Dakota and across the country, and the coaches, the staff, President Bresciani, and, of course, these great student athletes who had such a wonderful game—it was a great show. They turned out in force in Frisco, TX. We are starting to call Frisco Fargo South, which is actually the name of one of the high schools up in Fargo, which is kind of fun. But our fans travelled down there so well, filled the stadium, and they did once again. It was just a wonderful atmosphere. It was on national television, so they performed on a national stage, and people from across the country got to watch a wonderful game.

But leading up to that game, in the semifinals, they played James Madison University, which has a tremendous football program as well. That was on a Friday night, and it was the Friday night where we were last here several weeks ago voting until about 2 o'clock in the morning.

The reason I bring up the story is because we must have had—you were there, Mr. President—we must have had like north of 20 votes at least. So we started early in the evening and went until 2 in the morning or thereabouts.

But the semifinal game between the North Dakota State University Bison and the James Madison Dukes was on television that Friday evening, so between votes, we were going into the cloakroom, and we had it on television there. So between votes, all the Senators—at least in the Republican cloakroom—we had it on, and we were watching the game.

It was a lot of fun and helped, you know, with the long evening, but it really demonstrated how this program has done so much in terms of for the State and NDSU and really providing an awareness nationwide of these great student athletes we have, because all of our colleagues got to see them, and they commented on not just the caliber of the football that our team played—it was a hard-fought game. James Madison has a wonderful program as well; again, really just a class operation. So the Bison won in a hard-fought game.

But the other thing that was fun—we have a dome. We call it the Bison Dome. Go figure. And remember that Bison is B-I-S-O-N, but it is a Z, not an S, when you say it properly. But they showed all the fans having fun and the noise in the dome, which makes it so hard to come up and play North Dakota State on our home field in our dome. Everybody, of course, is dressed in green and gold. But what an incredible sports atmosphere.

For anyone who likes collegiate athletics, this is one of the most iconic, greatest venues in the country. Again, it is Bison Nation. It is the fans. It is everybody—the coaching staff, President Bresciani, his whole team, the staff and faculty, and, of course, most of all, the student athletes.

I know the Presiding Officer, coming from Michigan, knows what great sports teams are all about.

Their commitment, their hard work, their passion, their support of Bison Nation—all these things just make it a joyous and wonderful thing.

I can't say enough about these young people, the commitment they made and the hard work that they do. Many of them may actually end up in the professional ranks. So they are playing at an extremely high level. They are just wonderful young people, and I can't say enough great things about them.

Once again, now 9 out of the last 11 years, national champs—again, congratulations and go, Bison.

With that, I would like to turn to my colleague Senator CRAMER.

The PRESIDING OFFICER. The Senator from North Dakota.

Mr. CRAMER. Mr. President, I thank Senator HOEVEN. I just want to fully associate myself with every word of Senator HOEVEN and every thought you just heard. JOHN HOEVEN is not just a Senator who represents the State that the Bison play in; he is a fan. To say the least, he is a fan.

Senator HOEVEN did a great job, as have ESPN and everybody else, in highlighting the legacy of the Bison Nation. There has been 9 out of 11 national championships.

One of the things I really appreciate about Coach Matt Entz—who, by the way, was named this year again the FCS Coach of the Year. That is the second FCS National Coach of the Year in the last 3 years. He has been the coach for 3 years.

But, as he likes to point out, while it is, in fact, the ninth national championship in 11 seasons for the Bison, it is the first one for this team—a fact that we sometimes forget. Excellence over time requires one excellent team after another. So I want to focus just a little bit not so much on the legacy but on this particular team.

Remember, as Senator HOEVEN said, they beat the Bobcats 38 to 10. It became 38 to 10 after they had been ahead 35 to 0. That is not a minor thing in collegiate football. But the 38-to-10 victory tied with the fourth largest margin of victory in FCS championship game history. After that is NDSU's 28-point victory over Towson to cap the 2013 season. It was the fourth time NDSU has won the FCS championship by 26 or more points.

North Dakota State's 108 rushing yards in the first quarter and 160 in the second quarter marked the third and fourth times in the 2021 FCS playoffs that the Bison ran for 100 yards in a quarter. Imagine that. Twice they did it in the same game—103 in the first quarter and 116 in the second quarter of NDSU's second-round win over Southern Illinois.

Now, NDSU's 28-to-0 halftime lead was the largest halftime margin in FCS championship history, passing the 24-to-0 Bison lead over Jacksonville State in 2015. In other words, this team, this one team, is excellent among excellence. They had 378 yards rushing and 540 yards of total offense. That was the most by the Bison in FCS championship game history, surpassing a 300-yard rushing performance against Sam Houston State in 2012 and 488 total yards against Eastern Washington in the 2018 season.

We have to talk a little bit about fullback Hunter Luepke, who was voted the Most Outstanding Player of the championship game. He tied a career-high with three rushing touchdowns—the first three of the game, one shy of the FCS championship game record of four rushing touchdowns by Furman's John Bagwell in 1985.

This team, this one excellent team out of dozens of excellent teams over the years, and this one excellent player obviously stand out, along with their one excellent coach, as I said earlier, Matt Entz, the FCS National Coach of the Year.

I love that Senator HOEVEN consistently refers to these players as student athletes because, remember, before they are football players, they are students, and I think it is worth noting what exceptional students they are.

NDSU's Cole Wisniewski was the winner of the NCAA Elite 90 Award. The Elite 90 is presented to the student athlete with the highest cumulative grade point average participating at the finals site for each of the NCAA's championships. But he is one among many. Five student athletes were named to the football all-academic team. NDSU linebacker Jackson Hankey headlines this group of five student athletes named to the Missouri Valley Football Conference All-Academic Team on December 14.

I think it is important to highlight and be specific about these guys. Hankey is a senior from Park River, ND. John and I know Park River. It is a pretty small place. He has an undergraduate degree not in underwater basket weaving and not even in physical education, although there is nothing wrong with that, but, rather, in agricultural economics. He was selected to the first team with a 3.636 grade point average.

Here are the other four besides him: Hunter Luepke, the outstanding player of the game, has a 3.42 GPA in finance. Sophomore defensive tackle Eli Mostaert has a 3.733 GPA in finance. Kicker Jake Reinholz has a 4.00 GPA in the master's degree program in mechanical engineering. The senior defensive tackle, Lane Tucker, has a 3.857 GPA in the MBA program. Great athletes are smart athletes. Great athletes are smart athletes.

All right. To continue that, this is a tribute. Well, while they take the stage on ESPN and on game day and the various programs, it is important to point out that North Dakota State University's athletic teams achieved a remarkable—remarkable—semester last fall with a 3.418 grade point average among all 427 student athletes. Three Bison teams earned the highest ever GPA. The statistics are incredible. They are incredible in terms of academic achievements of these outstanding athletes throughout all of the sports at North Dakota State University, not just football. But they definitely lead the charts.

So, to wrap up, in talking again a little bit about the dynasty, one of my favorite quotes—and I refer to it a lot; I use it a lot when I talk about Bison football—is Aristotle, who said:

> We are what we repeatedly do. Excellence, [therefore], is not an act, but a habit.

It is not an act. It is a habit.

There are 9 out of 11 national championships in the FCS alone. Before that, as Division II, they won several national championships. They never lost a national championship. In other words, they repeatedly win national championships. That makes winning habitual. It is habitual.

They made their ninth appearance, as I said, in the championship game—the most of any FCS team. They won them all, as we know. They now have 17 football national championships in history. They won their last 13 title game appearances. I mean, it is kind of remarkable. They improved to 41 and 3—imagine this, Senator HOEVEN—41 and 3 in FCS playoffs since 2010.

We are what we repeatedly do. Excellence, then, is not an act but a habit.

I, as well, salute Dean Bresciani, the president; Matt Entz, the head coach; the entire coaching staff; the entire faculty; every student athlete; and every parent who got these student athletes to college.

It is just a remarkable thing to be able to represent this level of excellence, and I join Senator HOEVEN in saying: ''Horns up! Go Bison! Go Bison!''

I yield the floor.

The PRESIDING OFFICER. The Senator from North Dakota.

Mr. HOEVEN. Mr. President, I thank Senator CRAMER for his comments and wonderful commentary on these great student athletes, but there is one other point I want to make that goes to the excellence of this program.

In the last national championship they won, the quarterback was a wonderful player by the name of Trey Lance. He played for 1 year as a redshirt freshman. So he easily could have been playing this year, which would have been probably his sophomore or, maybe, junior year. It is a little hard to say with the COVID spring season, but I think it would have been his sophomore year.

The reason he wasn't able to quarterback the team is that he was quarterbacking the San Francisco 49ers to a win in the NFL. So they bring in another redshirt freshman quarterback who platoons with some other players, who is another wonderful quarterback, Cam Miller. So they win it with another player.

Again, it just shows, even as they lose some of these players—sometimes in the transfer portal and sometimes to the NFL, as Senator CRAMER said—they keep bringing in just excellent athletes, and he mentioned a number of them. It is not just that they are excellent athletes; they are student athletes. Again, that goes to the quality and the character of the program.

So we commend all of them—Senator CRAMER, thanks for joining me—and also with KELLY ARMSTRONG in the House in recognizing a wonderful group that truly deserves it—all the Bison nation.

Anything else from Senator CRAMER? All right.

I yield the floor.

The PRESIDING OFFICER. The Senator from Alaska.

Mr. SULLIVAN. Mr. President, I want to congratulate the North Dakota

Senators, my colleagues, on the great job with their football team.

''Go Bison!''

Well done, North Dakota.

FILIBUSTER

Mr. President, I wanted to come down here, like many of my colleagues today, and talk about a really important topic, and that is the future of the filibuster and the issue of voting rights, both of which are very important to this country. We are going to be focused a lot—perhaps with some major votes, historic votes, in the U.S. Senate this week—on these topics.

There has been a lot of talk recently from my Democratic colleagues about actually getting rid of the filibuster. This, as many of my colleagues have mentioned, would be an action that would fundamentally transform this institution and this country.

The irony is that, until very recently, the vast majority of our colleagues here—Republicans and Democrats—were in agreement on this topic, in essence, of getting rid of the filibuster, which has been part of the U.S. Senate for decades—for centuries, in many aspects, if you look at our history. It would not be a wise move for the Senate. It would not be a wise move for America. This has been a longstanding bipartisan view.

Let me just give you a couple of quotes from some of my colleagues.

My colleague from Montana, Senator TESTER, just said last year:

I am a ''no'' on changing the filibuster. I am a ''no.'' The move to make the Senate like the House, I think, is a mistake.

My colleague from Delaware, Senator COONS, said in 2018:

I am committed to never voting to change the legislative filibuster.

That is what Senator COONS said.

My colleague from Illinois, Senator DURBIN, in 2018, also said:

I can tell you getting rid of the filibuster would be the end of the Senate as it was originally devised and created going back to our Founding Fathers. We have to acknowledge respect for the minority, and that is what the Senate tries to do in its composition and its procedure.

Wise words from Senator DURBIN.

Of course, there is a trove of quotes from the majority leader, Senator SCHUMER, who vehemently opposed getting rid of the filibuster in the past when he was in the minority. Let me highlight just a few of them.

Here is one he said in 2005:

Bottom line is very simple. The ideologues in the Senate want to turn what the Founding Fathers called the ''cooling saucer of democracy'' into the rubberstamp of dictatorship. We will not let them. They want to make this country into a banana republic.

Never one for subtlety, that is our majority leader right now.

Then he went on to say:

It would be doomsday for democracy.

Again, not too subtle there, the majority leader.

It would be doomsday for democracy if we get rid of the filibuster.

Here is another Senator who is very famous around the world and who became President, Barack Obama.

He said with regard to getting rid of the filibuster in 2005:

What they do not expect is for one party, be it Republican or Democrat, to change the rules in the middle of the game so that they can make all the decisions while the other party is told to sit down and keep quiet.

Since we are reaching back, let me quote the late Senator Robert Byrd of West Virginia on this issue.

Here he is in 2005:

The filibuster must go, they say. In my 53 years in Congress, I have never seen a matter that came before the Congress, before the Senate, or the House, as a matter of fact, that is so dangerous, so out of the mainstream, and so radical as this one. I pray that Senators will pause and reflect before ignoring that history and tradition in favor of the political priority of the moment.

That was Senator Byrd.

Of course, it is not just Senators. Here is what the organ of the Democratic Party, also known as the New York Times editorial board, said in 2004 about the filibuster:

Republicans see the filibuster as an annoying obstacle, but it is actually one of the checks and balances that the Founders, who worried greatly about the concentration of power, built into our system.

So this has been a view that has been widely held: Don't get rid of the filibuster.

Senator MANCHIN, in an op-ed recently, talking about how he would not, under no circumstances, vote to eliminate or weaken the filibuster, gave a really important reason why, which, as Alaska's Senator, I feel very strongly about. He noted in that piece that the current rules with regard to the filibuster and the 60-vote threshold guarantee that ''rural and small States and the Americans who live in them always have a seat at the table in the U.S. Senate.''

Well, I think that that is enormously important. It is enormously important for Alaska, but it is enormously important for the Senate as a body, which was how we were designed by the Founding Fathers.

Now, you know, there are charges of hypocrisy that can be leveled at this institution and at the Members in it. Many times, there are examples of when Members of Congress say one thing when they are in power and have authority and they say another thing when they are out of power. But I will tell you, on this issue, that has not been the case for the Republican Senators here.

What do I mean?

In 2017, 61 U.S. Senators, in this letter, wrote the majority leader, then Senator MCCONNELL, and the minority leader, Senator SCHUMER—33 Republicans and 30 Democrats—saying, in essence, don't get rid of the filibuster. These were 30 Democrats, 4 years ago, who wrote this letter, saying don't get rid of the filibuster.

Now, that is when the Republicans were in the majority, and there was a Republican in the White House. There was pressure, I will tell you, on Republicans like there is now on Democrats, from certain elements in the White House and other places, to get rid of the filibuster, and we didn't do it. We did not do it for all of the reasons that we have been discussing.

Yet I guess we are going to see a vote in the first time in history, I believe, in the U.S. Senate where the majority leader of the U.S. Senate is going to actually move forward to start getting rid of the filibuster. I am pretty sure that has never happened—the legislative filibuster—in the history of the United States of America. It is a big deal.

So, look, my Democratic colleagues are clearly cognizant of how vulnerable they look with regard to being hypocritical on the issue. As I mentioned, 31 of them, just 4 years ago, signed a letter, saying don't get rid of it when Republicans had power in the Senate and in the White House, and we didn't. But now, they are like, Hmm, we are going to flip-flop and say we should get rid of it.

The Presiding Officer may have seen that there are already these filibuster flip-flop cards. I won't name the Senators, but it shows them wearing flip-flops. The President is there, but it is already out there, right? This is a big, big flip-flop, not on some small issue but on one of the most fundamental issues in the U.S. Senate, and my colleagues know this.

So what is their response? What is their response?

In looking at their previous statements, like the Senate majority leader's, who has made a lot of statements—I have just read a few—in saying, you know, that it doesn't really matter, and I didn't really mean it, what is the argument? Well, here is the argument. Here is their argument. The Senate filibuster must be nuked because American democracy must be saved from Republican State legislators and Republican Members of Congress and their so-called Jim Crow 2.0 schemes. This is their new language. Everybody from the President to Majority Leader SCHUMER is using this talking point.

Just yesterday and today, the majority leader was going on about Republican Jim Crow 2.0 schemes and the need for Democrats to protect and defend American democracy, and Joe Biden—that unifier, that great unifier—uses the Jim Crow 2.0 charge against Republicans on a very regular basis. As a matter of fact, he just did it a few hours ago, again, down in Georgia today.

It is all historically inaccurate, and it is insulting to millions of Americans. Of course, they are stated with a smug, moral superiority, their arguments that voting rights laws—just listen to them, listen to them—in Democrat States are good and noble and are protecting American democracy while voting rights laws in Republican States are bad and even racist. Jim Crow 2.0 is their argument. Listen to the President. Listen to the majority leader.

They were making those arguments as recently as today. That is their argument as to why, after all of these years of saying don't get rid of the filibuster, they are saying now we have to get rid of the filibuster.

So here is the key question: Are these arguments accurate? Are their claims actually true?

Now, I do not assume to know the details of other States' voting laws, and here is the truth. You have had a lot of U.S. Senators in the last couple of weeks and couple of months—heck, even today—coming down to the Senate floor, claiming they know all about these other laws in other States on voting rights. They don't. Trust me. For those watching, they don't.

I don't claim to know the details of voting rights laws in other States. But here is what I do know. I know a lot about Alaska's laws, a lot about Alaska's voting laws. In fact, when I was attorney general, I was in the trenches, defending the right to vote for all Alaskans. I am proud to have that as part of my record.

I know a lot about Alaska's voting rights laws—a Republican State—and here are some very important and rather inconvenient truths and facts about my State's laws in three critical areas of voting rights: early in-person voting, automatic voter registration, and no-excuse absentee voting.

My Republican State, the great State of Alaska, has voting laws that are significantly more expansive than the laws of New York, than the laws of Delaware, than the laws of Connecticut, than the laws of Massachusetts and the laws of New Hampshire, just to name a few. That is a fact.

President Biden's speech today talked about facts. Well, these are facts. And I am going to talk a little bit more about these facts, but here is my point: Those States I just named—New York, Delaware, Connecticut, and Massachusetts—are those States Jim Crow 2.0 relative to Alaska? Well, by Joe Biden's reasoning, they are.

So I want to go a little bit more in detail on some of these issues I am talking about. These are important areas with regard to voting rights.

Let's start with early in-person voting: Alaska, 15 days; other States, less so; New Jersey, DC, 10 days, 7 days; New York, 10 days; Massachusetts, 11 days. They haven't met my State yet. That is OK.

Now look at Connecticut—no days. There is no early in-person voting at all. In New Hampshire, there is no early in-person voting at all. Why don't these States want people to vote early? Is it Jim Crow 2.0? Look, I wouldn't make that claim against those States, maligning their elected officials. I am sure they have their reasons. But, again, by President Biden's logic, they are.

Let me do another area of important voting rights laws: voter registration.

My State in essence has automatic voter registration—probably one of the most forward-leaning of any State in the country. As I speak right here on the Senate floor, there is no automatic voter registration in Pennsylvania, in Minnesota, in Arizona, in New Hampshire, in Delaware—President Biden's State—or in Wisconsin. None. None. None of these States have automatic voter registration. Are these States Jim Crow 2.0 relative to Alaska, my Republican State? I wouldn't say that, but, again, by President Biden's logic, they are.

Let me give you one more, a pretty important one as well. This is the issue of no-excuse absentee voting. There are many other expansive provisions in Alaska's laws as it pertains to voting, but here is one that we think is important. If for some reason you can't make it down to the polling location and you want to vote absentee, you can. You don't need an excuse to vote absentee. We have been doing that for years and years and years.

Let's look at other States. In Delaware, you have to have an excuse. In New Hampshire, you have to have an excuse. Connecticut. Massachusetts. New York. By the way, all of the Senators from these States are down here. Jim Crow 2.0. Republican States. What about this issue? This is a really important issue. Are these States Jim Crow 2.0 relative to my State? Well, according to Joe Biden's logic, they are. I wouldn't make that claim.

Let me focus on New York, Connecticut, and Massachusetts for a little bit longer, on their laws—because I did look into this—and actually what does not constitute an excuse.

Again, in my State, there is no excuse. If you want to vote absentee, you can. In these States, you have to have an excuse. But here is the deal. In New York or Connecticut or Massachusetts, age is not an excuse. It is not an excuse. You can be 90 years old, 95 years old; fought in World War II; maybe it is hard for you to get to the polling place—nope, not in New York, not in Connecticut, not in Massachusetts. That is no excuse. Sorry, World War II veteran who can barely walk.

Let me give you another example of those States—actually, the States of New York, Delaware, Connecticut, Massachusetts, and New Hampshire. If you are a victim of stalking or domestic violence—you don't want to leave your home and go to a public polling place; you don't want your address on a public document—is that an excuse so you can get an absentee ballot? Nope. Nope. You must leave your home and go down to the polling place. That is not an excuse, domestic violence victim.

Let me remind the listeners. New York doesn't allow that as an excuse. The majority leader is from New York. Delaware doesn't allow that as an excuse. The President of the United States is from Delaware.

(Ms. HASSAN assumed the Chair.)

To me, these election laws seem particularly egregious, as egregious as any of the examples offered by the other side about voting restrictions in other States that we have been hearing about, ones that are now shamelessly and ridiculously compared to Jim Crow 2.0 by our own President, the unifier. But here is the thing: I wouldn't tell New York that it must change its voting laws. I don't understand the people who live in New York who don't want to give a World War II veteran an excuse to vote absentee.

For that matter, New York actually doesn't want to change their own voting laws to be more expansive of voting rights like we are in Alaska. How do I know this? New York just had a statewide referendum to have same-day voter registration and no-excuse absentee voting like my State. Guess what. The people of New York voted against that. The people of New York had an opportunity to meet the level where we are in Alaska, a Republican State, and the people of New York rejected it.

I don't know what is going on in New York, why the good people there rejected these provisions, but it is going to be interesting. We will see if Leader SCHUMER is consistent and accuses his own constituents of supporting Jim Crow 2.0 as he has millions of his fellow Americans. Is he going to do that?

They just rejected what my State already has: no-excuse absentee voting. New York rejected it. Are the New Yorkers Jim Crow 2.0 relative to Alaska? I don't think so. There are reasons in their State, I am sure, that they would make for not doing what we do in Alaska. But, again, by President Biden's own logic, they are. I am confident the good people of New York have a reason.

But here is the thing, and it is a serious issue: The Jim Crow era, we know, was a horrible blight and stain on our country. Some of the most heinous laws were passed to prevent African Americans from voting. It was a horrible era. But it is remarkable how casually the President of the United States and the majority leader now throw out their Jim Crow 2.0 insult at Republicans, at Republican States. The President and the majority leader do this when their States don't even closely measure up to mine on critical voting rights issues and laws. It is pretty remarkable, pretty hypocritical.

But it is not just me making this argument. Here is an article from The Atlantic that came out recently entitled ''The Blue States That Make It Hardest To Vote.'' Here is the subtitle: ''Democrats are criticizing Republicans for pushing restrictive voting laws. But states such as Joe Biden's Delaware can make casting a ballot difficult.''

I would I ask unanimous consent to have this printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

[From The Atlantic, April 15, 2021]

THE BLUE STATES THAT MAKE IT HARDEST TO VOTE

(By Russell Berman)

DEMOCRATS ARE CRITICIZING REPUBLICANS FOR PUSHING RESTRICTIVE VOTING LAWS. BUT STATES SUCH AS JOE BIDEN'S DELAWARE CAN MAKE CASTING A BALLOT DIFFICULT.

If President Joe Biden wants to vote by mail next year in Delaware, he'll have to provide a valid reason for why he can't make the two-hour drive from the White House back to his polling place in Wilmington. Luckily for him, Biden's line of work allows him to cast an absentee ballot: Being president counts as ''public service'' under state law. Most Delaware residents, however, won't have such a convenient excuse. Few states have more limited voting options than Delaware, a Democratic bastion that allowed little mail balloting before the pandemic hit.

Biden has assailed Georgia's new voting law as an atrocity akin to ''Jim Crow in the 21st century for the impact it could have on Black citizens. But even once the GOP-passed measure takes effect, Georgia citizens will still have far more opportunities to vote before Election Day than their counterparts in the president's home state, where one in three residents is Black or Latino. To Republicans, Biden's criticism of the Georgia law smacks of hypocrisy. ''They have a point,'' says Dwayne Bensing, a voting-rights advocate with Delaware's ACLU affiliate. ''The state is playing catch-up in a lot of ways.''

Delaware isn't an anomaly among Democratic strongholds, and its example presents the president's party with an uncomfortable reminder: Although Democrats like to call out Republicans for trying to suppress voting, the states they control in the Northeast make casting a ballot more difficult than anywhere else.

Connecticut has no early voting at all, and New York's onerous rules force voters to change their registration months in advance if they want to participate in a party primary. In Rhode Island, Democrats enacted a decade ago the kind of photo-ID law that the party has labeled ''racist'' when drafted by Republicans; the state also requires voters to get the signatures of not one but two witnesses when casting an absentee ballot (only Alabama and North Carolina are similarly strict). According to a new analysis released this week by the nonpartisan Center for Election Innovation and Research, Delaware, Connecticut, and New York rank in the bottom third of states in their access to early and mail-in balloting.

The restrictions across the Northeast are relics of the urban Democratic machines, which preferred to mobilize their voters precinct by precinct on Election Day rather than give reformers a lengthier window to rally opposition. Democrats who have won election after election in states such as New York, Delaware, Connecticut, and Rhode Island have had little incentive to change the rules that helped them win.

The party has been more concerned with expanding access to the polls in places where it has struggled to obtain and keep power (although it's not clear whether Democrats' assumptions about the impact voting laws have on turnout are correct). In Congress, Democrats are prioritizing legislation called the For the People Act, or H.R. 1, which seeks to curb GOP efforts to suppress voting. The bill would set national standards to loosen photo-ID requirements, guarantee early-voting and voting-by-mail options, and mandate automatic and same-day registration. Although Democrats have focused on how the bill would rein in red states, H.R. 1 would hit some blue states just as hard, if not harder.

Republicans love to call out Democratic sanctimony in the debate over voting laws, but this ignores the divergent directions the two parties are headed. Following their 2020 defeat and under pressure from Donald Trump allies, Republicans are pushing to restrict voting in states such as Texas, Iowa, Arizona, and Florida, which have recently been competitive. The Georgia law tightens ID requirements for absentee ballots and caps the number of drop boxes where they can be deposited. The measure also limits who can distribute water to voters waiting in line outside polling places. The effect of the bill is likely to make voting easier in Republican strongholds—by expanding early voting in rural areas, for example—but harder in Democratic urban centers, where lines at polling places tend to be longer and where voting by mail was more popular last year.

Democrats in charge of blue states are now racing to expand access in a way that matches the party's rhetoric nationwide. In some cases, they're trying to make permanent the temporary changes to voting laws that were put in place because of the pandemic. Delaware, for example, removed the mandate that voters cite a reason for casting an absentee ballot. Making the reform permanent requires the passage of an amendment to the state constitution, and Republicans who supported that proposal in the past are balking now, threatening its adoption.

The limit on mail-in ballots isn't Delaware's only voting anachronism. Bensing told me that he's been voting early in elections since he first cast a ballot, in Arkansas in 2002. When he moved to Delaware two years ago, he was shocked to find that the option wasn't available. Delaware won't debut early voting until 2022, and the 10-day period the state plans to offer still falls short of the 15-day minimum congressional Democrats have proposed in their voting-rights legislation.

Democrats in Delaware may finally be opening up their voting laws, but they're unwilling to call them racist. State Representative David Bentz has been trying to expand voting since he arrived in the legislature in 2015 and is leading the Democrats' push to modernize the state's laws now. But when I asked him why it's taken so long for Delaware to change its rules, he was stumped. ''I wish I had a better answer for you,'' Bentz told me. He said the state did not have a history of long lines at the polls. ''It wasn't something where groups were coming up to me and saying, 'Hey, we're disenfranchising people,''' Bentz said. If anything, Democrats suggest, the state's restrictive voting laws are born of political inertia. When Bentz and Bensing joined a multiracial group of advocates over Zoom last week to announce a coordinated push for new voting laws, according to Bensing, it was the first-ever statewide coalition dedicated to voting rights in Delaware.

Unlike Delaware's restrictions, Rhode Island's voter-ID law can't be described as antiquated: The statute is just 10 years old and won adoption under a Democratic majority with support from powerful Black elected leaders. Voting-rights advocates trace the law's passage to the conservative bent of the state's Democratic Party and tension that pitted Black and white Democrats against the state's rising Latino population. Backers of the bill included the first Black speaker of the General Assembly. They shared stories of voter fraud they had witnessed, but opponents of the law saw it as an effort to suppress Latino turnout in Providence. ''It was bizarro,'' said John Marion, the executive director of Common Cause Rhode Island, the state affiliate of the national government-watchdog group. ''Ten years later, I still don't know how it happened.''

Rhode Island Democrats have proposed legislation to expand voting by mail and early voting, including a repeal of the requirement that absentee ballots have two witness signatures. But they're not likely to touch the voter-ID system. ''Repealing voter ID was a nonstarter,'' Steven Brown, the executive director of the ACLU of Rhode Island, told me. ''So there was no point in putting it in the reform bill.'' Rhode Island's critics of the ID requirement now find themselves in the same unenviable position as their progressive allies in red states: hoping the federal government will override a restrictive law that their own leaders—in this case, fellow Democrats—refuse to change.

Mr. SULLIVAN. Here is a little bit of what this article says:

[President Biden] has assailed Georgia's new voting laws as an atrocity akin to ''Jim Crow in the 21st century. . . . But even once the GOP-passed measure [in Georgia] takes effect, Georgia citizens will still have far more opportunities to vote before Election Day than their counterparts in the president's home state.

That is The Atlantic—not known as a Republican magazine or anything.

The Atlantic article goes on to say:

Delaware isn't an anomaly among Democratic strongholds, and its example presents the president's party with an uncomfortable reminder: Although Democrats like to call out Republicans for trying to suppress voting, the states [the Democrats] control in the Northeast makes casting a ballot more difficult than anywhere else.

Than anywhere else.

Here is the point I am making. I am not trying to say that every other State should be like Alaska, that we need to federalize elections so every State has the same voting rights issues. I am proud of where my State is, and I am certainly not going to let any smug argument on the other side somehow accuse my Republican State of Jim Crow 2.0. Meet the standards in my State before you make those arguments.

But the point is, we are not all going to be the same. I have a State that is one-fifth the size of the lower 48. We have very unique voting issues. And the Founding Fathers strongly believed that election laws, for that reason, should be crafted State by State.

This is in the Constitution:

The Times, Places and Manner of holding Elections for Senators and Representatives, shall be prescribed in each State by the Legislature thereof; but the Congress may at any time by Law make or alter such Regulations.

Yes, this Congress may make laws and regulations, but a wholesale Federal takeover of every State's elections law is not what the Constitution contemplated, and it is not what would be good for each citizen of each State in our country.

My invitation to the President and other Members who are fundamentally demanding that we fundamentally alter this body by getting rid of the filibuster: Save your smug Jim Crow 2.0 insults. Go back to your own States. Undertake voter rights legislation is as expansive as my State. Take care of your own States first before you come here and tell us that you need to fundamentally reorder this body and this

country by getting rid of the filibuster—an issue that almost everybody agreed on just a few years ago was not a good idea for the Senate or for America.

I yield the floor.

The PRESIDING OFFICER. The Senator from Indiana.

Mr. BRAUN. Madam President, before I ran for the Senate, I ran a business that started in my hometown. Oftentimes you get criticized when you try to draw a parallel between a business and this place. And I guess it is so different, so it would be easy to make that argument.

But in the real world, if you have got a bad idea, you can't just change the rules. You have got to outcompete. You have got to offer another product. Only here, with the results that we have produced over time, would you want it even easier to generate bad ideas and put them into law.

The comparison between State government and here, I think, is valid. In almost all State governments, there is a constitutional amendment or a statute that says you can't spend more than you take in. There are certain guidelines, whenever you try to put any legislation forward, that you run it through regular order. We don't do that anymore. That takes too much time. That takes too much effort.

And when you try to get rid of the things that work in other places and double down on bad performance, that is what my Democratic colleagues are trying to do. The radical Build Back Better agenda failed. And now, instead of changing their agenda, running it through committees, making it more palatable to get at least one Republican vote, they want to change the rules.

Changing the rules of the Senate to enact their failed agenda is just the beginning. They want to completely take over our elections. Senator SULLIVAN just said a moment ago, in the Constitution, it couldn't be more explicit that that is the domain of the States.

Their plan is to silence those who stand in their way to campaign to fundamentally change in this country election law, and I don't think the country is going to have it. Thankfully, my Democratic colleagues can't even get all of their own Members on board. I think that was the same problem with the Build Back Better agenda. This is just going for something even more extreme, more impactful. It would have a ripple effect for who knows how much and how long down the road.

Hoosiers should not have their voice in DC watered down by power-hungry politicians who will do anything to get their way. The For the People Act should be called the ''For the Politicians Act.'' It would be a better name because that is what we are enabling here. States like Indiana, States like Alaska conduct their elections fairly.

And by the way, where were any complaints pre-COVID? You didn't hear of any. You change the rules; then you want to homogenize it across the country. That doesn't make sense.

Election integrity measures like voter ID are extremely popular—with a photo ID. Every State likes that. That polls in close to the 80-percent range, which is unheard of around here.

Americans are fed up with the top-down approach, one size fits all. It would be different if we were knocking it out of the park to begin with. We certainly aren't. We ought to work on the issues we can agree on and the beautiful system that was built. When you can't, don't feel that the only way it can get done is by doing it here. Turn it back to the laboratory of the States.

Another thing that irks me: 3 years ago, $18 trillion in debt, approaching the record level, which we have now eclipsed, post-World War II. The difference then and now is we were savers and investors then. We are consumers and spenders now. And this will open the floodgates for even more heavy burden on our kids and grandkids.

We shouldn't be changing the rules to make it easier to legislate or spend money when we produce the results that have been produced here now for decades. We cannot allow President Biden and the Democrats to change the rules and take over our elections to save their radical, failed agenda.

I yield the floor.

The PRESIDING OFFICER. The Senator from Oklahoma.

Mr. LANKFORD. Madam President, we are in the same spot in the Senate we have been at five times before in the past 12 months. My Senate colleagues are bringing up a bill on voting to federalize our elections.

This time is different. This time their demands have changed. It is not just, ''Vote for my bill or take a vote.'' It is, ''If you don't do this, we will blow up the Senate permanently.'' Oh, that is a different thing. So let me set some context on this because this requires some conversation about where we are, what this conversation is all about, and what this really means for the future.

So first let me begin with the bill itself. There is no question 100 Senators here have all been through an election process. We are all experts on elections. We have walked through it in a way that most Americans have never walked through before. We are passionate about fair elections. We are passionate about the people who actually vote because those are the people who are actually engaged in our society. As we have millions of people who check out, don't care, and don't vote, we encourage people to vote, to pay attention.

The laws in our States are a little bit different on voting because each State is a little bit different. That is not something new. That is actually written into the U.S. Constitution. It has been that way since 1789. They have always been a little bit different.

In 1965, our Nation took a strong, bold step to be able to make sure that we protected the rights of every single individual to be able to vote because there was a season in American history where Black Americans were being pushed out. There were poll taxes. There were Jim Crow laws. There were things that actually pushed people away from voting.

So, in 1965, our Nation passed the Voting Rights Act. I will talk a little bit more about that in a moment. That Voting Rights Act still stands today to be able to protect the right of every individual in America to vote. If a single person or group of people are suppressed in their voting, are prohibited from voting, Federal courts today have the right to be able to step in on any jurisdiction, any State in America, to be able to protect the rights of individuals to be able to vote.

I bring that to this body as a reminder because, for some reason, an enormous portion of this body on the left side of this room is running around the Nation and saying, ''If we don't do something right now, there will be voter suppression in America, and we have to change that,'' when they all know, in 1965, we passed the Voting Rights Act, and that act still stands today to be able to protect the rights of individuals.

I hear people wander around the Nation and get on news channels and say the Voting Rights Act has been kicked out by the Supreme Court, when they know that is a lie. They know it is. One section of the Voting Rights Act the Supreme Court took out several years ago. It was the section that required what is called preclearance. It created a formula for States that had done a lot of oppression against Black Americans. It created a certain formula for them. If they made any changes in their voting laws, they had to get preclearance for that.

It stayed in place for decades. Even though their State had cleaned up their voting laws and had changed, for decades it stayed there, until the Supreme Court looked at it and said: You can't hold this over these States a generation later for something that a previous generation did.

And so the Supreme Court kicked that one section out but kept everything else, including protecting the rights of every single American from voter suppression. Every law in every State in America could be challenged in a Federal district court, circuit court, and to the Supreme Court to make sure the rights of individuals are protected.

Now, people here may not know that that still exists based on the way that the news has talked about voting of late and based on all the conversation about voting, but that is the law of the land right now.

So what is being brought to this body to vote on then? Well, here is what has been brought to this body to be able to vote on: a long list of things that they

want to be able to address and to be able to say they want to change voting in America to be able to remake it in their image, except it is not in the image of their States because many of my Democratic colleagues don't actually have, in their own State, the things that they are actually putting into this Federal legislation; meaning, literally, they are taking over from officials in their own State, telling their own Governor, their own legislature that they are wrong and that they are going to set them straight.

We have a disagreement on some of these issues. I will grant you that. Some of these areas in the bill we go: Let's talk about it. Most of the areas in their bill we look at and go: Are you kidding me? We just disagree on this—things like same-day voter registration, where a person could literally walk in and say, ''I never registered to vote before,'' tell them their name, and then vote on the spot. Honestly, I have a problem with that because there is no way to be able to validate they didn't vote in Oklahoma City, then vote in Tulsa, then vote in Muskogee, OK. There is no way to know. They just voted, and they did same-day registration, so there is no way to verify that person is actually that person.

Interestingly enough, they also include in their bill undermining State voter ID laws, so the combination of the two is pretty powerful. You can't call for ID, but you can register on the spot. That is a formula for fraud.

It is not just my opinion; it is the State of New York's opinion. The State of New York does not have same-day voter registration. In fact, this last November, it was on the ballot in the State of New York, and the people of the State of New York overwhelmingly said that is a terrible idea and voted it down. Yet Senator SCHUMER stands right over there and tells every State, including his that just voted this down: No, you have to do this. We are going to require it because some people in this body think it should be required.

We have a disagreement on that. That is a real disagreement we should be able to debate and talk about. Instead, my Democratic colleagues are saying: If you disagree with me on this, I will blow up the rules of the Senate, and we will get what I want no matter what.

Can we not have a disagreement that same-day voter registration may be a bad idea, when even the State of New York and the people of New York think it is a bad idea?

They have a mandate for using ballot drop boxes. I don't have a problem with ballot drop boxes, but their ballot drop box issue is you can't provide security. If you have any kind of security setting for it or any kind of chain-of-custody requirement, then that is going to be oppressive and suppressive.

You know, I think it is a good idea, when dealing with a ballot, that you actually know where it went and if anyone changed it; if people dropped off multiple ballots, when it is only legal to drop off one. I think it may be important to know if you are going to verify an election. We have a disagreement on that.

We have a disagreement on the issue of felons voting. Now, each State makes that decision whether they are going to allow felons to vote, but in this piece of legislation Democrats are bringing, they are saying: No, felons have to be given the right to vote when they get out of prison.

Now, I understand we may disagree on that, but I want you to understand what they are saying. My Democratic colleagues are saying: I will blow up the rules of the Senate and change 250 years of history in the Senate to get my way if you don't allow rapists, convicted murderers, and convicted sex offenders to be able to vote. They are so determined that sex offenders get the right to vote, they are willing to blow up the rules of the Senate to get it.

Can we not have a disagreement on if we are going to force States to mandate that convicted murders, sex offenders, and rapists get to vote again?

In this piece of legislation, they provide government funding, taxpayer funding, for Members of the House of Representatives just down the hall over there. Here is the way they set it up: If you are running for the House of Representatives and you raise small-dollar donations, then taxpayers will fund your campaign on a 6-to-1 match. It gets even better because you, as a candidate, could actually take a salary from that as well and actually be paid by the taxpayer to be able to run for office if you are running in the House of Representatives. Can we not have a disagreement on that?

I don't meet many people in Oklahoma who say they want to fund House Members running in New York State or California or Illinois or even in Oklahoma. They don't want to fund them with their tax dollars. If their tax dollars are going to education or roads or national defense or border security, they are all in, but if they are funding a political campaign with their tax dollars, I just don't meet many people who are very excited about that. But my Democratic colleagues are saying: If you don't support that, I will blow up the Senate, and I will destroy 200 years of history in the functioning of the Senate to get my way because, to them, having Federal funding for elections is so important, they are willing to blow the Senate tradition up so they can get their way.

There is a general counsel who works for the Federal Election Commission. You never met him. You don't know his name. He is an attorney who works with the Federal Election Commission. Their bill gives that attorney a tremendous amount of power to oversee elections in America. Do you know who he is? I don't either. But if this bill passes, it is a pretty powerful individual. Can we have a disagreement about that or is this about, if I don't allow someone no one even knows their name, a Federal Election Commission attorney, to be able to run elections in the country, I will blow the Senate up.

There is a section of it in this bill that talks about preclearance. We actually don't know how many States would fall into preclearance on this. Many of my Democratic colleagues say: Well, it is not very many. You have to have some sort of violation in the past to be able to get it. But, actually, if you read the fine print in the bill, it says if there has been a consent or out-of-court settlement on things related to an election any time in the last 25 years, you would suddenly now be in preclearance.

So, literally, 20 years ago, if your State made some agreement on elections, if there was some settlement that was done with DOJ during that time period, didn't even go to court; you just settled it to resolve it—said, yes, that was a mistake that was done—now that is going to come back to haunt a future generation.

And States will get drawn into preclearance, which—let me describe what that means. Preclearance means your State legislature can no longer pass legislation on elections until you contact the Attorney General of the United States and ask permission first. So now your State legislature works for the Attorney General of the United States, whoever that person may be in the future. It actually gives them the ability to be able to control anything on election law in your State, even though we don't even know who that is, and we don't know how many States are actually included.

What I have heard over and over again from my Democratic colleagues is, well, if we don't do this right now, our elections are destroyed in the future because have you seen the things that Republicans are doing all over the country? Have you seen the terrible laws that have been passed since 2020?

Actually, I have. My State is one of them. And I was surprised when I saw my State on the list of 34 different laws that are out there that have been passed that are terrible for America so we have to be able to federalize all elections. I was surprised to see my State on the list. When I looked on the list to see what was the terrible thing that passed in my State, here is what I discovered: Our State passed HB 2663. HB 2663 did a couple of things. It added an extra day of early voting for the general elections. They added an extra day of in-person early voting.

And it said, if you request an absentee ballot, you have to do that 15 days prior to the election. Do you know why we did that? Because the U.S. Postal Service contacted every State and asked them to do that because the Postal Service said: We can no longer guarantee we can get something mailed to a person and give them time to get it actually mailed back in time for the election. So to make sure people's votes actually count, we did what the

U.S. Postal Service actually recommended to us. We moved our request for an absentee ballot to 15 days before the election to make sure every vote would count.

You want to know something fun? So did the State of New York. They made the exact same change. So, apparently, the State of New York is also into voter suppression the same as the State of Oklahoma is.

Do you know what is really happening? My Democratic colleagues are running around the Nation getting on the news and saying there are 34 new laws passed by Republicans; they are destroying the right to vote. And apparently no one in the media is saying, ''List one,'' because if they would have listed one, they would have listed the State of Oklahoma added—added—an extra day of in-person voting and did what the U.S. Postal Service asked us to do, the exact same thing that the State of New York did.

Let me give you some other things that have happened in other States. In Florida, there is a requirement that voters provide the last four digits of their Social Security number or their driver's license number or their Florida ID number when they request a mail-in ballot to make sure it is actually them. It is pretty straightforward. That doesn't sound like voter suppression; that sounds like just verifying that a person who is asking to vote by absentee is actually the person voting.

They made it very simple. You can just do any number. They are not even showing ID. They are saying you can just give the last four digits of your Social Security number, which everyone has. All they are just trying to make sure is that person is actually there and is actually who they say they are, but they are listed as being voter suppression there.

Arizona is requiring a voter signature on early ballots, as do a lot of States already. That has not been a big issue on that.

In Louisiana—this is a really big one in Louisiana. Louisiana and Utah—now, I understand why Democrats are challenging this. In Louisiana and Utah, they required that deceased voters be taken off the voter rolls. Those who are decreased, they are taken off the voter rolls. That is being listed as voter suppression.

I have to tell you. I have a friend of mine who said to me: When I die, would you make sure that I am buried in a blue State because I want to make sure I can continue to vote. It is a running old joke about ''I want to keep voting when I am dead.''

The State of Louisiana and the State of Utah, all they did was say: We want to be able to clean up our voter rolls to be able to take off the names of people we know and have verified that they are actually dead. But that is considered voter suppression, and my Democratic colleagues are running around the Nation saying there are 34 new laws that are suppressing the right to vote, when this is the kind of stuff that has actually been passed around the country.

Now, they will say: Oh, you can list those; I understand those. But there are a couple of them that are really egregious. I have heard several folks say: Do you realize that the State of Georgia—the State of Georgia and the law that they passed won't allow people to be able to pass out water to people in line? That is voter suppression.

Well, did you know that new law in Georgia has been the old law in the State of New York for years so that you couldn't campaign in line? People who are actual poll workers, who are volunteers there, they can pass out food and water. But the State of Georgia did a law just like the State of New York already has. I haven't heard Senator SCHUMER say that is voter suppression in New York, but he declared that to be voter suppression in Georgia. In fact, even Georgia Senators here stood up to be able to protest that they were playing baseball in Georgia because of it. The State of New York already has it.

I have also heard folks say: Well, there are some of the things that these States have passed that they are actually removing the ability of the State chief election official to administer elections. That is dangerous because then just a legislature can declare whoever they want to declare. That sounds horrible. If true, that would be terrible. It just doesn't happen to be factually true, but it is just getting spun like crazy that Republican States are out there taking away the rights of their people to be able to vote and their vote be counted. It is just not factually true.

They will go to Georgia and say they stripped the Secretary of State's authority to oversee elections. Here is what Georgia actually did. The Georgia secretary of state is still the chief election official for the State of Georgia.

They still oversee all election activities in the State, nothing changed on that. But Georgia did replace the secretary of state on the State election board with a nonpartisan chair, making the secretary of state a nonvoting member. That did happen. The law did provide new authority to the board to suspend county or municipal election superintendents and to appoint superintendents to oversee the jurisdiction. Yep, that is part of the law, but that would only happen after an investigation by a performance review board, a hearing by the State election board.

The board then must determine that the election administrator in the jurisdictions committed at least three violations of State election law or as demonstrated nonfeasance, malfeasance, gross negligence, and the administration of elections. It also prohibits the board from suspending more than four superintendents. It allows for a suspended superintendent to petition the State for reinstatement.

It adds a whole process of due process that actually gets carried out. Why do they do this? Well, because there were actual examples in the election of election workers that were fired by the county elections directors for shredding voter registration applications. That is a crime.

So they set up a process with full due process not to overturn elections, but to make sure county election officials actually are following the law. That doesn't sound like voter suppression to me. That just sounds like running free and fair elections.

Oh, but Arizona—Arizona has a new law that provides the attorney general to have the authority to defend the State's election laws in courts rather than the secretary of state, so they just shifted their responsibility of who defends State election laws.

The secretary of state is still the chief election officer in Arizona but actually doesn't go to court. Their State attorney general does. That kind of makes sense to me, but, apparently, my Democratic colleagues don't agree. They have spun this whole web of myth and said, We have to federalize every election in America. We have to take over every State voting system in America. Washington, DC, needs to be the one to be able to run everything—or else if we don't, we'll destroy the traditions of the Senate and get our way no matter what.

Could I just read to you from the Voting Rights Act of 1965, the law that is still in place in America?

It says:

> No voting qualification or prerequisite to voting, or standard, practice, or procedure shall be imposed or applied by any State or political subdivision to deny or abridge the right of any citizen of the United States to vote on account of race or color.

The Voting Rights Act of 1965, still the law of the land, and it should be.

So what is happening now with this? Well, there are two big issues here. One is this fight over voting, whether States make decisions on voting or whether Washington, DC, Democrats make decisions on voting for their States, even if it is a Democrat State.

And then the next big issue is, are the Democrats in this room actually going to destroy the filibuster and silence the rights of the minority in America? Now, if you would have asked me 4 years ago, I would have said: No way, that is not going to happen, because a group of Democrats and a group of Republicans joined together and said: We are committed to not destroying the legislative filibuster. Why? Because it is what makes the House and the Senate different.

The House and the Senate are not just one is bigger and one is smaller. The House and the Senate operate differently. And the Senate has been the place for two and a half centuries where the debate occurs and there are rights of individual Senators to be able to debate the issues, defend their State, and talk about the rights of Americans. This happens in the Senate.

The majority rules the show in the House. If they have 218 of 435, they

don't care what the other side thinks. People who always talk about bipartisanship never bring up the House of Representatives—they just don't. Bipartisanship doesn't happen in the House of Representatives the way it happens in the Senate, but the reason it happens in the Senate is because of this thing called the filibuster.

It was interesting, when I was first elected to the Senate in 2014, the people that called me between my election and when I came were almost all Democrats—almost all of them. They wanted to introduce themselves. They wanted to say: What are you interested in? Because in the Senate we have to work together to be able to get things done.

And so I had all these Democrats that reached out to me to say: Let's find areas of common ground. We are going to disagree on lots of things, but let's find the things we are going to agree on because we have to come to consensus, because we are the U.S. Senate.

That is commonly understood by Senators, which is why in 2017, in the middle of the year, a group of Republicans and Senators wrote a letter—this letter—to MITCH MCCONNELL and CHUCK SCHUMER. In that letter—I am going to read it right here from this paragraph, it says:

> We are mindful of the unique role the Senate plays in the legislative process, and we are steadfastly committed to ensuring that this great American institution continues to serve as the world's greatest deliberative body. Therefore—

Here's their request.

> Therefore, we are asking you to join us in opposing any effort to curtail the existing rights and prerogatives of Senators to engage in full, robust, and extended debate as we consider legislation before this body in the future.

This group of Senators in 2017 wrote to MITCH MCCONNELL and CHUCK SCHUMER and said: Do not allow any changes. We are fully committed to making no changes in the filibuster. Don't allow it to happen for legislation. Don't allow it. Here were those that signed this document and said: This is what we believe.

KAMALA HARRIS, now Vice President of the United States; CHRIS COONS, who led the letter among all Democrats; PATRICK LEAHY is the person who has held this institution together; DIANNE FEINSTEIN; AMY KLOBUCHAR; KIRSTEN GILLIBRAND; CORY BOOKER; MICHAEL BENNET; JOE MANCHIN; ANGUS KING; MARK WARNER; BOB CASEY; MARTIN HEINRICH; JEANNE SHAHEEN; SHERROD BROWN; BRIAN SCHATZ; MARIA CANTWELL; MAZIE HIRONO; JON TESTER; TOM CARPER; MAGGIE HASSAN; TAMMY DUCKWORTH; TIM KAINE; JACK REED; Ed Markey; DEBBIE STABENOW; SHELDON WHITEHOUSE; BOB MENENDEZ—all said don't change the legislative filibuster.

In fact, they asked me, along with everyone else, to join them in opposing any efforts to make changes to the filibuster. It didn't just stop there. There were lots of other conversations that happened during that time period. There were lots of interviews and dialogue about it. Let me just read some of the comments that were made during that time period.

George Stephanopoulos on ABC's program asked of DICK DURBIN, the No. 2 leader for Democrats—asked DICK DURBIN, ''What do you think about doing away with the filibuster?''

DICK DURBIN replied this in 2018:

> Well, I can tell you that would be the end of the Senate as it was originally devised and created going back to our Founding Fathers. We have to acknowledge our respect for the minority, and that is what the Senate tries to do in its composition and in its procedure.

That is DICK DURBIN in 2018.

JON TESTER was asked in 2019 about the legislative filibuster, and he said:

> I don't want to see the Senate become the House.

He then said:

> If you're asking about the filibuster changes, I am a no. That would be a mistake.

Senator ANGUS KING made this comment in 2020. He said:

> I know it can be frustrating, but I think legislation is better when it has some bipartisan support.

Senator DIANNE FEINSTEIN in 2020 said:

> I think it's a part of Senate tradition, which creates a sobering effect on the body, which is healthy.

One more comment from ANGUS KING. ANGUS KING was asked about it on CNN, about the filibuster, and he replied back he is 100 percent opposed to killing the filibuster—100 percent.

Senator CORY BOOKER responded about the filibuster. He said:

> My colleagues and I, everybody I've talked to, believe the legislative filibuster should stay there, and I will personally resist efforts to get rid of it.

Senator CHRIS COONS, when asked about this in 2018, he replied:

> I am committed to never voting to change the legislative filibuster.

Never.

Senator JACKY ROSEN in 2019 was asked about this, and she replied:

> I think we should keep the [legislative] filibuster. It's one of the few things that we have left in order to let all of the voices be heard here in the Senate. . . .

She also said:

> We have to look not at just when you're in the majority, but what does it do when you're in the minority? You have to be mindful of that.

JEANNE SHAHEEN was asked on CNN about the legislative filibuster in 2021, and she answered just simply:

> No, I would not support eliminating the 60-vote threshold.

Would not do it.

Senator JACK REED was asked in 2017, during the same time period this letter came out, which he was a signatory for, and he said:

> The filibuster is not in the Constitution nor the original Senate rules, but we have a bicameral system for a reason and this legislative tool serves a critical purpose in ensuring the functioning of our democratic republic. Yes, it sometimes slows the process down, and some have abused or subverted it. But it remains an important part in our system of checks and balances.

I agree. I agree with that JACK REED.

Senator BERNIE SANDERS even was asked about the filibuster in 2019, and he just replied:

> No, I am not crazy about getting rid of the filibuster.

Senator MAZIE HIRONO from Hawaii said:

> I'm not particularly in favor of getting rid of the filibuster because that just means majority rule. That's what happens in the House.

Senator BOB CASEY was asked in 2019 about the filibuster, and he just replied:

> I'm a yes [on keeping the filibuster].

One of my favorites, Senator SHERROD BROWN was asked about this in 2019, and he replied:

> I think there are ways of getting things through Congress with the legislative filibuster still in place. . . . it takes a chief executive that knows what she's doing or what he's doing.

Listen, this is not some trivial exercise. This is 250 years of history my Democratic colleagues are planning to flush down the toilet because they don't get their way on a bill we rightfully have very strong philosophical disagreements on.

Hey, I don't agree on giving rapists and sex offenders who are convicted felons voting rights when they get out of prison; I am not alone on that. I don't agree in Federal tax dollars being used to be able to pay for political campaigns. I am not alone in that. That is not that crazy.

I don't agree that my State should have to go play ''Mother, May I'' with some future Attorney General because they want to add another day of voting. I am not alone in that. But to say, ''If you don't do this now, I will destroy the Senate'', is a toxic shift for our Republic, and it is a violation of what you have said before in public, in fact, written to the leadership of the Senate and said: Please don't do this, and we will not do this. And now, years later go: It is not convenient. That was when we were in the minority. We had one opinion. Now we have different core beliefs because we are in the majority.

Interestingly enough, Joe Biden today stood in Georgia and made this statement. He said:

> Today I am making it clear: To protect our democracy, I support changing the Senate rules whichever way they need to be changed to prevent a minority of Senators from blocking action on voting rights. When it comes to protecting majority rule in America, the majority should rule in the U.S. Senate.

Well, that is fascinating. Now that he is President of the United States, it is my way, or I will destroy the whole place. When he was Senator Joe Biden, he had a different opinion.

Senator Joe Biden wasn't about ''I am the President, so I get what I

want.'' Senator Joe Biden made this statement:

Folks who want to see this change want to eliminate one of the procedural mechanisms designed for the express purpose of guaranteeing individual rights, and they also have a consequence, and would undermine the protections of a minority point of view in the heat of majority excess.

But now he says: No. I am in the majority. I should get my way.

Senator Joe Biden said:

I have been here 32 years, most of the time in the majority. Whenever you are in the majority, it is frustrating to see the other side block a bill or a nominee you support. I have walked in your shoes, and I get it. . . . Getting rid of the filibuster has long-term consequences. If there is one thing I have learned in my years here, once you change the rules and surrender the Senate's institutional power, you never get it back.

Senator Joe Biden said:

Simply put, the nuclear option would transform the Senate from the so-called cooling saucer our Founding Fathers talked about to cool the passions of the day to a pure majoritarian body like a Parliament. We have heard a lot in recent weeks about the rights of the majority and obstructionism. But the Senate is not meant to be a place of pure majoritarianism. Is majority rule what you really want?

That is what he said as a Senator, but as President, his demand was, majority rule or we will break every rule in the Senate to get what we want.

Senator SCHUMER, in his public statements, has been very clear. ''It would be doomsday for democracy,'' he said, ''if you change the filibuster.''

This is the statement Senator SCHUMER made in 2017, the same Senator SCHUMER who has spent the last 12 months trying to find a way to tear down the filibuster. In 2017, when there was the debate going on around this, Senator SCHUMER said on the floor of the Senate, standing right there, ''I hope the Republican leader and I,'' he said, ''can, in the coming months, find a way to build a firewall around the legislative filibuster, which is the most important distinction between the Senate and the House. Without the 60-vote threshold for legislation,'' Senator SCHUMER said, ''the Senate becomes a majoritarian institution like the House, much more subject to the winds of short-term electoral change. No Senator would like to see that happen so let's find a way to further protect the 60-vote rule for legislation.''

That was Senator SCHUMER in 2017, but now it is: I am in power. I am going to do what I want.

This is not a flippant issue, and as I have spoken to some of my Democratic colleagues, they seem to believe we will just take this vote and no one is going to care. In fact, some of my Democratic colleagues are saying: We know we are going to lose. Senator MANCHIN and Senator SINEMA have already made public comments. They are not going to go with this, or, we are going to take this, make a statement. Our progressive base wants us to be able to do this. It has no consequences. It is not going to pass anyway, so we will just do it—except they are forgetting that 5 years from now, 10 years from now, there will be another time just like this. Maybe Democrats will be in a slightly larger majority. Maybe Senator SINEMA and Senator MANCHIN won't be here at that moment, and the majority leader, Democrat Senator, at that point will step forward and say: You voted on this in 2022. It is time for us to vote on it now.

Democratic activists will rush at you and will say: Don't you dare change what you did. Tear the place down. Let's get what we want.

I have spoken to so many of my colleagues and said: Don't do this.

They have quietly responded back to me: I don't want to do this.

I am not here to attack my colleagues. You each make your own decisions. But these are decisions that matter. These are the decisions that 100 years from now will still guide the direction of the Senate. These are the decisions that will direct our Republic.

We are the only body that has a protection for the minority voice; I think the only legislative body in the world that is designed like this. It has been part of the secret sauce of America that the minority in America, however large or small it is, has a voice.

My Democratic colleagues are now saying: We no longer want the minority to have a voice in America. If you are in the minority opinion, you don't count. Sit down. Shut up. We are in the majority.

That has never been the American way, not in 250 years. This has been the place where we have argued, debated, and where, yes, I have talked to House Members who have said good bills went to die. But the Senate has been the spot where all Americans get to speak. And my Democratic colleagues are seriously considering this week saying: No more, because we want to pass a voting bill that gives Federal dollars to House candidates and gives felons the right to vote and takes away voter ID.

What in the world? What has this body become that people who signed this document, page after page of it—I mean, I could bring out page after page of Senators who have signed this and have said ''Do not take away the legislative filibuster'' but now are just flipping and flippant and saying it won't matter. Yes, it does. One hundred years from now, this week will still matter.

I encourage my Democratic colleagues to think carefully on this one because this one counts.

I yield the floor.

The PRESIDING OFFICER. The majority leader.

LEGISLATIVE SESSION

MORNING BUSINESS

Mr. SCHUMER. Madam President, I ask unanimous consent that the Senate proceed to legislative session and be in a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

VOTE EXPLANATION

Ms. SINEMA. Madam President, I was necessarily absent, but had I been present I would have voted yes on rollcall vote 1 on the motion to invoke cloture on Anne Witkowsky to be an Assistant Secretary of State (Conflict and Stabilization Operations).

I was necessarily absent, but had I been present I would have voted yes on rollcall vote 2 on the confirmation of Anne Witkowsky to be an Assistant Secretary of State (Conflict and Stabilization Operations).

I was necessarily absent, but had I been present I would have voted yes on rollcall vote 510 on the motion to invoke cloture on Jinsook Ohta to be U.S. District Judge for the Southern District of California.

I was necessarily absent, but had I been present I would have voted yes on rollcall vote 511 on the confirmation of Jinsook Ohta to be U.S. District Judge for the Southern District of California.

I was necessarily absent, but had I been present I would have voted yes on rollcall vote 512 on the motion to invoke cloture on David Urias to be U.S. District Judge for the District of New Mexico.

I was necessarily absent, but had I been present I would have voted yes on rollcall vote 513 on the confirmation of David Urias to be U.S. District Judge for the District of New Mexico.

I was necessarily absent, but had I been present I would have voted yes on rollcall vote 514 on the motion to invoke cloture on Maame Frimpong to be U.S. District Judge for the Central District of California.

I was necessarily absent, but had I been present I would have voted yes on rollcall vote 515 on the confirmation of Maame Frimpong to be U.S. District Judge for the Central District of California.

I was necessarily absent, but had I been present I would have voted yes on rollcall vote 516 on the motion to invoke cloture on Jane Beckering to be U.S. District Judge for the Western District of Michigan.

I was necessarily absent, but had I been present I would have voted yes on rollcall vote 517 on the confirmation of Jane Beckering to be U.S. District Judge for the Western District of Michigan.

I was necessarily absent, but had I been present I would have voted yes on rollcall vote 518 on the motion to invoke cloture on Shalina Kumar to be U.S. District Judge for the Eastern District of Michigan.

I was necessarily absent, but had I been present I would have voted yes on rollcall vote 519 on the confirmation of Shalina Kumar to be U.S. District Judge for the Eastern District of Michigan.

I was necessarily absent, but had I been present I would have voted yes on rollcall vote 520 on the motion to invoke cloture on Jennifer Thurston to be U.S. District Judge for the Eastern District of California.

I was necessarily absent, but had I been present I would have voted yes on rollcall vote 521 on the confirmation of Jennifer Thurston to be U.S. District Judge for the Eastern District of California.

I was necessarily absent, but had I been present I would have voted yes on rollcall vote 522 on the motion to invoke cloture on Katherine Menendez to be U.S. District Judge for the District of Minnesota.

I was necessarily absent, but had I been present I would have voted yes on rollcall vote 523 on the confirmation of Katherine Menendez to be U.S. District Judge for the District of Minnesota.

I was necessarily absent, but had I been present I would have voted yes on rollcall vote 524 on the motion to invoke cloture on Mary Dimke to be U.S. District Judge for the Eastern District of Washington.

I was necessarily absent, but had I been present I would have voted yes on rollcall vote 525 on the confirmation of Mary Dimke to be U.S. District Judge for the Eastern District of Washington.

I was necessarily absent, but had I been present I would have voted yes on rollcall vote 526 on the confirmation of Rahm Emanuel to be Ambassador Extraordinary and Plenipotentiary of the United States of America to Japan.

I was necessarily absent, but had I been present I would have voted yes on rollcall vote 527 on the motion to invoke cloture on Gabriel Sanchez to be U.S. Circuit Judge for the Ninth Circuit.

I was necessarily absent, but had I been present I would have voted yes on rollcall vote 528 on the motion to invoke cloture on Holly Thomas to be U.S. Circuit Judge for the Ninth Circuit.

TRIBUTE TO MICHAEL L. HANNA

Mr. RISCH. Madam President, I rise today to congratulate and honor the retirement of one of my senior staff members and friend who has served in my home State of Idaho for the last 13 years as the regional director of my Lewiston office, Michael ''Mike'' L. Hanna.

Following his retirement from the timber industry, Mike came to my staff after my first election to the U.S. Senate in May of 2009. I knew right away that he was a perfect fit for the regional director position in my Lewiston office. As a result, my chief of staff and I hired him immediately following his interview.

Mike was born in Boise, ID, and was raised there and in the Emmett Valley, where his parents' families worked as farmers and sawmill workers. Growing up in a farming and timber family eventually led him to the University of Idaho, where he graduated with a bachelor of science degree in forest management in 1976.

Upon graduating from U of I, Mike began his 33-year career in the timber industry as a forester with the Idaho Department of Lands. After 12 years with the State of Idaho, he transitioned to the private sector, where he worked for Empire Lumber Company, Weyerhaeuser, and Three River Timber.

Given his expertise and vast knowledge of the timber industry, Mike was frequently called upon to participate in and lead collaborative groups and natural resource associations and organizations. To name but a few, he was a founding member of the Clearwater Basin Collaborative, president of the Intermountain Logging Conference board of directors, president of the Resource Organization on Timber Supply, or ROOTS, president of the Clearwater Resource Coalition, and the chairman of the Forestry Committee of the Intermountain Forestry Association. He was also recognized by the Rocky Mountain Elk Foundation for his U.S. Forest Service stewardship contract work.

With his deep roots in Idaho and the timber industry, he was the perfect representative to the natural resource communities of the Clearwater Region, stationed out of my Lewiston office. During his 13 years of service as my regional director, he advised and guided my office through many complicated issues, like the Idaho roadless rule implementation, the salmon and steelhead management plans, Columbia River Treaty, Good Neighbor Authority, tribal relations, and too many other issues to name.

Mike and his wife Nancy have been married for 45 years and have made their home in Orofino, ID for 44 years, where they are an integral part of the fabric of the community. They have two children, Lindsay and Adam, and five grandchildren.

It is always difficult to lose a trusted staff member of Mike's character, experience, and knowledge, and I wish him and Nancy nothing but the best in their retirement and look forward to our continued friendship in the years ahead.

Congratulations and thank you for your outstanding service to my staff and the citizens of Idaho.

ADDITIONAL STATEMENTS

100TH ANNIVERSARY OF THE PALACE THEATER

● Mr. BLUMENTHAL. Madam President, today I rise to recognize the Palace Theater in Waterbury, CT as it celebrates 100 years of artistic achievement and advocacy.

The Palace Theater originally opened on January 28, 1922. With the culmination of a $1 million investment in décor by Sylvester Z. Poli and the remarkable architectural work of Thomas Lamb, the theater soon became a hub for cultural activity in Waterbury before the onset of World War II.

The ornate building started as a movie and vaudeville house. Over the past century, the Palace has hosted a wide breadth of performances and productions, from silent films to rock concerts and everything in between. In 1983, the U.S. Department of the Interior honored the Palace Theater by listing it on the National Register of Historic Places.

In 1987, the theater closed for 18 years. However, a 3-year, $30 million restoration, renovation, and expansion project impressively reshaped the Palace. When it reopened, the theater was a state-of-the-art, 90,000-square-foot arena. Now a vast complex, the Palace is known as Greater Waterbury's Center for the Performing Arts.

In its current state, the Palace hosts educational programming, Broadway tours, and a variety of family entertainment. The theater's team is committed to serving the greater Waterbury community by establishing not just a magnificent artistic site but also a highly regarded educational and cultural center.

The Palace Theater is recognized as one of the premier arts facilities in New England, and I have had the privilege of visiting on a number of occasions to speak with the staff there. I am continuously impressed by the Palace's record of achievement and the tireless dedication of everyone involved to furthering arts education and advocacy for countless Connecticut residents and visitors.

I applaud the theater on its extraordinary history of accomplishment, and I hope my colleagues will join me in congratulating the Palace Theater on 100 years of excellence.●

TRIBUTE TO MARK BENNETT

● Mr. BOOZMAN. Madam President, I rise today to commend Mark Bennett, who is retiring as chief of the water development division of the Arkansas Natural Resources Commission after a 34-year career creating and preserving access to water in our State.

Through his work, Mark has helped provide clean, safe, and reliable water to countless Arkansans and has been instrumental in the conservation of our State's land and water resources. Thanks to Mark's dedication and commitment to the people of Arkansas, he has ensured that future generations will be able to enjoy the beautiful land and wildlife the Natural State is known for.

Mark is a true Arkansas success story. Raised near Lake Village and a graduate of Lakeside High School, Mark earned a bachelor's degree in both agricultural economics and banking and finance from Mississippi State University. He continued his education at the University of Arkansas at Little Rock William H. Bowen School of Law

and the University of Arkansas School of Law, where he earned a master of laws degree in agricultural law.

Mark served the people of Arkansas as general counsel for the Arkansas Natural Resources Commission for nearly 20 years. He continued his public service as the chief of water development with the natural resources division of the department of agriculture. In this role, Mark oversaw a variety of crucial infrastructure programs including the Arkansas Clean Water Revolving Loan Program, the Arkansas Drinking Water Revolving Loan Program, the Arkansas Water Development Fund, and the Arkansas Water, Sewer and Solid Waste Fund to assist Arkansans with water, wastewater, and solid waste projects. Mark has also served as the state cochair and member of the EPA—State SRF working group and is a former board member and past president of the Council of Infrastructure Financing Authorities board of directors.

I am grateful for Mark's experience and expertise. His guidance was instrumental in crafting Federal legislation to modernize investment in water infrastructure. The Securing Required Funding for Water Infrastructure Now, or SRF WIN, Act was signed into law in 2018 and is improving access to clean water in Arkansas and across the country. Mark's knowledge in this field was invaluable as my staff and I developed this legislation.

Generations of Arkansans will continue to benefit from Mark's extraordinary efforts to provide quality water infrastructure and further conservation efforts in our State. His dedication to improving the lives of his fellow Arkansans is an inspiration, and I wish him the best of luck in retirement.●

RECOGNIZING IDAHO OPERATION LIFESAVER

● Mr. CRAPO. Madam President, I congratulate Idaho Operation Lifesaver on its 50-year anniversary of working to keep people safe around railroad tracks and railway crossings. Thank you to all those involved with this highway/rail safety effort for advancing rail safety across Idaho and our country.

Idaho Operation Lifesaver was started in Post Falls, ID, in 1972 and was adopted in other States and nationally. According to Idaho Operation Lifesaver, the average number of highway/rail incidents was 12,000 annually when Idaho Operation Lifesaver was created. Idaho Operation Lifesaver is credited with a 43-percent decrease in incidents in its first year following a 6-week public awareness campaign started through cooperative work between then-Idaho Governor Cecil Andrus, the Idaho State Police, and Union Pacific railroad.

This effort is currently supported by 78 volunteers across our great State of Idaho who assist with providing safety presentations to school groups, driver education classes, community members, professional drivers, law enforcement officers, and emergency responders. The group's focus on education, engineering, and enforcement is also part of its Officer on a Train Program, employed for the past nearly 30 years to decrease car-train collisions. Through the program, Idaho State Police Troopers and Officers from local police departments work together to stop drivers committing track safety violations to prevent collisions, prevent trespassing on railroad property, and save lives.

Idaho is filled with problem-solvers and doers. So it is no surprise this railway safety effort got its start in our great State. I congratulate Idaho Operation Lifesaver on this significant milestone. I wish all those involved with Idaho Operation Lifesaver well, as you continue to work to keep people safe from rail accidents across our State and Nation.●

RECOGNIZING THE IDAHO FALLS AFRICAN AMERICAN ALLIANCE

● Mr. RISCH. Madam President, Martin Luther King, Jr., dreamed of a world of peace and equality, and honoring his legacy is a central priority of the Idaho Falls African American Alliance, or AAA. Today, I recognize the accomplishments of the Idaho Falls AAA and highlight their 15th Annual Martin Luther King, Jr., Banquet.

The Idaho Falls AAA was formed in 2006, when a few members of the community became aware of a local African-American high school student in need of funds to travel to a regional debate competition. One of these individuals was the current Idaho Falls AAA president, David Snell. Growing up, his mother told him, ''You should never be a part of a community that does not feel your presence. It is your personal responsibility to make sure your community is better because you were a part of it.'' The group worked together to raise $300 and sponsored the trip for the talented debater.

This experience sparked a movement as the group realized they could make a difference in the community and help other kids in need. AAA members also recognized an opportunity to promote diversity in the community, expand awareness of the contributions of African Americans and other minorities, and begin to build a sense of understanding between cultures and ethnicities.

Martin Luther King, Jr., influenced their mission, and they soon organized an annual MLK Banquet to provide the community an opportunity to learn from prominent African-American leaders. Over the past 15 years, guests have included Dr. Walter Massey, past president of Morehouse College; Pete Miller, former Undersecretary of Energy; Freeman Hrabowski, voted one of TIME magazine's 100 Most Influential People of 2012; and Idaho State Senator Cherie Buckner-Webb.

This year's AAA banquet will feature keynote speaker USAF Capt. Daniel ''Fuzz'' Walker, the first African-American pilot qualified to fly the F–22 stealth fighter plane, and grandson of one of the original Tuskegee Airmen.

Ms. Michelle Amos, system engineer for NASA's Perseverance, the 2020 Mars rover, will also deliver remarks over Zoom. Ms. Amos won an All-Star Award at NASA's Women of Color Government and Defense Technology Awards Conference, is the former chairperson of NASA's Black Employee Strategy Team, and is currently a public affairs spokesperson for the Church of Jesus Christ of Latter-day Saints.

The organization has faced some challenges but has also received generous support from the Idaho Falls community. Many local businesses provide donations and services making the MLK Banquet possible each year. The proceeds from the annual event are used to support their mission to ''further the educational, economic, cultural and development growth of the Idaho Falls African American Community.''

The Idaho Falls AAA serves to bring people together in times that can feel divisive. I commend the AAA and its membership for its work to help make Idaho Falls a better community.●

MESSAGES FROM THE PRESIDENT

Messages from the President of the United States were communicated to the Senate by Mr. Swann, one of his secretaries.

EXECUTIVE MESSAGES REFERRED

In executive session the Presiding Officer laid before the Senate messages from the President of the United States submitting sundry nominations which were referred to the appropriate committees.

(The messages received today are printed at the end of the Senate proceedings.)

MESSAGE FROM THE HOUSE

At 11:18 a.m., a message from the House of Representatives, delivered by Mrs. Alli, one of its reading clerks, announced that the House has agreed to the following concurrent resolutions, without amendment:

S. Con. Res. 25. Concurrent resolution authorizing the use of the rotunda of the Capitol for the lying in state of the remains of the Honorable Harry Mason Reid, Jr., a Senator from the State of Nevada.

S. Con. Res. 26. Concurrent resolution providing for the use of the catafalque situated in the Exhibition Hall of the Capitol Visitor Center in connection with memorial services to be conducted in the rotunda of the Capitol for the Honorable Harry Mason Reid, Jr., a Senator from the State of Nevada.

The message further announced that the House has agreed to H. Res. 862, resolving that the Clerk of the House inform the Senate that a quorum of the House is present and that the House is ready to proceed with business.

The message also announced that the House has agreed to the following resolution:

H. Res. 864. Resolution relative to the death of the Honorable Harry Mason Reid, Jr., a Senator from the State of Nevada.

MEASURES READ THE FIRST TIME

The following bill was read the first time:

S. 3480. A bill to prohibit the use of funds to reduce the nuclear forces of the United States.

PRIVILEGED NOMINATIONS REFERRED TO COMMITTEE

On request by Senator TED CRUZ, under the authority of S. Res. 116, 112th Congress, the following nomination was referred to the Committee on Commerce, Science, and Transportation: Samuel H. Slater, of Massachusetts, to be a Member of the Board of Directors of the Metropolitan Washington Airports Authority for a term expiring November 22, 2023, vice William Shaw McDermott, term expired.

On request by Senator MARIA CANTWELL, under the authority of S. Res. 116, 112th Congress, the following nomination was referred to the Committee on Commerce, Science, and Transportation: Mohsin Raza Syed, of Virginia, to be an Assistant Secretary of Transportation, vice Adam J. Sullivan.

On request by Senator MARIA CANTWELL, under the authority of S. Res. 116, 112th Congress, the following nomination was referred to the Committee on Commerce, Science, and Transportation: Victoria Marie Baecher Wassmer, of the District of Columbia, to be Chief Financial Officer, Department of Transportation, vice John E. Kramer.

On request by Senator TED CRUZ, under the authority of S. Res. 116, 112th Congress, the following nomination was referred to the Committee on Commerce, Science, and Transportation: Sean Burton, of California, to be a Member of the Board of Directors of the Metropolitan Washington Airports Authority for a term expiring May 30, 2024, vice Nina Mitchell Wells, term expired.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. LANKFORD (for himself and Ms. ERNST):

S. 3470. A bill to provide for the implementation of certain trafficking in contracting provisions, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

By Mr. CASEY (for himself, Ms. HASSAN, Mr. KAINE, Mr. MURPHY, Ms. KLOBUCHAR, Mr. SANDERS, Ms. SMITH, Ms. WARREN, Ms. DUCKWORTH, Mr. BOOKER, Mrs. SHAHEEN, and Mr. BLUMENTHAL):

S. 3471. A bill to address the needs of individuals with disabilities within the Jeanne Clery Disclosure of Campus Security Policy and Campus Crime Statistics Act; to the Committee on Health, Education, Labor, and Pensions.

By Mr. KENNEDY (for himself and Ms. DUCKWORTH):

S. 3472. A bill to conserve global bear populations by prohibiting the importation, exportation, and interstate trade of bear viscera and items, products, or substances containing, or labeled or advertised as containing, bear viscera, and for other purposes; to the Committee on Environment and Public Works.

By Mr. KING (for himself and Mr. CASEY):

S. 3473. A bill to authorize funding for the Research, Demonstration, and Evaluation Center for the Aging Network in order to demonstrate the impact of the aging network on the health and independence of older individuals and to foster innovation in such network, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Ms. SINEMA (for herself, Mr. PORTMAN, Mr. PADILLA, and Mr. PETERS):

S. 3474. A bill to amend title 5, United States Code, to increase death gratuities and funeral allowances for Federal employees, and for other purposes; to the Committee on Finance.

By Ms. CORTEZ MASTO:

S. 3475. A bill for the relief of Cesar Carlos Silva Rodriguez; to the Committee on the Judiciary.

By Mr. LUJÁN (for himself, Ms. COLLINS, and Mr. CASEY):

S. 3476. A bill to provide for mental health and substance use disorder services in response to public health emergencies, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. CASEY (for himself and Ms. COLLINS):

S. 3477. A bill to improve the program for reporting on device shortages; to the Committee on Health, Education, Labor, and Pensions.

By Mr. CASEY (for himself, Mr. CASSIDY, and Mr. MURPHY):

S. 3478. A bill to provide for the designation of biological products as qualified infectious disease products; to the Committee on Health, Education, Labor, and Pensions.

By Mr. CASEY (for himself, Mr. TILLIS, Ms. SMITH, and Ms. MURKOWSKI):

S. 3479. A bill to amend the Public Health Service Act with respect to awards to support community health workers and community health; to the Committee on Health, Education, Labor, and Pensions.

By Mr. HOEVEN:

S. 3480. A bill to prohibit the use of funds to reduce the nuclear forces of the United States; read the first time.

ADDITIONAL COSPONSORS

S. 586

At the request of Mrs. CAPITO, the names of the Senator from Nebraska (Mrs. FISCHER) and the Senator from Connecticut (Mr. MURPHY) were added as cosponsors of S. 586, a bill to amend title XVIII of the Social Security Act to combat the opioid crisis by promoting access to non-opioid treatments in the hospital outpatient setting.

S. 844

At the request of Mr. THUNE, the name of the Senator from Kansas (Mr. MARSHALL) was added as a cosponsor of S. 844, a bill to amend the Internal Revenue Code of 1986 to treat certain amounts paid for physical activity, fitness, and exercise as amounts paid for medical care.

S. 1040

At the request of Mr. MENENDEZ, the name of the Senator from Maine (Ms. COLLINS) was added as a cosponsor of S. 1040, a bill to amend title 38, United States Code, to expand eligibility for hospital care, medical services, and nursing home care from the Department of Veterans Affairs to include veterans of World War II.

S. 1315

At the request of Ms. CANTWELL, the names of the Senator from Louisiana (Mr. CASSIDY) and the Senator from New Hampshire (Ms. HASSAN) were added as cosponsors of S. 1315, a bill to amend title XVIII of the Social Security Act to provide for coverage of certain lymphedema compression treatment items under the Medicare program.

S. 1596

At the request of Mr. ROUNDS, the name of the Senator from California (Mrs. FEINSTEIN) was added as a cosponsor of S. 1596, a bill to require the Secretary of the Treasury to mint coins in commemoration of the National World War II Memorial in Washington, DC, and for other purposes.

S. 1725

At the request of Mr. ROUNDS, the names of the Senator from New Mexico (Mr. HEINRICH) and the Senator from Colorado (Mr. BENNET) were added as cosponsors of S. 1725, a bill to grant a Federal charter to the National American Indian Veterans, Incorporated.

S. 2295

At the request of Mr. CRAPO, the name of the Senator from Arizona (Mr. KELLY) was added as a cosponsor of S. 2295, a bill to amend the Horse Protection Act to designate additional unlawful acts under the Act, strengthen penalties for violations of the Act, improve Department of Agriculture enforcement of the Act, and for other purposes.

S. 2341

At the request of Mr. RUBIO, the name of the Senator from Georgia (Mr. WARNOCK) was added as a cosponsor of S. 2341, a bill to amend the Internal Revenue Code of 1986 to expand the treatment of moving expenses to employees and new appointees in the intelligence community who move pursuant to a change in assignment that requires relocation.

S. 2434

At the request of Ms. CANTWELL, the name of the Senator from Nevada (Ms. ROSEN) was added as a cosponsor of S. 2434, a bill to provide tax incentives that support local newspapers and other local media, and for other purposes.

S. 2854

At the request of Mr. KENNEDY, the name of the Senator from South Dakota (Mr. THUNE) was added as a cosponsor of S. 2854, a bill to allow for the transfer and redemption of abandoned savings bonds.

S. 2872

At the request of Mr. WARNER, the names of the Senator from Connecticut (Mr. MURPHY) and the Senator from Michigan (Mr. PETERS) were added as cosponsors of S. 2872, a bill to amend the Internal Revenue Code of 1986 to increase the adjusted gross income limitation for above-the-line deduction of expenses of performing artist employees, and for other purposes.

S. 2967

At the request of Ms. MURKOWSKI, the name of the Senator from Delaware (Mr. COONS) was added as a cosponsor of S. 2967, a bill to establish an Assistant Secretary of State for Arctic Affairs.

S. 3229

At the request of Mrs. FISCHER, the name of the Senator from New York (Mrs. GILLIBRAND) was added as a cosponsor of S. 3229, a bill to amend the Agricultural Marketing Act of 1946 to establish a cattle contract library, and for other purposes.

S. 3346

At the request of Mr. BENNET, the name of the Senator from New York (Mr. SCHUMER) was added as a cosponsor of S. 3346, a bill to amend the Internal Revenue Code of 1986 to classify certain automatic fire sprinkler system retrofits as 15-year property for purposes of depreciation.

S. 3361

At the request of Mr. MARKEY, the name of the Senator from Minnesota (Ms. SMITH) was added as a cosponsor of S. 3361, a bill to amend the Communications Act of 1934 to modify the definition of franchise fee, and for other purposes.

S. 3463

At the request of Mr. RUBIO, the name of the Senator from North Carolina (Mr. TILLIS) was added as a cosponsor of S. 3463, a bill to impose sanctions and other measures in response to the failure of the Government of the People's Republic of China to allow an investigation into the origins of COVID–19 at suspect laboratories in Wuhan.

S. RES. 334

At the request of Ms. WARREN, the name of the Senator from Pennsylvania (Mr. CASEY) was added as a cosponsor of S. Res. 334, a resolution memorializing those impacted by and lost to the COVID–19 virus.

AMENDMENTS SUBMITTED AND PROPOSED

SA 4898. Mr. SCHUMER (for Mr. PETERS) proposed an amendment to the bill S. 2520, to amend the Homeland Security Act of 2002 to provide for engagements with State, local, Tribal, and territorial governments, and for other purposes.

SA 4899. Mr. SCHUMER (for Mr. PETERS) proposed an amendment to the bill S. 2201, to manage supply chain risk through counterintelligence training, and for other purposes.

TEXT OF AMENDMENTS

SA 4898. Mr. SCHUMER (for Mr. PETERS) proposed an amendment to the bill S. 2520, to amend the Homeland Security Act of 2002 to provide for engagements with State, local, Tribal, and territorial governments, and for other purposes; as follows:

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE.

This Act may be cited as the ''State and Local Government Cybersecurity Act of 2021''.

SEC. 2. AMENDMENTS TO THE HOMELAND SECURITY ACT OF 2002.

Subtitle A of title XXII of the Homeland Security Act of 2002 (6 U.S.C. 651 et seq.) is amended—

(1) in section 2201 (6 U.S.C. 651), by adding at the end the following:

''(7) SLTT ENTITY.—The term 'SLTT entity' means a domestic government entity that is a State government, local government, Tribal government, territorial government, or any subdivision thereof.''; and

(2) in section 2209 (6 U.S.C. 659)—

(A) in subsection (c)(6), by inserting ''operational and'' before ''timely'';

(B) in subsection (d)(1)(E), by inserting '', including an entity that collaborates with election officials,'' after ''governments''; and

(C) by adding at the end the following:

''(p) COORDINATION ON CYBERSECURITY FOR SLTT ENTITIES.—

''(1) COORDINATION.—The Center shall, upon request and to the extent practicable, and in coordination as appropriate with Federal and non-Federal entities, such as the Multi-State Information Sharing and Analysis Center—

''(A) conduct exercises with SLTT entities;

''(B) provide operational and technical cybersecurity training to SLTT entities to address cybersecurity risks or incidents, with or without reimbursement, related to—

''(i) cyber threat indicators;

''(ii) defensive measures;

''(iii) cybersecurity risks;

''(iv) vulnerabilities; and

''(v) incident response and management;

''(C) in order to increase situational awareness and help prevent incidents, assist SLTT entities in sharing, in real time, with the Federal Government as well as among SLTT entities, actionable—

''(i) cyber threat indicators;

''(ii) defensive measures;

''(iii) information about cybersecurity risks; and

''(iv) information about incidents;

''(D) provide SLTT entities notifications containing specific incident and malware information that may affect them or their residents;

''(E) provide to, and periodically update, SLTT entities via an easily accessible platform and other means—

''(i) information about tools;

''(ii) information about products;

''(iii) resources;

''(iv) policies;

''(v) guidelines;

''(vi) controls; and

''(vii) other cybersecurity standards and best practices and procedures related to information security, including, as appropriate, information produced by other Federal agencies;

''(F) work with senior SLTT entity officials, including chief information officers and senior election officials and through national associations, to coordinate the effective implementation by SLTT entities of tools, products, resources, policies, guidelines, controls, and procedures related to information security to secure the information systems, including election systems, of SLTT entities;

''(G) provide operational and technical assistance to SLTT entities to implement tools, products, resources, policies, guidelines, controls, and procedures on information security;

''(H) assist SLTT entities in developing policies and procedures for coordinating vulnerability disclosures consistent with international and national standards in the information technology industry; and

''(I) promote cybersecurity education and awareness through engagements with Federal agencies and non-Federal entities.

''(q) REPORT.—Not later than 1 year after the date of enactment of this subsection, and every 2 years thereafter, the Secretary shall submit to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Homeland Security of the House of Representatives a report on the services and capabilities that the Agency directly and indirectly provides to SLTT entities.''.

SA 4899. Mr. SCHUMER (for Mr. PETERS) proposed an amendment to the bill S. 2201, to manage supply chain risk through counterintelligence training, and for other purposes; as follows:

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Supply Chain Security Training Act of 2021''.

SEC. 2. TRAINING PROGRAM TO MANAGE SUPPLY CHAIN RISK.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Administrator of General Services, through the Federal Acquisition Institute, shall develop a training program for officials with supply chain risk management responsibilities at Federal agencies.

(b) CONTENT.—The training program shall be designed to prepare such personnel to perform supply chain risk management activities and identify and mitigate supply chain security risks that arise throughout the acquisition lifecycle, including for the acquisition of information and communications technology. The training program shall—

(1) include, considering the protection of classified and other sensitive information, information on current, specific supply chain security threats and vulnerabilities; and

(2) be updated as determined to be necessary by the Administrator.

(c) COORDINATION AND CONSULTATION.—In developing and determining updates to the training program, the Administrator shall—

(1) coordinate with the Federal Acquisition Security Council, the Secretary of Homeland Security, and the Director of the Office of Personnel Management; and

(2) consult with the Director of the Department of Defense's Defense Acquisition University, the Director of National Intelligence, and the Director of the National Institute of Standards and Technology.

(d) GUIDANCE.—

(1) IN GENERAL.—Not later than 180 days after the training program is developed under subsection (a), the Director of the Office of Management and Budget shall promulgate guidance to Federal agencies requiring executive agency adoption and use of the training program. Such guidance shall—

(A) allow executive agencies to incorporate the training program into existing agency training programs; and

(B) provide guidance on how to identify executive agency officials with supply chain risk management responsibilities.

(2) AVAILABILITY.—The Director of the Office of Management and Budget shall make the guidance promulgated under paragraph (1) available to Federal agencies of the legislative and judicial branches.

SEC. 3. REPORTS ON IMPLEMENTATION OF PROGRAM.

Not later than 180 days after the completion of the first course, and annually thereafter for the next three years, the Administrator of General Services shall submit to the appropriate congressional committees and leadership a report on implementation of the training program required under section 2.

SEC. 4. DEFINITIONS.

In this Act:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES AND LEADERSHIP.—The term ''appropriate congressional committees'' means—

(A) the Committee on Homeland Security and Governmental Affairs and the Committee on Armed Services of the Senate; and

(B) the Committee on Oversight and Reform and the Committee on Armed Services of the House of Representatives.

(2) INFORMATION AND COMMUNICATIONS TECHNOLOGY.—The term ''information and communications technology'' has the meaning given the term in section 4713(k) of title 41, United States Code.

(3) EXECUTIVE AGENCY.—The term ''executive agency'' has the meaning given the term in section 133 of title 41, United States Code.

(4) FEDERAL AGENCY.—The term ''Federal agency'' means any agency, committee, commission, office, or other establishment in the executive, legislative, or judicial branch of the Federal Government.

(5) TRAINING PROGRAM.—The term ''training program'' means the training program developed pursuant to section 2(a).

AUTHORITY FOR COMMITTEES TO MEET

Mr. SCHUMER. Mr. President, I have 5 requests for committees to meet during today's session of the Senate. They have the approval of the Majority and Minority Leaders.

Pursuant to rule XXVI, paragraph 5(a), of the Standing Rules of the Senate, the allowing committees are authorized to meet during today's session of the Senate:

COMMITTEE ON BANKING, HOUSING, AND URBAN AFFAIRS

The Committee on Banking, Housing, and Urban Affairs is authorized to meet during the session of the Senate on Tuesday, January 11, 2022, at 10 a.m., to conduct a hearing on a nomination.

COMMITTEE ON ENERGY AND NATURAL RESOURCES

The Committee on Energy and Natural Resources is authorized to meet during the session of the Senate on Tuesday, January 11, 2022, at 10 a.m., to conduct a hearing.

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

The Committee on Health, Education, Labor, and Pensions is authorized to meet during the session of the Senate on Tuesday, January 11, 2022, at 10 a.m., to conduct a hearing.

COMMITTEE ON THE JUDICIARY

The Committee on the Judiciary is authorized to meet during the session of the Senate on Tuesday, January 11, 2022, at 10 a.m., to conduct a hearing.

SELECT COMMITTEE ON INTELLIGENCE

The Select Committee on Intelligence is authorized to meet during the session of the Senate on Tuesday, January 11, 2022, at 2:30 p.m., to conduct a closed briefing.

PRIVILEGES OF THE FLOOR

Mr. MARSHALL. Mr. President, I ask unanimous consent that the following interns from my office be granted floor privileges for the remainder of the Congress: Francis Prosser, Jared Sackett, Emily Irsik, and Tel Wittmer.

The PRESIDING OFFICER. Without objection, it is so ordered.

Ms. MURKOWSKI. Mr. President, I ask unanimous consent that Maya Becker, a fellow with my staff, be granted floor privileges for the remainder of this Congress.

The PRESIDING OFFICER. Without objection, it is so ordered.

MEASURE READ THE FIRST TIME—S. 3480

Mr. SCHUMER. Madam President, I understand there is a bill at the desk, and I ask for its first reading.

The PRESIDING OFFICER. The clerk will read the bill by title for the first time.

The legislative clerk read as follows:

A bill (S. 3480) to prohibit the use of funds to reduce the nuclear forces of the United States.

Mr. SCHUMER. I now ask for a second reading, and in order to place the bill on the calendar under the provisions of rule XIV, I object to my own request.

The PRESIDING OFFICER. Objection is heard.

The bill will receive its second reading on the next legislative day.

STATE AND LOCAL GOVERNMENT CYBERSECURITY ACT OF 2021

Mr. SCHUMER. Madam President, I ask unanimous consent that the Senate proceed to the immediate consideration of Calendar No. 152, S. 2520.

The PRESIDING OFFICER. The clerk will report the bill by title.

The legislative clerk read as follows:

A bill (S. 2520) to amend the Homeland Security Act of 2002 to provide for engagements with State, local, Tribal, and territorial governments, and for other purposes.

There being no objection, the Senate proceeded to consider the bill, which had been reported from the Committee on Homeland Security and Governmental Affairs, with an amendment to strike all after the enacting clause and insert in lieu thereof the following:

[propriate Federal departments and agencies for ensuring the security and resiliency of civilian information systems; and

[''(J) promote cybersecurity education and awareness through engagements with Federal and non-Federal entities.

[''(q) REPORT.—Not later than 1 year after the date of enactment of this subsection, and every 2 years thereafter, the Secretary shall submit to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Homeland Security of the House of Representatives a report on—

[''(1) the status of cybersecurity measures that are in place, and any gaps that exist, in each State and in the largest urban areas of the United States;

[''(2) the services and capabilities that the Agency directly provides to governmental agencies or other governmental entities; and

[''(3) the services and capabilities that the Agency indirectly provides to governmental agencies or other governmental entities through an entity described in section 2201(4)(B).''.]

SECTION 1. SHORT TITLE.

This Act may be cited as the ''State and Local Government Cybersecurity Act of 2021''.

SEC. 2. AMENDMENTS TO THE HOMELAND SECURITY ACT OF 2002.

Subtitle A of title XXII of the Homeland Security Act of 2002 (6 U.S.C. 651 et seq.) is amended—

(1) in section 2201 (6 U.S.C. 651), by adding at the end the following:

''(7) SLTT ENTITY.—The term 'SLTT entity' means a domestic government entity that is a State government, local government, Tribal government, territorial government, or any subdivision thereof.''; and

(2) in section 2209 (6 U.S.C. 659)—

(A) in subsection (c)(6), by inserting ''operational and'' before ''timely'';

(B) in subsection (d)(1)(E), by inserting '', including an entity that collaborates with election officials,'' after ''governments''; and

(C) by adding at the end the following:

''(p) COORDINATION ON CYBERSECURITY FOR SLTT ENTITIES.—

''(1) COORDINATION.—The Center shall, upon request and to the extent practicable, and in coordination as appropriate with Federal and non-Federal entities, such as the Multi-State Information Sharing and Analysis Center—

''(A) conduct exercises with SLTT entities;

''(B) provide operational and technical cybersecurity training to SLTT entities to address cybersecurity risks or incidents, with or without reimbursement, related to—

''(i) cyber threat indicators;

''(ii) defensive measures;

''(iii) cybersecurity risks;

''(iv) vulnerabilities; and

''(v) incident response and management;

''(C) in order to increase situational awareness and help prevent incidents, assist SLTT entities in sharing, in real time, with the Federal Government as well as among SLTT entities, actionable—

''(i) cyber threat indicators;

''(ii) defensive measures;

''(iii) information about cybersecurity risks; and

''(iv) information about incidents;

''(D) provide SLTT entities notifications containing specific incident and malware information that may affect them or their residents;

''(E) provide to, and periodically update, SLTT entities via an easily accessible platform and other means—

''(i) information about tools;

''(ii) information about products;

''(iii) resources;

''(iv) policies;

''(v) guidelines;

''(vi) controls; and

''(vii) other cybersecurity standards and best practices and procedures related to information security;

''(F) work with senior SLTT entity officials, including chief information officers and senior election officials and through national associations, to coordinate the effective implementation

by SLTT entities of tools, products, resources, policies, guidelines, controls, and procedures related to information security to secure the information systems, including election systems, of SLTT entities;

''(G) provide operational and technical assistance to SLTT entities to implement tools, products, resources, policies, guidelines, controls, and procedures on information security;

''(H) assist SLTT entities in developing policies and procedures for coordinating vulnerability disclosures consistent with international and national standards in the information technology industry; and

''(I) promote cybersecurity education and awareness through engagements with Federal agencies and non-Federal entities.

''(q) REPORT.—Not later than 1 year after the date of enactment of this subsection, and every 2 years thereafter, the Secretary shall submit to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Homeland Security of the House of Representatives a report on the services and capabilities that the Agency directly and indirectly provides to SLTT entities.''.

Mr. SCHUMER. I ask unanimous consent that the committee-reported substitute amendment be withdrawn; that the Peters substitute amendment, which is at the desk, be considered and agreed to; that the bill, as amended, be considered read a third time and passed; and that the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The committee-reported amendment in the nature of a substitute was withdrawn.

The amendment (No. 4898), in the nature of a substitute, was agreed to, as follows:

(Purpose: In the nature of a substitute)

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE.

This Act may be cited as the ''State and Local Government Cybersecurity Act of 2021''.

SEC. 2. AMENDMENTS TO THE HOMELAND SECURITY ACT OF 2002.

Subtitle A of title XXII of the Homeland Security Act of 2002 (6 U.S.C. 651 et seq.) is amended—

(1) in section 2201 (6 U.S.C. 651), by adding at the end the following:

''(7) SLTT ENTITY.—The term 'SLTT entity' means a domestic government entity that is a State government, local government, Tribal government, territorial government, or any subdivision thereof.''; and

(2) in section 2209 (6 U.S.C. 659)—

(A) in subsection (c)(6), by inserting ''operational and'' before ''timely'';

(B) in subsection (d)(1)(E), by inserting '', including an entity that collaborates with election officials,'' after ''governments''; and

(C) by adding at the end the following:

''(p) COORDINATION ON CYBERSECURITY FOR SLTT ENTITIES.—

''(1) COORDINATION.—The Center shall, upon request and to the extent practicable, and in coordination as appropriate with Federal and non-Federal entities, such as the Multi-State Information Sharing and Analysis Center—

''(A) conduct exercises with SLTT entities;

''(B) provide operational and technical cybersecurity training to SLTT entities to address cybersecurity risks or incidents, with or without reimbursement, related to—

''(i) cyber threat indicators;

''(ii) defensive measures;

''(iii) cybersecurity risks;

''(iv) vulnerabilities; and

''(v) incident response and management;

''(C) in order to increase situational awareness and help prevent incidents, assist SLTT entities in sharing, in real time, with the Federal Government as well as among SLTT entities, actionable—

''(i) cyber threat indicators;

''(ii) defensive measures;

''(iii) information about cybersecurity risks; and

''(iv) information about incidents;

''(D) provide SLTT entities notifications containing specific incident and malware information that may affect them or their residents;

''(E) provide to, and periodically update, SLTT entities via an easily accessible platform and other means—

''(i) information about tools;

''(ii) information about products;

''(iii) resources;

''(iv) policies;

''(v) guidelines;

''(vi) controls; and

''(vii) other cybersecurity standards and best practices and procedures related to information security, including, as appropriate, information produced by other Federal agencies;

''(F) work with senior SLTT entity officials, including chief information officers and senior election officials and through national associations, to coordinate the effective implementation by SLTT entities of tools, products, resources, policies, guidelines, controls, and procedures related to information security to secure the information systems, including election systems, of SLTT entities;

''(G) provide operational and technical assistance to SLTT entities to implement tools, products, resources, policies, guidelines, controls, and procedures on information security;

''(H) assist SLTT entities in developing policies and procedures for coordinating vulnerability disclosures consistent with international and national standards in the information technology industry; and

''(I) promote cybersecurity education and awareness through engagements with Federal agencies and non-Federal entities.

''(q) REPORT.—Not later than 1 year after the date of enactment of this subsection, and every 2 years thereafter, the Secretary shall submit to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Homeland Security of the House of Representatives a report on the services and capabilities that the Agency directly and indirectly provides to SLTT entities.''.

The bill (S. 2520), as amended, was ordered to be engrossed for a third reading, was read the third time, and passed.

SUPPLY CHAIN SECURITY TRAINING ACT OF 2021

Mr. SCHUMER. Madam President, I ask unanimous consent that the Senate proceed to the immediate consideration of Calendar No. 153, S. 2201.

The PRESIDING OFFICER. The clerk will report the bill by title.

The legislative clerk read as follows:

A bill (S. 2201) to manage supply chain risk through counterintelligence training, and for other purposes.

There being no objection, the Senate proceeded to consider the bill, which had been reported from the Committee on Homeland Security and Governmental Affairs, with amendments, as follows:

(The parts of the bill intended to be stricken are shown in boldface brackets, and the parts of the bill intended to be inserted are shown in italics.)

S. 2201

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Supply Chain Security Training Act of 2021''.

SEC. 2. TRAINING PROGRAM TO MANAGE SUPPLY CHAIN RISK.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Administrator of General Services, through the Federal Acquisition Institute, shall develop a training program for officials with supply chain risk management responsibilities at **[**executive**]** *Federal* agencies.

(b) CONTENT.—The training program shall be designed to prepare such personnel to perform supply chain risk management activities and identify and mitigate supply chain security threats that arise throughout the acquisition lifecycle, including for the acquisition of information and communications technology. The training program shall—

(1) include, considering the protection of classified and other sensitive information, information on current, specific supply chain security threats; and

(2) be updated as determined to be necessary by the Administrator.

(c) COORDINATION AND CONSULTATION.—In developing the training program, the Administrator shall—

(1) coordinate with the Federal Acquisition Security Council, the Secretary of Homeland Security, and the Director of the Office of Personnel Management; and

(2) consult with the Director of the Department of Defense's Defense Acquisition University and the Director of National Intelligence.

(d) GUIDANCE.—

(1) IN GENERAL.—Not later than 180 days after the training program is developed under subsection (a), the Director of the Office of Management and Budget shall promulgate guidance to Federal agencies requiring executive agency adoption and use of the training program. Such guidance shall—

[(1)**]** *(A)* allow executive agencies to incorporate the training program into existing agency training programs; and

[(2)**]** *(B)* provide guidance on how to identify executive agency officials with supply chain risk management responsibilities.

(2) AVAILABILITY.—The Director of the Office of Management and Budget shall make the guidance promulgated under paragraph (1) available to Federal agencies of the legislative and judicial branches.

SEC. 3. REPORTS ON IMPLEMENTATION OF PROGRAM.

Not later than 180 days after the completion of the first course, and annually thereafter for the next three years, the Administrator of General Services shall submit to the appropriate congressional committees and leadership a report on implementation of the training program required under section 2.

SEC. 4. DEFINITIONS.

In this Act:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES AND LEADERSHIP.—The term ''appropriate congressional committees'' means—

(A) the Committee on Homeland Security and Governmental Affairs and the Committee on Armed Services of the Senate; and

(B) the Committee on Oversight and Reform and the Committee on Armed Services of the House of Representatives.

(2) INFORMATION AND COMMUNICATIONS TECHNOLOGY.—The term ''information and communications technology'' has the meaning given the term in section 4713(k) of title 41, United States Code.

(3) EXECUTIVE AGENCY.—The term ''executive agency'' has the meaning given the term in section 133 of title 41, United States Code.

(4) FEDERAL AGENCY.—The term ''Federal agency'' means any agency, committee, commission, office, or other establishment in the executive, legislative, or judicial branch of the Federal Government.

[(4)]*(5)* TRAINING PROGRAM.—The term ''training program'' means the training program developed pursuant to section 2(a).

Mr. SCHUMER. I ask unanimous consent that the committee-reported amendments be withdrawn; that the Peters substitute amendment, which is at the desk, be considered and agreed to; that the bill, as amended, be considered read a third time and passed; and that the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The committee-reported amendments were withdrawn.

The amendment (No. 4899), in the nature of a substitute, was agreed to, as follows:

(Purpose: In the nature of a substitute)

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Supply Chain Security Training Act of 2021''.

SEC. 2. TRAINING PROGRAM TO MANAGE SUPPLY CHAIN RISK.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Administrator of General Services, through the Federal Acquisition Institute, shall develop a training program for officials with supply chain risk management responsibilities at Federal agencies.

(b) CONTENT.—The training program shall be designed to prepare such personnel to perform supply chain risk management activities and identify and mitigate supply chain security risks that arise throughout the acquisition lifecycle, including for the acquisition of information and communications technology. The training program shall—

(1) include, considering the protection of classified and other sensitive information, information on current, specific supply chain security threats and vulnerabilities; and

(2) be updated as determined to be necessary by the Administrator.

(c) COORDINATION AND CONSULTATION.—In developing and determining updates to the training program, the Administrator shall—

(1) coordinate with the Federal Acquisition Security Council, the Secretary of Homeland Security, and the Director of the Office of Personnel Management; and

(2) consult with the Director of the Department of Defense's Defense Acquisition University, the Director of National Intelligence, and the Director of the National Institute of Standards and Technology.

(d) GUIDANCE.—

(1) IN GENERAL.—Not later than 180 days after the training program is developed under subsection (a), the Director of the Office of Management and Budget shall promulgate guidance to Federal agencies requiring executive agency adoption and use of the training program. Such guidance shall—

(A) allow executive agencies to incorporate the training program into existing agency training programs; and

(B) provide guidance on how to identify executive agency officials with supply chain risk management responsibilities.

(2) AVAILABILITY.—The Director of the Office of Management and Budget shall make the guidance promulgated under paragraph (1) available to Federal agencies of the legislative and judicial branches.

SEC. 3. REPORTS ON IMPLEMENTATION OF PROGRAM.

Not later than 180 days after the completion of the first course, and annually thereafter for the next three years, the Administrator of General Services shall submit to the appropriate congressional committees and leadership a report on implementation of the training program required under section 2.

SEC. 4. DEFINITIONS.

In this Act:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES AND LEADERSHIP.—The term ''appropriate congressional committees'' means—

(A) the Committee on Homeland Security and Governmental Affairs and the Committee on Armed Services of the Senate; and

(B) the Committee on Oversight and Reform and the Committee on Armed Services of the House of Representatives.

(2) INFORMATION AND COMMUNICATIONS TECHNOLOGY.—The term ''information and communications technology'' has the meaning given the term in section 4713(k) of title 41, United States Code.

(3) EXECUTIVE AGENCY.—The term ''executive agency'' has the meaning given the term in section 133 of title 41, United States Code.

(4) FEDERAL AGENCY.—The term ''Federal agency'' means any agency, committee, commission, office, or other establishment in the executive, legislative, or judicial branch of the Federal Government.

(5) TRAINING PROGRAM.—The term ''training program'' means the training program developed pursuant to section 2(a).

The bill (S. 2201), as amended, was ordered to be engrossed for a third reading, was read the third time, and passed.

ORDERS FOR WEDNESDAY, JANUARY 12, 2022

Mr. SCHUMER. Madam President, finally, I ask unanimous consent that when the Senate completes its business today, it recess until 12:30 p.m., Wednesday, January 12; that following the prayer and pledge, the Journal of proceedings be approved to date, the time for the two leaders be reserved for their use later in the day, and morning business be closed; that upon the conclusion of morning business, the Senate proceed to executive session to resume consideration of the Bose nomination post-cloture; further, that the vote on the confirmation of the Bose nomination occur at 3:30 p.m.; finally, that if any nominations are confirmed during Wednesday's session, the motion to reconsider be considered made and laid upon the table and the President be immediately notified of the Senate's action.

The PRESIDING OFFICER. Without objection, it is so ordered.

RECESS UNTIL 12:30 P.M. TOMORROW

Mr. SCHUMER. Madam President, if there is no further business to come before the Senate, I ask unanimous consent that it stand in recess under the previous order.

There being no objection, the Senate, at 8:32 p.m., recessed until 12:30 p.m. on Wednesday, January 12, 2022.

NOMINATIONS

Executive nominations received by the Senate:

DEPARTMENT OF ENERGY

MARVIN L. ADAMS, OF TEXAS, TO BE DEPUTY ADMINISTRATOR FOR DEFENSE PROGRAMS, NATIONAL NUCLEAR SECURITY ADMINISTRATION, VICE CHARLES P. VERDON.

DEPARTMENT OF COMMERCE

MICHAEL COTTMAN MORGAN, OF WISCONSIN, TO BE AN ASSISTANT SECRETARY OF COMMERCE, VICE NEIL JACOBS.

CORPORATION FOR PUBLIC BROADCASTING

LAURA GORE ROSS, OF NEW YORK, TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE CORPORATION FOR PUBLIC BROADCASTING FOR A TERM EXPIRING JANUARY 31, 2028. (REAPPOINTMENT)

DELTA REGIONAL AUTHORITY

COREY WIGGINS, OF MISSISSIPPI, TO BE FEDERAL COCHAIRPERSON, DELTA REGIONAL AUTHORITY, VICE CHRISTOPHER CALDWELL.

CONFIRMATION

Executive nomination confirmed by the Senate January 11, 2022:

DEPARTMENT OF COMMERCE

ALAN DAVIDSON, OF MARYLAND, TO BE ASSISTANT SECRETARY OF COMMERCE FOR COMMUNICATIONS AND INFORMATION.

EXTENSIONS OF REMARKS

LIFE AND LEGACY OF ODELL BARRY

HON. JOE NEGUSE

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mr. NEGUSE. Madam Speaker, along with Rep. ED PERLMUTTER, I rise in remembrance of my mentor and dear friend Odell Barry.

After a lifetime of accomplishments Odell passed away on January 3rd at eighty years old. He is survived by his wife, Glenda, two sons, Jay and Damon, and five grandchildren.

He was a tenacious football player and all-star athlete, making a lasting impression on the people of Colorado during his tenure as a Bronco. The records he set during his rookie year extend an unbeatable precedent for Bronco players to this day.

Not only this, Odell was an inspirational political activist and public servant. He was the first Black American elected mayor in a major city in Colorado, serving the people of Northglenn for years on end.

He was an entrepreneur and well-respected businessman. Odell's greatest accomplishment was the influence he had on the youth in Northglenn and across the state of Colorado. His impact undoubtedly molded countless generations.

Odell held all those around him to high standards, teaching us to live with generosity and compassion and lead with benevolence. I am deeply grateful to have known him.

As a giant in many of our lives, the legacy Odell leaves behind will not soon be forgotten. My thoughts and prayers are with my dear friend, Glenda, and the entire Barry family. As we mourn his passing, we will remember his life and be inspired by his devotion to making this world a better place.

CONGRATULATING THE LENA-WINSLOW HIGH SCHOOL FOOTBALL TEAM FOR WINNING THE CLASS 1A IHSA STATE CHAMPIONSHIP

HON. CHERI BUSTOS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mrs. BUSTOS. Madam Speaker, I rise today to congratulate the Lena-Winslow High School football team for winning the IHSA State Championship for football.

The Lena-Winslow Panthers beat the Carrollton Hawks 38–25 in the championship game of the IHSA Class 1A football playoffs. The Panthers added 2021 to their state championship titles of 2019, 2017, 2013, and 2010, making them five-time champions. Running back Marey Roby finished with 241 rushing yards and three touchdowns, leading the team to their 5th win. I am pleased to see the Lena-Winslow Panthers representing the Lena community state-wide and I congratulate them on their win at the state championship.

It is because of leaders such as the Lena-Winslow Panthers that I am especially proud to serve Illinois' 17th Congressional District. Madam Speaker, I would like to again formally congratulate the Lena-Winslow football team on its win at the Class 1A IHSA State Championship for football.

IN RECOGNITION OF DR. KEVIN ROGERS

HON. MICHAEL C. BURGESS

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mr. BURGESS. Madam Speaker, I rise today to honor the tremendous contributions of Dr. Kevin Rogers, Superintendent of Schools for the Lewisville Independent School District in Texas. After serving for six years in that position, it is my privilege to recognize Dr. Rogers' distinguished career in education as he enters retirement.

Kevin Rogers, was born in Wichita Falls and raised in Andrews, Texas, graduated from Fort Stockton High School and obtained his undergraduate degree at the University of North Texas. He then received his master's degree from Texas Women's University and his doctorate from UNT.

Beginning his 36-year long career in education as a Lewisville ISD science teacher, Dr. Rogers was then promoted to a supervisory role as the Assistant Principal of Marcus High School. He then served as the Arbor Creek Middle School Principal, Marcus High School Principal, and Lewisville ISD Chief Operations Officer prior to his appointment as Interim Superintendent,

Dr. Rogers' contributions to Lewisville ISD include the introduction of Elementary STEM academies, Pre-kindergarten Discovery Academies, The Colony High School Collegiate Academy, and additional immersive Spanish classes at the middle school level. In order to further bolster the physical well-being of his students, Dr. Rogers also inaugurated Student Assistance Counseling and Behavior Intervention into the register of Lewisville ISD services. Under his diligent stewardship, during the last school year, LISD served over 50,000 students from 13 municipalities on 69 different campuses. His improvements to the school district's operations will benefit future generations of students for years to come.

The University of North Texas previously honored Dr. Rogers with the title of UNT Outstanding Doctoral Student in Educational Administration. The Lewisville Parent-Teacher Association also awarded Dr. Rogers with a Lifetime Achievement Award, and The Town of Flower Mound named him Citizen of the Year in 2016.

I join the parents, teachers, and students of Lewisville ISD in congratulating Dr. Rogers on a long and successful public service career. In addition, I would like to sincerely thank him for the positive working relationship he fostered with my district office and the hospitality extended by LISD in hosting multiple congressional events. Dr. Rogers has worked closely with my staff since his tenure as Marcus High School's principal and has graciously allowed me to hold numerous Town Halls, Energy Summits, and Emergency Preparedness Summits at Lewisville ISD's facilities. As he concludes almost four decade of tireless service to the young men and women of North Texas, I wish him all the best in his well-earned retirement.

HONORING THE LIFE OF AUBREY M. 'BUCKY' STANLEY, JR.

HON. ROBERT J. WITTMAN

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mr. WITTMAN. Madam Speaker, it is with deep sadness but great respect that I take this time to remember Aubrey M. "Bucky" Stanley, Jr. of Hanover, Virginia, who passed away on December 31, 2021. Bucky was a longtime Hanover County resident who spent many years of his life serving his county.

Bucky graduated from Patrick Henry High School and attended North Carolina State University. He returned to Virginia to work in the lumber and timber industry, first working with a family business, Stanley Lumber, and after that, owning his own company, AMS Timer, LLC.

In 1983, Bucky won his first election in Hanover, serving 38 years on the board, and six terms as chairman. He was the longest-serving Board of Supervisors member not only in the history of Hanover County, but the Commonwealth of Virginia as well. Bucky also served as chairman of the Capital Region Airport Commission for four terms. Bucky was a true servant leader in everything that he did and always put others first.

In addition to serving his beloved Hanover, Bucky was passionate about softball, managing and sponsoring teams including Stanley Lumber, Crossfire, Buckeye Softball, Mid-Atlantic Softball, and Andy's of Ashland. He travelled around the nation to participate in the sport and was inducted into the Hall of Fame of several of the sports sanctioning organizations.

Bucky was a great family man and showed his love to them in many ways. Bucky was preceded in death by his parents, Aubrey Mae Stanley Sr. and Helen Harris Stanley, and his wife, Ellen Epps Stanley. He is survived by his son, Darrell Stanley (Sheila) and his grandson, Wyatt Stanley.

Madam Speaker, I ask you to join me and countless others as we recognize the life of Aubrey M. "Bucky" Stanley, Jr.

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

HONORING STEVE EDWARD MARCHESE FOR HIS 29 YEARS OF FEDERAL SERVICE

HON. ROSA L. DeLAURO
OF CONNECTICUT
IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Ms. DELAURO. Madam Speaker, I rise as Chair of the Appropriations Committee, and on behalf of the Members of the Committee, and its staff, to pay tribute to Steve Edward Marchese as he retires after 29 years of Federal service. Steve began his career with Senator Alan Dixon before eventually serving my former colleague Representative Sidney Yates as his Appropriations Associate. Steve left Congress moving over to the State Department before coming home to the Appropriations Committee, where he has spent the last 15 years.

During his service to the Committee, he spent four years as professional staff on the State and Foreign Operations (SFOPs) Subcommittee. He eventually became the SFOPs Clerk and remained in that role for 10 years. During this time, Steve provided vital counsel to Members, which led to responsible investments through the SFOPs bill that made the world better, safer, and healthier while improving the security of generations throughout the world. He also spent considerable time and effort in compiling an anthology of the SFOPs bill that is an invaluable resource to the SFOPs subcommittee members.

When I became Chair of the Appropriations Committee a year ago, Steve moved over from SFOPs to serve as the Legislative Branch Clerk. Steve undoubtedly thought this would be a break from world conflicts, but instead found himself at the subcommittee's helm, deeply involved in the aftermath of the January 6th attack. Madam Speaker, Steve did not disappoint and brought his trademark dedication to a suddenly critical position. Steve was instrumental in crafting the Emergency Security Supplemental to Respond to January 6th Appropriations Act. As the Legislative Branch Clerk, Steve's hard work and dedication was very much appreciated and a great service to Congress and democracy.

I speak for myself, and I am sure other Members and his colleagues, when I say we will miss Steve after he retires from Federal service this week.

I am excited for what the future holds for Steve and wish him, his wife Cathy, and daughters Audrey and Julia all the best. Congratulations on an outstanding career. His country thanks him for his hard work.

CONGRATULATING TODD GORMAN FOR WINNING THE NJCAA ESPORTS NATIONAL CHAMPIONSHIP

HON. CHERI BUSTOS
OF ILLINOIS
IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mrs. BUSTOS. Madam Speaker, I rise today to congratulate Todd Gorman on his national win playing Hearthstone at the NJCAA Esports competition.

Todd has been playing Hearthstone since 2015, and it is a game that involves strategy and skill to succeed. Hearthstone is a fast-paced, strategy-based computer card game in which players amass a collection of unique cards to build four decks of 20. Before each one-on-one match, both players can protect one of their decks and ban one of their opponent's decks. And then they play a best-of-five series. In the championship, he earned a 3–0 sweep over the runner-up from Bryant & Stratton. This season, he has won 21 of 25 rounds played. I am pleased to see Todd representing the Knoxville community nationally. I congratulate Todd on his win at the national championship, and I look forward to seeing what he accomplishes in the future.

IT is because of leaders such as Todd Gorman that I am especially proud to serve Illinois' 17th Congressional District. Madam Speaker, I would like to again formally congratulate Todd Gorman on his winning of the NJCAA Esports National Championship.

HONORING 100 YEARS OF VFW POST 857

HON. JIM BANKS
OF INDIANA
IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mr. BANKS. Madam Speaker, I rise today to honor the Veterans of Foreign Wars Post 857 of Fort Wayne as they prepare to celebrate their 100-year anniversary.

Founded less than five years after the end of the First World War, VFW Post 857 has been a fellowship among American patriots in and around Fort Wayne all of whom served our country at some point in overseas conflict for now a century. With over 500 members including an Auxiliary, Post 857 remains a most honorable and beloved local institution.

This institution over the years and generations has been the fraternal home of patriots like Donald Kurtz, Edwin Davis, David Roth, Don Van Osdale, Edgar Grider, and so many others. I am inspired by these men and the mission of the organization to which they belonged—a mission which includes not only helping veterans recover from the wounds of war but, even more importantly, to ensure that the memory of those who have served is never forgotten.

From holding raffles to support the home repairs of veterans to throwing children's Halloween parties to hosting motorcycle rides alongside Northeast Indiana Honor Flights, and more, Hoosiers thank Fort Wayne's VFW Post 857 for their service and stewardship to the community over the years and generations.

This record is testament to VFW Post 857's longevity and achievement, for which Indiana, and northeast Indiana, is grateful. May God bless them, and may God Bless the United States of America.

RECOGNIZING THE TAOS NEWS 2021 TRADICIONES UNSUNG HEROES

HON. TERESA LEGER FERNANDEZ
OF NEW MEXICO
IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Ms. LEGER FERNANDEZ. Madam Speaker, I rise today to recognize the incredible lives and work of the Taos News 2021 Tradiciones unsung heroes. It was my honor to join all of them on their big night of celebration. The stories they shared and the work they do for the community are more important than words can describe. I feel very fortunate to have attended such a special event surrounded by such selfless and inspiring people.

It was an honor to hear Benito Concha share his heartfelt story in person. I'm happy that he shared a gift with all the unsung heroes of the night. We all need to do more to uplift the good work and the heroes who deliver. All and all he's an incredible example of why it is so important to listen to the wisdom of our Native elders.

I thank Judy Weinrobe for bringing the wonderment and love of our state to a group like Los Jardines. I often hear how easy it is to fall in love with our state. She is an example of why. She adds beauty to our community through her work. We recognize the beauty of her labor. Keep planting the seeds.

Bette Myerson can't retire for the last time if she does what she loves. Especially if what she loves is a necessity, repairing the world. I think we were destined to meet because we do the same work. Best wishes to Bette and her family. I know she'll continue to do good.

Anita Bringas is a true asset as a strategic support manager. The way she can easily connect people, time, and tradition is the essence of New Mexico. We are all different and beautiful. It's understanding each other and caring that makes this place truly unique. The moment she shared with her mom was one I'll always remember.

As a founder of the women's shelter, HEART of Taos, the world needs more people like Kathryn Herman. Someone who is called to action to fill a void without the intention of becoming a hero but is one. She's saved countless women and children. There is nobody who has a bigger heart than Kathryn. She is the person who we all should aspire to be.

The beauty of Questa, New Mexico doesn't end with its scenery—it extends to its people and there is no better example than Malaquias Rael, Jr. He is an inspiration. The work he has done to diversify and promote sustainability serves as a model for the state and other communities. In small towns, it's important we remain a community and truly live as neighbors who look out for each other.

It's a rarity to see people as generous as Roels ''Roy'' Cunnyngham, especially when it comes to donating land for the community. Those actions promote the health, welfare, and economy of our community, echoing long after the deed is handed over. It's people like Roy who will ensure that Taos grows and prospers for decades to come.

Lisa Abeyta-Valerio is a treasure to her community but more importantly, to our youth. Her passion as a cheerleader coach constantly reminds us of this. Taos may be a small community, but there is no shortage of champions. With someone as caring as Lisa in the driver seat, we'll never get lost.

Pauline Mondragon's story as a fighter and cancer survivor inspires all. Having been there myself, I understand how strong she must be to do as much as she has. Pauline devotes her time and energy for everything that we value as Nuevo Mexicanos. When the pandemic passes, we will all be able to celebrate her and the great heroes of our community.

David Elliot, Citizen of the Year, is an outstanding citizen for the community of Taos. The progress and change he fostered during the pandemic are a beautiful example of the power of love for community. The world is a better place because of the work he's done. It was my honor to invite David to President Biden's State of the Union address to Congress, and I appreciate him inviting me to hear the stories of many of New Mexico's other unsung heroes. I look forward to seeing the incredible things he continues to do.

After listening and meeting with them, my heart is filled with inspiration and hope. It is their passion and the passion of so many more that bring peace, prosperity, and harmony to our beloved communities.

HONORING THE LIFE AND PATRIOTIC SERVICE OF MARION E. WRIGHT

HON. PAT FALLON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mr. FALLON. Madam Speaker, I rise today to honor and commemorate the life of Marion E. Wright. On January 5, 2022, Marion peacefully entered the gates of glory and is survived by his sister Ula Defenbaugh, his six children and their spouses, fifty-seven grandchildren, thirty-four great-grandchildren, and thirteen great-great-grandchildren.

Marion was born on June 26, 1921 to Noel and Lorena Wright in Parsons, Kansas. While stationed in Sioux City, Iowa with the United States Army he was joined in marriage to his wife Marcella (Durgan) Wright on August 8, 1943. From July of 1942 to December of 1945, Marion faithfully and patriotically served his nation which was in the midst of the Second World War. Not only did he serve as a Military Policeman but, he was also deployed to Europe in 1945 where he was a Gunner on a halftrack and a Tank Operator. Marion would fondly recall meeting Jimmy Stewart who was training to fly B–52s in Sioux City. On his return home from deployment in Europe, Marion crossed the Atlantic on the famous troopship, *The Queen Mary*.

At home after the war, Marion could be found working the field, restoring antique furniture, or joyfully attending to the needs of his beautiful wife and children. Marion had a career at Kustom Electronics where he worked in the shipping department. As a member of the American Legion, he remained close to many of his brothers in arms in the years after the war.

I have requested the United States flag be flown over our Nation's Capital to recognize Marion E. Wright's patriotism and devotion to God, Family, and Country. Furthermore, Madam Speaker, I extend my personal condolences to the Wright family for the loss of such an extraordinary man of service and duty. May God rest the soul of this great American.

CONGRATULATING AUSTIN HUFF FOR WINNING THE SPECIAL OLYMPICS STATE BOWLING CHAMPIONSHIP

HON. CHERI BUSTOS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mrs. BUSTOS. Madam Speaker, I rise today to congratulate Austin Huff on winning the Special Olympics State Bowling Championship.

In the state championship, Austin bowled 89, 71, and 75 to win the gold. I am pleased to see Austin representing the Rock Island community in the Special Olympics. I congratulate Austin on his win at the state championship, and I commend him for his good sportsmanship and exciting win at the state championship.

It is because of inspirational people such as Austin Huff that I am especially proud to serve Illinois' 17th Congressional District. Madam Speaker, I would like to again formally congratulate Austin Huff on his win at the Special Olympics State Bowling Championship.

IN MEMORY OF REVEREND LAWRENCE IRVING SLATER SR.

HON. MARC A. VEASEY

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mr. VEASEY. Madam Speaker, I rise today to commemorate the life and accomplishments of Reverend Lawrence Irving Slater, Sr.—a pillar of our Fort Worth community.

Reverend Slater was a graduate of Como High School in Fort Worth, Texas before serving as a brave member of the United States Army and then graduating from Southwestern Baptist Seminary in Fort Worth. Reverend Slater was a man of faith who proudly served our community through his preaching tenure at Strangers Rest Baptist Church and as an Associate Pastor at Greater Rising Star Baptist Church.

My thoughts and prayers are with all those who knew and loved Reverend Slater, particularly his wife, Lessie Slater, and his five children, Diana Lynn Wright, Shirley Thomas, Kathy Slater, Lisa Holmes, and Lawrence Slater, Jr. May his memory last forever.

2021 ACADEMY NOMINATIONS

HON. GREG PENCE

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mr. PENCE. Madam Speaker, I rise today to acknowledge the importance of service academy nominations in Indiana's Sixth District. Every year, my office has the honor of nominating students to the various service academies throughout the country. The Academies demand the best of the best. In November, we had 13 bright high school students throughout Indiana's Sixth District interview for service academy nominations. I'd like to thank my Service Academy Advisory Board for taking the time out of their day to interview these students:

Tom Schneider, Merchant Marine Academy graduate of Madison, Indiana;

Kelly Poltrack, Naval Academy graduate of Batesville, Indiana;

Nate LaMar, West Point graduate of New Castle, Indiana; and

Bob Morrow, Air Force Academy graduate of Centerville, Indiana.

I wish our service academy nominees the best of luck with their future endeavors.

HONORING THE LIFE AND LEGACY OF JOHN MADDEN

HON. DINA TITUS

OF NEVADA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Ms. TITUS. Madam Speaker, I rise today to honor the life and legacy of one of football's greatest icons, John Madden. First, I would like to extend my sincere condolences to Virginia, Joseph, Michael, and the entire Madden family on the loss of their beloved husband, father, and grandfather who left such an indelible mark on our Las Vegas Raiders and the American football landscape. John Madden once said, ''If you think about it, I've never held a job in my life. I went from being an NFL player to a coach to a broadcaster. I haven't worked a day in my life.'' While he may not have felt he worked a day in his life, Mr. Madden certainly accomplished a lot and helped others do the same.

As a young man, he recognized the importance of an education and utilized his football prowess to pursue his dreams. His grit and determination on both the offense and defense at Cal Poly were recognized by pro scouts and he was drafted into the National Football League (NFL). Unfortunately, his professional playing time was cut short by injuries, but this was only the first step in a stellar career.

Initially hired as a defensive coach, after two years with the Raiders organization he was promoted to head coach at 32 years of age, making him the youngest NFL coach ever to lead a team. Over the next decade, his Raiders teams personified owner Al Davis's motto, ''Just win, baby.'' Under Madden's inspired leadership, the Raiders won seven Western Division titles and made eight playoff appearances in 10 years. Mr. Madden's team defeated the Minnesota Vikings led by Fran Tarkenton, 32–14, in Super Bowl XI, when he cleared the Raider bench to be sure every active player saw game action. Afterwards, Madden was memorably carried off the field on his players' shoulders and commented, ''I'll never take off the Super Bowl ring. It's something I will always cherish.'' Along with owner Davis, five of the Raider players would later be inducted into the Football Hall of Fame. Madden would join them in 2006. Today he still holds the highest winning percentage of any coach who has won 100 or more games.

Mr. Madden's players respected his vision, elevating their play and creating a style all their own. They raised the competitive level of the game and set the standard that many teams still try to emulate today. Their loyal fans, Raider Nation, also personify defiance, struggle, and the will to win. During his tenure he also made great strides in diversifying the

game, working with scouts to find minority talent where many had not searched before and providing new avenues to stardom that many had not dreamed possible.

Following his retirement in 1979, Madden entered the broadcast booth. He had a way with words that synched perfectly with his longtime play-by-play partners, Pat Summerall and Al Michaels. Mr. Madden brought an astute balance to their relationships in the booth, redefining the color commentator role for all sports and painting a picture the audience could truly understand that added to their game watching experience.

Coach Madden once noted he wished to live out the story of one of his favorite books, Travels with Charley: In Search of America by John Steinbeck. Mr. Madden's fear of flying made this dream possible, as he crisscrossed our country by bus during the season to ensure he was able to call games in person from coast to coast. Traveling around the country in the ''Madden Cruiser,'' he connected with countless football fans all over the United States. Many of the Americans he met along the way had been introduced to the game of football by his booming voice on TV or his namesake video game; and Madden was always generous with his time, sharing stories with fans of all ages.

John Madden's legacy will live on in the words spoken by Raiders' owner Mark Davis as he lit the torch at Allegiant Stadium in Las Vegas on December 28, 2021, ''The fire that burns the brightest in the Raiders Organization is the will to win.''

RECOGNIZING FRANK W. ZARDECKI FOR HIS 62 YEARS OF SERVICE TO THE UNITED STATES OF AMERICA

HON. MATT CARTWRIGHT

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mr. CARTWRIGHT. Madam Speaker, I rise today to honor Frank W. Zardecki for his 62 years of service to our country. A veteran of the United States Air Force, he has served as the Deputy Commander of Tobyhanna Army Depot for 32 years, supporting the organization and the 4,000 personnel who perform diversified logistics, administrative, and related support missions. On January 6, Frank was honored for his contributions and achievements in the role.

Frank answered the call of duty and joined the United States Air Force in 1960 and served until 1964. On January 4, 1966, he began working as an electronic test equipment repairer at the Tobyhanna Army Depot. In 1972, he was promoted to his first supervisory role in the avionics branch, and, by 1976, he was named a general foreman.

From 1982 to 1984, Frank served as the Depot's first Force Modernization Officer. He served as Chief of the Production Engineering Department, chosen for his experience, technical ability, and managerial skills. In 1985 and 1986, he was selected by DESCOM, the two-star headquarters command, for a special assignment as the Civilian Executive Assistant at the Sierra Army Depot in California, where he was responsible for directing the ammunition and special weapons missions performed at the instillation. When he returned, he was promoted as the Chief of the Shops Division in the Maintenance Directorate. In 1988 and 1989, he served as the Deputy Director of Maintenance.

In December 1990, he received a temporary promotion to Acting Deputy Commander, and in June 1991, he was permanently installed in the role, beginning his three-decade tenure in the position, making him the longest-serving Deputy Commander in Tobyhanna Army Depot history. The Depot has thrived under Frank's direction, transitioning from a traditional repair depot to a state-of-the art logistics service center that provides comprehensive maintenance, repair engineering, and logistics services for the entire Department of Defense as well as thousands of jobs in Northeastern Pennsylvania. The Secretary of the Army named Tobyhanna Army Depot the Center for Industrial and Technical Excellence for Communications, Electronics. Avionics, and Missile Guidance and Control Systems. The Department of Defense has also recognized the Depot with the Robert T. Mason Depot Maintenance Excellence Award, and the Depot has been the recipient of seven Shingo Awards for manufacturing excellence.

For his efforts and expertise, Frank has been called to serve on numerous Department of the Army and Department of Defense special studies on military logistics, and he is widely recognized as a leader in depot maintenance. Throughout his career, Frank has received many awards for his contributions to the field. He has received the Department of Defense Exceptional Civilian Service Award, two Department of the Army Decoration for Exceptional Civilian Service Awards, the Meritorious Civilian Service Award, four Superior Civilian Service Awards, the Commander's Award for Civilian Service, and other performance and special service awards.

I am honored to join Tobyhanna Army Depot in recognizing Frank for his six decades of service to the nation as a veteran of the United States Air Force and dedicated public servant at the Tobyhanna Army Depot. Frank has been instrumental in the growth and success of the Depot, and we are grateful for his vision and dedication. I wish him the best in his retirement.

CELEBRATING ELEANOR HENLEY ON HER 100TH BIRTHDAY

HON. CHERI BUSTOS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mrs. BUSTOS. Madam Speaker, I rise today to celebrate the 100th Birthday of World War II veteran and Peoria, Illinois resident Eleanor Henley.

Born on January 2, 1922 in Kunkletown, Pennsylvania, Eleanor devoted her life to fighting for our country and helping others reach their potential. She enlisted in the Women's Army Corps in 1944, completing her basic training in Oglethorpe, Georgia. After stopping at different bases across the country for supplementary job and overseas trainings, she earned an assignment to the Army Air Force. Climbing aboard the troop transport ship, the Aquitania, she sailed across the Atlantic Ocean to join her fellow American soldiers at a base near Cambridge, England. She was a member of the 8th Air Force, better known as The Mighty Eighth. While stationed there, she typed and decoded messages as she helped provide intelligence to boost the Allies' efforts on the ground until Germany's surrender. She was then transferred to France and was eventually discharged as Sergeant Eleanor Henley, traveling back stateside on the Queen Mary. She married her husband, whom she met while serving, Conrad Stewart, soon after returning home. They were together for 63 years until his death, raising three children, 11 grandchildren and seven great-grandchildren. Looking for new ways to continue serving her community, she graduated from Peabody College with a degree in education. She relocated to Illinois shortly thereafter and became a teacher in Peoria Public Schools District 150, where she mentored and uplifted students for 28 years.

It is because of heroic, selfless, and trailblazing leaders such as Eleanor Henley that I am especially proud to serve Illinois' 17th Congressional District. Madam Speaker, I would like to, again, formally celebrate Eleanor Henley on her 100th Birthday and thank her for her service to the United States of America.

CELEBRATING LEARNED DAVIS BARRY'S LEGAL CAREER

HON. A. DONALD McEACHIN

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mr. McEACHIN. Madam Speaker, I would like to take this opportunity to celebrate Mr. Learned Davis Barry on the occasion of his retirement.

Mr. Barry has deep ties to the Commonwealth of Virginia. He earned his B.A. from the University of Virginia, his J.D. from the University of Richmond Law School, and was admitted to practice law in the Commonwealth on May 21, 1974, almost 50 years ago.

Mr. Barry's commitment to service has been a hallmark of his legal career. He followed in his father's footsteps by registering for military service, serving as an Air Force JAG officer for four years following his graduation from law school. Over the next forty-four years of Mr. Barry's career, he served as a prosecutor in the Richmond Commonwealth's Attorney's Office, the Henrico Commonwealth's Attorney's Office, and the Chesterfield Commonwealth's Attorney's Office.

As he progressed throughout his career, Mr. Barry took on increasingly robust and challenging roles as a public servant. He served as the Special Prosecutor responsible for running the multi-jurisdictional Grand Jury for the City of Richmond and the counties of Henrico and Chesterfield. When he returned to the Richmond Commonwealth's Attorney's Office in the early 2000s, Mr. Barry created a ''Murder Program'' in the office, focusing on the successful investigation and prosecution of homicides in Richmond. This work resulted in a high clearance rate for murder cases in the City of Richmond, including the infamous murder of the Harvey family on New Year's Day 2006.

However, Mr. Barry's most lasting legacy is the impact he has had on the hundreds of

younger prosecutors that he mentored. Through his advice and training over the decades, prosecutors in Richmond, Henrico, and Chesterfield gained a deeper knowledge of and respect for the law.

Madam Speaker, I ask my colleagues to join me in recognizing Mr. Learned Davis Barry for his devotion to the public good and decades of committed service as a prosecutor.

2021 NEW JERSEY THESPIANS ALL-STATE SHOW SONGS FOR A NEW WORLD

HON. BONNIE WATSON COLEMAN

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mrs. WATSON COLEMAN. Madam Speaker, I rise today to recognize the hard work and dedication of the great students, teachers, and staff members of Ewing and Hopewell Valley Central High School, among other schools across the great state of New Jersey, for their participation in the 2021 New Jersey Thespians All-State Show Songs for a New World. From acting on the big stage, directing the show to lighting design, Elliot Block, Ryan Dwyer, Olivia Gross, Molly Higgins, Chloe Lumond, David LaRaus, Olivia Levin, Nia Whaley, Fatima N'diaye, Jack Creegan, Katherine Rochon, Jason Wylie, Jenna Parilla Alvino, Jessica Bohenberger, and Carolyn Little, dazzled us all and showcased great commitment to representing our state on a national level at the International Thespian Festival.

Under the direction of Katherine Rochon, for the first time ever, a New Jersey show was selected to have a main stage performance at the 2021 International Thespian Festival. Even during this historic time in history, when a pandemic is changing the layout of our classrooms, these students, teachers, and staff members committed their time to bring joy to our community. This display of courage and the betterment of their craft attest to the kind of leadership and tradition that can only be obtained when we persevere through adversity.

On behalf of the great state of New Jersey, I would like to formally congratulate these great individuals for not only this outstanding achievement but for their amazing display of teamwork and dedication.

REMEMBERING ALASKAN PHILANTHROPIST EDWARD RASMUSON

HON. DON YOUNG

OF ALASKA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mr. YOUNG. Madam Speaker, I rise today to honor the life of my friend and great Alaskan, Edward Rasmuson, a philanthropist and founder of The Rasmuson Foundation. Ed passed away on January 4, 2022, at the age of 81. I offer my deepest condolences to his family and loved ones, as well as those whose lives he impacted across his lifetime who are thinking of him now.

Ed Rasmuson was a man of many accomplishments. Everything Ed sought to accomplish in his lifetime he did. Throughout his life Ed gained much more than the monetary wealth from good business and financial investment; he sought to help others and influence our state. I'm proud to have worked with him closely over the years, but I am even prouder to have called him my friend.

The works of Ed and his family will continue through the foundation his family created, in efforts to help Alaskans reach their full potential. This philosophy and thought of living beyond oneself and giving without an expectation of anything in return sets the precedent for living a philanthropical lifestyle. I could not be more grateful for the giving heart of this man and his family towards the people of Alaska.

The Rasmuson Foundation provides funding towards combatting homelessness, improving health care, the arts, community development, ending domestic violence, preventing child abuse, and helping seniors. Although he may no longer be with us, his work and the work of the Rasmuson Foundation will continue to support and inspire future Alaskans for generations to come.

Ed dedicated his life to Alaska and the people who call the Last Frontier home. We honor his legacy and mourn his loss alongside his family. Please join me in keeping the Rasmuson family in your prayers.

IN RECOGNITION OF WANDA YOUNG

HON. RASHIDA TLAIB

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Ms. TLAIB. Madam Speaker, I rise today to recognize the late and legendary, Wanda Young, former singer of the renowned Motown Marvelettes and resident of Inkster in Michigan's 13th Congressional District.

Ms. Young was born in Eloise, Michigan and was raised in Inkster. It was there that she made her mark on Motown, our community's culture, and music history. Ms. Young was asked to join a local singing group, comprised of Inkster High School students and alumni, when one of its members had to drop out. They were immediately impressed by her vocal range. The group, now known as the Marvelettes, had previously auditioned with Barry Gordy of Motown Records and was quickly signed to the Tamla record label, later known as Motown Records. They earned Motown one of its biggest hits with their best-known song, ''Please, Mr. Postman.''

Wanda Young sang lead on many of the Marvelettes' recordings, including hit songs ''Don't Mess Around with Bill'' and ''I'll Keep Holding On.'' Ms. Young was an integral part of the Motown music scene and defining the sound of the 1960s. She has been a paragon to countless women and African-American performers inspired by her example.

Please join me in recognizing Wanda Young's contributions to our country, music and Michigan's 13th District Strong as we honor her legacy and her impact on history at home and across the globe.

RECOGNIZING DAVE WILLIAMS FOR HIS CONTRIBUTIONS TO AGRICULTURAL BROADCASTING

HON. MATT CARTWRIGHT

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mr. CARTWRIGHT. Madam Speaker, I rise today to honor Dave Williams for his two decades of service to the Pennsylvania agricultural community as a farm broadcaster, owner of the Pennsylvania Farm Country & American Farm County Radio Network, and producer of Pennsylvania Country Roads TV. In February 2021, he received the 2021 Gerald W. Reichard Impact Award from the Pennsylvania Farm Show, and he received the Barn Raiser Award at the Pennsylvania Farm Bureau's 71st Annual Meeting on November 16, 2021.

Dave was born in Wayne County, Pennsylvania and raised on a five-generation family farm in Cherry Ridge. At age twelve, he took over a herd of 30 dairy cows and was active in 4–H. Dave then joined the military, and, after his service, he helped manage a 5,000-acre cattle ranch in Texas. With his late wife, Melba, he leased a 50-acre mule farm while working in the oil drilling business.

When he returned to Wayne County, he worked as a fleet manager in the trucking industry while returning to his agricultural roots on the weekends, farming and raising sheep and cows. He was named the president of the Pocono Mountains Antique Farm Association, doing shows at local fairs.

In the fall of 1998, Marilyn Shaffer of the Wayne County Farm Bureau, who was a fellow member of the antique machinery club, asked Dave to do a radio show for Honesdale's radio station. Dave pitched his idea for a radio show that would not only target farmers and their concerns but also the consumers who buy and eat the food. The station gave Dave the green light, and his first show featured Leroy Van Dyke, a popular country singer, as his initial guest. The show would go on to host state and federal legislators, governors, and state agricultural officials.

One of the highlights of his program is the ''heartland stories'' from farmers themselves, and Davie shares his own stories of growing up on and managing his family's farm. Dave is especially skilled at building a rapport with farmers and encouraging them to use their voice and the radio show platform to share their successes and concerns, helping consumers understand the agricultural process.

Dave joined the Pennsylvania Farm Bureau first as an officer and later as state director, and he served as a state delegate to the American Farm Bureau Association, through which he met Orion Samuelson, host of U.S. Farm Report, who told him he needed to be a National Farm Broadcaster. Dave then joined the National Association of Farm Broadcasting (NAFB), and later hosted Samuelson on his show. After connecting with Pennsylvania Cable Network at the Pennsylvania Farm Show, he was invited to have his own show on the network which reaches an audience of 3.5 million.

I am honored to recognize Dave for his storied broadcasting career. His work has contributed immeasurably to the visibility of the agricultural community both in Pennsylvania and across the country, and I am grateful for his

efforts to champion farmers' voices. I wish him continued success with his broadcasting and agricultural endeavors.

HONORING THE 50TH ANNIVERSARY OF THE PASSING OF VICE ADMIRAL PAUL FREDERICK FOSTER, USN

HON. RON ESTES

OF KANSAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mr. ESTES. Madam Speaker, I rise today to honor the 50th anniversary of the passing of Vice Admiral Paul Frederick Foster, USN. Over his distinguished 23-year career in the United States Navy, Vice Admiral Foster became the first naval officer to be awarded the Navy Cross, the Distinguished Service Medal, and our nation's highest military distinction, the Medal of Honor.

Born in Wichita, Kansas, the son of a Congregationalist minister, he spent his early years traveling the west with his father, living in Kansas, Utah, Oklahoma, and Idaho before his appointment to the United States Naval Academy. At the academy, he reached the rank of cadet commander and served as commander of the Midshipmen Battalion. Upon graduation in 1911, he was assigned to various postings in the Caribbean Sea. In 1914, then-Ensign Foster took part in the Battle of Veracruz during the United States' intervention against Mexican dictator Victoriano Huerta. At the head of his company, he led his sailors ashore during the fighting on April 21 and 22, 1914. He was awarded the Medal of Honor for his leadership, heroism, and courage under enemy fire. His commendation cites that ''Ens. Foster was eminent and conspicuous in his conduct, leading his men with skill and courage''.

Upon his return to the United States in 1915, Vice Admiral Foster became one of the first American naval officers to undergo submarine instruction. He served as executive officer on the experimental submarine G–4 and participated in maneuvers along the Eastern Seaboard. When the United States joined the Allies in World War I, Vice Admiral Foster was sent to England and served on U.S. Submarine L–2. In 1918, he was awarded the Navy Distinguished Service Medal for his part in sinking one of the three enemy submarines during the war.

After World War I, he returned to peacetime duty back in the United States. In 1924, during a training accident on the USS *Trenton*, with total disregard for his safety, Vice Admiral Foster entered a burning gun turret and extinguished the fire both inside the turret and on the clothing of the crew members, saving their lives. For this act of valor, he was decorated with the Navy Cross. He retired from active duty in 1929 but remained a member of the Navy Reserve.

Vice Admiral Foster was recalled to active duty in 1941 following the attack on Pearl Harbor. President Franklin D. Roosevelt directly tasked him to conduct special naval inspections worldwide during the Second World War. As Assistant Inspector General of the Navy, Vice Admiral Foster examined bases across the globe, overseeing operations and ensuring the security, effectiveness, and safety of U.S. naval operations in North America, Europe, and the Pacific. He received the Legion of Merit and Navy Commendation Medal War for his essential service. He retired from the Navy fully in October 1946 with the rank of vice admiral.

The end of his military service did not mark the end of his career in public service. In 1954, Vice Admiral Foster was appointed by President Dwight D. Eisenhower to be the assistant general manager for international activities at the Atomic Energy Commission (AEC) and later general manager of the commission, advancing the United States' peaceful pursuit of atomic power. Finally, in 1959, President Eisenhower appointed him permanent U.S. representative to the International Atomic Energy Agency in Vienna, furthering U.S. leadership in managing the peacetime development of atomic science and technology through the ''Atoms for Peace'' initiative. During his service in Vienna, he had the opportunity to meet with several world leaders, including Pope John XXIII. After retiring in 1961, Vice Admiral Foster settled in Virginia Beach. He passed away on Jan. 30, 1972, at the age of 82. In a tribute to his years of service, the Spruance-class destroyer USS *Paul F. Foster* was named in his honor in 1976.

A true American hero, Vice Admiral Foster's legacy lives on through his family, friends, and commitment to service to his country. I hope the rest of my colleagues will join me in honoring his memory on the 50th anniversary of his passing on Jan. 30, 2022.

CONGRATULATING DR. ANDREA TALENTINO ON BEING NAMED THE NINTH PRESIDENT OF AUGUSTANA COLLEGE

HON. CHERI BUSTOS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mrs. BUSTOS. Madam Speaker, I rise today to recognize Dr. Andrea Talentino, who has been named the ninth President in the rich, 161-year history of Augustana College located in Rock Island, Illinois. Her first day will be July 1, 2022.

After earning a bachelor's degree from Yale University and doctorate from UCLA, Dr. Talentino has dedicated her professional career to helping our next generation prepare for the future. She perfected the art of teaching and mentored countless students as a member of faculty at Tulane University. Committed to becoming more versed in all aspects of higher education, Dr. Talentino developed her leadership administrative and supervisory skills as Associate Dean at Drew University and Dean of the College of Liberal Arts at Norwich University. Her proven work ethic and detail-oriented approach afforded her the opportunity to become Provost at Nazareth College, her most recent position. Dr. Talentino will strive to provide an all-encompassing and inclusive educational experience for the Augustana community.

It is because of passionate and selfless leaders such as Dr. Andrea Talentino that I am especially proud to serve Illinois' 17th Congressional District. Madam Speaker, I would like to, again, formally congratulate Dr. Andrea Talentino on being announced as the ninth President of Augustana College.

CONGRATULATING MT. VERNON HIGH SCHOOL

HON. GREG PENCE

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mr. PENCE. Madam Speaker, I rise today to congratulate Mount Vernon Marauders football team for winning the Class 4A Championship Game.

The Marauders made Mount Vernon High School history by winning the school's first ever state championship, with a 45–14 win over Northridge High School. Marauders' all-star team includes quarterback Gehrig Slunaker, who threw for 235 yards and three touchdown passes; running back Keagan LaBelle ran for 76 yards and two touchdowns; and Ashden Gentry scored a 59-yard interception return.

Congratulations to first-year coach Vince Lidy and the entire football team for their incredible accomplishments and hard work this year.

CELEBRATING THE TRICENTENNIAL ANNIVERSARY OF THE TOWN OF BARRINGTON, NEW HAMPSHIRE

HON. CHRIS PAPPAS

OF NEW HAMPSHIRE

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mr. PAPPAS. Madam Speaker, I rise today to celebrate the tricentennial anniversary of the charter of the Town of Barrington, New Hampshire. Founded in 1722, Barrington was named for Samuel Shute of Barrington Hall, the colonial governor of both Massachusetts and New Hampshire. This small town has contributed to our ever-growing nation since before its independence.

Hard-work and family are what has kept Barrington strong throughout the centuries. From its lakes and trails to its family-owned businesses, Barrington is an example of what the American Dream looks like for so many Granite Staters. This town of more than 9,000 has become a pillar of Strafford County and will continue to be for generations to come.

On behalf of my constituents in New Hampshire's First Congressional District, I want to congratulate the Town of Barrington on this incredible milestone. I look forward to a continued partnership with Barrington and its residents who I am proud to represent in Congress.

RECOGNIZING OHIO'S LONGEST-SERVING TOWNSHIP TRUSTEE, WILLIAM ''ANDY'' THOMPSON

HON. TROY BALDERSON

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mr. BALDERSON. Madam Speaker, I rise today to honor the service of Ohio's longest-serving township trustee, William ''Andy'' Thompson.

The year 1970 was momentous for many reasons. It was the year the Beatles released

their final album ''Let It Be'' just before the band broke up, the legal voting age in the U.S. was lowered from 21 to 18, and it was the year that William ''Andy'' Thompson first answered the call to serve his community.

After 52 years and 13 consecutive four-year terms, Andy ends his tenure as Ohio's longest-serving township trustee. Located in northwest Delaware County, Thompson Township, which carries the same family name only by coincidence, has a population of just 659 residents.

For township trustees in rural Ohio, the role requires more than just setting policy and addressing the concerns of residents. Given the size and budgets of smaller townships, the job often doubles as a part-time maintenance position of sorts. Even at age 84, Andy was no exception. On any given day, if Andy wasn't tending to his own farm, he could likely be found patching roads or mowing at the local cemetery.

Among Andy's long list of accomplishments spanning his more than five decades of public service was the construction of a new township hall, at no added expense to taxpayers.

While Andy's time as an officeholder has ended, his legacy will endure for many years to come. This legacy includes his successor as township trustee, his son, Andy Thompson III.

Andy has set a high bar for the thousands of township officeholders serving across Ohio's 1,308 townships. It is an honor to recognize his long career of public service and to express my sincere gratitude to William ''Andy'' Thompson on behalf of Ohio's 12th Congressional District.

PERSONAL EXPLANATION

HON. BILL POSEY

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mr. POSEY. Madam Speaker, due to a COVID–19 diagnosis, which resulted in my quarantining due to a doctor's order, I was unable to travel to D.C. for the legislative session on December 8, 2021.

Had I been present, I would have voted: NAY on Roll Call No. 406; YEA on Roll Call No. 407; YEA on Roll Call No. 408; YEA on Roll Call No. 409; NAY on Roll Call No. 410; NAY on Roll Call No. 411; YEA on Roll Call No. 412; YEA on Roll Call No. 413; YEA on Roll Call No. 414; YEA on Roll Call No. 415; YEA on Roll Call No. 416; YEA on Roll Call No. 417; YEA on Roll Call No. 418; NAY on Roll Call No. 419; NAY on Roll Call No. 420; YEA on Roll Call No. 421; YEA on Roll Call No. 422; YEA on Roll Call No. 423; NAY on Roll Call No. 424; NAY on Roll Call No. 425; YEA on Roll Call No. 426; YEA on Roll Call No. 427; YEA on Roll Call No. 428; YEA on Roll Call No. 429; YEA on Roll Call No. 430; YEA on Roll Call No. 431; YEA on Roll Call No. 432; YEA on Roll Call No. 433; YEA on Roll Call No. 434; and YEA on Roll Call No. 435.

CONGRATULATING GENESEO HIGH SCHOOL PRINCIPAL TRAVIS MACKEY ON HIS RETIREMENT FROM GENESEO CUSD NO. 228

HON. CHERI BUSTOS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mrs. BUSTOS. Madam Speaker, I rise today to recognize Geneseo High School principal, Travis Mackey, who is retiring from Geneseo Community Unit School District No. 228 after nearly 20 years at the end of 2021/2022 school year.

Mr. Mackey has been an integral part of the fabric of the city of Geneseo since he arrived in 2001 after teaching math at Rock Island High School for nearly 8 years. Mr. Mackey's first role with Geneseo High School was athletic director, which he held for 16 years. In a city that is deeply passionate about their interscholastic athletics, Mr. Mackey quickly became a beloved figure in the Geneseo Community. He further cultivated the strong citywide culture around the High School's sports teams and aided in making Maple Leafs sporting events a proud tradition. His work ethic and vigilant stewardship earned him a promotion in 2017, when he became principal of the High School. As the School's lead administrator, he helped position our children for future success, listened to their stories, offered advice, and strived to be a friendly face and voice to every student without reservation.

It is because of compassionate and trailblazing leaders such as Travis Mackey that I am especially proud to serve Illinois' 17th Congressional District. Madam Speaker, I would like to, again, formally congratulate Mackey on his retirement from Geneseo Community Unit School District No. 228 and thank him for his nearly 20 years of service to the city of Geneseo.

CONGRATULATING GREENFIELD-CENTRAL MARCHING BAND

HON. GREG PENCE

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 11, 2022

Mr. PENCE. Madam Speaker, I rise today to congratulate Greenfield-Central's Marching Band and Guard, Cougar Pride, for winning the Class B Championship at the state band competition at Lucas Oil Stadium.

This is the second straight marching band state title Greenfield-Central High School has taken home. These students have been perfecting their performance, titled ''Ramped Up'', since early summer.

Congratulations to Band Director Chris Wing and all 150 members of Cougar Pride on this achievement.

Daily Digest
Senate

Chamber Action

Routine Proceedings, pages S123–S163

Measures Introduced: Eleven bills were introduced, as follows: S. 3470–3480. **Page S159**

Measures Passed:

State and Local Government Cybersecurity Act: Senate passed S. 2520, to amend the Homeland Security Act of 2002 to provide for engagements with State, local, Tribal, and territorial governments, after withdrawing the committee amendment in the nature of a substitute, and agreeing to the following amendment proposed thereto: **Pages S161–162**

Schumer (for Peters) Amendment No. 4898, in the nature of a substitute. **Page S162**

Supply Chain Security Training Act: Senate passed S. 2201, to manage supply chain risk through counterintelligence training, after withdrawing the committee amendments, and agreeing to the following amendment proposed thereto: **Pages S162–163**

Schumer (for Peters) Amendment No. 4899, in the nature of a substitute. **Page S163**

Bose Nomination—Agreement: Senate resumed consideration of the nomination of Amitabha Bose, of New Jersey, to be Administrator of the Federal Railroad Administration, Department of Transportation. **Pages S132–156**

During consideration of this nomination today, Senate also took the following action:

By 61 yeas to 29 nays (Vote No. EX. 5), Senate agreed to the motion to close further debate on the nomination. **Page S132**

A unanimous-consent agreement was reached providing that Senate vote on confirmation of the nomination at a time to be determined by the Majority Leader in consultation with the Republican Leader. **Page S163**

A unanimous-consent agreement was reached providing for further consideration of the nomination, post-cloture, at approximately 12:30 p.m., on Wednesday, January 12, 2022; and that the vote on confirmation of the nomination occur at 3:30 p.m. **Page S163**

Nomination Confirmed: Senate confirmed the following nomination:

By 60 yeas to 31 nays (Vote No. EX. 4), Alan Davidson, of Maryland, to be Assistant Secretary of Commerce for Communications and Information. **Pages S123–131, S131–132**

Nominations Received: Senate received the following nominations:

Marvin L. Adams, of Texas, to be Deputy Administrator for Defense Programs, National Nuclear Security Administration.

Michael Cottman Morgan, of Wisconsin, to be an Assistant Secretary of Commerce.

Laura Gore Ross, of New York, to be a Member of the Board of Directors of the Corporation for Public Broadcasting for a term expiring January 31, 2028.

Corey Wiggins, of Mississippi, to be Federal Co-chairperson, Delta Regional Authority. **Page S163**

Messages from the House: **Pages S158–159**

Measures Read the First Time: **Pages S159, S161**

Additional Cosponsors: **Pages S159–160**

Statements on Introduced Bills/Resolutions:

Additional Statements: **Pages S157–158**

Amendments Submitted: **Pages S160–161**

Authorities for Committees to Meet: **Page S161**

Privileges of the Floor: **Page S161**

Record Votes: Two record votes were taken today. (Total—5) **Page S132**

Adjournment: Senate convened at 11 a.m. and recessed at 8:32 p.m., until 12:30 p.m. on Wednesday, January 12, 2022. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S163.)

Committee Meetings

(Committees not listed did not meet)

NOMINATION

Committee on Banking, Housing, and Urban Affairs: Committee concluded a hearing to examine the nomination of Jerome H. Powell, of Maryland, to be Chairman of the Board of Governors of the Federal

Reserve System, after the nominee testified and answered questions in his own behalf.

HYDROPOWER

Committee on Energy and Natural Resources: Committee concluded a hearing to examine the opportunities and challenges for maintaining existing hydropower capacity, expanding hydropower at non-powered dams, and increasing pumped storage hydropower, after receiving testimony from Jennifer Garson, Acting Director, Water Power Technologies Office, Office of Energy Efficiency and Renewable Energy, Department of Energy; Camille Calimlim Touton, Commissioner, Bureau of Reclamation, Department of the Interior; Scott Corwin, Northwest Public Power Association, Vancouver, Washington; and Malcolm Woolf, National Hydropower Association, Washington, D.C.

FEDERAL COVID–19 RESPONSE

Committee on Health, Education, Labor, and Pensions: Committee concluded a hearing to examine a Federal perspective on the COVID–19 response, focusing on addressing new variants, after receiving testimony from Rochelle P. Walensky, Director, Centers for Disease Control and Prevention, Anthony S. Fauci, Director, National Institute of Allergy and Infectious Diseases, National Institutes of Health, Janet Woodcock, Acting Commissioner of Food and Drugs, Food and Drug Administration, and Dawn O'Connell, Assistant Secretary for Preparedness and Response, all of the Department of Health and Human Services.

DOMESTIC TERRORISM

Committee on the Judiciary: Committee concluded a hearing to examine the domestic terrorism threat one year after January 6, after receiving testimony from Matthew G. Olsen, Assistant Attorney General, and Jill Sanborn, Executive Assistant Director, National Security Branch, Federal Bureau of Investigation, both of the Department of Justice.

INTELLIGENCE

Select Committee on Intelligence: Committee met in closed session to receive a briefing on certain intelligence matters from officials of the intelligence community.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 2 public bills, H.R. 6371–6372; and 2 resolutions, H.J. Res. 68; and H. Res. 865, were introduced. **Page H43**

Additional Cosponsors: **Pages H43–44**

Reports Filed: There were no reports filed today.

Speaker: Read a letter from the Speaker wherein she appointed Representative Correa to act as Speaker pro tempore for today. **Page H11**

Recess: The House recessed at 11:16 a.m. and reconvened at 12 noon. **Pages H19–20**

Guard and Reserve GI Bill Parity Act and Ensuring Veterans' Smooth Transition Act—Rule for Consideration: The House agreed to H. Res. 860, providing for consideration of the bill (H.R. 1836) to amend title 38, United States Code, to ensure that the time during which members of the Armed Forces serve on active duty for training qualifies for educational assistance under the Post-9/11 Educational Assistance Program of the Department of Veterans Affairs; providing for consideration of the bill (H.R. 4673) to amend title 38, United States Code, to provide for the automatic enrollment of eligible veterans in patient enrollment system of Department of Veterans Affairs; by a yea-and-nay vote of 219 yeas to 203 nays, Roll No. 3, after the previous question was ordered by a yea-and-nay vote of 219 yeas to 203 nays, Roll No. 2. **Pages H23–31**

Senate Referrals: S. 450 was held at the desk. S. 3451 was held at the desk. **Page H20**

Senate Message: Message received from the Senate today appears on page H20.

Quorum Calls—Votes: Two yea-and-nay votes developed during the proceedings of today and appear on pages H30 and H31.

Adjournment: The House met at 10 a.m. and adjourned at 4:23 p.m.

Committee Meetings

SECURITY OF THE CAPITOL CAMPUS SINCE THE ATTACK OF JANUARY 6, 2021

Committee on Appropriations: Subcommittee on Legislative Branch held a hearing entitled "Security of the Capitol Campus since the Attack of January 6, 2021". Testimony was heard from Brett Blanton, Architect of the Capitol; J. Thomas Manger, Chief

of Police, U.S. Capitol Police; and Major General William J. Walker, Sergeant-at-Arms, U.S. House of Representatives.

RED HILL BULK FUEL STORAGE FACILITY: THE CURRENT CRISIS, THE RESPONSE, AND THE WAY FORWARD

Committee on Armed Services: Subcommittee on Readiness held a hearing entitled "Red Hill Bulk Fuel Storage Facility: The Current Crisis, the Response, and the Way Forward". Testimony was heard from Vice Admiral Yancy Lindsey, Commander, Navy Installations Command; Rear Admiral Blake Converse, Deputy Command, U.S. Pacific Fleet; Rear Admiral John K. Korka, Commander, Naval Facilities Engineering Systems Command, Chief of Civil Engineers; Rear Admiral Peter Stamatopoulos, Supply Corps, U.S. Navy, Commander, Naval Supply Systems Command and Chief of Supply Corps; and Captain Michael McGinnis, Pacific Fleet Surgeon, Commander, U.S. Pacific Fleet.

CYBERSECURITY FOR THE NEW FRONTIER: REFORMING THE FEDERAL INFORMATION SECURITY MODERNIZATION ACT

Committee on Oversight and Reform: Full Committee held a hearing entitled "Cybersecurity for the New Frontier: Reforming the Federal Information Security Modernization Act". Testimony was heard from Jennifer R. Franks, Director of Information Technology and Cybersecurity, U.S. Government Accountability Office; and public witnesses.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR WEDNESDAY, JANUARY 12, 2022

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Agriculture, Nutrition, and Forestry: business meeting to consider the nominations of Chavonda J. Jacobs-Young, of Georgia, to be Under Secretary for Research, Education, and Economics, and Margo Schlanger, of Michigan, to be an Assistant Secretary, both of the Department of Agriculture, Time to be announced, Room to be announced.

Committee on Environment and Public Works: business meeting to consider the nominations of David M. Uhlmann, of Michigan, and Henry Christopher Frey, of North Carolina, both to be an Assistant Administrator of the Environmental Protection Agency, Martha Williams, of Montana, to be Director of the United States Fish and Wildlife Service, Department of the Interior, and 18 GSA resolutions; to be immediately followed by an oversight hearing to examine the Water Resources Development Act, focusing on USACE implementation of water infrastructure projects, programs, and priorities, 2:45 p.m., SD–106.

Committee on Foreign Relations: business meeting to consider the nominations of Amy Gutmann, of Pennsylvania, to be Ambassador to the Federal Republic of Germany, Donald Armin Blome, of Illinois, to be Ambassador to the Islamic Republic of Pakistan, Christopher R. Hill, of Rhode Island, to be Ambassador to the Republic of Serbia, Joseph Donnelly, of Indiana, to be Ambassador to the Holy See, and Michele Taylor, of Georgia, for the rank of Ambassador during her tenure of service as United States Representative to the UN Human Rights Council, all of the Department of State, Alice P. Albright, of the District of Columbia, to be Chief Executive Officer, Millennium Challenge Corporation, Enoh T. Ebong, of the District of Columbia, to be Director of the Trade and Development Agency, and other pending calendar business; to be immediately followed by a hearing to examine the nominations of Sarah H. Cleveland, of New York, to be Legal Adviser, James C. O'Brien, of Nebraska, to be Head of the Office of Sanctions Coordination, with the rank of Ambassador, George J. Tsunis, of New York, to be Ambassador to Greece, and Beth Van Schaack, of California, to be Ambassador at Large for Global Criminal Justice, Eric M. Garcetti, of California, to be Ambassador to the Republic of India, Lisa A. Carty, of Maryland, to be Representative of the United States of America on the Economic and Social Council of the United Nations, with the rank of Ambassador, and to be an Alternate Representative of the United States of America to the Sessions of the General Assembly of the United Nations, during her tenure of service as Representative of the United States of America on the Economic and Social Council of the United Nations, and Laura S. H. Holgate, of Virginia, to be Representative of the United States of America to the International Atomic Energy Agency, with the rank of Ambassador, and to be Representative of the United States of America to the Vienna Office of the United Nations, with the rank of Ambassador, all of the Department of State, Oren E. Whyche-Shaw, of Maryland, to be United States Director of the African Development Bank, routine lists in the Foreign Service, and other pending calendar business, 9 a.m., SD–G50.

Committee on Indian Affairs: to hold hearings to examine closing the digital divide in Native communities through infrastructure investment, 2:30 p.m., SD–628/VTC.

Committee on the Judiciary: to hold hearings to examine the nominations of Andre B. Mathis, of Tennessee, to be United States Circuit Judge for the Sixth Circuit, Jessica G. L. Clarke, to be United States District Judge for the Southern District of New York, Hector Gonzalez, to be United States District Judge for the Eastern District of New York, Fred W. Slaughter, to be United States District Judge for the Central District of California, and Sharon Bradford Franklin, of Maryland, to be Chairman and Member, and Beth Ann Williams, of New Jersey, to be a Member, both of the Privacy and Civil Liberties Oversight Board, 9 a.m., SD–226.

Select Committee on Intelligence: to hold hearings to examine the nomination of Kenneth L. Wainstein, of Virginia, to be Under Secretary for Intelligence and Analysis, Department of Homeland Security, 2 p.m., SD–G50.

House

Committee on Agriculture, Full Committee, hearing entitled ''Implications of Electric Vehicle Investments for Agriculture and Rural America'', 10 a.m., Zoom.

Committee on Appropriations, Subcommittee on Defense, hearing entitled ''Impact of Continuing Resolutions on the Department of Defense and Services'', 10 a.m., Webex.

Committee on Small Business, Full Committee, hearing entitled ''Review of SBA's Top Management and Performance Challenges in Fiscal Year 2022 and SBA OIG's Semiannual Report to Congress'', 10 a.m., 2360 Rayburn and Zoom.

Committee on Transportation and Infrastructure, Subcommittee on Water Resources and Environment, hearing entitled ''Proposals for a Water Resources Development Act of 2022: Administration Priorities'', 10 a.m., 2167 Rayburn and Zoom.

Next Meeting of the **SENATE**

12:30 p.m., Wednesday, January 12

Senate Chamber

Program for Wednesday: Senate will continue consideration of the nomination of Amitabha Bose, of New Jersey, to be Administrator of the Federal Railroad Administration, Department of Transportation, post-cloture, and vote on confirmation thereon at 3:30 p.m.

Next Meeting of the **HOUSE OF REPRESENTATIVES**

12 noon, Wednesday, January 12

House Chamber

Program for Wednesday: Consideration of H.R. 1836—Guard and Reserve GI Bill Parity Act. Consideration of H.R. 4672—EVEST Act.

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